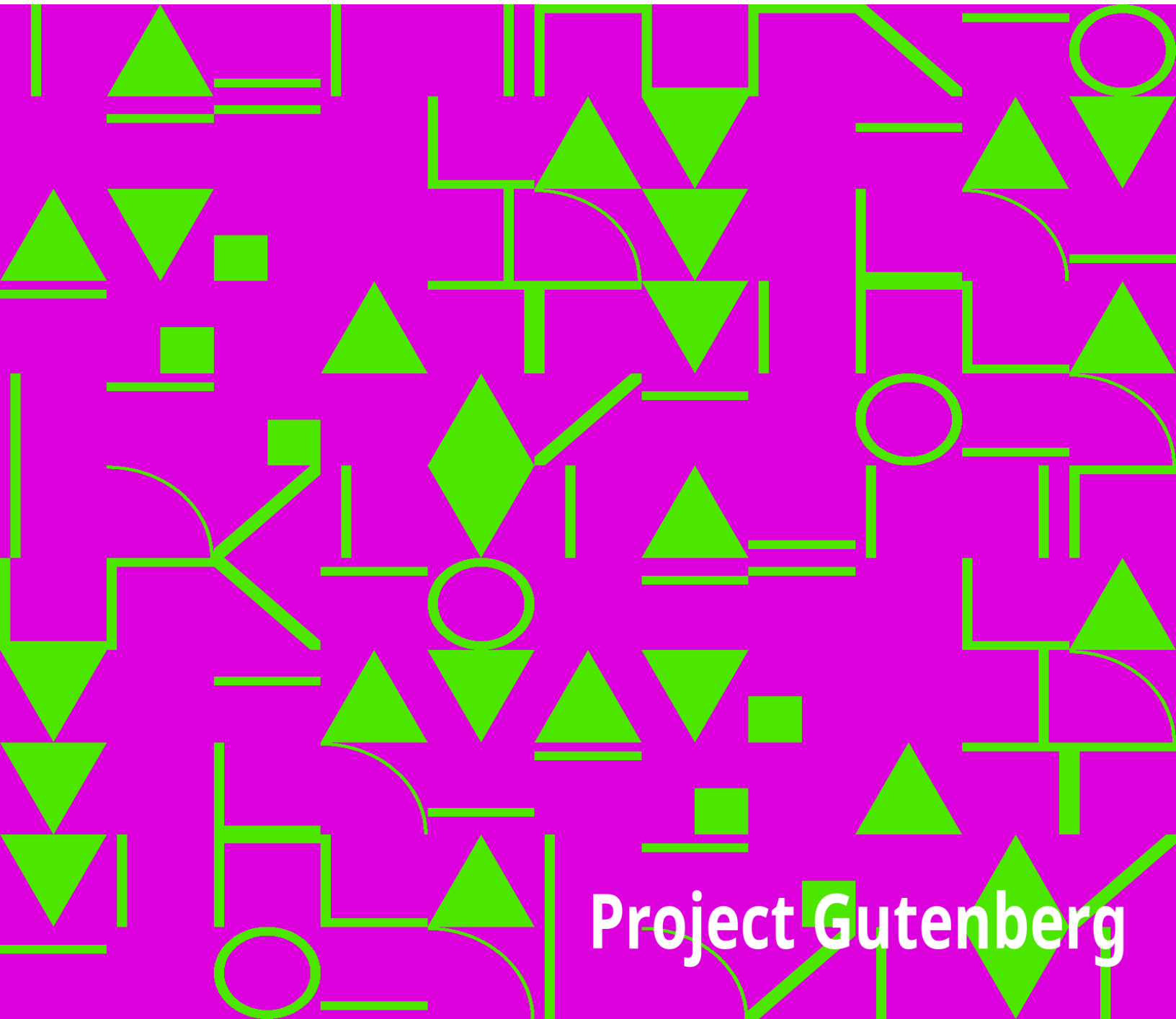


Bartholomew de Las Casas; his life, apostolate, and writings

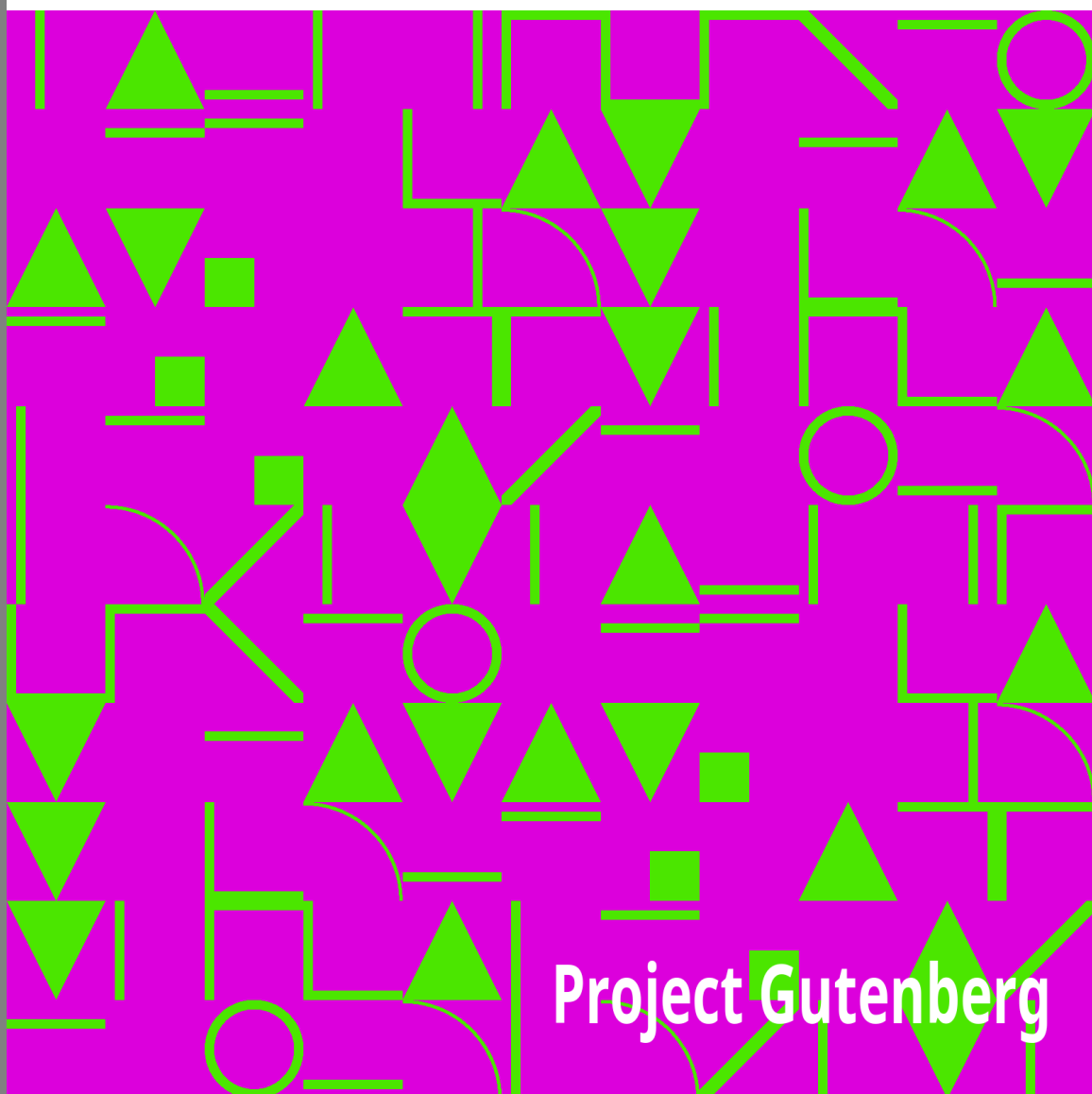
Francis Augustus MacNutt



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apostolate, and writings**

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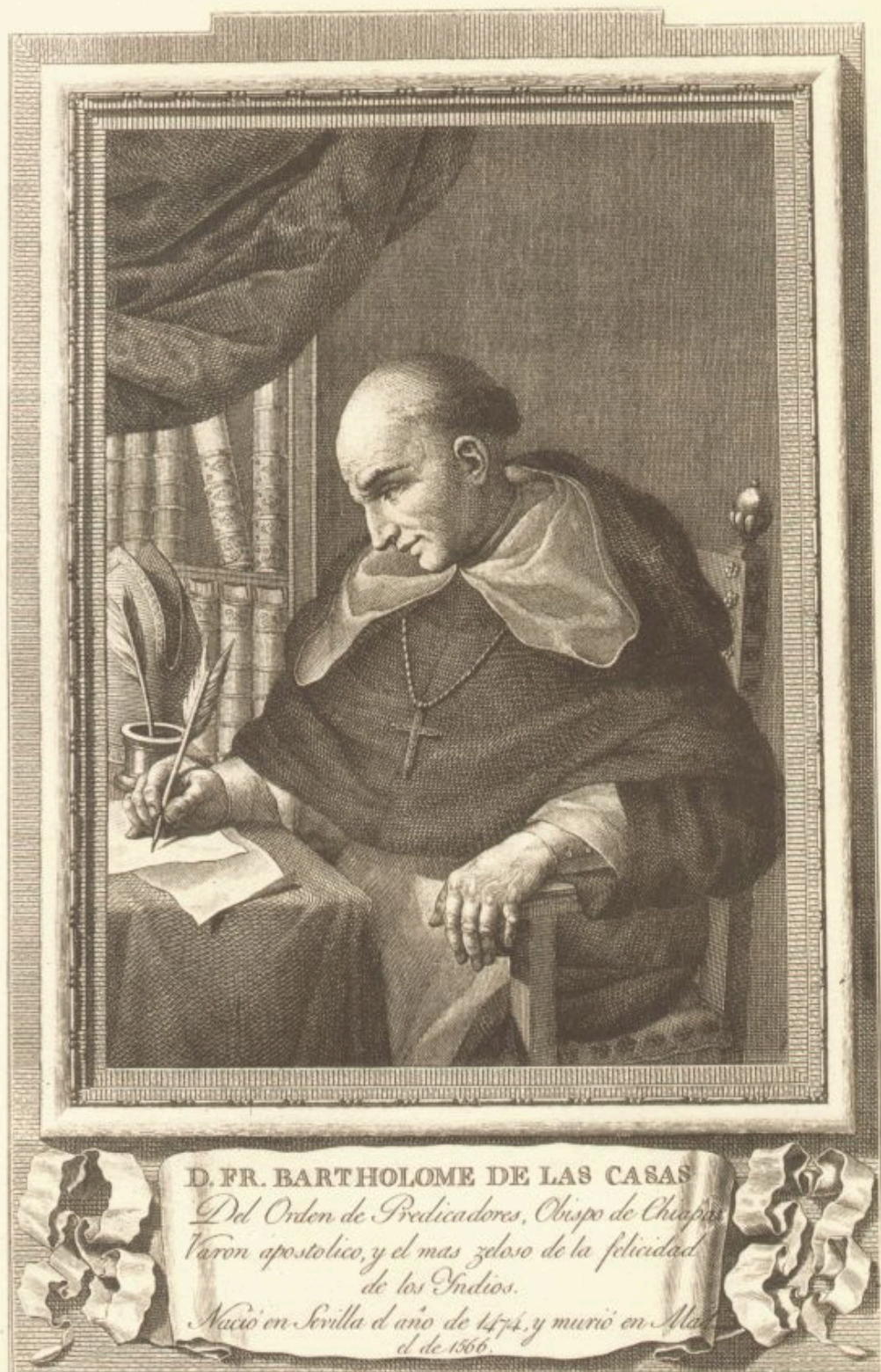
Release date: November 13, 2007 [eBook #23466]

Most recently updated: April 1, 2013

Language: English

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BARTHOLOMEW DE LAS CASAS; HIS LIFE, APOSTOLATE, AND
WRITINGS ***



D. FR. BARTHOLOME DE LAS CASAS

*Del Orden de Predicadores, Obispo de Chiapas
Varon apostolico, y el mas zeloso de la felicidad
de los Indios.*

*Nacio en Sevilla el año de 1474, y murió en Madrid
el de 1566.*

Fray Bartholomew de Las Casas

From the portrait drawn and engraved by Enguidanos.

Bartholomew de Las Casas; his life, apostolate, and writings

By Francis Augustus MacNutt

Cleveland, U.S.A.
The Arthur H. Clark Company

1909

To my beloved wife, Margaret Van Cortlandt Ogden this volume is affectionately dedicated

Preface

The controversies of which Bartholomew de Las Casas was, for more than half a century, the central figure no longer move us, for slavery, as a system, is dead and the claim of one race or of men to hold property rights in the flesh and blood of another finds no defenders. We may study the events of his tempestuous life with serene temper, solely for the important light on the history of human progress.

It is sought in the present work to assign to the noblest Spaniard who ever landed in the western world, his true place among those great spirits who have defended and advanced the cause of just liberty, and, at the same time, to depict the conditions under which the curse of slavery was first introduced to North America. It in no degree lessens the glory of Las Casas to insist upon the historical fact that he was neither the first Spaniard to defend the liberty of the American Indians, nor was he alone in sustaining the struggle, to which the best years of a life that all but spanned a century were exclusively dedicated.

Born in an age of both civil and religious despotism, his voice was incessantly raised in vindication of the inherent and inalienable right of every human [pg vi] being to the enjoyment of liberty. He was preeminently a man of action to whom nothing human was foreign, and whose gift of universal sympathy co-existed with an uncommon practical ability to devise corrective reforms that commanded the attention and won the approval of the foremost statesmen and moralists of his time. True, he also had a vision of Utopia, and his flights of imaginative altruism frequently elevated him so far above the realities of this world, that the incorrigible frailties of human nature seemed to vanish from his calculations, but when the rude

awakening came, he neither forsook the fight nor failed to profit by the bitter lesson.

When his dream of an ideal colony, peopled by perfect Christians labouring for the conversion of model Indians, adorned with primitive virtues, was dispelled, he girded his loins to meet his enemies with undiminished courage, on the battle-ground they themselves had selected. His moral triumph was complete, and he issued from every encounter victorious. The fruits of his victories were not always immediate or satisfying, nor did he live to see the practical application of all his principles, yet the figure of this devoted champion of freedom stands on a pedestal of enduring fame, of which the foundations rest on the eternal homage of all lovers of justice and liberty, and it is the figure of a victor, who served God and loved his fellow-men.

It will be seen in the following narrative, that monks of the Order of St. Dominic were the first to defend the liberty of the Indian and his moral [pg vii] dignity as a reasonable being, endowed with free will and understanding. Associated in the popular conception with the foundation and extension of the Inquisition, the Dominicans may appear in a somewhat unfamiliar guise as torch-bearers of freedom in the vanguard of Spanish colonial expansion in America, but such was the fact. History has made but scant and infrequent mention of these first obscure heroes, who faced obloquy and even risked starvation in the midst of irate colonists, whose avarice and brutality they fearlessly rebuked in the name of religion and humanity: they sank, after lives of self-immolation, into nameless graves, sometimes falling victims to the blind violence of the very Indians whose cause they championed—protomartyrs of liberty in the new world.

The conditions under which Las Casas and his co-workers laboured were discouragingly adverse. The mailed conquerors and eager treasure-seekers who followed in the wake of Columbus were consumed by two ruthless passions—avarice and ambition.

Avarice and ambition alone, however, do not adequately explain their undertakings, and we find among them a fierce zeal for Christian propaganda strikingly disproportionate to their fitness to expound the doctrines or illustrate the virtues of the Christian religion. They seem to

have frequently compounded for their sins of sensuality and their deeds of blood by championing the unity and purity of the faith—two things that were held to be of paramount importance, especially in Spain, where [pg viii] to be outside formal communion with the Church was to be either a Jew or a Mahometan, or in other words, an enemy of God.

Perverted as their conception of the true spirit of Christian propaganda may appear to us, it may not be doubted that many of these men were animated by honest missionary zeal and actually thought their singular methods would procure the conversion of the Indians. On the other hand, few of those who left Spain, animated by high motives, resisted the prevalent seductions of avarice and ambition, amidst conditions so singularly favourable to their gratification, and we find Las Casas denouncing, as ridiculous and hypocritical, the pretensions to solicitude for the spread of religion, under cover of which the colonists sought to obtain royal sanction for the systems of slavery and serfage they had inaugurated.

The essential differences observable in the Spanish and English colonies in America are traceable to the directly contrary systems of government prevailing at that time in the mother countries. All nations of Aryan stock possessed certain fundamental features of government, inherited from a common origin. Climatic and geographical conditions operated with divers other influences to produce race characteristics, from which the several nations of modern Europe were gradually evolved. Within each of these nations, the inherited political principles common to all of them were unequally and diversely developed. The forms of political liberty continued to survive in Spain, but, under [pg ix] Charles V., the government became, in practice, an absolute monarchy, the liberties of the Córtes and the Councils being gradually overshadowed by the ever-growing prerogatives of the Crown.

In England, on the contrary, the share of the people in the government was, in spite of opposition, of steady growth, only interrupted by occasional periods of suspension, while the power of the Crown declined. These conditions were repeated in the colonies of the two nations, with some variations of form that were due to local influences in each of them. The Spanish colonies relied entirely on the Crown and were, from the outset,

over-provided with royal officials from the grade of viceroy to that of policeman, and even with clergy, all of whom were appointed by the king's sole authority and were removable at his pleasure. These settlements generally owed their existence to private enterprise, having been founded by explorers and treasure-seekers, but in none of them did the colonists enjoy any political rights or liberties, other than what it pleased the sovereign to grant them.

They were ruled through a bureaucracy, of which the members were rarely efficient and usually corrupt, hence it followed that Spaniards were bereft of any incentive to colonise, save one—their individual aggrandisement. Their inherited habit of obedience reconciled them to the absence of any share in the direction and control of the colony in which their lot was thrown, but such a system of administration deprived them of the possibility of acquiring experience in the management [pg x] of public affairs. Its effects were pernicious and far-reaching, for when the colonies outgrew the bonds that linked them to Spain, their people, ignorant of the meaning of true liberty, and untrained in self-government, followed their instinct of blind submission to direction from above, and fell an easy prey to demagogues. Deprived of participation in framing the laws, the colonists employed their ingenuity in devising means to evade or nullify those which they deemed obnoxious or contrary to their interests, and constant practice soon perfected their perverted activities in this direction, until obstruction and procrastination were erected into a system, against which even royal decrees were powerless.

The results that followed were logical and inevitable. Laws devoid of sufficient force to ensure their effective execution fail to afford the relief or protection their enactment designs to provide, and ineffectual laws are worse than no laws at all, for their defeat weakens the government that enacts them and tends to bring all law into contempt. Conditions of distance, the corruption of the colonial officials, the conflict between local authorities, and the astutely organised opposition of the colonists repeatedly thwarted the honest efforts of the home government to safeguard the liberty of the Indians, which the Spanish sovereigns had defined to be natural and inalienable, definitions that had received the solemn sanction of the Roman pontiffs.

Spanish and English methods of dealing with the aboriginal tribes of America offer as sharp a contrast [pg xi] as do their respective systems of colonial government. Whether the devil himself possesses ingenuity in inflicting suffering, superior to that displayed by the Spanish conquerors and their immediate followers, has never been demonstrated. The gentle, unresisting natives of the West Indian Islands, whose delicate constitutions incapacitated them to bear labours their masters exacted of them, were their first victims. The descriptions penned as of the cruelties practised on these harmless creatures dispense me from the ungrateful task of attempting to depict them. But, while the individual Indian suffered inhuman tortures at the hands of the Spaniards, the race survived and, by amalgamation with the invaders, it continues to propagate, and to rise in the scale of humanity.

The English colonists found different conditions waiting them when they landed on the northern coasts of America, where the Indian tribes were neither gentle nor submissive. Two absolutely alien and hostile races faced one another, of which the higher professed small concern for the amelioration of the lower, while amalgamation was excluded by the mutual pride of race and the instinctive enmity that divided them. There was no enslaving of Indians, and the torturing was done entirely by the savages, but, while the English method spared the individual Indian the suffering his defenceless brother in the south had to endure, the aboriginal races have everywhere receded before the relentless advance of civilisation. The battle between the civilised and savage peoples has been uncompromising; the [pg xii] stronger of the Indian nations have gone down, fighting, while the remnants of such tribes as survive remain herded on the ever-encroaching frontiers of a civilisation in which a tolerable place has been but tardily provided for them. We cannot escape the conclusion that our treatment of the races we have displaced and exterminated has been as systematically and remorselessly destructive as was the spasmodic and oftentimes sportive cruelty operated by the Spaniards. The Spanish national conscience recognised the obligation of civilising and Christianising the Indians, a task which Spaniards finally accomplished. The Spanish sovereigns were honestly desirous of protecting their new subjects, and the injustice inflicted on the latter was done in defiance of the laws they enacted, as well as of public opinion in Spain, which condemned it as severely as could the most advanced humanitarian sentiment of our own times.

Las Casas voiced this condemnation and organised a masterly campaign of education on the subject of the proper method of dealing with the Indians. He suffered and endured for their sakes, while the men whose selfish and inhuman undertakings he thwarted poured the vilest abuse and calumny upon him. Nature had mercifully endowed him with no sensitiveness save for the sufferings of the oppressed, and he was as much a born fighter as the fiercest conqueror who ever landed in Spanish America. He waged a moral battle, animated by only the noblest motives, and in his damning arraignment of his countrymen, he eschewed personalities and, with [pg xiii] a charity as rare as it was becoming to his sacerdotal character, he occupied himself exclusively with the principles at stake, leaving the punishment of the criminals to the final justice of God.

The records of the earliest peoples of whom history preserves knowledge—Chaldeans, Egyptians, Phenicians, and Arabians—show that slavery has existed the remotest antiquity. Slavery was the common fate of prisoners of war in the time of Homer; Alexander sold the inhabitants of Thebes, and the Spartans reduced the entire population of Helos to servitude, so that Helot came to be synonymous with slave, while one of the laws inscribed on the Twelve Tables of Rome gave a creditor the right to sell an insolvent debtor into slavery to satisfy his claim. Wealthy Romans frequently possessed slaves, over whose lives and fortunes the owners were absolute masters.

Christianity first taught the unity and equality of mankind; salvation was for bond and free, for Jew and Gentile; the immortality of each human soul was affirmed; each man's body was defined of the Holy Ghost and a new dignity was conferred by these novel doctrines on universal mankind, which the lowly shared equally with the mighty. The Christian conception of liberty and equality however, referred more to the moral than to the material order. "The truth shall make you free." It was not subversive of existing mundane conditions, but taught the duty of rendering Caesar his due, and of the servant being subject to his lord, the woman to her husband, [pg xiv] and children to their parents. The early Christians too sincerely despised the prizes of this world—including the greatest of all, liberty—to struggle for possession of any of them; unresponsive to the lure of earthly honours and treasures, they fixed their desires on things eternal. Slavery continued to coexist with Christianity: children were sold publicly in the markets of

Bristol during the reign of King Alfred, and the villeins were bound to the glebe, changing masters with the transfer of the property from one proprietor to another. The laws of Richard III. and of Edward VI. dealt severely, not only with slaves, but with all deserters, runaway apprentices, and other recalcitrant dependents, who were reduced to partial or perpetual slavery for the most trivial offences. The condition of these various categories of bondmen, however, was more one of serfage and vassalage, the ancient system of slavery that had culminated in the Roman Empire having been modified by the mild doctrines of Christianity and the gradual spread of the new civilisation.

From the discoveries along the west coast of Africa, made by the Portuguese in the first half of the fifteenth century, may be dated the revival of the trade in slaves for purely commercial purposes. Portugal and southern Spain were thenceforward regularly supplied with cargoes of negroes, numbering between seven and eight hundred yearly. The promoter of these expeditions was Prince Henry of Portugal, third son of John I. and Philippa, daughter of John Gaunt, though in [pg xv] justice to that amiable and learned prince, it must be borne in mind that the capture and sale of negroes was merely incidental to explorations the unvarying purpose of which was purely scientific. Prince Henry held that the negroes thus captured into his dominions were amply compensated for the loss of such uncertain liberty as they enjoyed, by receiving the light of Christian teaching. It seems evident that most of them merely changed masters and probably gained by the exchange, for they were born subjects of barbarous rulers, in lands where the traffic in slaves was active. Many were obtained from the Arabs and Moors, who already held them in bondage and, without minimising the sufferings inseparable from all slave-trade, we may not unreasonably assume that those who reached Portugal and Spain were the least unfortunate of all their kind.

Las Casas, being a native of Andalusia, was familiar with this slave-trade, for Seville was well provided with domestic slaves, whose lot was not a particularly hard one. So much a matter of course was the presence of these negroes in Spain, that he never admits he had never duly considered their condition or the matter of their capture and sale. It thus fell, as will be later described, that he assented to the demands of the Spanish colonists in the

Indies for permission to import Africans from Spain to take the place of the rapidly perishing Indians. In the recommendation of this measure, several later historians pretended to discover the origin of negro slavery in America, despite the authenticated fact [pg xvi] that sixteen years before Las Casas advised the importation of negroes into the Indies, the slave-trade had been begun; nor is it unlikely that other negroes had been brought to America by their Spanish owners at a still earlier date. Although the original intention had been to import only Christian negroes, this provision of the law had been easily and persistently evaded, under the leniency and indifference of the authorities, who connived at such profitable violation. It was contended that the labour problem in the colonies admitted of no other solution; the inefficient Indians were rapidly disappearing, of white labour there was none, and, to respond to the demand for labourers, the Dominican Order, in 1510, sanctioned the importation of negroes direct from Africa, still maintaining the proviso that all who were Jews or Mahometans should be excluded.

Ovando had reported the Indians as so naturally indolent that no wages could induce them to work. He represented them as flying from contact with the Spaniards, leaving Queen Isabella to suppose that their avoidance was due to a natural antipathy to white men. The Queen, in her zeal to fulfil the conditions imposed on her conscience by the papal bull of donation, was easily tricked by the representations of the Governor, coinciding as they did with those of other advisers of influence and high station, into assenting to the enforced labour of the Indians.

Her reason is explicitly stated to be “because we desire that the Indians should be converted to our holy catholic faith and should learn doctrine.” [pg xvii] For this motive, and with many restrictions as to the period of work and the kinds of labour to be performed by the natives, the gentle treatment to be shown them, and the wages to be paid them, the royal order was finally issued. It is evident that the misinformed and deluded sovereign regarded the labour of the Indians almost as a pretext for bringing them into contact with the Spaniards, solely for their own spiritual and moral advantage.

The discovery of America, following as it did so closely upon the development of the negro slave traffic, had given great impetus to it and, during the three succeeding centuries, Portuguese, Italians, Spaniards, English, and Dutch quickly became close rivals for an ignominious primacy in the most heinous of crimes. The highest figures I have found, assign to England one hundred and thirty vessels engaged in the trade, and forty-two thousand negroes landed in the Americas during the year 1786 from English ships. The annals of slavery are so uniformly black, that among all the nations there is not found one guiltless, to cast the first stone. More than their due proportion of obloquy has been visited upon the Spaniards for their part in the extension of slavery and for the offences against justice and humanity committed in the New World, almost as though they alone deserved the pillory. Consideration of the facts here briefly touched upon should serve to restrain and temper the condemnation that irreflection has too often allowed us to heap exclusively upon them for their share in these great iniquities. If they were pitiless [pg xviii] towards individuals, we have shown ourselves merciless towards the race; as a nation, they recognised moral duties and responsibilities towards Indian peoples which our forefathers ignored or repudiated; the failure of the benevolent laws enacted by Spanish sovereigns was chiefly due to the avarice and brutality of individuals, who were able to elude both the provisions of the law and the punishment their crimes merited. On the other hand, Las Casas thrilled two worlds with his denunciations of crimes which our own enlightened country continued for three centuries to protect. His apostolate was prompted, not by the horrors he witnessed nor by merely emotional sympathy, but by meditation on the fundamental principles of justice. The Scripture texts that startled him from the moral lethargy in which he had lived during eight years, revealed to him the blasphemy involved in the performance of acts of formal piety and works of benevolence, by men who degraded God's image in their fellow-men and sacrificed hecatombs of human victims to gratify their greed for riches.

From the hour of his awakening, we follow him during sixty years of ceaseless activity such as few men have ever displayed. His vehemence tormented his adversaries beyond endurance, and they charged him with stirring up dissensions and strife in the colonies, ruining trade, discouraging emigration to the Indies, and, by his importunate and reckless propaganda,

with inciting the Indians to rebellion. Granting that some abuses existed, they argued that his methods for redressing them were [pg xix] more pernicious than the evils themselves; prudent measures should be employed, not the radical and precipitate method of the fanatical friar, and time would gradually do the rest. Men who argued such as the Bishop of Burgos and Lope Conchillos, were large holders of encomienda properties, who objected to having their sources of income disturbed. Las Casas penetrated the flimsy disguise they sought to throw over their real purpose, to smother the truth the better to consolidate and extend their interests, and realising that his only hope of success lay in keeping the subject always to the front, he pursued his inexorable course of teaching, writing, journeying to America to impeach judges and excommunicate refractory colonists, and thence back again to Spain to publish his accusations broadcast and petition redress from the King and his Councils.

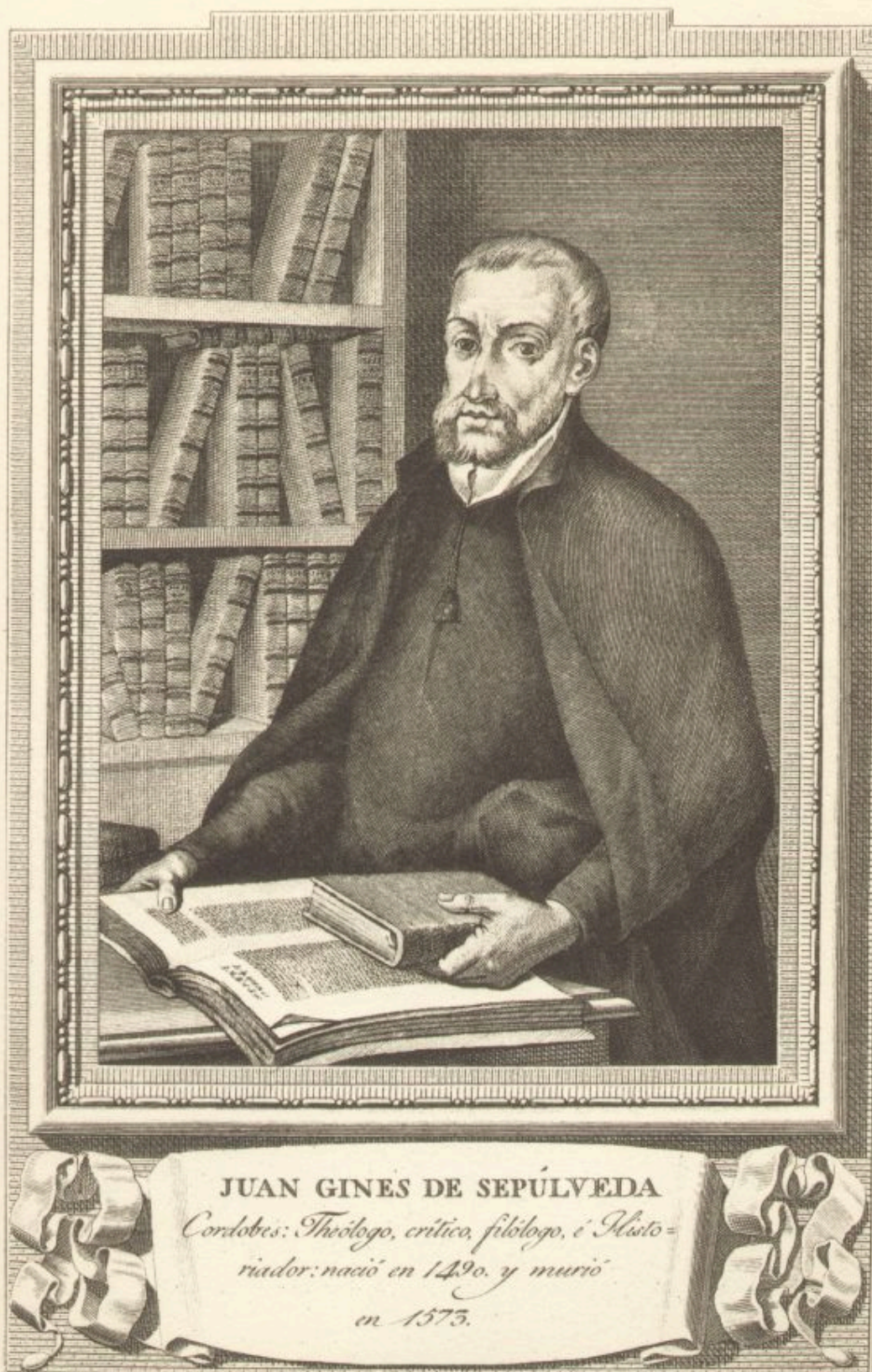
The most respectable of his contemporary opponents in the New World was Toribio de Benevente, under his popular Indian name of Motolinia. In 1555, Motolinia wrote a letter to in which he dealt severely with the accusations of Las Casas, whom he described as a restless, turbulent man, who wandered from one colony to another, provoking disturbances and scandals. He confined himself to a general denial of the alleged outrages, without attempting to refute them by presenting proofs of their falsity, while his indignation was prompted by his patriotism. He was shocked that a Spaniard should publish such accusations against his own countrymen; [pg xx] things which would be read by foreigners and even by Indians, and thus bring reproach on the Spanish national honour. He expressed astonishment that the Emperor permitted the publication and circulation of such books, taxing their author with wilful exaggeration and false statements, and pointing out that the accusations brought more dishonour on the monarch than on his subjects.

Motolinia was a devout man, whose apostolic life among the Indians won him his dearly loved name, equivalent to “the poor man” or poverello of St. Francis, but with all his virtues, he belonged to the type of churchman that dreads scandal above everything else. The methods of Las Casas scandalised him; it wounded his patriotism that Spaniards should be held up to the execration of Christendom, and he rightly apprehended that such

damaging information, published broadcast, would serve as a formidable weapon in the hands of the adversaries of his church and country. It must also be remembered that he lived in Mexico, where Las Casas admits that the condition of the Indians was better than in the islands and other parts of the coast country.

The Bishop of Burgos and Lope Conchillos will be seen to be fair exponents of the bureaucratic type of opponents to the reforms Las Casas advocated. The Bishop in particular appears in an unsympathetic light throughout his long administration of American affairs. Of choleric temper, his manners were aggressive and authoritative, and he used his high position to advance his private interests. He [pg xxi] was a disciplinarian, a bureaucrat averse to novelties and hostile to enthusiasms. He anticipated Talleyrand's maxim "Sûrtout pas de zole," and to be nagged at by a meddlesome friar was intolerable to him. Such men were probably no more consciously inhuman than many otherwise irreproachable people of all times, who complacently pocket dividends from deadly industries, without a thought to the obscure producers of their wealth or to the conditions of moral and physical degradation amidst which their brief lives are spent.

The most formidable of all the adversaries of Las Casas was Gines de Sepulveda. A man of acute intellect, vast learning, and superlative eloquence, this practiced debater stood for theocracy and despotism, defending the papal and royal claims to jurisdiction over the New World. In striving to establish a dual tyranny over the souls and bodies of its inhabitants, he concerned himself not at all with the human aspect of the question nor did he even pretend to controvert the facts with which his opponent met him. He was exclusively engaged in upholding the abstract right of the Pope and the Spanish sovereigns to exercise spiritual and temporal jurisdiction over heathen, as well as Catholic peoples. To impugn this principle was, according to Sepulveda, to strike at the very foundations of Christendom; that a few thousands of pagans, more or less, suffered and perished, was of small importance, compared with the maintenance of this elemental principal. First conquer and then convert, was [pg xxii] his maxim. His thesis constitutes the very negation of Christianity.



JUAN GINÉS DE SEPÚLVEDA

Cordobes: Theólogo, crítico, filólogo, é Historiador: nació en 1490. y murió en 1575.

Juan Gines de Sepúlveda

From the engraving by J. Barcelon, after the drawing of J. Maca.

Las Casas repeatedly challenged his opponents to refute his allegations or to contradict his facts and, in a letter to Carranza de Miranda in 1556, he wrote:

“It is moreover deplorable that, after having denounced this destruction of peoples to our sovereigns and their councils a thousand times during forty years, nobody has yet dreamed of proving the contrary and, after having done so, of punishing me by the shame of a retraction. The royal archives are filled with records of trials, reports, denunciations, and a quantity of other proofs of the assassinations...There exists also positive evidence of the immense population of Hispaniola—greater than that of all Spain—and of the islands of Cuba, Jamaica, and more than forty other islands, where neither animals nor vegetation survive. These countries are larger than the space that separates us from Persia, and the terra-firma is twice as considerable...I defy any living man, if he be not a fool, to dare deny what I allege, and to prove the contrary.”

His enemies were devoid of scruples, and unsparingly used every means to nullify his influence and destroy his credit. He was ridiculed as a madman—a monomaniac on the subject of Indians and their rights; his plainly stated facts were branded as exaggerations, though nobody accepted his challenge to contradict them. Such tactics alternated with others, for he was also described as a heretic, as disloyal and unpatriotic, seeking to impeach the validity of Spanish sovereignty in [pg xxiii] the Indies and to bring ruin on the national interests.

The missionary period of the life of Las Casas in America ended with his return to Spain in 1549 and the resignation of his episcopal see that followed in 1552. From that time may be dated the third and last period of his life, which was marked by his literary activity, for, though he never again visited America, his vigilance and energy in defending the interests of the Indians underwent no diminution. His writings were extraordinarily luminous; and all he wrote treated of but one subject. He himself declared

that his sole reason for writing more than two thousand pages in Latin was to proclaim the truth concerning Indians, who were defamed by being represented as devoid of human understanding and brutes. This defamation of an entire race outraged his sense of justice, and the very excesses of the colonists provoked the reaction that was destined to ultimately check them.

Of all his numerous works the two that are of great and permanent interest to students of American history, the *Historia General* and the *Historia Apologetica de las Indias*, were originally designed to form a single work. The writer informs us he began this work in 1527 while he resided in the Dominican monastery near Puerto de Plata.

Fabié writes that his examination of the original manuscripts of the two works preserved in the library of the Spanish Academy of History in Madrid, shows that the first chapter of the *Apologetica* [pg xxiv] was originally the fifty-eighth of the *Historia General*. Prescott possessed a copy of these manuscripts, which is believed to have been burned in Boston in 1872, and other copies still exist in America in the Congressional and Lenox Libraries, and in the Hubert Howe Bancroft collection.

During his constant journeying to and fro, much of the material Las Casas had collected for the *Historia General* was lost and when he began to put that work into its actual form—probably in 1552 or 1553—he was obliged to rely on his memory for many of his facts, while others were drawn from the *Historia del Almirante, Don Cristobal Colon*, written by the son of Christopher Columbus, Fernando.

The first historian who had access to the original manuscript, in spite of the instruction of Las Casas to his executors to withhold them from publication for a period of forty years after his death, was Herrera, who dipped *plenis manibus* into their contents, incorporating entire chapters in his own work published in 1601. His book obtained a wide circulation despite the fact that it was prohibited in Spain.

It was not until 1875-1876 that a complete edition of the *Historia General* and the *Apologetica* was printed in Spanish. This work was edited in five volumes by the Marques de la Fuensanta and Señor José Sancho Rayon, and was issued by the Royal Academy of History in Madrid. A Mexican

edition of the *Historia General* in two volumes, but without the *Apologetica*, appeared in 1878. [pg xxv] The *Historia Apologetica* treats of the natural history, the climate, the flora, fauna, and various products of the Indies, as well as of the different races inhabiting the several countries; their character, costumes, habits, and forms of government. Though its purpose bore less directly upon the injustices under which the natives suffered, it was none the less educational, the author's purpose being to put before his countrymen a minute and accurate description of the New World and its inhabitants that should vindicate the latter's right to equitable treatment at the hands of their conquerors. Misrepresented and defamed, as he maintained the Indians were, by the mendacious reports sent to Spain, Las Casas composed this interesting apology as one part of his scheme of defence. As a monument to his vast erudition, his powers of observation, and his talents as a writer, the *Apologetica* is perhaps the most remarkable of all his compositions.

I append to this present volume an English translation of the most celebrated of all the writings of Las Casas; that is, of the short treatise published in 1552 in Seville under the title of *Brevissima Relacion de la Destruycion de las Indias*, and which recited in brief form his accusations against the conquerors and his descriptions of the cruelties that formed the groundwork of all his writings.

This was the first of nine tracts, all treating different aspects of the same subject. The full titles of these little books, of which a complete set is now extremely valuable, may be found in Henry [pg xxvi] Harisse, *Notes on Columbus*, pp. 18-24; also in Brunet's *Manuel*, the Carter-Brown Catalogue, and other bibliographical works.

The first quarto gothic edition, printed by Trujillo in Seville in 1552, entitled *Las Obras Brevissima Relacion de la Destruycion de las Indias Occidentales por los Españoles*, contains seven tracts. The second edition, in Barcelona, 1646, bore the title *Las Obras de B. de Las Casas*, and contains the first five tracts.

The *Brevissima Relacion* was quickly translated into most of the languages of Europe. A French version, published in Antwerp in 1579, was entitled *Tyrannies et Cruautés des Espagnols*, par Jacques de Miggrode. *Le Miroir*

de la tyrannie Espagnole, illustrated by seventeen horribly realistic engravings by De Bry, contains extracts from several of the nine treatises, composed into one work, issued in Amsterdam in 1620. Other editions followed in Paris in 1635, in Lyons in 1642, and again two others in Paris in 1697 and 1701: these latter were translated and edited by the Abbé de Bellegarde.

The Italian translation, made by Giacomo Castellani, followed closely the original text, by which it was accompanied; editions were printed in Venice in 1626, 1630, and 1643, bearing the title *Istoria o Brevissima Relazione della Distruttione dell' Indie Occidentali*. Three different Latin versions were published as follows: *Narratio regionum Indicarum per Hispanos quosdam devastatarum Verissima*, per B. Casaum, Anno 1582; *Hispanice, anno vero hoc Lating excusa*, Francofurti, 1597; *Regionum Indicarum Hispanos olim devastatarum accuratissima descriptio. Editio nova, correctior...* Heidelbergae 1664. [pg xxvii] Despite the fact that Las Casas was the first and most vehement in denouncing the Spanish conquerors as bad patriots and worse Christians, whose acts outraged religion and disgraced Spain, his evidence against his countrymen was diligently spread by all enemies of his country, especially in England and the Netherlands, while Protestant controversialists quoted him against popery, and in the conduct of the conquerors the evidences of the Catholic depravity.

The earliest English edition was printed in 1583 under the title of *The Spanish Colonie or Briefe Chronicle of the Acts and Gestes of the Spaniardes in the West Indies, called the Newe Worlde, for a space of XL Yeares*.

John Phillips, who was a nephew of Milton, dedicated another version, called *The Tears of the Indians*, to Oliver Cromwell.

Other English editions, bearing different names, appeared in 1614, 1656, and 1689. This last volume bore a truly startling title: *Casas's horrid Massacres, Butcheries and Cruelties that Hell and Malice could invent, committed by the Spaniards in the West Indies*. It doubtless had a large sale.

Ten years later another edition was printed in London: *An Account of the Voyages and Discoveries made by the Spaniards in America, containing the*

exact Relation hitherto published of their unparalleled cruelties on the Indians in the Destruction of about Forty Millions of People.

[pg xxviii] The Netherlands being in revolt, both against the Catholic religion and the Spanish government, it is not surprising to find that, in addition to the French editions published in Amsterdam and Antwerp, no less than six different versions were circulated in the Flemish and Dutch vernaculars, as follows: *Seer cort Verhael van de destructie van d'Indien*, etc., Bruselas, 1578. *Spiegel der Spaenscher tyrannye, in West Indien*, etc., Amstelredam, 1596. Another edition of the same followed in the same year and another in 1607. *Den Spiegel van de Spaenscher Tyrannie*, etc., Amstelredam, 1609. Second edition of the same work in 1621.

A German translation entitled *Umständige Wahrhafftige Beschreibung der Indianischen Ländern*, etc., was published at Frankfurt-am-Main, in 1645.

It seems hardly necessary, otherwise than as a matter of quaint chronicle, to notice the fantastic attempt of the Neapolitan writer, Roselli, to prove that the *Brevissima Relacion* was not written by Las Casas, but was composed years later by an unknown Frenchman. This suggestion was too agreeable to Spanish susceptibilities to lack approval in Spain when it was first advanced, but it has since been consigned by general consent to the limbo of fanciful inventions.

The limits of the present volume exclude the possibility of dealing adequately with a life so fertile in effort, so rich in achievement, as that of Las Casas, and I have confined myself to composing, [pg xxix] from an immense mass of material, a brief narrative of the acts and events that seem to best illustrate his character and to establish his claim to a foremost place among the great moral heroes of the world.

I have drawn largely upon his own works, and by frequent and ample quotations from his speeches I have sought to reveal my hero more intimately to my readers. In reluctantly quitting this field of profitable research, I confidently promise myself the satisfaction of one day seeing literature enriched by an abler presentation of this great theme than I have felt myself prepared to undertake.

FRANCIS A. MACNUTT.
SCHLOSS RATZÖTZ, TIROL,
June, 1908.

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CHAPTER I. - FAMILY OF LAS CASAS. EDUCATION OF BARTHOLOMEW. HIS FIRST VOYAGE TO AMERICA

The Spanish wars against the Moors, no less than the Crusades against the Moslems in the Holy Land, enlisted under the Christian standard the chivalry of Europe, and during the victorious campaign of the King, St. Ferdinand, knights from France, Germany, Italy, and Flanders swelled the ranks of the Spanish forces in Andalusia. Amongst these foreign noblemen were two French gentlemen called Casaus, who claimed descent from Guillen, Viscount of Limoges, one of whom was killed during the siege of Seville. The city was taken in 1252, and the surviving Casaus shared in the apportionment of its spoils, and founded there a family, whose descendants were destined to become numerous and illustrious. The name *Casaus* assumed with time the more Spanish form of Casas, though it continued to be spelled in both ways for several centuries, and Bartholomew de [pg 2] Las Casas himself used both spellings indifferently, especially during the earlier years of his life.

This family ranked among the nobility of Seville and mention is found of the confirmation by Alfonso XI. of Guillen de Las Casas in the office of regidor of the city in 1318. This same Guillen became Alcalde Mayor of Seville, and when he died his body was buried in one of the chapels of the

cathedral. His son, Alfonso, is stated in the chronicles of Don Juan II. (1409) to have been appointed by the Infante, Don Fernando, to the lieutenancy of Castillo de Priego, "because he was a valiant man who could hold it well." The names of Guillen and Bartolomé are of frequent recurrence in the annals of the family, whose members constantly occupied the honourable offices of judge, alcalde mayor, and captain, using the title of Don and intermarrying with the most illustrious families of Andalusia.

According to indications equivalent to proofs in the absence of any positive record, from such respectable forebears descended Fray Bartolomé de Las Casas, who was born in Seville, in 1474. He himself speaks of Seville as his native city, and the popular tradition, which fixes the ancient suburb of Triana as his birthplace, was recognised in 1859 by the municipality of Seville assigning the name of Calle del Procurador to one of the streets of Triana, in honour of the Bishop, whose proudest title was Protector (or Procurador) General of the Indians.

In his voluminous writings, which teem with [pg 3] information about the men and events of his times, the references to his own family history are infrequent and imperfect, so that from his own records of his life, very little is to be gleaned concerning it. His father's name is variously given by different writers as Alonso, Antonio, and Francisco, while he himself states¹ that he was named Pedro, thus contradicting all his biographers from Remesal, who was the first, down to Don Antonio Fabié, whose admirable *Vida y Escritos*, published in 1879, was the last important contribution on this interesting subject. Zuñiga, in his *Discurso de Orices*, assumed that Alonso de las Casas and Beatriz Maraver y Cegarra of Triana were the parents of Fray Bartholomew, but in the *Anales de Sevilla*, a later work, Francisco is given as the father's name. Neither Llorente nor Gutierrez, who has followed him, gives any authority for his affirmation that the father's name was Antonio, while Quintana and Fabié accept Remesal² and name the father Francisco.

The genealogy of the family furnished me by the dean of the Royal College of Heralds in Madrid shows the descent of Fray Bartholomew through his frather, named Francisco, from Alonso de Las Casas, "Señor de Gomez Cardaña, Veinticuatro de Seville, la Villa de Priego" in 1409, and his wife,

Maria Fernandez Marmolejo. The children of this couple were Guillen, Isabel, Juan, Pedro, and Francisco, who is described in the genealogy as the father of Bartholomew. Pedro, whom Fray Bartholomew mentions as his father, is described as *Dean of Seville*, in which case his ecclesiastical state would exclude matrimony and legitimate issue.

Fabié affirms that in several passages of his writings Fray Bartholomew confirms the assertion of those authors who have designated his father as Francisco, but he does not indicate the whereabouts of these passages nor have I, in my unaided researches, succeeded in finding them. The descendants of the original founder of the family had multiplied and, by the close of the fifteenth century, were divided into many prolific branches, hence the difficulty of identifying the unimportant father of an extraordinarily important son is not wonderful. Las Casas himself may be reasonably assumed to have known his own father's name and we must conclude, in view of his assertion, that all other authorities, including the Royal College of Heraldry, are wrong, and that not Francisco, but a Pedro de Las Casas, who was not however Dean of Seville, was the immediate progenitor of the illustrious Bishop of Chiapa.

The scarcity of positive information concerning his immediate family is equalled by the paucity of trustworthy details of the first twenty-eight years of Fray Bartholomew's life. He completed his studies and obtained the degree of licentiate in law at the University of Salamanca, the most celebrated in Spain, and which ranked high amongst the great seats of learning in Europe at that time. Jurisprudence was divided into the branches of Roman law as interpreted by the school of Bologna, and of canon law, the principles of which were interwoven with the common practice, whose severer tendencies they somewhat tempered. The precepts of Aristotle as interpreted by scholastics formed the basis of philosophical studies, and the Thomistic doctrine was taught by professors of the Dominican Order.

It has been judiciously observed that in that age of growing absolutism, both spiritual and temporal, only a skilful Thomistic scholar could have discerned the limits to the legitimate exercise of the royal authority which Las Casas so clearly perceived and so boldly defined in the very presence of the autocratic sovereigns of Spain.

Grammar, ethics, physics, and the branches of learning necessary to complete the education of a young man of his social position and mental capacity, were doubtless embraced in his course of study. His use of the Latin tongue was fluent, though his style has been criticised as cumbersome and wanting in elegance; certainly his writings abound in diffuse generalities, a multiplicity of repetitions, and a vast array of citations from Scripture and the classics which render his unexpurgated manuscripts wearisome enough to modern readers. He shared the defects of most of his contemporaries in this respect and followed the fashion common in his times. The training he received in the Spanish schools and the University, and which he [pg 6] afterwards perfected—as will be seen—by the studies he resumed after his profession in the Dominican Order, rendered formidable as an advocate one whom nature had endowed with a rare gift of eloquence, a passionate temperament, and a robust physical constitution which seems to have been immune to the ills and fatigues that assail less favoured mortals. Gines de Sepulveda, whose forensic encounter with Las Casas was one of the academic events of the sixteenth century, described his adversary in a letter to a friend as “most subtle, most vigilant, and most fluent, compared with whom Homer's Ulysses was inert and stammering.”

The father of Las Casas accompanied Christopher Columbus on his second voyage to America and acquired profitable interests in the island of Hispaniola. He returned to Spain in 1496, bringing with him an Indian lad whom he sent as a present to his son, who was then a student at Salamanca.

Bartholomew's ownership of this Indian boy was brief, owing to Queen Isabella's intense displeasure when she learned that Columbus had brought, and permitted to be brought back Indians, as slaves. Nothing sufficed to appease the Queen's indignation that the Admiral should thus dispose of her new subjects without her leave and authority, and a royal order was published from Granada, where the court then was, commanding, under pain of death, that all those who had brought Indians to Spain as slaves should send them back to America. When Francisco de Bobadilla was sent in 1500 to Hispaniola to supersede Columbus as Governor, all [pg 7] these Indians returned with him and Las Casas himself states, “Mine was of the number.”

Thus strangely is the future apostle of freedom first introduced to our notice in the guise of a slave-holder, constrained by a royal edict to surrender his human property.

Upon his return from Salamanca to Seville Las Casas found himself, through his father's relations with Columbus, in daily intercourse with the men whose voyages and discoveries were thrilling Europe. Amongst these navigators was his uncle Francisco de Peñulosa, and it was but natural that his eager temperament should catch the adventurous fever which prevailed throughout Spain and notably in Andalusia. Salucchi, in his Latin treatise on Hebrew coins, says that Las Casas accompanied his father on the second voyage of Columbus in 1493 and brought back the Indian slave himself. Llorente, who has been followed by several modern writers, asserts that his first voyage to America was made with Columbus on his third expedition. He deduces this conclusion from a statement at the close of the Thirty Propositions which Las Casas addressed to the Royal India Council in 1547 and from a sentence in the First Motive of his Ninth Remedy which he presented to the Emperor in 1542. The first of these passages reads "Thus, most illustrious Sirs, have I thought since forty-nine years, during which I have witnessed evil-doings in America and since thirty-four years that I have studied law." The passage merely refers to Columbus having [pg 8] permitted certain Spaniards who had rendered important services during his voyage to bring back each an Indian and concludes, "And I obtained one."



Christopher Columbus

From an engraving by P. Mercuri after a contemporary portrait

The deductions of both these learned writers would seem to require more positive corroboration. Not only are they destitute of confirmation, but in the second chapter of his *Historia General*, Las Casas gives the names of many persons who did accompany Columbus in 1493, describing several incidents connected with that expedition and concluding by saying that he heard all these things “from my father who returned [to America] with him, when he went to found settlements in Hispaniola.” In the preface which he wrote in 1552 to accompany the publication of his history, *Destruycion de las Indias*, which had been composed ten years earlier, he speaks of his experience extending over more than fifty years, but in his *Historia General*, which is almost a diary of the first half of his life in America, the first voyage that he mentions is that of Don Nicholas de Ovando in 1502. Las Casas was most careful in describing every particular of the events in which he had a part and he nowhere mentions that he accompanied Columbus on any voyage, whereas he dwells at length upon the expedition of Ovando, and in the third chapter of the second book of the *Historia General* he affirms, “I heard this with my own ears for I went on that voyage with the Comendador de Lares [Ovando] to this island.” The phrase is characteristic, for the positive note is rarely absent [pg 9] in the affirmations of Las Casas, nor is it admissible that his experiences on any voyage previous to that of Ovando should find no place in the exact and scrupulous narrative he has left us of his relations with America and his beloved Indians.

In consequence of the persistent and bitter complaints of Columbus against the second Governor of Hispaniola, whose appointment violated the rights secured to the Admiral and his successors by the capitulations of Granada, the catholic sovereign decided to recall Francisco de Bobadilla, whose administration gave cause for dissatisfaction in other respects, and to send Don Nicholas de Ovando to replace him. Ovando was at that time Comendador de Lares and was later raised to the supreme commandership of the Order of Calatrava. He is described as a most prudent man, worthy to govern any number of people, but not Indians; man in word and deed, an avowed enemy of avarice and covetousness; not wanting in humility, as

shown in his habits of life, both public and private, though he maintained the dignity and authority of his position.³

The new Governor was endowed with full powers to judge the accusations against his predecessor and to dispose of the nettlesome questions which had provoked the Roldan rebellion.

The preparations for his departure were delayed by many causes; his fleet was the most considerable one that had thus far been organised to sail for America, being composed of thirty-two vessels on [pg 10] which were to sail some two thousand five hundred persons, many of whom were knights and noblemen. Twelve Franciscan friars under the direction of their leader, Fray Alonso del Espinal, formed part of the company.

It was this brilliant expedition that Fernando Cortes intended to join when he was prevented by injuries incurred while engaged in an amorous adventure which led him over garden walls into risky situations where he ended with broken bones, and was consequently left behind. The fleet sailed from San Lucar de Barrameda on February 13, 1502, which according to Las Casas was the first Sunday in lent of that year.⁴

The usual course, by way of the Canary Islands, was followed, but after eight days at sea, a violent tempest wrecked one ship, *La Rabida*, with one hundred and twenty people on board, and scattered the remainder; some vessels were obliged to throw most of their cargo overboard, but all, after many dangers, gradually found refuge in various ports of the neighbouring islands.

The wreckage of *La Rabida*, and that of some other vessels which had also foundered while carrying sugar from the islands, drifted back to the Spanish coast and gave rise to the rumour that the entire fleet was lost. This caused such a general sense of affliction that the sovereigns, on receipt of this false report, shut themselves up in the palace at Granada and mourned for eight days.

The vessels which had weathered the tempest [pg 11] united after some delay in the port of the island of Gomera, and being joined there by another, fitted out in the Canaries by people eager to go to America, the fleet was

thus brought up to its original complement. The commander divided his squadron in to two sections, the first of which, composed of the fastest vessels, he kept under his command, while the second was placed under command of Antonio de Torres. Ovando's division reached Hispaniola on the fifteenth of April and the second squadron came safely to port some twelve days later. Thus did Bartholomew de Las Casas first land in the New World.

CHAPTER II. - THE DISCOVERIES OF COLUMBUS. CHARACTER OF THE AMERICAN INDIANS. THE BEGINNINGS OF SLAVERY AND THE SLAVE-TRADE

In the ever-memorable month of October, 1492, Christopher Columbus landed on the shores of the New World he had discovered by sailing westward. To this great undertaking Columbus had advanced through a long career during which he had had unusual adventures and experiences in almost every part of the known world. A Genoese by birth, he had studied at Pavia,⁵ where he had acquired some knowledge of Latin, and was introduced to the study of those sciences to which his inclinations and his opportunities enabled him later to devote himself. He knew the Atlantic Coast from El Mina in Africa,⁶ to England and Iceland,⁷ and he had visited the Levant⁸ and the islands of the Grecian Archipelago.

Writing of himself to the Catholic sovereigns, he says that he had been a sailor from his earliest youth, and curious to discover the secrets of the [pg 13] world. This same impulse led him to the study of navigation, cosmography, and kindred sciences, and his son Ferdinand states that the book which most influenced his father was the *Cosmographia* of Cardinal Aliaco in which he read the following passage: Et dicit Aristoteles ut mare parvum est inter finem Hispanicæ a parte Occidentis, et inter principium Indiæ a parte Orientis. Et non loquitur de Hispaniâ citeriori quæ nunc Hispania communiter dicitur sed de Hispaniâ ulteriori quæ nunc Africa dicitur.⁹

The illustrious Florentine, Paolo Toscanelli, definitely encouraged the conviction Columbus had formed from his reading of Marco Polo's descriptions of Cipango, Cathay, and the Grand Khan, that the lands might be reached by sailing west, and there was doubtless little the ancients had written concerning the existence of islands and continents lying beyond the Pillars of Hercules with which he was not acquainted.

The story of his attempts to secure the necessary means and authority for undertaking his great enterprise does not belong to our present subject, but before hearing his own description of what and whom he found in the western hemisphere when first he landed there, it is necessary to consider the arguments by which his friends finally prevailed on the sovereigns of Castile to grant him their patronage. That they did this contrary to the the counsels of the learned cosmographers of the age and in defiance of contemporary common-sense, [pg 14] is in itself a most noteworthy fact which testifies both to the singular qualities of Columbus and to the rare sagacity of the Catholic Queen who, in her momentous decision, acted alone, there being little in the scheme to commend it to the colder temperament of King Ferdinand.

By almost no intellectual effort can we of to-day realise the chimerical stamp which the proposition of Columbus bore, and which served to mark him as an adventurer and a visionary or, to use a forceful Americanism, as a “crank” in the estimation of sensible, practical people. He has himself recorded that he believed he was acting under inspiration and was merely fulfilling the prophecy of Isaiah. The council of cosmographers summoned by the Queen's confessor, Fray Hernando de Talavera, to study the project which Columbus, through the exertions of his friends, the Prior of Santa Maria de la Rabida, and Alonso de Quintanilla, treasurer of the royal household, had succeeded in presenting to the sovereigns, decided “that it was vain and impossible, nor did it belong to the majesty of such great Princes to decide anything upon such weak grounds of information.”¹⁰

Spain was at that time engaged in a costly war against the Moors, who still held Granada; hard pushed as the sovereigns were for money to carry on the necessary military operations, it is not strange that no funds were forthcoming to finance the visionary schemes propounded by an obscure

foreigner. After some years of vain striving, [pg 15] Columbus was on the point of quitting the country in despair, when two powerful allies intervened—Cardinal Mendoza, Archbishop of Toledo, and Luis de Santangel, who held the office of Receiver of Revenues of the Crown of Aragon.

It must have argued powerfully in favour of Columbus that he had won to his support, not only several great ecclesiastics and the Duke of Medina Celi, but also two of the most astute financiers of the realm,—Santangel and Quintanilla, men not easily accessible to enthusiasms nor inclined to encourage non-paying investments.

Whatever was the motive that prompted these men to take the project under their protection, the Queen was primarily swayed by religious arguments, which also with Columbus were as powerfully operative as his desire for profit and glory.

The preface of his journal contains a review of the year 1492, which was signalised by the fall of Granada and the final expulsion, after seven centuries, of the Moors from Spain. He recalls his petition to the Pope, asking that learned Catholic doctors should be sent to instruct the Grand Khan in the true faith, and to convert populous cities that were perishing in Idolatry, to which his Holiness had vouchsafed no answer, after which he continues:

“Your Highnesses, as Catholic Christians and Princes, promoters of the Christian religion, and enemies of the sect of Mahomet and of all idolatries and heresies, thought to send me, Christopher Columbus, to the aforementioned provinces of India to see the said [pg 16] princes, the cities, the countries, their position and everything concerning them and the way that should be adopted to convert them to our Holy Faith.”¹¹

This passage reflects the mind and character of Columbus as he is described by Las Casas; for even beyond the glory of penetrating the world's mysteries that so powerfully influenced him, he nurtured dreams of religious propaganda, another crusade to recover the Holy Sepulchre, and the conversion of all the heathen to the faith.

“He fasted with strictest observance on the fasts of the church; he confessed and received communion frequently; he recited the canonical hours like an ecclesiastic or a monk; most inimical to blasphemies and oaths, he was most devoted to Our Lady and to the seraphic Father, St. Francis...most jealous of the Divine honour, eager and desirous for the conversion of these peoples, and that the faith of Jesus Christ should be everywhere spread, and singularly given and devoted to God that he might be made worthy to help in some way to win the Holy Sepulchre.”¹²

Patient, long-suffering, prone to forgive injuries, Columbus was a man of courageous soul and high aspirations, always pervaded with infinite confidence in Divine Providence and never failing in loyalty to the sovereigns whom he served.

Such were the qualities of the man whose great discovery prepared the scene on which Las Casas was to play the noblest part of all; such were the [pg 17] influences which promised to shape his actions in conformity with the intentions of the saintly Queen who sustained him. These influences are seen to be first and always religious; religious in the prevailing conception of a century, when the interpretation of the command “go ye and teach all nations” admitted of no shirking an obligation laid by the Divine command on each Christian, whether priest, king or subject. An infallible Church provided the one ordained channel of divine grace and salvation for mankind, dissent from which meant damnation, and hence into that Church all nations must be gathered.

Bearing these conditions of the age and these convictions which dominated both the Queen and Columbus well in mind, we shall later have occasion to observe the startling contradiction of essential principles of Christianity shown in the acts of the latter in his dealings with the Indians; for he not only prepared the stage Las Casas was to tread, but he likewise provided the tragedy of iniquity to be thereon enacted.

The first soil on which Columbus landed was that of a beautiful island some fifteen leagues in length, fruitful, fresh, and verdant like a fair garden, in the midst of which was a lake of sweet water. The weary eyes of the mariners, strained for weeks to catch a glimpse of the despaired-of land, were refreshed by the sight of this pezzo del cielo, and the landing of Columbus

was a scene of picturesque and moving simplicity in which were not wanting the features of martial [pg 18] grandeur and religious solemnity, furnished by steel-clad knights with drawn swords, bearing the royal standard of Castile and the emblem of man's salvation, before which all knelt in a fervour of triumph and thanksgiving. Both as wondering witnesses and interested actors in this memorable drama, there appeared the natives of the island, transfixed in silent awe in the presence of their mysterious guests. Columbus describes them as well-built, with good features and beautiful eyes, but with hair as coarse as a horse's mane; their complexion was yellowish and they had their faces painted. They were entirely naked and neither carried weapons nor understood the use of such things.

“They ought,” he says, “to make faithful and intelligent servants, for I perceive they very quickly repeat all that is said to them and I believe they would very quickly be converted to Christianity as it appeared to me that they had no creed.”

In another passage he writes: “As they showed us such friendship and as I recognised that they were people who would yield themselves better to the Christian faith and be converted more through love than by force, I gave some of them some coloured buttons and some glass beads which they wore around their necks, and many other things of small value, with which they were delighted, and became so attached to us that it was a marvel to behold.”

The natives were not slow to reciprocate these gifts and hastened to offer the best of all they [pg 19] possessed to the Spaniards in return for their trifling presents.

Indeed, since it is better to give than to receive, the Admiral describes the natives of Marien as being of such a generous disposition that they esteemed it the highest honour to be asked to give. What could be more idyllic than his description of the people he found at Rio del Sol in Cuba? —“They are all very gentle, without knowledge of evil, neither killing nor stealing.” Everywhere he touched during his first voyage, he and his men were welcomed as gods descended upon earth, their wants anticipated, and

such boundless hospitality showered upon them that Columbus was touched by the gentleness and grace of the natives.

“They are a loving uncovetous people, so docile in all things that I do assure your Highness I believe in all the world there is not a better people or a better country; they love their neighbors as themselves, and they have the sweetest and gentlest way of speaking in the world and always with a smile.”

When it came the turn of Las Casas to describe the Indians in the islands, he wrote:

“All these infinite peoples were created by God the most simple of all others, without malice or duplicity, most obedient and faithful to their rulers, whom they serve; the most humble, patient, loving, peaceful, and docile people, without contentions or tumults; neither factious nor quarrelsome, without hatred, or desire for revenge, more than any other people in the world.”

[pg 20]

Such were the accounts of the New World given to the Catholic sovereigns by Columbus on his return from his first voyage, and afterwards by Las Casas in his terrible indictment of his countrymen's destructive invasion of those peaceful realms, peopled by innocent and genial heathen. Had Shakespeare heard this fair report when he put the description of the magic isle in the mouth of the King's counsellor, Gonzalo?

I' the commonwealth I would by contraries
Execute all things; for no kind of traffic
Would I admit; no name of magistrate;
Letters should not be known; riches, poverty,
And use of service, none; contract, succession,
Bourn, bound of land, tilth, vineyard, none;
No use of metal, corn, or wine, or oil;
No occupation; all men idle, all;
And women too, but innocent and pure;
No sovereignty;

All things in common nature should produce
Without sweat or endeavour; treason, felony,
Sword, pike, knife, gun, or need of any engine
Would I not have; but nature should bring forth,
Of it's own kind, all foison, all abundance
To feed my innocent people.¹³

Upon such virgin soil, Columbus felt confident that the gospel seed would produce an abundant harvest and he says:

“I hold it for certain, Most Serene Princes, that by means of devout, religious persons, knowing their language [pg 21] they would all quickly become Christians and thus I hope in Our Lord that your Highnesses will provide for this with much diligence to bring such numerous people into the Church and convert them, as you have destroyed those who would not confess the Father, Son, and Holy Ghost; and that after this life (for we are all mortal) you will leave your kingdoms in a very tranquil state, purified from heresy and evil.”

Wonderful and humiliating is it to observe how little these first impressions of the Indians and these elevated Christian aspirations influenced his conduct in dealing with them, once he was master of their destinies.

The declared purposes of the second voyage of 1493 were the colonisation of the newly discovered countries, the conversion of the natives, and the extension of his discoveries. Pope Alexander VI. had conferred the lands thus far discovered and others to be discovered upon the sovereigns of Castile and Leon, with the fullest rights over navigation, and imperial jurisdiction over the western hemisphere. The Bull bestowing these concessions was dated the fourth of May, 1493, in the first year of his pontificate. An imaginary line, drawn from pole to pole and passing one hundred leagues west of the Cape Verde Islands, separated the spheres of Spanish and Portuguese exploration, and the Bull expressly laid down as the principal reason for this grant, that the natives would be converted to Christianity.¹⁴

The conditions imposed by the Pontiff corresponded [pg 22] perfectly to the sincere desires of the Spanish sovereigns, who had, from their first knowledge of the existence of the Indians, displayed the keenest and tenderest zeal to provide for their welfare. They instructed Columbus to deal lovingly with the Indians, to make them generous gifts, and to show them much honour; and if perchance any one should treat them unjustly, the Admiral should punish him severely.¹⁵

This second expedition was composed of 1500 men, of whom twenty were horsemen; many knights and gentlemen, especially from Seville, and some members of the royal household also went. The number of officials of various grades appointed to exercise problematical functions in the new colony exceeded the necessities of the case and gave promise of the many dissensions and petty conflicts which were not slow in declaring themselves. A priest, Father Buil, and other ecclesiastics were sent to undertake the instruction and conversion of the Indians; in all, seventeen ships left the Bay of Cadiz on September 25, 1493.¹⁶ Upon his arrival at Hispaniola, the Admiral found the little colony he had left there completely exterminated, and learned from his friend the Cacique Guacanagari that, after his departure for Spain, the Spaniards had fallen to quarrelling amongst themselves and had scattered throughout the island, provoking hostilities with the natives and had, in consequence, been killed by a neighbouring chieftain, Caonabó, who also [pg 23] burned the tower the colonists had built. The first report on the state of the new colony of Isabella, which Columbus sent to Spain in January, 1494, was in the form of an instruction to Antonio de Torres, receiver for the colony, whom Las Casas describes as “a brother of the Governor of the Infante Don Juan, a notable person, prudent and efficient for such a post.”¹⁷ In this notable document occurs the first mention of slavery in the New World. The Admiral directs Torres to inform the sovereigns that he has made slaves of some Indians captured the cannibal islands, and has sent them to Spain have them taught Spanish in order that they may later serve as interpreters. The justification he advanced for this measure was that by taking from their surroundings they would be cured of their cannibalism, converted to Christianity, and their souls saved; besides which, if the cannibals were thus converted, the Indians of the neighbouring islands, who were peaceable and lived in fear of them, would conceive a still higher regard for the Spaniards.

This reasoning doubtless commended itself to most people, but the sagacious Queen instantly put her finger upon the flaw in the argument, and on the margin of Columbus's report is written her answer: "This is all very well and so it must be done; but let the Admiral see whether it might not be *there* arranged to bring them to our Holy Catholic Faith and the same with the Indians of those islands where he is." [pg 24]

The next suggestion, despite any possible excellence of his motives, was a frank proposal to establish a thriving trade in human flesh as barefaced as could be made by the least scrupulous "blackbirder." The Admiral, always dwelling upon the spiritual welfare of the cannibal natives, proposed that the more of them that could be captured, the better it would be, and then, mingling temporal advantages to Spaniards with spiritual blessings to the natives, he explained that the quantities of live stock and other necessities required by the colonists, might be paid for by the sale of slaves sent back to Spain in the ships which would bring these supplies several times a year to the colony. The sovereigns are to be reminded that they may collect duties on this slave-trade, and an early answer is desired in order that the arrangements for the new commerce may be pushed forward.¹⁸

The Queen's observation on this passage was not as positive as it might have been and, though the proposition was evidently repugnant to her, she merely directed that the matter be suspended for the present until some other way of providing on the spot be found and that the Admiral should report further. Columbus, however, did not wait to receive the royal approval of his slave-trading schemes. During a voyage which resulted in the discovery of Jamaica and other islands, he visited that of San Juan (Puerto Rico) for the purpose of capturing more cannibals, and on his return Hispaniola, where he had left his brother [pg 25]Don Diego in charge as President and Don Pedro Margarite as Captain-General, he found affairs in the worst possible condition owing to the foolish and inconsiderate conduct of the colonists, which had converted the friendly natives into hostile enemies and placed the very existence of the colony in jeopardy. After some hostilities, a degree of tranquillity was established and Columbus laid a tribute upon the entire population of the island which required that each Indian above fourteen years of age who lived in the mining provinces was to pay a little bell filled with gold every three months; the natives of all

other provinces were to pay one arroba of cotton. These amounts were so excessive that in 1496 it was found necessary to change the nature of the payment, and, instead of the gold and cotton required from the villages, labour was substituted, the Indians being required to lay out and work the plantations of the colonists in their vicinity. This was the germ of the cruel and oppressive repartimientos and encomiendas which were destined to depopulate the islands and to bring an indelible stigma on the Spanish colonial system in the Indies. In that year, 1496, Bartholomew Columbus sent three hundred natives, who were convicted or accused of killing Spaniards, to Spain to be sold as slaves. Though the Spanish sovereigns admitted a difference in the status of such natives, there is nevertheless a letter of theirs addressed to Bishop Fonseca, who was at the head of Indian affairs, directing him to receive no money from the sale of Indians until theologians and canonists had [pg 26] pronounced upon the question whether they might with a good conscience, permit such Indians to be sold. No positive decision is recorded, but order were given that all Indians taken in acts of flagrant "rebellion" and found guilty should be sent to Spain. There was but one fate awaiting them so that, if not formally approved, the enslaving of Indians, accused of rebellion, was by this edict tolerated.

Another piece of colonial legislation was effected in 1497 by the issue of a royal patent to the Admiral, authorising him to grant parcels of land in the islands to the Spanish colonists; there is no mention in this grant of repartimientos of Indians to work on the lands. The affairs of the colony were not prospering, complaints against the Admiral were numerous, and the situation was much complicated by the open rebellion of the chief justice, Roldan, in which the unfortunate Indians found themselves, whether they would or no, involved on one side or the other and, no matter which way victory went, upon them it fell to pay the costs. Regular raids were organised upon tribes and villages, on the pretext that a chief had not performed the services required in lieu of tribute and had fled with his people to the forests; pursuit followed and all who were captured were considered rebels taken in open fight and were immediately dispatched in the vessels of Columbus's fleet, which had reached Hispaniola in August, 1498, to be sold as slaves in Spain. Still invoking the name of the Holy Trinity, Columbus explained to the sovereigns [pg 27] that he could supply as many slaves as the Spanish market required, estimating, according to his

information, that four thousand could be disposed of, the value of whom, together with that of a shipment of logwood, would amount to 40,000,000 maravedis. The consignment mentioned consisted of six hundred slaves, of whom one third was given to the masters of the ships to cover the carrying charges.

In the same letter, Columbus asked that the colonists should be allowed to use Indian labour for a year or two until their affairs should become more settled and prosperous, and so satisfied was he with the equity of this arrangement that he set it at once in operation without waiting for the royal sanction of his plan. After two years of dissensions, Roldan and his rebellious supporters were pacified and Columbus partitioned lands and slaves among them with unstinted generosity. Those of Roldan's adherents who elected to remain in the colony received from the Admiral repartimientos, consisting of a certain number of hillocks of cazabi (the plant from which flour for cassava bread was made), which were placed in charge of a cacique whose people were obliged to till them for the profit of the holder. This was the second stage in the development of repartimientos, viz., the Indians were bound to the land and forced to cultivate it. Fifteen of the Roldan party, however, decided to return to Spain, each of whom received from one to three slaves, whom they took back with them in October, 1499.

The Queen's proclamation issued at Seville, [pg 28] Granada, and elsewhere ordering all holders of slaves given them by Columbus to return them forthwith to Hispaniola under pain of death distinguished, however, between such and the others who had been taken as prisoners of war and sold into slavery. The distinction is a fine one and points to the conclusion that even Queen Isabella admitted that some Indians might, for defined causes, be enslaved, and that her assent was based upon some pronouncement of the canonists and theologians to whom she had submitted the question; but there is nothing to show that the slaves given to Roldan's followers were captured in any different way from the others. This inconsistency, which so sadly weakens the noble character of the royal proclamation and detracts from the merits of the Queen as an enemy of slavery, could hardly have proceeded from her own inclinations but was rather the outcome of some casuistry that constrained her action without

convincing her judgment. The Queen doubtless saw with pain and disappointment that, owing to the Admiral's measures and proposals, which were in surprising contradiction with the lofty and pious principles he professed, her own Catholic aspirations for the speedy conversion of the Indians and the pacific extension of Spanish rule were being thwarted. The noise of the controversies in which the sublime unreason of Columbus had fortunately prevailed over the scientific opinions of the age, the interest of the Queen, and all the circumstances of his first voyage had fastened the attention of the Spanish and [pg 29] Portuguese courts upon his expedition, excluding any hope that failure might escape notice. For he had failed in his ultimate purpose. Instead of Cathay, the Grand Khan ready to welcome Christianity and a short road to the wealth of the East, he had found a few semi-tropical islands, producing parrots and cocoanuts chiefly, and inhabited by harmless barbarians living in an idyllic state of poverty and idleness. The enthusiasm aroused by his first voyage subsided and his fame as an explorer was obscured by his incompetency as a governor. He himself never lived to comprehend the real importance of his discovery and he persisted in regarding the islands as the outposts of a great Oriental empire. Having sailed to seek a short route to the ancient East, Columbus was constrained to render his disappointing discovery acceptable by making it profitable and, since the promised gold and rare spices were not forthcoming, only the trade in slaves remained to furnish immediate profits. In July, 1500, Francisco de Bobadilla sailed to supersede Columbus, with full powers from the sovereigns, and had he gone as a messenger of vengeance to chastise the Admiral's moral backsliding, he could not have enacted the rôle more consistently, for, from the moment of his landing, his treatment of Columbus was ruthless, and an amazed world was shortly furnished the humiliating spectacle of the great Admiral, in chains, shipped back to the kingdom he had endowed with a world. Bobadilla's moral, social, and economic administration proved a complete failure and his own excesses contributed [pg 30] to his speedy removal, without his management of the colony having corrected the abuses he was sent out to redress or having relieved the Indians from the bonds of slavery which, in defiance of the sovereign's commands, were being daily riveted more securely upon them.

The justified protests of Columbus found a hearing, and the man who had inflicted a supreme indignity upon him was recalled, Don Nicholas de Ovando being appointed by a royal cedula of September 3, 1501, to succeed him.

CHAPTER III. - THE COLONY OF HISPANIOLA. ARRIVAL OF LAS CASAS. CONDITION OF THE COLONISTS

The arrival of Don Nicholas de Ovando's fleet at Hispaniola was an event of the greatest importance to the colony. The first news that greeted the new arrivals was that of the discovery of a huge nugget of gold, the largest yet found and which, in fact, was never again equalled in size until the rich lodes in California were tapped in 1849, for it weighed thirty-five pounds and was valued at 3600 pesos in the money of that time.

This famous nugget was found eight or nine leagues from the settlement of San Domingo, by an Indian girl, who, while resting from her labours, idly turned up the soil with an instrument she held, and thus brought to light the wonderful treasure. The Governor appropriated it for the King, paying its value to the two owners of the mine. The jubilant Spaniards used the nugget, which was shaped like a broad, flat dish, to serve up a roast sucking-pig at a banquet given in honour of the occasion, saying that no king ever feasted from such a platter. Las Casas remarks that as for the miserable Indian girl who found it, we may without sin suppose that they never gave her so much as a [pg 32] red silk petticoat, and lucky was she indeed if she got even a mouthful of the pig!

The second piece of glad news the colonists communicated was, that owing to a recent uprising of the Indians in a certain province, they had been able to enslave a goodly number of the rebels. Such occasions rejoiced their hearts, over the profits they thus derived from the struggles of the unhappy natives to recover their freedom, and it may likewise without sin be supposed that their ingenuity was not barren in suggesting devices for provoking such lucrative revolts.

In the instructions delivered to Ovando, as well as in the Queen's verbal behests to him before sailing, the sovereigns sought to remedy the abuses under which the Indians suffered. The Queen explicitly laid down the fundamental principle that "all the Indians in Hispaniola are and should be free from servitude; nor should they be molested by any one, but should live as free vassals, governed and protected as are the vassals of Castile." They were to pay a tribute—all Spanish vassals were taxed—and they were to work in the gold-mines but for their labour they were to receive a daily wage. The Queen's obvious intention was that the government should, in some measure at least, be carried on for the benefit of the Indians it was instituted to govern. The orders describing the measures to be taken for the instruction and conversion of the natives were equally clear and imperative.

Ovando was authorised to permit the importation into Hispaniola of negroes who were born slaves, [pg 33] belonging to Christian owners.¹⁹ They were consequently brought to the colony in such numbers that the Governor soon wrote to Spain, advising that the traffic in African slaves be stopped, as the negroes constantly escaped and took refuge in the forests and mountains, taking with them also many Indians. These negroes were for the most part born in Andalusia of slave parents, who had been brought there by the Portuguese who had carried on the slave-trade since early in the fifteenth century.

The first official action of the new Governor was to institute an inquiry into the administration of his predecessor, Bobadilla, against whose harsh and arbitrary treatment of him, Columbus had filed complaints. The Admiral had meanwhile been received by the sovereigns, and Queen Isabella's compassionate heart had been much grieved by the sad accounts of the indignities put upon him, the confiscation of his properties, the violation of the rights solemnly conferred upon him and his heirs under her signature, and finally the supreme outrage of his deposition and his return to Spain wearing the chains of a common malefactor. Francisco de Bobadilla had far outstripped the limits of the sovereign's intentions as well as those of his own authority and had, by his treatment of Columbus, violated the commonest sentiments of justice and humanity. Ovando made full restitution of the confiscated properties, and the rights and privileges guaranteed to Columbus were once more recognised and made valid. The

latter organised [pg 34] his fourth and last expedition to America, which sailed on the ninth of May, 1502, ²⁰ and arrived at Hispaniola after a prosperous voyage, on the twenty-ninth of June. Bobadilla set sail for Spain on board the same ship which carried the famous gold nugget, but neither arrived, as the vessel was overtaken by a violent hurricane, and was lost when barely forty hours out from port. Thus perished one whose iniquities have caused his name to be handed down to eternal execration in the pages of American history.

Such was the condition of the colony in Hispaniola, when Bartholomew de Las Casas, then a young licentiate, twenty-eight years of age, arrived there. The purpose of his coming was no different from that of the other gentlemen-adventurers who were bent on acquiring speedy fortunes in a land of supposed riches that formed the theme of fabulous and alluring tales, which often enough had but slender foundation in fact. As his father had already acquired properties in the island, it is probable that Bartholomew came to assume the direction of them. There is nothing to show that he was at that time especially impressed or moved by the sad condition of the Indians and the violation of their rights; on the contrary, he procured slaves, worked them in the mines, and attended to the cultivation of his estates with the energy he employed in every undertaking to which he put his hand. He says himself that during eight years of Ovando's governorship, this "pestilential disorder" [pg 35] took root without there being a man who spoke or heeded or thought anything about it, notwithstanding that such multitudes were being sacrificed, that out of the infinite number of the inhabitants of whom the Admiral first wrote to the Catholic sovereigns, there perished more than nine tenths in that brief period. ²¹

He took part in the second war against the Cacique Cocubanó²² in the province of Higüey, of which he afterwards wrote the most horrifying description. He related incredible cruelties, concluding thus: "All these deeds, and others foreign to all human nature did my own eyes witness, and I do not now dare to recount them, being hardly able to believe myself, lest perhaps I may have dreamed them." Throughout these massacres Las Casas, young, enthusiastic, generous-hearted, noble-minded, and with his naturally keen sensibilities refined and sharpened by the best education of his times,

appears to have played his part with the others, neither better nor worse than they, equally blind to the injustice and tyranny practised upon the inoffensive and defenceless Indians and only eager for his share of the profits derived from their sufferings. The contradiction is as flagrant as in the case of the great Admiral who initiated the system which brought all these horrors in logical sequence. The war in Higüey finished with the capture of the unfortunate Cocubanó, whom Ovando caused to be hanged at San Domingo instead of allowing [pg 36] him to be torn to pieces with pincers as the Spaniards demanded should be done. Such was the quality of mercy in that Governor's heart.

The affairs of Las Casas prospered and he grew rich, though it is difficult to believe that his yearly income from his properties amounted to 100,000 castellanos—an enormous sum, given the value of money at that time,—yet this is the figure he himself has given in his own writings.²³

Such being the attitude of a man of finer temperament during eight years passed amidst scene of rapacious ferocity, something must be admitted to explain the callousness of men of fewer sensibilities and lower moral standards, who found themselves far removed from the usual restraint of civilised society and confronted by many hard ships and severe disappointments. The moral and physical condition of the majority of these men was indeed deplorable. Many of them had staked all they could obtain on this great venture in the Indies, hallucinated by the craze for gold, of which they dreamed as lying, waiting to be picked up, in lands where pearls strewn the sands of the beach. Rapid exploitation of such sources of fabulous wealth and a speedy return to Spain, rather than the enterprises usually suggested to Anglo-Saxons by the term “colonisation,” had lured them over the mysterious ocean. Little thought was given to the pastoral and agriculture resources of a rich soil that would have yielded abundant crops in response to the simplest tillage [pg 37] and made of the islands a granary sufficient to feed all Spain. Unaccustomed to manual labour, ignorant of the simplest principles of mining, poorly supplied—when at all—with the necessary implements, they rushed to the mines with but scanty provision even of food; fevers seized them, strange diseases attacked them—most of all, disillusion confronted them; out of Ovando's 2500 men more than one thousand died within a brief period, in the most wretched manner.

Those who had the courage and strength to work, barely made enough to feed themselves, for it not infrequently happened that after the royal fifth was deducted and other expenses met, the remainder, when divided, hardly gave to each colonist more than his daily, scanty living. The state of degradation into which they sank was pitiable and there is little cause to wonder that, in their brutalised condition, they took small account of the physical sufferings of the Indians and no interest at all in weighing their claims to liberty and just treatment. The few who did turn their attention to agriculture fared better, both as to the comforts of their surroundings and the profits they derived from their occupation; their Indians likewise led far easier lives than their fellows who worked for the miners. The vicious principles underlying slavery once established, innumerable abuses are bound to follow, and when responsibility for an iniquitous system is widely distributed, even the most humane unconsciously drift into acquiescence in continuous and monstrous acts of inhumanity, partly from want of strength to combat [pg 38] the established order of things and partly from the easy ability of each to shift his share of the blame for what his instincts condemn, onto the shoulders of others. Reforms left to the collective conscience of such a community are apt to languish. Such is man's nature that the most unnatural and abnormal conditions come to be tolerated by common acquiescence, until something—an event without or a stirring of his soul within—startles his better self into a realisation of his surroundings, the scales fall from his eyes which, having, he saw not, and in a flash, the iniquity of proceedings to which he has assented, in which he has shared, and by which he has profited, becomes manifest.

In the Indies a premium was placed on rebellion; the oftener the Indians could be goaded into open revolt, the more slaves could be acquired according to due process of law, and everybody's profits increased. To such profitable encouragement the colonists were not slow to respond and they were fertile in devices for rendering the lives of the Indians intolerable.

No champion was forthcoming to defend the helpless native or even to make his woes known; the tender-hearted Queen, who loved justice and hated iniquity, was remote and her beneficent intentions towards her humble subjects in the islands were inoperative. “The heavens are high and the Tzar is far” say the long-suffering mujiks, whose road to their “little

father's" throne is barred by an army of interested bureaucrats. Tyranny is of divers sorts and one tyranny differs from another [pg 39] other in infamy, but the worst tyranny of all is the dual tyranny over both body and soul exercised collectively by irresponsible men over their fellows, and this was the tyranny of such slavery as prevailed in the Spanish colonies. The specious argument that the only way to convert the Indians was to keep them among the Spaniards, was constantly insisted upon in pious phrases meant to delude the Queen by a display of zeal in carrying out her plan for their conversion. Ovando wrote complaining of the desertion of the Indians, who escaped whenever they could from contact with the Spaniards and fled in numbers to the remotest recesses of the forests, facing starvation rather than endure their life in the settlements. And what wonder! for would any rational Indian voluntarily live amidst such surroundings and submit to such labour for the sole benefit of his tyrants? Nothing that the afflicted natives saw of the religion or the civilisation of the Spaniards could possibly attract them to either.

CHAPTER IV. - THE DOMINICANS IN HISPANIOLA. THE ORDINATION OF LAS CASAS. THE CONQUEST OF CUBA.

In the month of September of the year 1510, the first Dominican friars, four in number, arrived in Hispaniola from Spain under the leadership of their Prior, Pedro de Cordoba, a man of gentle birth, distinguished appearance, gracious manners, and great piety. He had exceptional gifts as a preacher and, in selecting the men of his Order to accompany him, he chose those who, to their exemplary life and zeal for conversions, united facility in expounding Christian doctrine. Two, especially, out of his company, were men of unusual ability—Fray Antonio de Montesinos and Fray Bernardo de Santo Domingo.

One of the colonists, Pedro Lumbreras, gave the missionaries shelter, and arranged to supply them with provisions, and the monks, without losing any time, set to work to improve the habits and morals of the easy-going Spaniards in the colony. The Viceroy being absent in the city of Concepcion de la Vega at that time, the Prior went thither to announce their arrival and pay his respects, accomplishing the tedious journey of thirty leagues on foot, sleeping on the ground and living on bread [pg 41] and water. He arrived at La Vega on a Saturday, and the next day, being Sunday in the octave of All Saints, he preached a sermon on the glories of paradise prepared for the saints, of which Las Casas says, "It was a sermon so lofty and so divine that I held myself happy to hear it." In response to the Prior's invitation at the close of his discourse, his hearers sent their Indians, men, women, and children, to the church, after dinner. The Prior, holding a crucifix in his hand, and assisted by interpreters, then gave the Indians their first exposition of Christian doctrine, beginning with the creation of the world and finishing with the Crucifixion. This was the beginning of

anything like a serious and practical effort to carry out the reiterated instructions of the Spanish sovereigns to instruct the Indians and convert them to Christianity.

In that same year, Las Casas took holy orders, and, though it is not clear whether his ordination occurred before or after the memorable sermon of Prior Pedro de Cordoba, it is evident that the impression he received from that discourse powerfully influenced him at a critical moment of his life and contributed to form the special vocation to which he afterwards devoted himself.

His own description of his ordination is as follows:

“In this same year and in these same days, when the father, Fray Pedro de Cordoba went to La Vega, a cleric called Bartholomew de Las Casas had sung a new mass; he was a native of Seville and among the oldest [settlers] in the island, and that was the first time that a new mass was sung in all the Indies; on account of [pg 42] being the first, the event was celebrated with great festivity by the Admiral [Don Diego Columbus] and everybody who was in the city of La Vega; they comprised a large number of the inhabitants of the island, for it was smelting time, when each brought his gold with his Indians to have it melted, all meeting together as people do to make payments, in the places where fairs are held in Castile; as there were no gold coins, they made certain pieces in imitation of castellanos and ducats, different sorts in the same smelting, where the King's fifth was melted and paid; these coins they offered [to the new priest] while others made arrieles²⁴ to offer. Reales were current, and many of these were presented, all of which the newly ordained priest gave to his god-father, save a few gold pieces that were especially well made. There was one notable feature of this first mass with which the clergy present were not satisfied; namely, there was not a drop of wine in the whole feast, because no ship having arrived from Castile since a long time, there was none in the entire island.”

The newly ordained priest entered immediately and zealously upon his duties, one of the first of which he considered to be the continuation of the religious instruction to the Indians he had seen so admirably initiated by Fray Pedro de Cordoba. He speedily acquired great fame throughout the

colony both for his virtues and his learning, and his influence over the natives was established once and for ever.

Don Diego Columbus undertook in 1511 to conquer [pg 43] and settle the island of Cuba, which had been discovered by his father, and, by virtue of the privileges secured to him by the capitulations of Granada, he named Diego Velasquez, a native of Cuellar and one of the oldest and most respected colonists in San Domingo, commander of this enterprise. The expedition, which consisted of three hundred men, amongst whom was Fernando Cortes, landed at a port called Las Palmas in the province of Maici and the conquest was quickly and easily effected, the natives being of a pacific disposition and little skilled in the use of even such indifferent weapons as they possessed. Thirty Spaniards in Jamaica, hearing of the events in Cuba, took service under Velasquez, who appointed Panfilo de Narvaez as commander under his orders. The campaign in Cuba was signalised by the same massacres and cruelties which marked the advance of Spanish civilisation throughout the Indies; the natives were pursued and torn to pieces by fierce dogs, burned alive, their hands and feet cut off, and the miserable, terrified remnant speedily reduced to a condition of hopeless slavery. The so-called war ended with the execution of the Cacique Hatuey, and in the early part of 1512, Diego Velasquez sent for Las Casas to join him from Hispaniola. At that juncture there arrived in the port of Baracoa a vessel commanded by Cristobal de Cuellas, who brought with him his daughter, the promised bride of Velasquez. The Governor absented himself for the celebration of his marriage, leaving his kinsman Juan de Grijalva in command of fifty men during [pg 44] his absence, and charging Las Casas to act as assistant and counsellor to Grijalva, who was a beardless youth and, though of excellent disposition, was without experience. The news of Las Casas's presence quickly spread amongst the Indians of Bayamo, who had fled in terror before the horses of Narvaez into the province of Camaguey, and, feeling reassured and confident of protection, they now began to return little by little, asking pardon for the opposition they had made to the Spanish force and offering to assist and serve the invaders. The veneration of the natives for Las Casas, their only friend, was a most touching thing to see, for they trusted him without reserve, believing him to be omnipotent and knowing him to be good; they called him by the same title, Behique, which they gave to their own magicians and both revered

and feared him as being almost divine. As the tribes came in, bringing gifts to the Spanish commander, they also brought offerings to Las Casas and when assured by him that the past was pardoned and forgotten, their confidence was completely restored.

Peace being thus established in the province of Bayamo, Velasquez sent orders to Narvaez that he should advance into the province of Camaguey with all the force he had, which, united to that of Grijalva, amounted to about one hundred men, and that Las Casas should accompany the expedition.

The spiritual and martial forces seemed to work in harmony; Grijalva was obedient to the counsels of Las Casas, and Narvaez, although a hardened [pg 45] campaigner and a man of violent temperament, was not indifferent to the priest's influence, backed as he knew it to be by the warm personal support of his Governor, Velasquez. Some thirty leagues from Bayamo, and before entering the province of Camaguey, the expedition arrived at a town called Cueyba, where they were well received by the Indians and where they found, in a sort of chapel, a statue of the Blessed Virgin which had been presented to the cacique some time before by Alonso de Ojeda who, after shipwreck and untold hardships, had reached that place and been cared for by the natives. Ojeda had carried this image for many weary days, confiding in its protection to rescue him from the dangerous plight in which he found himself, and some of his companions who were now with the Narvaez party praised its beauty so highly to Las Casas that he conceived the idea of offering to trade for it a very good Flemish statue of his own. His proposal, however, was not agreeable to the cacique, who had, on his part, become much attached to his own image, and the next morning when Las Casas went to the little chapel, which the Indians kept nicely adorned with cotton hangings and flowers, he was surprised to see that the statue was missing from its customary place above the altar. Upon inquiry he was told by the Indians that their chief, fearing that he would be forced to accept Las Casas's offer to exchange, had taken his statue and fled into the forests to save it. There was even a fear that a general uprising might result to defend the cherished [pg 46] statue, so Las Casas at once sent messengers to the cacique to assure him that he not only no longer wished to make the

exchange but had decided to make him a present of his own Flemish statue as well.

Twenty leagues beyond Cueyba the expedition entered the province of Camaguey, and, at the entrance of the various towns, the Indians came out to welcome the Spaniards, offering them provisions of fish, game, and cassava. Las Casas called together the children everywhere and baptised them, concerning which he afterwards said that many were thus destined for glory in good time, for shortly afterwards there was hardly one of those children left alive.

Nothing inspired more wonder in the Indians than the transmission of news from one place to another by means of writing, and the letters the Spaniards sent to one another excited the greatest awe amongst them. So great had the influence of Las Casas amongst them become, that he had only to send any piece of paper fastened to the end of a stick, carried by a messenger who had been instructed to say what he wanted, for his orders to be scrupulously obeyed; without the paper, the verbal message was shorn of its authority, with the paper it commanded entire obedience. To forestall excesses on the part of the soldiers, Las Casas hit upon the device of sending a messenger ahead, carrying one of these papers, to tell the Indians that the expedition was approaching and that he desired them to have provisions ready and to vacate one part of their village which [pg 47] the Spaniards might occupy. The messenger announced these dispositions, which must be obeyed under pain of the Behique's displeasure, and the Spaniards, on their arrival, invariably found everything prepared for them and free quarters in which to lodge. Narvaez agreed to give strict orders to his men to keep to their own part of the village, and any one who violated this command or sought to mix with the Indians was punished.

At a village called Caonao, one of the characteristic pieces of inexplicable cruelty, that so frequently occurred, took place. Before reaching that town, the expedition had stopped to eat in a dry river bed (barranca), where there was a quantity of soapstone on which the men sharpened their weapons. Upon entering the town and before taking possession of their quarters, they found some two thousand Indians peaceably squatting about the square, after their fashion, curious to see them and observe the movements of the

wonderful horses at which they never tired of looking. While the provisions which the Indians had got ready were being distributed, somebody—it was never discovered who—without cause or rhyme or reason suddenly ran amok, drew his sword, and began slashing right and left amongst the defenceless natives, and, as though crazed, the other soldiers fell to work in the same fashion, so that, before one half the Indians realised what was happening, the place was piled with dead and wounded. Narvaez looked on unmoved, but Las Casas, who was not in the square when the massacre began, hearing what was afoot, rushed [pg 48] thither in rage and despair to stop the slaughter. “What do you think of what our Spaniards have done?” Narvaez coolly asked him, and the priest in a fury replied: “To the devil with you and your Spaniards.” He finally succeeded in arresting the butchery, not forgetting, in the midst of all, to administer baptism to the dying. His indignation on this occasion burst all bounds and, from his own description, it may be inferred that his language towards his countrymen was not in strict conformity with sacerdotal usage. No sufficient explanation of this lamentable occurrence has ever been given, but Las Casas says that if the man who began the massacre was the one he suspected, he later met a dreadful death. It has been alleged that a soldier mistook some movement of the crowd in pressing forward to see the horses, for a beginning of hostilities, and, as there had been a surprise practised on Narvaez's men a short time before in Bayamo, the man was seized with a sudden panic of fear that the little force of one hundred men was about to be attacked and overcome by mere force of numbers while off their guard, lost his head, and began to use his sword; the others, seeing their comrade fighting, rushed into the melee and before reason could get the upper hand, the mischief was done. The natural consequence of this unprovoked massacre was a general flight of the Indians from their towns, all who could, taking refuge in the neighbouring islands.

The Spanish camp was established near Caonao and one day shortly after the massacre an old [pg 49] Indian servant of Las Casas, called Camacho, came to him to say that a young man about twenty-five years old and his younger brother had returned and begged to be admitted as servants into his household. This young Indian was baptised under the name of Adrianico and served as interpreter and intermediary to induce the other Indians to return to their villages, so that little by little some degree of peace and

tranquillity was established throughout the province. The Governor quickly discovered that the simplest means of securing obedience was to send a messenger bearing any bit of paper on a stick, to say in the name of Las Casas whatever was to be done, and this became the means usually employed to maintain order. Thousands of the natives were instructed and baptised during this expedition. It was at this time that news was received of the existence of several Spanish prisoners held by a cacique, in the province of Havana, some hundred leagues distant, and Las Casas sent his habitual Indian messenger carrying the sacred paper to tell that cacique that the paper meant he was to send those prisoners at once, under pain of the Behique's severest displeasure. After the departure of this messenger, the Spaniards struck their camp and went on to a place called Carahale, which Las Casas named Casaharta on account of the abundance of excellent provisions they received there; these seem to have consisted principally of parrots, of which the Spaniards consumed no less than 10,000 beautifully plumaged birds in the brief period of fifteen days they stopped there. Indeed, [pg 50] the amount the Spaniards ate amazed the frugal natives, for it took more to feed a soldier for one day than an Indian family required in a month, At this place there arrived one day a canoe, in which were two Spanish women, in the costume of Mother Eve, one of them about forty years old and the other eighteen. They were the prisoners sent back from Havana by the cacique who had meanwhile received the magic paper ordering their release. They described the slaughter of some Spaniards upon their arrival at the port which, since that time, has consequently been called Matanzas; several had managed to defend themselves but had afterwards been hanged by a cacique on a ceiba tree, leaving only the two women, whose lives were spared. This news so irritated Narvaez that he ordered eighteen caciques who had come in response to Las Casas's papers, bringing food for the Spaniards, to be put in chains, and but for the priest's threat that he would have him severely punished by Velasquez, and even report the case to the King, he would have hanged them. Las Casas, by his vigorous and menacing attitude, secured the immediate release of all the caciques but one, who was kept a prisoner until Diego Velasquez joined the expedition and released him.²⁵

At another village, a Spaniard, also a survivor of the Matanzas massacre, was brought forward and delivered to the Spaniards by the cacique, who

declared he loved him and had treated him as his own son. Great rejoicing celebrated the finding of this [pg 51] man, and both Las Casas and Narvaez embraced the cacique with fervour. The Spaniard had nearly forgotten his mother-tongue and was in all respects so entirely like the Indians in his manners and ways that every one laughed a good deal at him. Little by little he recovered the use of his Spanish and was able to give much information concerning the country.

Upon the arrival of Diego Velasquez, whose bride had died very shortly after her marriage, a town was founded on the banks of a large river, called by the Indians the Arimao, where very rich gold-mines were discovered. In this newly founded town of Xagua, as it was named, Las Casas received a valuable repartimiento of land and Indians in recognition of the services he had rendered during the expeditions, for, though he was the enemy of all cruel treatment and the protector of the natives against his callous-hearted countrymen, his conscience on the subject of repartimientos was not yet fully awakened.

During his residence in the island of Hispaniola, Las Casas had been close friends with a man named Renteria, whom he describes as a most virtuous, prudent, charitable, and devout Christian, given entirely to the things of God and religion and little versed in the things of this world, to which he paid small attention; he was so open-handed by instinct that his generosity was almost the vice of carelessness rather than a virtue. He was pure and humble in his life and was a man of some learning, devoted to the study of the Scriptures and commentaries to the Latin tongue, and was a skilful penman. [pg 52] Pedro de la Renteria, to whom Diego Velasquez had given the office of alcalde in the island of Cuba was a Biscayan, son of a native of Guipuzcoa, and such was the intimacy between him and Las Casas in Hispaniola that they shared their possessions in common, though in the management of their affairs, it was the latter who took the direction entirely, as being the more capable and practical of the two.²⁶

Upon Pedro de la Renteria, the Governor conferred a repartimiento of lands and Indians adjoining the one given to Las Casas and the two had their business interests in common. Las Casas owns, with compunction, that he became so absorbed at that time in developing his new estates and working

his mines that what should have been his principal care, the instruction of the Indians, fell into the second place, though despite his temporary blindness to his higher duties, he protests that, as far as their temporal wants were concerned, he was humane and kind, both from his naturally benevolent instincts and from his understanding of the law of God. This we may easily believe to be the case and, though his zealous soul may afterwards, when all his energies of body and mind were exclusively dedicated to his apostolate, have found grounds for self-reproach for neglecting the spiritual wants of his Indians at that time, it is more than probable that, even so, his care of them might well have served as a pattern to his fellow-colonists and more than satisfied the natives, who adored him.

CHAPTER V. - THE SERMONS OF FRAY ANTONIO DE MONTESINOS. THE AWAKENING OF LAS CASAS. PEDRO DE LA RENTERIA

The company of four Dominican monks under their Prior, Pedro de Cordoba, had been increased until their community numbered twelve or fifteen men, the severity of whose rule had been much augmented in the New World in order to maintain the just proportion between their penitential lives and the hard conditions of the colony in which they lived. Their observation of what was happening around them and of the injustice and cruelty daily practised on the natives in defiance of the wishes of the Spanish sovereigns, forced upon them the duty of protesting against such violation of all laws, human and divine. They had received into their community, as a lay-brother, a man who, two years before, had murdered his Indian wife and had afterwards fled to the forests where he lived as best he could. The information furnished by this repentant criminal still further amplified the insight of the monks into the treatment meted out to the Indians and quickened their determination to attempt to stay the iniquities of their countrymen.

[pg 54]

The first man to raise his voice publicly in America against slavery and all forms of oppression of the Indians was Fray Antonio de Montesinos, who preached to the colonists of Santo Domingo a discourse, of which unfortunately no full report now exists. The monks had made a point of inviting the Viceroy, the Treasurer, Passamonte, and all the officials to be present in church on the Sunday fixed for the sermon, and it was known throughout the colony that a matter of particular importance was to be the

subject of the discourse, though no one suspected its nature. The text chosen was from St. John: "I am the voice of one crying in the wilderness," and the friar, who was blessed with the dual gifts of eloquence and moral courage, drove his arguments and admonitions home with such force that, though he was heard to the close without interruption, the principal persons of the colony held a meeting after church and decided that the preaching of such revolutionary doctrines must be silenced. They repaired to the monastery to make their protest, and to demand that Fray Antonio should retract or modify his words the following Sunday. The Prior received the angry deputation and, after listening to their demands, informed them that the discourse preached by Fray Antonio represented the sentiments of the entire Dominican community and had been pronounced with his full approbation. The colonists became only the more enraged at this answer and declared that, unless the preacher retracted, the monks should pack their goods and return to Spain, to which the prior with quiet irony replied: "Of a truth, gentlemen, that will give us little trouble"; which indeed was the fact, for Las Casas says that all they possessed of books, vestments, and clothing would have gone into two trunks. The most that the Prior would concede was that the subject should be treated again on the following Sunday.

Fray Antonio once more ascended the pulpit and before the assembled colony announced his text: "Repetam scientiam meam a principio et operatorem meum probabo justum" (Job xxxvi. 3). Not only did he repeat the sense of what he had already said, but he elaborated still more forcibly his theme, and ended by announcing that the sacraments of the Church would henceforth be refused to all who persisted in the evil courses he denounced, and defying his hearers to complain of him in Spain.

Amongst the men on whose startled ears these denunciations fell, were hidalgos of high birth, reduced by reckless courses to expatriate themselves in search of fortunes with which to return and resume their extravagances in Spain; contemptuous of all forms of labour, they passed their enforced exile in gambling, dicing, and debauchery in the company of their Indian mistresses, chosen among the native beauties. They alternately courted the favour of the Viceroy or intrigued against him as seemed most profitable to their interests; they displayed few of the virtues and most of the vices common to their class in Spain. Others belonged in the unfailing and [pg

56] numerous category of adventurers, ever ready to play a new stake in a new country; they constituted an equally reckless but more resourceful element in the colony, though their contribution to the moral tone of the community was likewise insignificant. Columbus had sought and obtained an authorisation to deport from Spain criminals under sentence of either partial or perpetual banishment, while other delinquents had had their sentences remitted on condition that they would emigrate to the Indies. So dissolute was the general tone of the colonies and so depraved the habits of many of the colonists that Columbus could, with sincerity, exclaim, "I vow that numbers of men have gone to the Indies who did not deserve water from God or man."

Las Casas, who loved sinners as much as he loathed sin, observed this motley population with a more tolerant eye and affirmed that even amongst those who had lost their ears, he still found sufficiently honest men; it was not difficult to lose one's ears in those days. The voice of Fray Antonio cried indeed in a moral wilderness! But however far these men had strayed from the true spirit of their religion, they had no intention of foregoing the ministrations of the church, and they clung tenaciously to the outward observance of forms and ceremonies as an offset against their lax conformity to its moral precepts.

To be thus placed between the ban of excommunication and the renunciation of their illegally held slaves, was an intolerable prospect. Appeal [pg 57] or protest to the Prior being useless, they despatched complaint to the King and chose for the bearer of it a Franciscan friar, Alonso de Espinal, who was instructed to unite his efforts to those of two other agents, who had already been sent to obtain an extension of the encomienda privileges. The Dominicans sent as their representative to contest the case, the offending preacher himself, some generous sympathisers having been found in the colony to furnish the money for the expenses of his journey.

The advocate for the colonists found all doors open to him and his way made easy, for there were not a few of the courtiers and other great personages in Spain who derived large profits from the abusive traffic in the Indies, but the Dominican was friendless and met with obstacles on every

hand which barred his access to the King. He managed after some exercise of patience to outwit the gentlemen in attendance, and, forcing his way into the King's presence, begged to be heard. Upon receiving the royal permission to speak, the monk unfolded such a tale that the King sat stupefied with horror at his ghastly recital. "Did your Highness order such deeds to be done?" asked the monk. "No, by God, never on my life," replied the King. The immediate result of King Ferdinand's aroused conscience was, that a commission was formed to inquire into the case and to take information on which to base a report to his Majesty. The sense of this report was that the Indians were freemen, but must be instructed in [pg 59] the Christian religion; that they might be made to labour, but not in such wise as to hinder their conversion nor in excess of their strength; that they should have houses and be allowed sufficient time to cultivate their own lands; that they should be kept in touch with the Christians and that they should be paid wages for their work, which might be in clothing and furnishings rather than in money.

While the discussions inside the commission were going on, the agents of the colonists were active in presenting their side of the case. Fray Antonio was likewise losing no time, and was astonishingly successful in that he won over the very Franciscan whom the colonists had sent to plead their cause, and converted him into his staunch ally and supporter.

The outcome of this controversy was the code of laws promulgated at Burgos on Dec. 27, 1512, and known as the Laws of Burgos. They were afterwards considerably added to by another commission, in which the Prior, Pedro de Cordoba, who had come to Spain and seen the King, sat, and their provisions, had they been conscientiously carried out in the sense their framers designed, would have considerably ameliorated the condition of the Indians. They constitute the first public recognition of the rights of the Indians and an attempt, at least, to amend their wrongs.

Three years elapsed between the date of Fray Antonio's first courageous plea on behalf of the Indians and the entrance of Las Casas upon the active apostolate in their favour, to which the [pg 60] of his long life was devoted. There being no other priest at hand, Las Casas was invited to say mass and preach at Baracoa on the feast of Pentecost in 1514, and in searching the

Scriptures for a suitable text he happened upon the following verses in the thirty-fourth chapter of Ecclesiasticus, which arrested his attention and started the train of reasoning destined to produce great results.

“He that sacrificeth of a thing wrongfully gotten, his offering is ridiculous, and the gifts of unjust men are not accepted. The most High is not pleased with the offerings of the wicked; neither is He pacified for sin by the multitude of sacrifices.”

“Whoso bringeth an offering of the goods of the poor doeth as one that killeth the son before his father's eyes.”

“The bread of the needy is their life; he that defraudeth him thereof is a man of blood.”

“He that taketh away his neighbour's living, slayeth him; and he that defraudeth the labourer of his hire is a bloodshedder.”

The perusal of these simply worded texts, replete with terrible significance, quickened the conscience of Las Casas more powerfully than the spectacle of actual enormities happening daily for years under his very eyes, though doubtless the influence of these many occurrences was cumulative and had led him, gradually and unconsciously, up to the state when but a touch was necessary to strip the last disguise from the heinous abuses practised in the colony. Until then he had been [pg 60] zealous in protecting the Indians against massacre and pillage, but to the injustice of the servitude imposed upon them, he was insensible, and he recounts humbly enough that he had himself once been refused the sacraments by a Dominican friar in Hispaniola—possibly the redoubtable Montesinos himself—because he was a slave-holder. He sustained a discussion on the subject with the obdurate monk, whom he describes as a worthy and learned man, but to little purpose, and the Dominican wound up by telling him that “the truth has ever had many enemies, and falsehood many defenders.” Las Casas, though somewhat impressed by what had passed between them, took no heed of the admonition to release his Indians, and sought absolution from a more lenient confessor.

Much time and many terrible experiences were required to germinate and develop the seed the Dominicans had sown in his soul, but the day of fruition came with the peaceful preparation of a discourse suitable for the glorious feast of Pentecost, the birthday of the Church, into whose perpetual custody were committed the doctrines of Christ, to be infallibly guarded. Instead of disbursing these spiritual treasures to the humble Indians amongst whom he lived as a superior being, almost deified in their simple minds, he had profited by their labours as selfishly as the most godless layman in the island, without making an effort to gather them into one fold, under one shepherd, which, as a Christian priest, should have been his chief occupation. [pg 61] But if the awakening was slow, it was complete, and Las Casas was not one to shrink from following his beliefs to their logical conclusions; not only was his newly formed conviction that the treatment accorded to the Indians was a flagrant violation of all justice, and one that merited condemnation in this world and condign punishment in the next, absolute, but the first consequence following from it, and which seemed to him imperative, was that he should forthwith set the example to his fellow-colonists of freeing his serfs; the second was the devotion of all his powers to making others see the wickedness of the system by which they profited, and the terrible moral responsibility they would incur by persisting in it. He formed his determination to preach this crusade in season and out and to henceforth use every weapon in defence of the downtrodden natives.

Although he treated his own Indians kindly, and he well knew that if he renounced his “encomienda” their condition would doubtless be worse under the power of their new owner than before, Las Casas perceived how impossible it would be to preach justice for the Indians while he himself held them in bondage.

He went to the Governor, Diego Velasquez, and opened his mind fully on the subject, declaring that as his conscience no longer permitted him to hold his Indians in subjection, he had come to surrender them; and, admonishing the Governor of his own grave responsibility, he announced that henceforth his mission would be to preach this [pg 62] doctrine. He desired for the moment that his resolution should not be made public until the return to Cuba of his friend and partner, Renteria, who was at that time absent in Jamaica buying pigs and farm seeds.

The Governor listened with amazement to this new and, to him, monstrous doctrine and, out of friendly interest for Las Casas, and possibly thinking that his present intentions might subside if the renunciation of his property could be deferred, he counselled him to go slowly, saying, "Look well, father, to what you are doing, lest you may repent, for before God I would wish to see you rich and prosperous." He urged him to take fifteen days for careful consideration of the matter and to then return and discuss his intentions. This did not suit the temper of Las Casas who answered: "My lord, I am much honoured by your desire for my prosperity and for all the other favours you do me; but consider, my lord, that the fifteen days have passed, and should I repent of my intention I have expressed to you and desire to hold the Indians, and should you, out of the regard you bear me, wish me to keep them or to renew your grant to me, may it please God to punish you severely, nor to pardon you this sin. I only beg your lordship that all this shall remain secret and that you will not grant the Indians to any one, until Renteria's return, so that his affairs may sustain no damage."

The Governor reluctantly agreed and his respect for Las Casas being much increased, he thenceforward [pg 63] forward consulted him in all that concerned the welfare of the Indians.

On the feast of the Assumption, Las Casas preached a sermon on the contemplative, as compared with the active life, in the course of which he yielded to an impulse to make his intention publicly known. Turning towards the Governor's seat, he said: "My lord, I give you permission to tell to all what we have privately agreed upon between us, and I avail myself of the same to announce it to all here present." He then launched into a fervid discourse upon the blindness, the injustice, the tyranny and cruelty that marked the colonists' treatment of the Indians, declaring that their salvation was to be despaired of unless they liberated their slaves and treated the natives humanely. The assembly was moved to mingled admiration and astonishment, for most of the colonists would as soon have thought it a sin to work their beasts of burden as their Indians, so deeply ingrained was their belief that the natives were created to serve them. Some were stimulated to sentiments of compunction, but not to the extent of imitating the preacher's heroic example of renouncing the source of his income in deference to his moral principles.²⁷

While Las Casas was passing through these experiences in Cuba, his friend and partner, Renteria, was, by a singular coincidence, arriving at analogous convictions concerning the Indians and pondering upon the formation of some plan by which the diminishing remnant of them might be rescued [pg 64] from servitude and converted to the Christian religion. During lent of that year he made a retreat in a Franciscan monastery in Jamaica whither, as has been said, he had gone to procure farm stock. During this period of seclusion from temporal distractions, he came to the conclusion that the best means to benefit the natives would be to found several schools or colleges into which the Indian boys and younger men might be collected, and he formed the determination to go himself, if necessary, to Spain and seek royal approval and support for this project. Las Casas had meantime become so impatient of further delay in beginning his labours that, having made public his intentions, he abandoned his original idea of waiting for Renteria's return before starting for Spain. Although he was without funds and had no means of getting any save by the sale of a mare worth a hundred pesos of gold, he wrote to Renteria telling him that he was about leaving Cuba for Spain on business of great importance, so that, if his friend wished to see him before he started, he must hasten back from Jamaica. Renteria, in consequence, finished his business in the island and returned as quickly as possible to Cuba, where he was met upon landing by the Governor, Las Casas, and numerous others, for he was a very popular and much esteemed man in the colony. It was only when the two friends finally found themselves alone that an exchange of confidences became possible, and Renteria, yielding to the insistence of Las Casas, unfolded his plan for the establishment [pg 65] of Indian schools. Each in turn was surprised and gratified to learn the project of the other and, after some discussion and arguments, it was decided that, of the two, Las Casas was the one who must go to Spain. Renteria disposed of his Jamaica purchases and, out of the profits, furnished his friend with money enough to defray the expenses of what was foreseen would be a long and doubtless costly sojourn at court.

At this same juncture, the Dominican Prior in Santo Domingo sent four of his monks to establish a community in Cuba, choosing as their Prior, Fray Bernardo, who is described as both a pious and a learned man. The Governor of Cuba received these religious with great satisfaction, but to no one did their coming afford greater joy than to Las Casas. The Dominicans

began a series of earnest and edifying sermons, in the course of which practical applications of Scripture texts were made to the actual condition of affairs in the colony; and, by using the information furnished them by Las Casas, the preachers were able to make very forcible home thrusts on the subject of the injustice of the system of serfage and the grave responsibility of those Spaniards who oppressed the Indians. These sermons disturbed the conscience of the colonists but not to the point of amending their evil system, so the chief result was a general feeling of dissatisfaction within themselves and one of intensified exasperation towards the preachers of such uncomfortable doctrine. The monks, on their part, realising that it was idle to combat with purely spiritual weapons [pg 66] a system of evils which everybody was interested in maintaining, perceived their only hope of success lay in having their hands strengthened by royal support, and accordingly their Prior decided to go to Spain with Las Casas, where they might co-operate in their undertaking.

CHAPTER VI. - LAS CASAS RETURNS TO SPAIN. NEGOTIATIONS. CARDINAL XIMENEZ DE CISNEROS. THE JERONYMITE COMMISSIONERS

Las Casas was fully conscious of the hostility his mission was bound to provoke, and how odious he would make himself, not only to the colonists, but also to the members of the India Council, the courtiers, and to many influential persons in Spain, all of whom had investments in the colonies and drew incomes from the very abuses he was to combat; he therefore took the precaution of drawing up a sworn and witnessed statement, *ad perpetuam rei memoriam*, with the legal formalities dear to Spanish usage, in which he recounted all the services of every kind that he had rendered in the colonies. Lest obstacles might be put in the way of his departure, he resorted to a little dissimulation and caused the report to be spread that he intended to go to Paris to finish his law studies and take his degree at the university there. The colonists, including the Governor, were duped by this subterfuge and he departed in company with the Prior, who took with him a deacon of his order, Fray Diego de Alberca. The first stage of their journey was to Hispaniola, where the [pg 68] Prior was seized by a severe illness, to which he succumbed in the town of San Juan de la Maguana.

In the city of Santo Domingo, Las Casas encountered his old friend and precursor in the defence of the Indians, Prior Pedro de Cordoba, to whom he recounted all that had befallen him in Cuba, his newly found vocation, and his intention to visit Spain and lay the case for the Indians before the King. The Prior praised his resolution, but in wishing him all success, he explained the situation he would find awaiting him in Spain, where the all-powerful Bishop of Burgos, who was at the head of Indian affairs, and the

royal Secretary, Lope Conchillos, were entirely in favour of the system of repartimientos and encomiendas, being themselves shareholders in colonial enterprises. As not uncommonly happens, it was on the estates of such absentee owners that the Indians were most cruelly handled, being mercilessly overworked by overseers anxious to curry favour at home by the remittance of ever-increasing revenues.

Although he was sufficiently impressed by what he heard, the zeal of the new apostle was undiminished. The Dominican community in Hispaniola being in sad need of funds, the Prior decided to profit by the occasion and to send one of his monks with Las Casas to Spain to solicit aid. He chose for this mission the same Fray Antonio de Montesinos, whose earnestness in behalf of the natives rendered him a sympathetic companion, while his own experience in handling the question in Spain, promised to be of great assistance to Las Casas. They [pg 69] sailed in September, 1515, and after a prosperous voyage arrived safely at Seville, where Montesinos lodged in the monastery of his Order, while Las Casas was given hospitality by his relatives.

The Archbishop of Seville at that time was Fray Diego de Deza, a Dominican who stood high in King Ferdinand's favour, and the first service Montesinos rendered his companion was to present him to the Archbishop, to whom he had already given some account of the objects which brought them both to Spain, and of the zeal of Las Casas in a cause which the Dominican Order had made peculiarly its own. It required no persuasion to enlist the good offices of the Archbishop, who was in entire sympathy with their undertaking and promptly furnished Las Casas with a warm letter to the King, commending both the cause and its advocate. To facilitate his approach to the King, he furnished Las Casas also with letters to influential persons in the royal household.

No better beginning could have been desired, and Las Casas set out for Plasencia where the King then was, arriving there a few days before Christmas in the year 1515. Thanks to the counsels and information given him by Montesinos, Las Casas knew something of the court and upon what persons he might count, who might still be won over, and who were to be avoided. Among these last, the most notorious and powerful opponents

were the Bishop of Burgos and the Secretary, Lope Conchillos. Whatever virtues the former may have possessed they were certainly not of the apostolic [pg 70] order and his appointment to the high office of President of the India Council was one of the earliest and greatest calamities that overtook American interests. Las Casas was careful, therefore, to defer meeting these two personages and to refrain from disclosing the object of his presence until he should have first secured a hearing from the King, whose sympathy he hoped to enlist before his opponents could prejudice the monarch against him. Again fortune favoured him, and two days before Christmas he was closeted with the King, and explained in the fullest detail the state of things in the islands; the extinction of the natives, which was following rapidly on the barbarities and rapacity of the Spaniards, and the violation of the royal provisions which the benevolence of the late Queen and the sagacity of the King had decreed. He was astute enough to couple with the argument that these iniquities lay heavily on the royal conscience, the assurance that the revenues from the Indies would infallibly diminish until they ceased altogether, unless these crying abuses were corrected. In this conversation the charming personality, cultivated intelligence, and earnest convictions of Las Casas told powerfully, and he recounted horrifying incidents to the astonished sovereign which, it may be rightly imagined, lost nothing in the recital by such an eloquent and fervent advocate. Again he was completely successful, for King Ferdinand promised him another and longer audience before Easter in which he would go more fully into the matter. He slyly [pg 71] notes in closing his own description of the audience and its results, that neither Conchillos nor the Bishop of Burgos was much overjoyed when they heard from the King what subject was under discussion.

Diego Velasquez was well aware that Las Casas would spare no means to carry on his propaganda and that his first step would doubtless be to engage the attention of the Admiral, Diego Columbus, whose lieutenant Velasquez was, and that of the King as well, if he could reach him. He wrote therefore to the Treasurer, Passamonte, who in turn wrote to Conchillos and the Bishop of Burgos warning them of what was on foot.

The monks of the Dominican Order were, in those days, to be found in many posts of influence, not the least of which was that of confessor to the

King, and to Fray Tomas de Matienicio, the ghostly father of King Ferdinand, Las Casas did not fail to go at the outset. Matienicio had already shown pronounced sympathy with the cause of the Indians and was, therefore, to be counted upon as a firm ally, both because of his personal convictions and for motives of solidarity with his Order. Through his confessor, Ferdinand sent to tell Las Casas that he should precede him to Seville and wait for his arrival there, when the promised audience would be granted him; the King's departure was fixed for the fourth day after Christmas, so it may be seen that this affair did not drag just then at the Spanish court. The confessor also advised Las Casas not to avoid the Bishop of Burgos and Conchillos; but, on the [pg 72] contrary, to go openly to both and to explain as frankly to them as he had done to the King, the exact condition of the Indians, the motives which had prompted him to intervene, and the measures he judged necessary to stop the depopulation and ruin of the colonies. Matienicio reasoned that, as the matter must ultimately come into the hands of these two men, and as they had to be reckoned with, it was far wiser to give them the fullest information at the outset, hoping also that Las Casas's moving description of the sufferings the Indians endured might modify their opposition. This counsel did not accord with the plan of Las Casas but he allowed his judgment to be overruled by the royal confessor's advice and sought out Conchillos as being the less intractable of the two. The letter from the Archbishop of Seville procured him a courteous reception and had he come seeking a benefice or some preferment from the King, he might have counted upon the favour and assistance of the Secretary to advance his suit, but, as he piously phrases it, he had, by divine mercy, been rescued from the darkness in which, like all the others, he had wandered, a lost man, and was liberated from all desire for any temporal benefits. Save the gracious words and courtly blandishments which Conchillos showered upon him, nothing resulted from the interview.

His reception by the Bishop of Burgos was of a totally different order and, though it is to be lamented that this prelate did not possess more of the virtues becoming his state, it must be noted in his favour [pg 73] that hypocrisy was wanting in his unlovely character. Amongst other atrocities which Las Casas brought to his attention was the death of seven thousand Indian children within three months, on which he dwelt, hoping to touch

some humane chord in the Bishop. He was deceived. "Look what an ignorant fool you are!" exclaimed his lordship. "What is this to me or what to the King?" This rough answer goaded his patience beyond control and Las Casas shouted in reply: "That all these souls perish is nothing to you and nothing to the King! Oh, Eternal God! then to whom is it anything?" With this he left the Bishop's presence.

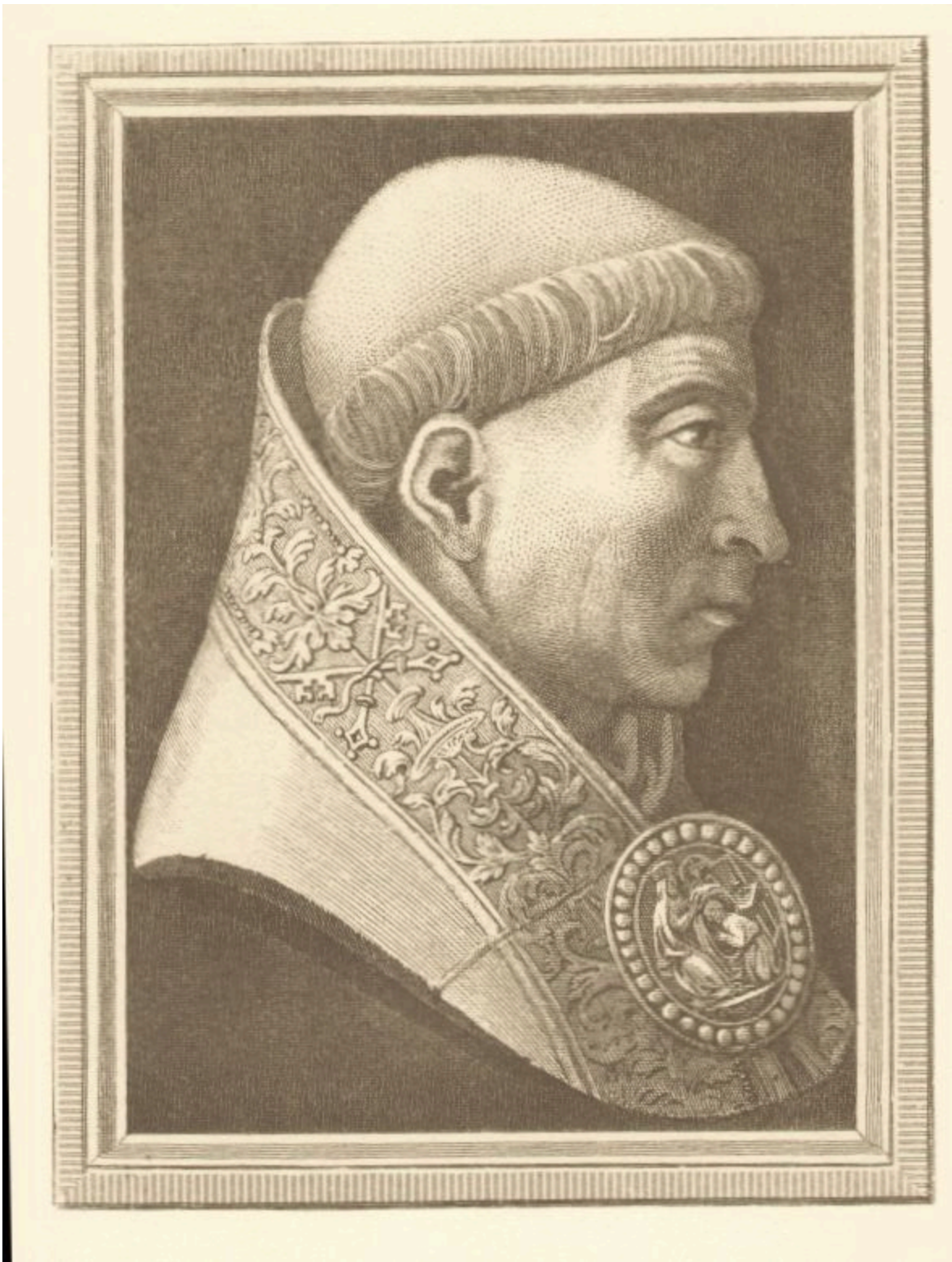
The activity of Las Casas, his earnestness and his eloquence produced immediate effects, for he forced Indian affairs upon the languid attention of indifferent people and aroused so much interest in them that they became a topic of general discussion. He recounted his experiences to Archbishop Deza on his return to Seville, and begged him to arrange that both Conchillos and the Bishop of Burgos should be present at the audience the King had promised him, so that he might put the case fully, for he desired to charge them directly in the royal presence with responsibility for the massacres and cruelties to the Indians and for the damage done to the royal interests by their maladministration of the colonies. His project for this dramatic encounter was forestalled, and all the hopes born of the royal assurances given him at Plasencia were dashed by the news that reached Seville of the [pg 74] death of King Ferdinand, which occurred at Madrigalegos on January 23, 1516.

This sudden stoppage of his carefully planned campaign was discouraging enough to Las Casas but he was not disheartened, and resolved to set out at once for Flanders where the young King Charles then was and to present his plans to the monarch before he arrived in Spain.

King Ferdinand's last will designated Cardinal Ximenez de Cisneros as regent of the kingdom until his successor's arrival in Spain.

In a century prolific in great men, Cardinal Ximenez de Cisneros was among the greatest. Descended from an honourable family, he entered the Church, where a career of great promise opened before him. At an early age, however, he quit the secular priesthood for the cloister and became a monk of the Franciscan Order, in which the austerity of his observance of that severe rule of life and the vigour of his intellect advanced him to the position of a Provincial.

Much against his own inclination, he had accepted the post of confessor to Queen Isabella and from thence forward he became, in spite of himself, a dominant figure in the political and ecclesiastical affairs of the realm. The Queen raised him to the primatial see of Toledo, which carried with it his elevation to the Roman purple. The Cardinal-Archbishop of Toledo was the richest and most important person in Spain, after the sovereign; but promotion to this lofty dignity, with its obligations to the pomp and magnificence imposed by the [pg 75] usage of the times, in no way modified the austerity of Cardinal Ximenez's life. He still wore the rough habit of St. Francis under his purple and he patched its rents with his own hands. Amidst palatial surroundings he slept on the floor or on a wooden bench—never in a bed—and he held strictly to the diet of a simple monk. No man was less of the world than he, though none was more in it or knew it better. He became as renowned for his wisdom and ability in conducting affairs as he had long since been for his sanctity, and the confidence which the King and Queen reposed in him caused him to be admitted to their counsels on all the most important matters of government.



Cardinal Ximenez de Cisneros

From a relief preserved in the Universidad Central. Photo by J. Laurent & Co., Madrid

When the death of King Ferdinand occurred, the Cardinal was nearly eighty years of age, yet he accepted and assumed the regency imposed upon him by the King's testament. Adrian of Utrecht, Dean of the University of Louvain, who had resided for some months at the court of King Ferdinand in the quality of ambassador from Prince Charles, produced full powers from the young sovereign, which conferred upon him the regency after Ferdinand's death. Cardinal Ximenez acknowledged him without delay, and a joint regency was instituted in which Adrian's part was merely nominal, as the actual government was carried on exclusively by the Cardinal.

It could hardly have been otherwise, for Adrian, as a foreigner, was unpopular in Spain, where he exercised no influence; he did not even speak Spanish and being, moreover, of a scholarly disposition, [pg 76] little used to the intricacies of affairs of state, he was doubtless glad enough to shelter himself behind the powerful figure of his masterful colleague. The Cardinal was adored by the people; the sanctity of his life, the integrity of his character, the superlative order of his genius, and his princely munificence made him more powerful than any sovereign. Some of the great nobles who had imagined that the regency of an aged monk would favour the designs of their invasive ambitions were sharply checked by the energy of the new regent, who had organised an efficient body of troops in his own pay and speedily made it apparent that Spain had a ruler with whom it was perilous to trifle. One incident in the contest he sustained in defence of the crown's prerogatives against the encroachments of the feudal nobles, illustrates his character. The Duke of Infantado, the Grand Admiral of Castile, and the Count of Benevente came as representatives of the nobles, to inquire into the nature of the powers by which the regent exercised such absolute authority. After hearing them courteously, the Cardinal produced the late King's testament and its formal ratification by the absent King Charles. As they raised some objections to the extent of the powers these documents gave him, he led them to a window of his apartment commanding a view of a large encampment of soldiers and artillery, saying, "There are the powers I have received from his Catholic Majesty, by which I govern and shall

continue to govern Castile, until the King, my master and yours, shall take [pg 77] possession of his kingdom.” This answer both astonished and silenced them and they withdrew convinced of the futility of conspiracies against a man so well prepared and so determined.

The supreme object of his regency was to consolidate the union of the various kingdoms and principalities of the peninsula into one state—in other words to create a nation. This he did, and thus laid the foundations of Spain's greatest power and glory, for he delivered the kingdom to the young monarch in a more prosperous condition than it had ever before enjoyed, and with the royal authority more widely extended and more firmly grounded than any other Spanish sovereign had ever possessed it.

The regency of Cardinal Ximenez did not last two years, yet such was the permanent character of his beneficent influence upon the national development, that the memory of his services is still undimmed in Spain. Amongst the statesmen of his times, he was facile princeps and he enjoys the unique distinction of being the only prime-minister in history who was regarded as a saint by his own contemporaries.²⁸

To this ascetic and autocratic but not unkindly statesman Las Casas decided to address himself, and he proceeded to Madrid to acquaint the two regents with the abuses prevailing in the Indies and to announce his intention of going to Flanders [pg 78] unless the necessary measures for the relief of the oppressed Indians could be devised in Spain before the King arrived. He drew up a statement of the case in Latin, which he submitted to the Ambassador Adrian, and another, identical, in Spanish, for Cardinal Ximenez. The gentle-hearted Fleming was horrified by what he read of the atrocities perpetrated in the King's name in the colonies, and repairing to the apartment of Cardinal Ximenez, who lodged in the same palace, asked him if such enormities were possible. As the Cardinal already had plenty of information on the subject from his brother Franciscans, he replied that all that Las Casas stated was true and that there was even more besides. He signified to Las Casas that his proposed journey to Flanders was unnecessary as he would himself provide means in Madrid for correcting the abuses in the colonies. There began at once a series of conferences to which Cardinal Ximenez summoned his colleague in the regency, the

licentiate Zapata, Dr. Carbajal, and the distinguished jurist Dr. Palacios Rubios; in the course of these debates Las Casas fully exposed the evils of the colonial administration and proposed the measures which, in his judgment, were necessary to remedy them. The Cardinal-regent always had by him as a consultor the Bishop of Avila, who was also of his Order, but he rigorously excluded the obnoxious Bishop of Burgos from all participation in Indian affairs, to the no small perturbation of that prelate. Las Casas relates a significant incident that happened during one of these conferences, illustrating the [pg 79] means employed by his opponents to confute his statements. Cardinal Ximenez ordered the Laws of Burgos, which, since 1512, were supposed to be in full force in the Indies for the protection of the natives, to be read aloud; upon reaching one of the articles, the reader falsified the text; Las Casas, who knew every line of those acts by heart, objected and the Cardinal ordered the reader to repeat; he did so in the same language, whereupon Las Casas once more objected, saying, "The law does not say that." The Cardinal, rendered impatient by the repeated interruption, turned to Las Casas and remarked with severity, "Either be silent or look well to what you say." "Your Eminence may take my head off if what this clerk is reading be truly found in that law," replied Las Casas promptly. Taking the articles from the hands of the reader he showed his Eminence that the sense had not been correctly read. The confusion of the clerk, whom Las Casas refuses to dishonour by naming him in his history, was complete. The outcome of these discussions was that Las Casas, Dr. Palacios Rubios, and Fray Antonio de Montesinos (who had meanwhile arrived in Madrid) were deputed by the Cardinal-regent to draft a project of laws which would sufficiently protect the Indians and secure fair government in the colonies. By common consent of his collaborators, the task of framing these laws was left exclusively to Las Casas. His propositions were:

- 1.1. Unconditional liberty for the Indians;
- 2.2. Suppression of both repartimientos and encomiendas;
- 3.3. Some provisions for assisting the Spaniards to work [pg 80] their properties profitably without recurring to the oppressive and abusive systems they had hitherto employed.

Both Fray Antonio and Dr. Palacios Rubios approved these articles and the latter somewhat added to and improved them, recomposing them in the proper legal terminology of the time, after which they were again submitted, discussed, and in some unimportant details, amended, in the above-mentioned council presided over by the Cardinal. The next important step was to place the execution of these new provisions in the hands of trusted delegates who would apply them rigorously and in the sense designed by the council, for there had been no lack of excellent decrees, having the same end in view, but which had, in the past, been rendered null and of no effect, through the connivance of the colonial authorities, to whom their execution had been entrusted. Las Casas, for the best of motives, declined having any part in designating such officers and in consideration of certain rivalries existing between the Franciscan and Dominican Orders, especially in Indian affairs, the Cardinal finally decided to confide the necessary powers to the monks of St. Jerome, an Order which had thus far taken no part in colonial affairs. Upon receiving the Cardinal's notification of this intention, the General of that Order, who resided at San Bartolomé de Lupiano, summoned a chapter of all the priors of Castile, in which twelve monks were designated, amongst whom the regent might make his selection. Four priors came to Madrid to notify this result to his Eminence, and one afternoon [pg 81] the two regents, accompanied by the entire court, rode out to the monastery of St. Jerome near the Buen Retiro Gardens, where they lodged, to receive the formal answer of the chapter. Las Casas was, of course, present, and the regents were received by the monks in the sacristy of the church, which had been appropriately prepared for the great occasion. Cardinal Ximenez addressed the assembly, highly commending the willingness of the Jeronimites to undertake such a meritorious task, and then ordered that Las Casas be summoned to hear the result.

The boyish enthusiasm of Las Casas's character appears on this occasion, for, consumed with impatience, tortured by hopes and fears, he had waited outside in the upper cloister as long as he could stand it and had then finally descended a staircase which brought him unexpectedly to the sacristy door, just in time to hear that he was being searched for; some one asked him if he knew Las Casas, to which he meekly replied, "I am he." As he could not get in at that door, he had to go round through the church, which obliged

him to traverse the choir, where all the great people of the court in attendance on the regents were waiting and who, so Las Casas observes, were all glad to see him, except perhaps the Bishop of Burgos. This hour of Las Casas's triumph was complete; on his knees before the Cardinal-regent, in the presence of the assembled Priors of Castile and the entire court, he heard, with ill-repressed tears, the announcement that all he had most earnestly striven and prayed for was now [pg 82] to be realised and that he himself was designated to confer with the General of the Jeronymites concerning the choice of the men who were to execute the new laws in the Indies. The Cardinal, who unbent to few, treated Las Casas with genial familiarity and when the latter declared that he did not need the money his Eminence had provided for his expenses, as he had enough of his own, he smilingly observed, "Go to, father, I am richer than you."

Not a moment of time was wasted, and that very evening Las Casas received his instructions and twenty ducats for the expenses of his journey to Lupiano, whither he set out the following morning. One of the twelve monks amongst whom the selection was to be made was in that monastery, and the General had him called and presented him to Las Casas, who was as pleased with his robust appearance, which promised to support the physical hardships of colonial life, as he was with all that he heard of his virtues and learning, though his face was as ugly a one as ever a man had; this was Fray Bernardino de Mazanedo, the Prior of Mejorada, and he was selected as one of the commission; Luis de Figueroa and the Prior of St. Jeromino in Seville were finally agreed upon between Las Casas and the General to complete the number.

No sooner had the Jeronymite monks arrived in Madrid than the agents of the colonists, and all those who were interested in maintaining the encomiendas and repartimientos, whose suppression [pg 83] meant the diminution of their incomes, laid instant siege to them. Las Casas was abused and even threatened in the public streets, and a well organised campaign of calumny and misrepresentation was set actively in motion. The Indians were represented as lazy, filthy pagans, of bestial morals, no better than dogs, and fit only for slavery, in which state alone there might be some hope of instructing and converting them to Christianity. Las Casas was flouted as a fanatic, bent on destroying the Spanish colonies, and as an

enemy of his country's interests. So adroitly were these and other arguments presented, and so overwhelming was the mass of testimony favourable to the colonists that constantly reached the Jeronymites from all sides, that they began to be ill-affected towards Las Casas and to disregard his suggestions. Dr. Palacios Rubios was so disturbed by their new inclination, that after conversations with them, in which their changed views were plainly manifested, he declared it would be disastrous to send such men; he forthwith determined to stop their departure, if possible, before it was too late.

Cardinal Ximenez fell seriously ill at this time and Palacios Rubios sought access to him in vain. As soon as his Eminence had sufficiently convalesced to attend to business, he ordered the final instructions to be given to the Jeronymites and their departure to be hastened. One of the orders directed them, upon arriving in Hispaniola, to at once annul the encomiendas held by members of [pg 84] the Royal Council for the Indies. This struck a hard blow at Conchillos and the Bishop of Burgos amongst others, for the former lost eleven hundred Indians and the latter eight hundred, ²⁹ nor from that time forth did any member of the Council openly hold property in slaves, though Las Casas was sceptical as to whether they did not continue to have private interests. Another similar order obliged all judges and royal officials in the colonies to surrender their slaves. The general sense of the instructions furnished to the Jeronymites for their guidance was in conformity with the ideas of Las Casas and the articles were indeed drawn up by him, although certain concessions which did not meet with his approval had been made to public opinion, and the important property-owners in the colonies were sufficiently powerful at court to obtain some modifications and to suppress some provisions in favour of the Indians, which seriously hampered the original proposals. In spite of the declaration formally set down in the will of Isabella the Catholic that the Indians were and must be considered free men, the contrary opinion had come to prevail, and in the beginning of his negotiations in Spain Las Casas himself had not ventured to insist too much or too openly on this point, until one day, when in conversation with Cardinal Ximenez, he queried by what principle of justice the Indians were held in subjection. His Eminence answered with some vivacity: "With no justice, for are they not free men? And who can doubt [pg 85] they are free?" From thenceforward Las Casas sustained this

opinion unflinchingly.³⁰ The licentiate Zuazo of Seville was appointed to accompany the Jeronymites and to open an inquiry (tomar la residencia) into the administration of the colonial officials. The powers of the friars were the fullest possible and enabled them to inquire into all matters touching the welfare of the Indians and to correct abuses, but they were not “governors” as has been supposed and stated by many writers, but rather overseers, charged to ensure the proper execution of the laws which had been enacted to protect the natives.

As soon as the instructions were delivered to the Jeronymites, Las Casas received the following order from the Cardinal-regent:

“The Queen and the King. Bartholomew de Las Casas, priest, native of the city of Seville, and resident of the island of Cuba which is in the Indies.”

“For as much as we are informed that you have been and are resident in those parts for a long time, from which you know and are experienced in their affairs, especially in what touches the well-being and usefulness of the Indians, and you know and are acquainted with their life and conversation from having dwelt with them, and because we know your good zeal in our Lord's service, from which we hope that you will execute with all diligence and care what we shall charge and command you and will see to what contributes to the welfare of the souls and bodies of the Spaniards and Indians who live there; by these presents we command you to repair to [pg 86] those regions of the said Indies, such as the islands of Hispaniola, Cuba, San Juan, and Jamaica as well as to the mainland; and you shall advise, inform, and give your opinion to the pious Jeronymite fathers whom we despatch to effect the reformation of the Indies, and to other persons who may assist them in this, concerning everything which touches the liberty, good treatment and welfare of the souls and bodies of the said Indians in the said islands and mainland; and that you shall write to us giving information concerning everything that may be done or should be done in the said islands; and that you shall do everything required for our Lord's service; for all of which we give you full power, with all its casualties, dependencies, emergencies, annexes, and connexes; and we command our Admiral and appellate judges and all other justices whatsoever of the said Islands and Tierrafirma that they protect you and cause this power to be protected and

that they shall not oppose or go contrary to its form and tenor nor consent that such be done at any time or in any way under pain of our displeasure and of 10,000 maravedis for each person who may act to the contrary.”

“Done at Madrid the 17th day of September in the year 1516 F. Cardinalis, Adrianus Ambasiator—By command of the Queen and the King her son, our sovereigns, the governors in their name. George de Baracaldo.”

In addition to this full power, Las Casas was given the title of Protector-General (or Procurator-General) of all the Indians, to which office an annual salary of one hundred dollars was attached, an amount which, for the times, was a considerable one.

Though everything now seemed ready for the departure of the Jeronimites and Las Casas, the [pg 87] members of the Council still advanced objections to the instructions which Palacios Rubios had drawn up for the licentiate Zuazo, who had been deputed to take the residencia of the colonial judges; it was feared that some severe decisions might be given on acts which these latter had performed in the interests of the members of the India Council, whose tools they were. Las Casas employed his usual direct tactics to overcome these delays and brought the matter to the Cardinal's notice. His Eminence summoned the licentiate Zapata and Dr. Carbajal into his presence and ordered them to sign Zuazo's papers; they obeyed, but contrived to affix a mark in cipher to their signatures which would enable them later to complain to the King that the regent had forced them to sign.

In taking leave of the Cardinal, Las Casas frankly declared that he feared the Jeronimites had been so tampered with and influenced before starting on their mission, that more evil than good was to be apprehended from their action. The Cardinal, nonplussed for an instant by these forebodings, exclaimed, “Whom then can we trust?” quickly adding, “Go on and do you look out for everything.”

This unpromising joint-commission sailed from San Lucar on November 11, 1516, but in separate vessels, the Jeronimites keeping aloof from Las Casas, who they contrived should not embark on the same ship with themselves. Their vessel reached Hispaniola thirteen days earlier than the other, which had been obliged to stop at Puerto Rico to discharge freight.

[pg 88]

By detaching themselves from Las Casas at the very outset, the three Jeronymites doubtless intended to affirm the impartial and independent attitude essential to the judicial character of their mission. They were not carried to the Indies on any such wave of righteous zeal and indignation as bore the impetuous reformer on its crest. They were cloister-bred men, cautious and prudent in their decisions and deliberate in their acts, and they doubtless felt that for them to arrive in company with Las Casas would be to prejudice the impartiality of their proceedings in the eyes of all the colonists. They were sent to the colonies to carry out instructions of a most delicate and difficult nature and it was their obvious preference to fulfil their mission, as far as possible, without friction. In this exercise of caution, Las Casas beheld weakness and even treachery. His passionate nature chafed and raged at the deliberateness with which these impassive monks moved, and he was not slow to denounce them as having been won over by the blandishments of the colonial officials to betray the mission with which they were entrusted. His passion for justice, associated as it was with unrealisable ideals, refused to take account of the multifarious difficulties in the way of the reforms on which his heart was set, and he despised the obstacles to their consummation, through which he would have crashed, regardless of the consequences. Despite the sincerity of these one-sided views of the great Protector, it must be conceded that the problems confronting the Jeronymites were complex [pg 89] and difficult of solution. The prompt and reckless execution of their instructions would have overturned the entire economic system of the colonies which, however unjust in its principles, was the established condition of things, and would have certainly brought financial ruin as the first consequence. The situation was one which called for all their circumspection if the Jeronymites were to make their authority effective and their decisions operative. They were the first of all the men sent by the Spanish government to effect reforms in the colonies, whose intention to discharge their duty was conscientious, though Las Casas does not even admit this in their favour, for he declares that they had relatives in the islands whom they desired to benefit, and that in writing to the Governor of Cuba they even signed themselves as his “chaplains,” which seemed to him conclusive proof of their too subservient attitude towards the higher colonial authorities.

The Jeronymites, however, had been furnished with two sets of instructions and it was within their discretion to guide their policy according to either, as their judgment formed on the spot might dictate. The first set of instructions was in conformity with the plan drawn up by Las Casas and Palacios Rubios; the second was provided in case the result of their investigations showed the full application of the first to be inexpedient, for Cardinal Ximenez, though sympathising with the ideas of Las Casas, was not led by him, but viewed the situation, as he did every other that concerned the welfare of the [pg 90] Spanish realm, from the standpoint of a statesman trustee for the absent sovereign.

The first measures of the Jeronymites were in the right direction, but they were far too timid and temporising to satisfy the expectations of Las Casas; the conditions he had foreseen were only too prompt in declaring themselves, for the Jeronymites showed themselves somewhat insensible to the crying abuses which he incessantly pressed upon their attention. They did not give full credit to all of his representations and even ignored many of the proofs he adduced. They had failed to find the picture he had drawn in Spain of the Indians an entirely accurate one, and they resisted his reiterated demand that they should scrupulously obey the injunction to at once deprive all royal judges and officials of their encomiendas. The exasperation of Las Casas at this time pushed him to excesses which aroused such a storm of ill-feeling and hostility against him that his good friends the Dominicans feared for his life and insisted that he should come to live with them in their monastery, where he would be safer from any violence his enemies might attempt. Whether it was feasible to proceed in the drastic manner demanded by Las Casas is open to doubt. It is evident that the colonists would have offered an obstinate resistance, to combat which the three Jeronymites had nothing but the moral force of their commission. Even with our present facilities for rapid communication, it is not always easy for the central authority to control its agents and ensure the faithful execution of its [pg 91] intentions. In the sixteenth century, time and distance influenced powerfully the action of the government representatives. Their instructions were made complex, voluminous, in the effort to cover every possible emergency, but no foresight sufficed for the purpose, while the legal system in use opened many loopholes for evading or postponing the application of unpopular measures. An appeal from a

royal commissioner's decision, to the India Council or to the King, entailed a delay of many long months or even years, during which each party contested every point. The outcome of such proceedings was problematical but the resisting party was always certain of the one positive advantage of delay.

CHAPTER VII. - LAS CASAS AND CHARLES V. THE GRAND CHANCELLOR. NEGRO SLAVERY. EVENTS AT COURT.

As soon as Zuazo arrived, nearly three months after the Jeronymites, Las Casas immediately lodged against members of the audiencia, an accusation of having encouraged and shared in the man-hunts in the Lucayan islands and the enslavement of the captured natives. The Jeronymites, whose every act was now one of opposition to Las Casas, showed much annoyance at this impeachment of the royal functionaries. They solicited divers opinions, addressing themselves to the accused officials, who naturally exculpated themselves, to the Franciscan monks, who were not over-friendly to the Indians, and to the Dominicans, who were their warm advocates. Much discussion ensued, and meanwhile the perplexed Jeronymites did nothing, so that matters continued as they had been before their arrival, except that the sufferings of the Indians were augmented by their owners, who feared that the encomienda system was nearing its end and hence worked their Indians to death, sparing neither women nor children, so as to get all the profit they could out of them before they lost them. Charges and counter-charges were sent [pg 93] to Spain, the Jeronymites complaining of Las Casas and he in turn denouncing them to Cardinal Ximenez, though many of his letters were intercepted and never reached their destination. Things had come to such a pass that the only hope of remedy lay in Las Casas returning to Spain to file complaints against the very men he had himself caused to be sent to the Indies and in whose impartiality and humanity he had placed all his hopes. Both the Dominicans and Franciscans, for once in

accord in this business, addressed letters to the King and the Cardinal in defence of Las Casas, armed with which he sailed in May, 1517, for Spain and within fifty days arrived at Aranda de Duero, where he found his friend and protector, the Cardinal-regent, stricken with a serious illness.

The arrival in Spain of the young King, Charles I.—better known in history under his imperial title of Charles V.,—after repeated postponements was now confidently expected. During his regency, Cardinal Ximenez had been frequently embarrassed by the influences surrounding the King in his distant Flemish court. He had written with characteristic frankness advising the King not to bring a Flemish household with him into Spain, and as soon as the date for the royal journey was fixed, the Cardinal set out to meet his arriving sovereign, travelling as fast as his age and infirmities would allow. He had arrived at Aranda de Duero, where he was seized with an illness of such a mysterious character that his friends hinted that he had been poisoned.

In the one interview which Las Casas obtained, [pg 94] he perceived that the machinations of his enemies had not been entirely in vain, for he found the Cardinal's mind somewhat influenced by the representations which had reached him from the Jeronimites and the agents of the colonists.

Charles V. landed at Villaviciosa in Asturias on September 13, 1517. Among his first acts was the dispatch of a letter to the Cardinal, in which the latter was dismissed to his diocese with a few perfunctory expressions of regard and recognition for his services. Cardinal Ximenez breathed his last a few hours after reading this heartless communication and Las Casas was left to begin anew his life as a courtier and to cultivate the good-will of the all-powerful Flemish favourites. He was fortunate, at this time, in securing the friendship of a brother of Fray Antonio de Montesinos, named Reginaldo, who was also a Dominican and proved a staunch and resourceful ally.



Charles V.

From an engraving by Ferdinand Slema, made in 1778 after the portrait by Titian

Influences and arguments which sound strange enough in twentieth-century ears were powerful, and likely to be employed with dangerous success in Spain at that time. One of the members of the Council having asserted to Fray Reginaldo that the Indians were incapable of conversion, the friar submitted this proposition to the Prior of San Estéban in Salamanca, one of the most learned and influential men in the Dominican order, asking him to invite a body of theologians to determine whether or no such an affirmation was in accordance with Catholic doctrine, and to send him a copy of the decision. Thirteen doctors of theology and other [pg 95] ecclesiastical authorities replied with four or five signed conclusions, the last of which defined that all who held or propagated that error should be condemned to the stake as heretics. This was a weapon in Las Casas's hands which

circumstances might make formidable; it was no trifling thing to be arraigned before the tribunal of the Inquisition on a charge of holding heretical doctrines, for neither rank nor calling availed to protect the offender, and it is somewhat astonishing that no reference to use of this “opinion” being made by Las Casas in any given case is found in the records of his struggle for the liberty of the Indians.

King Charles, even in his boyhood, was of a grave and thoughtful temperament, reserved and observant in an unusual degree, but however richly endowed with gifts which promised him a glorious reign, he necessarily left the administration of his government very largely under the direction of his advisers, of whom the two most influential were William de Croy, commonly called Chièvres, or by the Spaniards, Xevres, who had formerly been the King's governor, and Jean Salvage, a learned priest who was Dean of the University of Louvain. The latter's name was corrupted by the Spaniards into Juan Selvagio, and he held the office and title of Grand Chancellor, both hitherto unknown in Spain. These Flemings were odious to the Spaniards, who resented their high rank and influence and looked upon them as rapacious foreigners, who were controlling national affairs to the exclusion of those who had better claims, while they [pg 96] enriched themselves out of the Spanish treasury: none of them so much as spoke the national language and even the King's first task was to master Spanish in order to converse with his own subjects.

As the Grand Chancellor had control of the department of justice, it was to him that Las Casas first got himself presented. He was well received and afforded opportunities to state his case, and, as he produced letters given him by some French Franciscans from Picardy, whom he had known in the Indies and who were friends of the Chancellor, he soon found himself upon terms of some friendliness with him. The Chancellor found great interest in listening to all that Las Casas had to tell him, and it is not to be doubted that the latter's habitual earnestness when on this subject was increased by the evident sympathy of his listener, upon whose support the fate of his projects depended.

This friendship with the detested Flemings cost Las Casas dear with his own people, and made him more unpopular than ever. His opponents were

obliged, however, to cease abusing him in their letters and official papers, for not only did the Chancellor openly befriend him, but he handed over to him most of the correspondence pertaining to Indian affairs. Las Casas translated the contents into Latin, adding his own observations or objections to the different reports or proposals, and then returned them to the Chancellor, who was delighted to have such expert assistance in dispatching complicated affairs, in which he was himself unpractised. From the Chancellor's favour to that [pg 97] of the King was but a step, and the charge of reforming Indian legislation, which Las Casas had held from Cardinal Ximenez, was renewed to him. This welcome news was given him one day by the Chancellor remarking in Latin, which was their habitual tongue, *Rex dominus noster jubet quod vos et ego opponamus remedia Indiis; faciatis vestra memorabilia*. Las Casas was quick to obey this congenial behest.³¹

It is indicative of the priority of importance which Las Casas habitually gave to spiritual over temporal aids, that he first had recourse to the priors of the religious orders, asking them to have their communities pray unceasingly and with special earnestness, that his mind might be illumined by divine grace to perceive what course he must follow. He next drew up his plan, but perhaps in no act of his long career is there less evidence of the action of divine guidance, for, in framing [pg 98] his project, he committed an error which he himself sincerely and frankly deplored with touching humility, and which has served all his detractors ever since as ground on which to bring a grave charge against him.

In obedience to the King's command conveyed to Las Casas through the Chancellor, he drew up a plan in which he proposed that labourers should be induced to emigrate to the Indies, by granting that each person, whether man or child, should have his expenses paid as far as Seville, the place of embarkation, at the rate of half a real per day. While waiting in Seville to start, the India House (Casa de Contractacion) was to lodge and feed them, their passage to Hispaniola was to be given them and their food furnished for one year. Any of the emigrants who, at the expiration of the first year, found themselves incapacitated on account of the climate to support themselves, should be entitled to further assistance in the form of a royal loan. Lands were to be given them gratis and also the requisite farming

implements for working them, in which their rights as owners should be permanent and hereditary. A more liberal scheme of assisted emigration could hardly be imagined. Other inducements were held out to attract emigrants under the new regulations and Las Casas acceded to the request of certain of the colonists in Santo Domingo to ask the King's consent to the importation of negro slaves to replace the Indians who should be freed.

This recommendation cost Las Casas dearly [pg 99] enough and later exposed his reputation to unjustifiable attacks, some of which even represented him as having *introduced* negro slavery into America; others as having been betrayed by blind zeal in favour of the Indians into promoting the slave-trade at the expense of the Africans. No one more sincerely deplored his course in this matter than he himself when he realised the significance of what he had done, and the sincerity and humility of his compunction should have sufficed to disarm his detractors. The most formal accusation made by a reputable historian against Las Casas is found in Robertson's *History of America*, vol. iii., Year 1517, in which he charges the apostle of the Indians with having proposed to Cardinal Ximenez to purchase a sufficient number of negroes from the Portuguese settlements on the coast of Africa and to transport them to America in order that they might be employed as slaves in working in the mines and tilling the ground. Cardinal Ximenez however, when solicited to encourage the commerce, peremptorily rejected the proposition because he perceived the iniquity of reducing one race of men to slavery when he was consulting about the means of restoring liberty to another. But Las Casas, from the inconsistency natural to men who hurry with headlong impetuosity towards a favourite point, was incapable of making the distinction. While he contended earnestly for the liberty of the people born in one quarter of the globe, he laboured to enslave the inhabitants of another region and in the warmth of his zeal to save the Americans from the yoke, pronounced it to be lawful and expedient to impose one still heavier on the African.

[pg 100]

Language could hardly more completely travesty the facts, for Las Casas neither “laboured to enslave the inhabitants of another region” nor did he “pronounce it lawful” to increase slavery amongst the Africans. The moral aspect of the question of slavery was not under consideration and the

recommendation of Las Casas is seen upon examination to reduce itself to this: he advised that Spanish colonists in America should be allowed the privilege, common in Spain and Portugal, of employing negro slave labour on their properties. Since Spaniards might hold African slaves in Spain, it implied no approval of slavery as an institution, to permit them to do the same in the colonies. Las Casas was engaged in defending a hitherto free people from the curse of a peculiarly cruel form of slavery, but had he regarded the institution as justifiable in itself, he would have modified the ardour of his opposition to its extension.

The truth plainly appears in the chronicles of the times and establishes beyond cavil exactly what Las Casas did, and under what circumstances and for what purposes he made the recommendation which he never afterwards ceased to deplore. Retributive justice has followed these attempts of several lesser contemporaries of Robertson to asperse the character of one of the purest, noblest, and most humane of men, and while discredit has overtaken the inventors and publishers of these falsehoods, the investigations of impartial historians, provoked by their enormity, have resulted in banishing such fables from historical controversy.

[pg 101]

The original basis of the charge that Las Casas favoured the introduction of negro slavery into America is a passage in Herrera's *Historia de las Indias Occidentals*, written in 1598, thirty-two years after the death of Las Casas, and which reads as follows:

“As the licentiate Las Casas encountered much opposition to the plan he had formed for helping the Indians and seeing that the opinions he had published had produced no result, in spite of the extraordinary credit he enjoyed with the Flemish chancellor, Juan Selvagio, he had recourse to other means to attain the same ends. He asked in 1517 that the importation of Africans be permitted to the Spaniards settled in the Indies, in order to diminish the labour and sufferings of the Indians in the mines and on the plantations, and that a good number of labourers be enrolled in Spain who would emigrate to the Indies upon the conditions and with the advantages which he proposed. This new proposition was approved by the Cardinal of Tortosa, Adrian, by the Grand Chancellor, and the Flemish ministers. The

Chamber of Commerce at Seville was consulted to learn what number of Africans, Cuba, Santo Domingo, San Juan [Puerto Rico], and Jamaica would require. It was replied that it would be sufficient to send four thousand. This answer being almost immediately made known by some intriguer to the Flemish governor of Bressa, this courtier obtained the monopoly of the trade from the sovereign and sold it to some Genoese for twenty-five thousand ducats on condition that during eight years no other license should be granted by the King. This arrangement was extremely harmful to the Population of the islands, especially to the Indians for [pg 102] whose benefit it had been granted; in fact had the trade been free, all the Spaniards might have engaged in it, but as the Genoese sold their right at a very high price few Spaniards were able to pay, and the importation of blacks was almost nil. The King was counselled to pay back the twenty-five thousand ducats from his treasury to the governor and recover his rights, which would pay him well and be of great advantage to his subjects. Unfortunately the King had little money then and, as he was left in ignorance of much concerning the affairs of the Indies, nothing of what was most important was done.”

There is not a word in this passage which even refers to the *introduction* of negro slavery and Herrera in another passage (tom. i., dec. i., lib. iv., cap. xii.) states that a royal ordinance given on September 3, 1500, to Don Nicholas de Ovando, the Governor of Hispaniola, permitted the importation of negro slaves. This was two years before Las Casas made his first voyage as a young man of twenty-eight to America, and in 1503, the same Ovando asked that no more negro slaves be sent to Hispaniola because they escaped and lived amongst the natives whom they corrupted.³² The number of negroes continued, nevertheless, to increase and repeated mention of their presence in the colonies is found in different passages throughout the history of Herrera and in other early writers.

Since the first half of the fifteenth century (about 1440)³³ the Portuguese had been engaged in bringing [pg 103] negroes from the west coast of Africa and selling them in Lisbon and Seville, so that during half a century before Las Casas appeared on the scene where he was destined to play so distinguished a part, Andalusia and the southern provinces of Spain were well provided with slaves and a flourishing trade was carried on. The

condition of such slaves was not a particularly hard one and the children born in Spain of slave parents were Christians. Since this system was recognised by the laws of the kingdom, and indeed by those of all Christendom at that time, no additional injury would be done to the negroes by permitting Spaniards who might own them in Spain, to take them also to the colonies. Las Casas was a man of such humane temperament that oppression and injustice everywhere of whatever kind revolted him, but it can hardly be required, even of him, to be several centuries in advance of his times in denouncing a commonly accepted usage which presented, as far as we know, few crying abuses. Toleration of an established order, even though an essentially evil one, is a very different thing from the extension of its worst features in regions where it is unknown and amongst people ill-fitted to support its burdens. A small group of men, chiefly Dominican monks, with Las Casas at their head, courageously championed the cause of freedom [pg 104] and humanity in a century and amongst a people hardened to oppression and cruelty; they braved popular fury, suffered calumny, detraction, and abuse; they faced kings, high ecclesiastics, and all the rich and great ones of their day, incessantly and courageously reprimanding their injustice and demanding reform. Since the memorable day when Fray Antonio de Montesinos proclaimed himself “*vox clamantis in deserto*” before the astonished and incensed colonists of Hispaniola, the chorus of rebuke had swelled until it made itself heard, sparing none amongst the offenders against equity and humanity. The development of the collective moral sense of a people is only slowly progressive, and the betterment of racial conditions is more safely accomplished by evolution than revolution, hence if the moral vision of Las Casas did not detect the injustice practised on the negroes, simultaneously with his keen perception of that which was being perpetrated on the Indians, his failure cannot be justly attributed either to indifference to the lot of one race of people or to wilful inconsistency in seeking to benefit another at its expense. That his action was not understood in any such sense at the time, is conclusively proven by the fact that inconsistency was never alleged against him, nor employed as a polemical weapon in the heated controversies in which he was engaged during all his life with the keenest and most determined opponents to his views. Far afield indeed did his enemies wander, seeking for weapons both of attack and defence, and nothing that could be [pg 105] twisted into an offence against the public conscience or national interests

escaped the keen eyes of the searchers. He was himself the first to perceive the error and contradiction into which he had inadvertently fallen, and forty years before Herrera's work was published, he had expressed his contrition for his failure to appreciate the conditions of African slavery, in the following passage, which occurs in the fourth volume (page 380) of his *Historia General*:

“The cleric Las Casas first gave this opinion that license should be granted to bring negro slaves to these countries [the Indies] without realising with what injustice the Portuguese captured and enslaved them, and afterwards, not for everything in the world would he have offered it, for he always held that they were made slaves by injustice and tyranny, the same reasoning applying to them as to the Indians.”

Fuller and more mature consideration of the entire question of slavery in all its aspects, of the right of one man or of nations to hold property in the flesh and blood of their fellow-men, conducted Las Casas directly to the necessary and generous conviction that the whole system must be everywhere condemned; for again in Chapter 128 he says of this advice which the cleric gave,

“that he very shortly after repented, judging himself guilty of inadvertence; and as he saw—which will be later perceived—that the captivity of the negroes was quite as unjust as that of the Indians, the remedy he had counselled, that negroes should be brought so that the Indians might be freed, was no better, even though [pg 106] he believed they had been rightfully procured; although he was not positive that his ignorance in this matter and his good intention would exculpate him before the divine justice.”

As has been noted, the transfer of his monopoly by the Governor of Bressa to Genoese merchants, instead of increasing the exportation of negroes to America, resulted in almost stopping the nefarious trade, hence no considerable amount of mischief is traceable to the adoption of Las Casas's suggestion, which was only one of many enumerated in his scheme. Had the project as he framed it been accepted in its entirety and loyally carried out, no increased injustice would have been done to the negroes, for it was the frightful mortality amongst the cruelly driven Indians that rapidly

reduced the numbers of labourers and made gaps which could only be filled by the importation of others from elsewhere. Under a more humane system, the Indians might still have laboured, but not in excess of their powers; their lives would not have been sacrificed or rendered unendurable, while the colonists would have become rich less rapidly; there would have been no shortage of workmen and little need for the importation of Africans at a high price, even though one negro did the work of four Indians, according to the popular estimate. While many admirable suggestions of Las Casas were rejected, this blamable one concerning the permission to import negroes was accepted, and thus by a singular irony of fate, this good man, whose whole life was a self-sacrificing [pg 107] apostolate in favour of freedom, actually came to be aspersed as a promoter of slavery.

The controversy on this passage in the life of Las Casas has been touched upon here because it furnished at one time material for much discussion,³⁴ but the light of historical research has long since dispersed the artificial clouds which misrepresentation caused to gather about the fame of the Protector of the Indians, and there now neither is, nor can be, any doubt concerning the sentiments and intentions of one whose noble figure is too clearly defined on the horizon of history ever again to be blurred or obscured.

Another part of the plan for colonisation on the moral basis of benefiting the Indians as well as the Spaniards, was the foundation of fortified places at intervals along the coast of the territory to be granted. In each of these settlements, some thirty men should be stationed with a provision of various articles, such as the Indians prized, for trading purposes; also several missionary priests, whose occupation would be teaching and converting the Indians. It was maintained that by kind treatment the Indians could be attracted to the Spaniards and thus, little by little, become civilised, profitable, and voluntary subjects of the King.

Unfortunately for the prosperous development of these benevolent projects, the mischievous Bishop of [pg 108] Burgos and his brother, who, since the latter part of Cardinal Ximenez's regency, had been excluded from active participation in Indian affairs, began once more to exercise an influence, partly, perhaps because long experience had equipped them with a practical

knowledge of details which the Grand Chancellor found useful, and partly, so Las Casas hints, because they had succeeded, by spending important sums of money, in recovering their former offices. At first the Bishop's opposition was mild enough, and he contented himself with pointing out that he had never been able to induce emigrants to go to the Indies and that Las Casas's scheme was unworkable. Las Casas, however, affirmed that he could easily find three thousand workmen as soon as he was authorised to assure them of the King's conditions, and that the Bishop had not succeeded in finding men because he had treated the islands as a penal colony, whereas now, on the contrary, the severest punishment, after the death penalty, with which a colonist in the Indies could be threatened, was that of being shipped back to Spain.

The King had left Valladolid³⁵ on his way to take formal possession of the kingdom of Aragon and these negotiations were being carried on at Aranda de Duero, where a halt had been made. Las Casas fell ill and the court moved on without him, but it [pg 109] is indicative of the favour he had already acquired with the King that frequently the monarch exclaimed: "Oh, I wonder how Micer Bartolomé is getting on!" Micer was the title the Flemings gave to ecclesiastics, and Charles V., who was the reverse of demonstrative, commonly used this familiar appellation in speaking of Las Casas. Before the court reached Zaragoza, the invalid was on his legs again and had rejoined the others, being received with great joy by the Grand Chancellor, ³⁶ who was almost as enthusiastic as Las Casas himself in pushing forward the Indian reforms. Delay, however, was again caused at Zaragoza, where the King and court were established, by the illness of the ever-contrary Bishop of Burgos; while waiting there to resume business, a letter was sent to Las Casas from Seville by his friend Fray Reginaldo, containing a full account of the ruthless cruelties of one of the captains of Pedro Arias, named Espinosa, which cost the lives of forty thousand Indians. This ghastly chronicle, which was supplied by a Franciscan, Fray Francisco Roman, who wrote as an eye-witness of the atrocities, was immediately laid before the Chancellor by Las Casas; the former was much impressed by the report and directed Las Casas to go to the Bishop on his behalf and read him the letter.

The Bishop took the news coolly enough and [pg 110] merely observed that he had long since advised the recall of Pedro Arias.³⁷

With the recovery of the Bishop, everything seemed ready for the resumption of business, when fate dealt Las Casas one of the hardest blows he had had to sustain. The Grand Chancellor, who owned to feeling indisposed on a Friday, became worse on Saturday, so that he had to keep his room; his illness persisted on Sunday with signs of fever and, as Las Casas tersely puts it, “they buried him on Wednesday.”

With the death of the Fleming died all hope of any immediate action in behalf of the Indians; in the absence of any other as familiar with the business of the Indian department as himself, the Bishop of Burgos found himself once more omnipotent, or as Las Casas puts it, “he seemed to rise to the heavens while the cleric [himself] sank to the depths.” The Chancellor’s successor, named by the King pro tempore, was the Dean of Bisancio, a heavy, phlegmatic man who slept peacefully all through the sessions of the Council and only had sufficient perception to commend Las Casas for the zeal with which he pestered him day and night, remarking on one occasion with a dull smile: *Commendamus in Domino, domine Bartholomeo, vestram diligentiam*. Two such ill-assorted characters as this bovine dean and the fiery Las Casas only succeeded in tormenting one another to no purpose, though, as the latter observes, in this case “it did not kill the Dean for all that.”

The India Council, over which the Bishop of Burgos presided, was composed at that time of Hernando de la Vega, Grand Commander of Castile, Don Garcia de Padilla, the licentiate Zapata, Pedro Martyr de Angleria, and Francisco de los Cobos who was then just rising into prominence. Las Casas was excluded, and though he was as busy as ever in laying petitions and memorials before the Council, he had no friends or protectors inside and consequently obtained nothing, save what they were obliged for very shame’s sake to concede him. Discouragement was too alien to his sanguine temperament, else he might, with some show of reason, have abandoned all hope of struggling successfully against such odds. The first decisive measure of the Bishop was to recall the Jeronymite fathers from their mission in the Indies, of which he had from the outset

been the determined opponent. It has often been justly observed that the vicissitudes of politics make strange bed-fellows, and it was certainly a singular regrouping of the persons in this historical situation, to find the Jeronymites now reduced to seeking out Las Casas to whom to pour out their woes against the mutual enemy, the Bishop of Burgos.

CHAPTER VIII. - MONSIEUR DE LAXAO. COLONISATION PROJECTS. RECRUITING EMIGRANTS.

While matters were at the low ebb described in the preceding chapter, the appearance of a new and unexpected character on the scene brought Las Casas some welcome assistance. Although his chief support had been his good friend, the deceased Chancellor, the other Flemings in the royal household were, on that account first of all, interested in him and the cause he so ardently pleaded. Amongst these unpopular foreigners was Monsieur de la Mure, who, being attracted to Las Casas by what he heard of him, expressed a desire to several of his friends to make the cleric's acquaintance. This wish was soon gratified, and the young courtier's interest in all that concerned the Indians and the proposed measures for the reform of the colonies was quickly satisfied by Las Casas, who furnished him with a full history of the business he had in hand. The least impressionable of men could not listen to such an advocate unmoved, and M. de la Mure, profoundly affected by what he heard, offered to help his new friend by every means he could command. He was an ally worth having, for, being a nephew of Monsieur de Laxao, [pg 113] *sommeiller du corps* to the King, he was able to introduce Las Casas to his powerful uncle, who stood in closer relation to the monarch than any other officer of the court, for he slept in the royal bedchamber.

Monsieur de Laxao was as quickly won over to the good cause as his nephew had been, so Las Casas, finding himself once more with powerful supporters, renewed his efforts to press his business to a conclusion. Some wholesome activity was displayed in dispatching various officials to take the residencia, of the several governors of the islands, Rodrigo de Figueroa being sent to Hispaniola, Doctor de la Gama to Puerto Rico and Cuba, and

Lope de Sosa to Darien, where he was also to succeed the actual Governor, Pedro Arias de Avila. The Council, acting upon reports which described the natives of Trinidad as cannibals, ordered that war should be made upon them, but Las Casas denied this charge, and contrived that Figueroa should be authorised to first investigate and report on this matter before hostilities began; Figueroa's report was entirely favourable to the natives, amongst whom he found no cannibalism.

As the Dominicans in Hispaniola were ignorant of the progress of events at court and the loss sustained by Las Casas through the death of the Chancellor, they still conceived him to enjoy great influence. The Prior, Pedro de Cordoba, wrote him a detailed description of some recent atrocities perpetrated by the Spaniards in Trinidad where they had gone to fish for pearls; manifesting also [pg 114] dissatisfaction with the conduct of the Jeronymites. He therefore begged Las Casas to obtain from the King a grant for the Franciscan and Dominican monks of one hundred leagues of coast on the mainland about Cumaná, from which laymen should be excluded; should one hundred leagues be thought excessive, then he begged for ten, and failing this he would accept the small islands known as the Alonso group, which lay some fifteen leagues from the coast. His intention was to establish a place of refuge, or sanctuary, to which the persecuted Indians might repair, sure of finding kind treatment, and, through instruction, be converted to Christianity. The Prior declared that unless some one of these concessions was made, he would have to recall all the monks of his Order from those countries, where it was idle for them to attempt to teach Christian doctrines, as long as the Indians saw those who called themselves Christians acting in open violation of them. The contents of this letter vexed and alarmed Las Casas not a little, for he feared that if the Prior were driven to make good his threat of recalling his monks, the Indians would be abandoned, without defence, to the cruelties of the Spaniards and would soon be exterminated. His one hope of support in his own plans lay in the Dominicans, without whose aid his efforts were foredoomed to failure. He spoke to the Bishop and the members of the Council, reading them the letter and addressing earnest appeals to them to stop the iniquities which were devastating the entire coast. He urged, with all the arguments of [pg 115] which he was master, that the one hundred leagues asked for should be conceded. The Bishop of Burgos was unmoved,

both by the Prior's harrowing description of the outrages committed on the Indians and by the appeal of Las Casas, and he coolly answered that the King would be badly advised to grant a hundred leagues of land to the friars, without some return therefor; a reply which Las Casas observes was unworthy of a successor of the Apostles. Poor as the Bishop was in episcopal qualities, he was even less gifted with those which make a good minister of colonial affairs, and the results of his thirty-five years of control of Indian affairs were as unprofitable to the Spanish Crown as they were disastrous to the Indians.

Las Casas did not hesitate to express his opinion to the Bishop with his customary uncompromising frankness, but with no result, save probably that of confirming his stubborn and hostile attitude.

Perceiving that no argument which did not promise lucrative returns would avail to secure a grant of territory, the clerigo evolved a plan that promised to secure the ends for which he and the Dominicans were striving and, at the same time, would assure a profitable investment for the Crown.

In spite of the Bishop's continued opposition, Las Casas pushed forward his plan for colonising, and though the Chancellor's death was a great loss to him, he nevertheless found in Cardinal Adrian of Utrecht and other Flemings, every possible assistance. He was named royal chaplain in order to give him additional prestige before the public, and letters [pg 116] were sent throughout the kingdom to the principal civil and ecclesiastical authorities, ordering some and inviting others to aid him by every means in their power to collect the desired emigrants. The officials of India House in Seville were instructed to receive and attend to those intending to emigrate under Las Casas, when they arrived in Seville; they were likewise directed to prepare the necessary ships to transport them to America. It was necessary that Las Casas should be accompanied on his recruiting tour through the country by some trustworthy man to help him in enrolling his emigrants, and, as fate would have it, his choice fell most unfortunately upon one Berrio, an Italian, a circumstance which Las Casas afterwards observed was, in itself, sufficient to explain his treachery. Berrio was to act as herald, publishing in the different cities, with sound of trumpet, the object of Las Casas's visit, the high powers he held from the King, and the

favourable conditions he offered. To give his assistant more dignity in the eyes of the people Las Casas procured for him the designation of Captain in the royal service, with a salary of four hundred and five maravedis per day.

Berio sold himself to the Bishop of Burgos before the recruiting expedition even began, and his signed instructions, which he had engaged to obey, were fraudulently altered by the latter so as to free him from all control. Thus provided, he soon detached himself from his rightful superior and went to Andalusia, where he assembled on his own account two hundred men, vagabonds, loafers, and tapsters, [pg 117] of whom few were labourers and none fit for colonists. These unpromising recruits were gathered in Seville, where the officials of India House were at a loss to know what to do with them; they finally sailed, but, as the colonial authorities had received no notice concerning them, they landed, destitute and worthless, in Hispaniola, where their arrival was unwelcome. Many of them died and the others scattered in various parts. It fell to Las Casas to interest himself in their behalf and to relieve their miseries, but the meal and wine he obtained for them arrived in Hispaniola too late, as the intended beneficiaries were either dead or widely dispersed.

It appears, according to Las Casas's own account, that emigrants were attracted to his scheme, not so much by the liberal conditions, or because their circumstances were not prosperous, but by their desire to escape onerous feudal conditions still prevailing in Spain. It was chiefly, therefore, from amongst the dwellers on great estates that his emigrants were recruited, for many such said they desired to leave their children free in a free country under the King's protection. The great nobles were ill-pleased at this desertion of their feudatories, and Las Casas soon found himself at loggerheads with the Constable of Castile, whose villagers at Berlanga were inscribing themselves in great numbers; the Constable ordered him to quit his estates. On an estate called Rello, belonging to the Count of Coruna, out of thirty householders twenty-nine put down their names as emigrants. As may be supposed [pg 118] the number of the cleric's enemies in high quarters was increased by this state of things, though his success in recruiting emigrants enabled him to triumph over the Bishop, who had foretold that he would never get together the necessary people. He was able

to say on his return to Zaragoza that not only three thousand but ten thousand people would willingly go if the Bishop would provide the means.

Cardinal Adrian listened sympathetically to the report of what had been done and addressed to Las Casas the observation in Latin, *Vere vos tribuitis aliud regnum regi*.

The King and his Court left the kingdom of Aragon at this time to visit the principality of Cataluña, making his formal entry into Barcelona on the fifteenth of February, 1519. The Jeronymite fathers had arranged for the sale of the royal haciendas in Hispaniola, and Las Casas, ever on the alert to secure advantages for his colonists, presented a petition asking that they should be maintained for one year at the royal expense. The vexation of the Bishop of Burgos augmented visibly at this fresh claim for assistance, and he roundly declared such a concession would cost the Crown more than an armada of twenty thousand men, which provoked the pertinent retort from Las Casas: "Does it appear to your lordship that after you have killed off the Indians, I should now lead Christians to death? Well, I shall not." As the Bishop, according to Las Casas, was no fool, he hoped that he understood this plain answer.

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Without the assistance which he was convinced was indispensable to the success of his undertaking, Las Casas refused to move, though every effort was made to start him off; an attempt was even made to secure another leader for the undertaking, but the news of this design was not slow in reaching him, and he promptly published far and wide, in the district where his recruits were waiting his orders to start, that they should on no account accept the leadership of another, who would only conduct them to failure and starvation in the colonies.

Events of great importance were occurring at this time which absorbed the attention of the King and his counsellors to the exclusion of American affairs. By the death of his grandfather, the Emperor Maximilian, the succession was open, though both Francis I. of France and Henry VIII. of England aspired to the imperial dignity. The royal interest therefore centred in Germany and the coming election, and Las Casas and his Indian schemes were put to one side.

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CHAPTER IX. - KNIGHTS OF THE GOLDEN SPUR. THE COURT PREACHERS. FURTHER CONTROVERSIES

As has been heretofore explained, Las Casas perceived that his efforts to obtain support for his project would come to naught, unless it could be made plain to the Council that some material benefit would accrue to the royal revenues; he therefore turned his attention to forming a plan which should comprehend the conversion of the Indians by gentle and peaceful means and likewise yield a profit to the Crown. He conceived the idea of forming a species of order of knighthood, whose members were to be known as Knights of the Golden Spur. They were to number fifty selected men, each of whom should furnish two hundred ducats, which he deemed would amount to a sufficient sum for the expenses of founding the colony. The knights were to wear a dress of white cloth, marked on the breast with a red cross, similar to the cross of Calatrava, but with some additional ornamentation. The purpose of this costume was to distinguish them in the eyes of the Indians from all other Spaniards.

A grant of one thousand leagues of coast, beginning one hundred leagues above Paria, and with [pg 121] no limits in the hinterland, was asked for the colony, in return for which concession a payment of fifteen thousand ducats was promised to the Crown during the first three years, which sum should afterwards become an annual income until the seventh year; from the seventh to the tenth year, the income would be thirty thousand ducats, and beginning with the eleventh year, it would reach the sum of sixty thousand. The foundation of three fortified towns, with at least fifty Spaniards in each, was promised within the first five years. The religious propaganda was to

be carried on by twelve Franciscan and Dominican friars, whom Las Casas was to be allowed to choose: for this purpose the King was asked to solicit the necessary faculties from the Holy See. Such, in brief, was the plan which Las Casas conceived for spreading civilisation on the American coast and winning the Indians to Christianity. His own jurisdiction within the conceded territory was to be absolute, and all Spaniards whatsoever were to be forbidden by royal command, and under pain of severe penalties, to cross its borders. The only discoverable road to liberty lay through absolutism, under a benevolent despot.

The most obvious flaw in this scheme was the difficulty—amounting indeed to impossibility—of finding the fifty knights. Las Casas, like many enthusiasts and reformers, failed to reckon with the realities of human nature. His colony was to be a Utopia, peopled by lofty-minded Spaniards, who were free from the prevalent thirst for gold, and [pg 122] only preoccupied in cultivating sentiments of the purest altruism: mixed with them were to be gentle-mannered Indians, in whom shone all the qualities of primitive man, unspoiled by contact with the evils of civilisation, and who were thirsting to know the truth and to embrace it. These idyllic barbarians were to furnish the human material on which the knights were to exercise their virtues and all were to be thus united in bonds of loving fraternity and disinterested industry, under the benign government of a dozen monks, who had long since renounced this world and who would give their exclusive attention to leading their flock from a terrestrial into the celestial paradise. A Fra Angelico might have grouped these interesting types into a picture of soul-stirring beauty. Even had the fifty been found, all with the proper dispositions and in harmonious unanimity of purpose, there was little chance that they would remain unaffected by the unbalancing and corrupting influences of a new country, where they would be absolute masters over an inferior race of people. Many excellent men of the highest principles and best intentions went from Spain to America in those times, but few resisted the temptations which beset them.

Las Casas kept his plan a profound secret until he had secured the approbation of the new Chancellor, Gattinara, and that of several of the influential Flemings. It was then laid before the India Council, where it was met with a storm of objection and ridicule. It was promptly shelved, and not

[pg 123] all the urging of Las Casas, the discontent of the Flemings, nor even the efforts of the Chancellor himself to induce the Bishop of Burgos to study the matter, sufficed to have it taken into serious consideration. The different features, as they became known, provoked mirth, and much fun was made of the white robes, red crosses, and golden spurs of the knights.

Baffled by the inertia of the Council and the failure of his powerful friends to obtain serious attention for his project, Las Casas had recourse to other influences. The oppression of the Indians and the violation of their rights as free men not only revolted the humanitarian instincts of their Protector, they offended justice and constituted a grave crime against morality, by which the King was inculpated and for which he would have to answer at the bar of divine justice. No utilitarian ends could justify criminal means, and that Indian slavery was profitable to the Crown was in no sense a palliation of its essential wickedness.

The King's confessor, as keeper of the royal conscience, had already in Ferdinand's time been prevailed upon to explain to his Majesty the grave responsibility he incurred in tolerating a state of things so contrary to divine and natural laws. Now Las Casas, in his extremity, turned to the court preachers, who were eight in number, laying before them the entire case as a problem in morals, upon which it was within their duty as the spiritual instructors of the sovereign to pronounce. The part which these ecclesiastics took in the matter [pg 124] was brief but not unimportant nor without results. Two of them were secular priests, the brothers Luis and Antonio Corodele, both religious and learned men, doctors of the University of Paris; another was Fray Miguel de Salamanca, also a doctor of Paris; there was Father Lafuente of the University of Alcalá, a Franciscan, Fray Alonso de Leon, an Augustinian, Fray Dionisio, and two others whose names Las Casas was not able to recall when writing his history some forty years after these events occurred. This body of learned men represented everything that was most authoritative in theological and canonical opinion of the times and constituted a most formidable ally against the Bishop and Council. Meetings of the eight preachers and Las Casas were held in the convent of Santa Catalina, at which several other men of importance assisted, one of whom was Fray Alonso de Medina, of the Dominicans; while another, a Franciscan friar who had spent much time in the Indies, is described as a

brother of the Queen of Scotland. These meetings, which were secret, were held at the same hour of the day as the sittings of the India Council.

Religious dogma was held in that age to be axiomatic and incontrovertible; all science was interpreted through the medium of the one universal science of theology, and the civil law of the times drew its sanction from the principles of canon law, from which indeed it was scarcely separable. Just as it was sought to sustain Galileo's proposition concerning the revolution of the earth by an appeal to theology, [pg 125] and just as theologians were considered competent to pronounce on the soundness of the theories of Columbus, so was it admitted, with far greater reason, to be within their competence to pronounce upon the question of the extension of slavery in the Indies, although that matter was treated as one of secular policy, belonging to the India Council. Kings and governments contended, when they could, for the exercise of their royal powers in temporal matters, independently of the spiritual control, but the line of distinction was a fine one, not easily drawn, and the basis of Spain's claim to the Indies and to the exercise of jurisdiction in America was the Bull of Alexander VI. issued in May, 1493. The express condition on which the Pope granted the Bull was, that the conversion of the Indians should be the primary care of the Spanish government, and this condition was so clear and binding that it amounted to a reservation to the Pope of an oversight of the means to be adopted for that end. As it was within the recognised power of the Pope to grant such rights and jurisdiction, and to attach conditions thereto, it was equally within his power to annul or withdraw them if the Spanish sovereigns failed to fulfil those conditions. Hence the government of the Indies, in all that pertained to the moral well-being and religious instruction of the natives, was, beyond question, within the legitimate exercise of ecclesiastical control. The exposition of the case by Las Casas, supported by the mass of evidence he was able to furnish and the testimony of the Scotch [pg 126] Franciscan and others, convinced the theologians that their duty, both to religion and to the King bound them to intervene and to correct abuses in open violation of the declared intentions of the sovereigns from the time of Isabella that the Indians should be free men, whose conversion to Christianity was their first duty. The theologians bound themselves by a common oath, that no opposition should discourage them, and that each and all of them would not desist from their single and united efforts, until success had crowned them.

It was decided that the first step should be to exhort the members of the Council: this failing of result, they would address their remonstrances to the Chancellor, after him to M. de Chièvres, who was nearest the person of the King, and in the last resort the monarch himself should be made to understand his responsibility. Should nothing come of their exhortations, they bound themselves to preach openly against the government, instructing the public conscience on the subject and assigning to the King his just share of the wrong-doing.

Action followed swiftly upon the adoption of this resolution, and the India Council, under the presidency of the redoubtable Bishop of Burgos, was stupefied by the apparition of the theologians at one of its sittings. Fray Miguel de Salamanca, after asking for permission of the President, made the following brief but energetic discourse: “Most illustrious gentlemen and most reverend sir: It has been certified to us, the preachers of the King our lord, by persons whom we are forced to believe, [pg 127] and it also appears to be notorious, that men of our Spanish nation in the Indies commit great and unheard-of evils against the natives of those parts; such as robberies and murders, thereby giving the greatest offence to God and bringing infamy on our holy faith, and by which such an infinite number of people have perished that large islands and a great part of the mainland are now depopulated, to the great ignominy even of the Royal Crown of Spain; for the Holy Scripture testifies that in the multitude of the people consists the dignity and honour of the King, and in their diminution is his ignominy and dishonour. We have marvelled at this, knowing the prudence and merits of the illustrious persons who compose the Council for the government of those countries, to whom God appears to have confided such a great world as they are said to constitute, and for which they will have to render a strict account; on the other hand, learning that there can have been no reason why those nations, which lived peaceably in their countries, owing us nothing, should have been destroyed by us, we know not what to say, nor do we find any one to whom to impute such irreparable evils, other than to those who until now have governed them. Since it is incumbent upon us, by virtue of the office we hold at court, to oppose and denounce everything that is an offence and a dishonour to the Divine Majesty and to souls and, to the extent of our powers, to exhort until all such be extirpated, we have decided, before adopting other measures, to come before your lordships and

make our purpose [pg 128] known, and to supplicate you to consent to explain to us how it has been possible to permit such a great evil without remedying it; and that since it has not until now been stopped—for it goes on to-day with full license—you should devise means to remedy it. It is manifest that by so doing, your lordships will receive signal recompense, while by refusing, you will, on the contrary, receive terrible torments, for you bear on your shoulders the heaviest and most dangerous burden, if you well consider it, of any men in the world to-day. We likewise beseech your lordships, with all due humility and reverence, not to attribute our coming to temerity, but to accept and judge it by the spirit that has prompted it, which is the wish to act according to God's precepts as we are obliged to do."

The Council—composed of such dignitaries as the Grand Commander of Castile, Don Garcia de Padilla, the distinguished man of letters, Peter Martyr, Francisco de los Cobos, and others—listened aghast to this speech, which was followed by a moment of silence that none of them felt prepared to break. The Bishop, whose wrath had waxed during the discourse, rose with an air of great authority and majesty to reply.

"Great indeed," he said, "has been your presumption and daring to come to correct the Council of the King. Casas must be at the bottom of this; who puts you, the King's preachers, to meddle in government affairs which the King entrusts to his Councils? The King does not maintain you for this, but to preach the Gospel."

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The rebuke fell flat, nor were the theologians one whit overawed by the Bishop's high tone, for which they were not unprepared. Father Lafuente, who answered, began with a pun: "There is no Casas here but the Casa [house] of God, in which we officiate and for whose support and defence we are bound and ready to stake our lives. Does it appear presumption to your lordship that eight doctors of theology, who might properly address a whole General Council on matters of faith and government of the universal Church, should come to admonish a Council of the King? We may admonish the King's Councils for what they do wrong, for by our office we belong to the King's Council, and hence, gentlemen, we come here to

admonish you and to require you to correct those most misguided and unjust actions, committed in the Indies to the perdition of souls and the offence of God. And if you do not correct these things, gentlemen, we shall preach against you as against those who do not keep the laws of God, nor act for the advantage of the King's service. This, gentlemen, is to fulfil and to preach the Gospel.”

Such a threat was no despicable one, and the members of the Council were brought by it to a milder disposition than that disclosed by the testy reply of their President to Fray Miguel's opening discourse. Garcia Padilla undertook the apology of the Council, protesting that many excellent Provisions in favour of the Indians had emanated from that body, whose intentions were good; he offered to submit these proofs of an equitable [pg 130] disposition to the theologians, though he observed that their presumption did not merit such courtesy. The tone of the discussion softened considerably and it was decided that the various enactments of the Council already in vigour and those it proposed to put in operation should be presented to the theologians, who would later make known their opinion of them. These comprised the Laws of Burgos published in 1512 and the several amendments of Cardinal Ximenez. After hearing them read, the theologians withdrew, saying they would present their opinion at another sitting.

Fray Miguel was deputed to draw up in writing their conclusions, which he did in the somewhat lengthy form common at that time, the substance of the decision being that repartimientos and encomiendas were condemned absolutely, as the principal and direct cause of the destruction of the Indians; and second, that the only means for correcting the existing abuses and to civilise and convert the Indians was to form towns of at most twelve hundred householders. Las Casas was opposed to the remedy, which he perceived to be not only without efficacy, but positively hurtful to the Indians, who would only deteriorate under such unfamiliar conditions. This divergence of opinion between Las Casas and the preachers introduced disunion where unity was the sole source of strength, and the inability to fix upon a remedy for the evils, which all were agreed cried out for one, destroyed the force of the representations in favour of the Indians. All were agreed that the actual state [pg 131] of things was intolerable, but they

could not agree upon the remedy to be adopted. In reality no laws could cope with the situation. A weak, retrograde race of ignorant people was suddenly brought into contact with the strong, active Spaniards, who carried with them a civilisation to which the former were inertly refractory. There was but the one possible outcome, which has repeated itself throughout the world's history—the weaker race had to go under. Neither the Utopia of Las Casas nor the laws proposed by the preachers nor any other conceivable arrangement could have saved them. The laws enacted were already more than sufficient to protect the natives from oppression and undue suffering, had their application been carried out in the spirit in which they were framed. Even the system of encomiendas might have been worked more rationally, and under it the condition of the Indians need not have been a particularly bad one. Paternal laws, paternally administered in the humane and religious spirit preached by the Dominicans and Las Casas, might have furnished a remedy, but the character of the Spanish colonists, the prevalent greed for wealth, taken together with the indolent habits and temperament of the Indians, opposed unsurmountable obstacles.

The zeal of Las Casas closed his eyes to these existing conditions, which foredoomed his efforts to failure and the Indians to destruction. Fortunately it was so, for he was thus enabled to continue his struggle unflaggingly and to keep the Public conscience in Spain awake to the work of [pg 132] justice to be accomplished. In this struggle lay the only hope of protecting the defenceless natives from undue excesses, of opposing some check to the injustice of the colonists, and of discharging the moral duty that Christian Spain had assumed towards her humble subjects in the New World.

Seeing the uselessness of further dealings with the preachers, Las Casas dropped that learned body, of which nothing further was ever heard in connection with Indian affairs.

He next adopted the bold policy of formally accusing the whole Council of unfairness and partiality—a truly amazing act of courage on the part of a simple priest, even though he felt himself supported by the sympathy of the Chancellor and several of the King's Flemish favourites. More astonishing must it have been to the members of that august body, that the sovereign should have ordered the impeachment to be taken into consideration. This

decision was procured through the influence of the Chancellor, Gattinara, and bore with it the authorisation for Las Casas to designate such persons as he deemed suitable, to sit in the Council with those he had accused, and to thus ensure his affairs an impartial hearing. At the same time M. de Laxao made known to him that the King desired such persons to be selected from among the members of other royal councils. His choice fell upon Don Juan Manuel, Alonso Tellez, the Marquis de Aguilar del Campo, the licentiate Vargas, and all the Flemings who had seats in Councils. Besides these, the King desired [pg 133] that whenever the affairs of Las Casas were to come under consideration, the voting members of all other Councils, including those of War and of the Inquisition, should be present. In virtue of this command, the Cardinal Adrian, who was at that time Grand Inquisitor of Spain, sometimes assisted. This newly constituted Council met rarely, owing to the pressure of public matters of grave importance to the country, and the Bishop of Burgos, who was mortally vexed by the royal decision in favour of Las Casas's complaint, was fertile in pretexts for creating delays. To counteract such procrastination, the Grand Chancellor adopted the policy of citing the Bishop to Council meetings without specifying the nature of the business to be considered, and when the unsuspecting prelate appeared, expecting to treat matters of state, he frequently had Las Casas and his Indian affairs sprung upon him. The number of the Council being increased by the admission of the new members from five to more than thirty, the Bishop was powerless to oppose effective resistance, as he could only count on the votes of his five original associates. Nor did the clipping of the Bishop's claws stop there, for whenever he appeared at Court, some of the Flemings contrived, to his intense disgust, to bring the subject of the Indies to the King's attention, so that it only remained for him to appear as rarely as possible.

The Council having consented to the projects of Las Casas, in spite of the Bishop's persistent opposition, orders were given for the necessary [pg 133] authorisations for carrying out his proposed plan. At this juncture the Bishop discovered an ally in the person of Gonzalez Fernandez de Oviedo, author of the *Historia natural y moral de las Indias*, who had passed much time in America and was highly esteemed as an authority in Indian matters. Oviedo was presented to the Chancellor and explained his reasons for condemning the plans of Las Casas but failed to change Gattinara's opinion.

Representatives of the colonists in Cuba and Hispaniola spared no effort to defeat their opponent, promising, if the concessions Las Casas was asking were granted to them, to pay triple the income to the Crown which the latter offered. This offer by the procurators of the colonists was not ignored, and, by command of the King, was laid before the Council for consideration. This led to further discussion, for Las Casas was invited to respond to the counter proposals, which he did with even more than his usual eloquence. A special meeting was called, before which Las Casas was plied with questions and objections to his plans; but if his enemies thought to find him lacking in ready response, they were sadly deceived, for the promptness with which he disposed of every objection, the clearness with which he answered every question, and the earnestness with which he vindicated the cause of the Indians and flayed their oppressors, ended by convincing even the most indifferent. The brother of the Bishop, Antonio de Fonseca, challenged Las Casas for unjustly accusing the members of the Council of killing the Indians, whereas thanks to his measures [pg 135] such members had long since been obliged to surrender their encomiendas; to this argument Las Casas retorted: "Sir, their lordships have not killed *all* the Indians, but they did kill an infinite number while they had them, though the principal and greatest destruction has been committed by individual Spaniards with the assistance of their lordships." It was obviously impossible to discuss in open council with a man who talked thus, and when the Bishop himself, goaded to impatience, exclaimed, "Well instructed indeed is a member of the King's Council who, because he is a member, finds himself in conflict with Casas!" he got his answer from the imperturbable priest—"Better instructed still is Casas, my lord, who, after having come two thousand leagues at great risk and peril to save the King and his Council from going to hell on account of the tyrannies and destructions of peoples and kings which are perpetrated in the Indies, instead of being well received and thanked for his service, is forced into conflict with the Council." This ended the discussion, and the concession already granted to Las Casas, was ratified.

Nothing, however, was ever really ended in Spain in those days and too many passions had been aroused, too many interests compromised, for the enemies of Las Casas ever to acquiesce in his victory. The Bishop of Burgos was the last man to accept such a defeat, and to his original

stubborn and interested opposition was now added a desire for vengeance on his plain-spoken and successful opponent. From the material contained in all [pg 136] the numberless petitions from the colonies which he had received at various times, he drew up a memorial to the King, containing thirty reasons why the concession granted to Las Casas should be refused. When these thirty objections were ready the Bishop asked the Chancellor to summon a special meeting of the Council, before which they were read. Las Casas was not present at this meeting, but both Cardinal Adrian and the Chancellor notified him and advised him to reply immediately. The Chancellor's request to the secretary of the Council, Cobos, to furnish him a copy of the memorial meeting with no reply, he sent a formal demand for the memorial to be delivered to him without further delay; no denial was possible, but the Council only delivered him the document on the sworn assurance that it should not leave his hands. Gattinara gave the required promise, but invited Las Casas and M. de Laxao to supper at his house that evening, and, laying the great dossier on the table, said to Las Casas, "Now make your answer to these objections advanced against you."

"How, my lord," answered Las Casas; "they were three months in forging and drawing them up, and after reading them at your convenience, it took your lordship two months to get possession of them, and now I am to answer them in the space of a Credo! Give me five hours and your lordship shall see what I answer."

As his promise prevented the delivery of the memorial to Las Casas, the Chancellor arranged a [pg 137] table for him in his own apartment where he could compose his reply, advising him to make it in the form of answers to questions supposed to be addressed to him by the King. For four nights Las Casas laboured on his composition until eleven o'clock, at which hour he supped with the Chancellor and afterwards returned at midnight to his lodging, not without fears for his personal safety, for his enemies were as numerous as they were powerful and sufficiently unscrupulous to use any means for silencing him.

No copy exists of these thirty objections and the answers made to them, and Las Casas says that the originals were burned. From the little that is known of the former, they seem to have been so frivolous and strained that it is

amazing the Council listened to them with patience or that the Chancellor deemed them worthy of a reply. The first, for example, stated that, as Las Casas was a priest, the King had no jurisdiction over him to restrain his actions in the territory conceded him; the second asserted that by his turbulence he had provoked grave scandals in Cuba; the third pointed out the danger of his forming an alliance with the Venetians or Genoese and delivering to them the profits of his colony; another accused him of having deceived Cardinal Ximenez, and the thirtieth or last of all oracularly stated that there were some secret things known about him of such a damaging nature that they could only be confided to the King's private ear, and hence were not set down in writing. This ancient method of Court intrigues everywhere, whose [pg 138] mysterious accusations can only be made in secrecy, without the accuser's identity being disclosed, is always new and is ever useful in cases where the condemnation of the accused is determined beforehand.

Fortunately the Chancellor loved the light, and Las Casas was furnished the opportunity of seeing and refuting the accusations against him, which he did with entire success, not only clearing himself of every charge invented to discredit him, but, turning the tables on his detractors, he threw a flood of light on the maladministration of the colonies and the peculations from the royal revenues by the Spanish officials. This crushing answer, which filled more than twelve sheets of paper, was read at a special meeting of the Council, which the Chancellor had summoned without letting its object be known, and reduced his enemies to humiliated silence. The only observation which even the usually ready Bishop found to offer was that the answer had been prepared for Las Casas by the Court preachers. The feebleness of this must have struck all present, and the Chancellor with fine irony asked: "You now hold that Micer Bartholomew is so lacking in argument and discretion that he has to find somebody else to answer for him? From what I have heard of him he is equal to this and to more besides."

Gattinara presented a full report of the proceedings to the King, with the result that the grant and privileges already conceded to Las Casas were fully confirmed. Skirmishing between him and the [pg 139] Bishop went on as usual during the final settlement of the details with the Council and on one

occasion Las Casas exclaimed to him, “By my faith, my lord, you have fairly sold me the Gospel and since it is paid for, now deliver it!”

CHAPTER X. - THE BISHOP OF DARIEN. DEBATE WITH LAS CASAS. DISAGREEMENT WITH DIEGO COLUMBUS

The troubles of Las Casas, however, were not yet over, nor did the opposition to his projects relax; on the contrary, the arrival at Barcelona in 1519 of Fray Juan Quevedo, the first Bishop of Darien, brought a new combatant into the field against him. On his way from Darien to Spain, Quevedo had stopped in Cuba, where he had heard the complaints of the enraged colonists, who declared that unless his mad campaign against his fellow-countrymen was stopped Las Casas would ruin the island, impoverish them all, and destroy every source of revenue. It was thought that Diego Velasquez paid Quevedo to controvert the representations of Las Casas and to plead the cause of the colonists at Court. As he was a man of considerable weight and an excellent preacher, Velasquez hoped he might win the King to his way of thinking. Arriving at Court, thus prepared to advocate the interests of Velasquez and the colonists, Quevedo was no mean antagonist. The first meeting between him and Las Casas took place in the royal ante-chamber where, on being told who the newly arrived prelate was, the clerigo approached [pg 141] saying, "My lord, since I am interested in the Indies it is my duty to kiss your hand." The Bishop asked who the strange priest was and, on being told, exclaimed with some arrogance, "Oh, Señor Casas! and what sermon have you got to preach to us?" Had he known Las Casas better he would have adopted other tactics, for the clerigo was not the kind of man to attack. He answered: "Certainly, my lord, since some time I have wished to hear your lordship preach, but I assure your lordship that I have a pair of sermons ready, which if you wish to hear and

consider them, may be worth more than all the money you have brought from the Indies.”

This exchange of thinly veiled hostilities was cut short by the appearance of the Bishop of Badajoz, who came out from audience with the King, and took Quevedo off with him to dinner. To forestall any unfavourable influence which Quevedo might seek to exercise on the Bishop of Badajoz, who was friendly to Las Casas, the latter made a point of going after dinner to the Bishop's house, where he found an illustrious company comprising, amongst others, the Admiral, Don Diego Columbus, playing chequers. Somebody remarked that wheat was grown in Hispaniola, to which Quevedo replied that it was impossible. Las Casas, who happened to have in his pocket-book some specimen grains which he had gathered in the garden of the monastery of St. Dominic, mildly observed, “It is certain, my lord, for I have seen it of excellent quality in that island, and I may even say, look at it yourself, for [pg 142] I have some with me.” The Bishop lost his temper and answered with great asperity: “What do you know? This is like the affairs you manage! What do you know about the matters you handle?”

“Are my affairs evil or unjust, my lord,” asked Las Casas. The Bishop even more testily exclaimed, “What do you know, or what knowledge and learning have you that you venture to handle these affairs?” Though mindful not to annoy the Bishop of Badajoz, Las Casas let himself go somewhat, and with something of Quevedo's asperity replied that his knowledge and learning might be even less than the Bishop conceded, but he (the Bishop), instead of defending his flock against the tyranny of the Spaniards, lived on their very flesh and blood, and that if he did not restore to the last penny what he had squeezed out of them, he had no more chance of salvation than had Judas. The host interfered to allay the rising choler of his guests, and Las Casas shortly after withdrew. The incident, however, had its consequences, for the Bishop of Badajoz related the occurrence to the King, who, thinking that a polemical tournament between Las Casas and Quevedo in the royal presence might be something worth hearing, ordered that both should appear before him three days later, to debate the subject. A Franciscan friar, newly arrived from the Indies, where he had witnessed the state of things, happened along just then and sought out Las Casas to

express his full sympathy with the latter's efforts on behalf of the [pg 143] natives. The Franciscan began a series of sermons at a church near the palace, to which a number of the Flemings listened, afterwards reporting their impressions to the King. His Majesty therefore commanded that the monk should also be present on the occasion of the discussion between Las Casas and Quevedo. The appearance of the Franciscan, was not to Quevedo's liking, and he somewhat tartly remarked to him that the Court was no place for monks, who had much better be in their cells. As the Bishop himself was of the same Order, the monk aptly retorted that he was of the like opinion and that "all of us monks would be better off in our cells." Quevedo seems to have rarely come out ahead in the verbal skirmishes his choleric temper prompted him to provoke.

The account given by Las Casas of the debate before the King gives us a good picture of the stately ceremonial observed at the Court of Charles V. The King being seated on his throne, the others present were accommodated on benches extending along both sides of the audience chamber; to the right of the King sat M. de Chièvres, next to whom was the Admiral Don Diego Columbus; then the Bishop of Darien and finally the licentiate, Aguirre. On the left hand of the throne was seated the Grand Chancellor, next to whom came the Bishop of Badajoz and so on with the others in their order of precedence. Las Casas and the Franciscan stood at the foot of the room, opposite the throne.

After a moment of silence following the seating of the Court, M. de Chièvres and the Grand [pg 144] Chancellor rose, advanced together, and mounting the steps of the throne knelt before the King, to whom they spoke in whispers as though receiving some secret instructions. Returning then to their respective places and being again seated, the Chancellor said, "Reverend Bishop, his Majesty commands that if you have anything to say concerning the Indies you shall speak." The Bishop of Darien rose and began with an eloquent exordium in the classical style customary in such discourses at that time and which produced the best impression on his hearers. He declared that he had long desired the honour of appearing in the royal presence, and now that God had satisfied his wish, he recognised that *facies Priami digna erat imperio*, which was a graceful reference to the Imperial dignity to which the young monarch had recently been elected in

Germany. He asked, however, that as the matters he had to present to his Majesty's attention were of a private nature, all those present who were not members of the Council should be ordered to withdraw. The Chancellor signed to him to be seated and again he and M. de Chièvres approached the throne with the same ceremonial and after having received the royal commands, sotto voce, they returned to their places and the Chancellor said, "Reverend Bishop, his Majesty commands that if you have anything to say, you shall speak." The Bishop however repeated his demand that all those not of the Council should withdraw, and a third time the Chancellor and M. de Chièvres went through the ceremony of receiving the royal commands. [pg 145] Again the Chancellor, when he resumed his place, said, "Reverend Bishop, his Majesty commands that if you have anything to say, you shall speak, for all here present have been called to be of this Council."

The Bishop's efforts to exclude Las Casas and the Franciscan being thus defeated, for it was impossible for him to insist further, he began as follows: "Most potent lord, the Catholic King, your grandfather (may he rest in holy glory) commanded the construction of an armada to go and make settlements on the mainland of the Indies and solicited our very Holy Father to create me Bishop of that first settlement; besides the time occupied in coming and going, I have been there five years, and as a numerous company went and we only had provisions enough for the journey, all the rest of our people died of hunger: the remainder of us who survived, in order to escape the fate of the others, have done nothing during all that time but rob and kill and eat. As I perceived that that country was going to perdition and that its first governor was bad and the second worse, I determined to return and report these things to our King and Lord in whom is all the hope of a remedy. As for the Indians, judging by the accounts of those in that country whence I come, and those of others whom I saw on my way, they are a natura slaves." The remainder of this speech has not been preserved, but the opening of it was singular enough, considering that it was delivered by the advocate of the colonists and one of the bitterest opponents of Las Casas. [pg 146] At its conclusion the ceremony of taking the royal orders was repeated and the Chancellor commanded Micer Bartholomew in the King's name to speak.

The speech which Las Casas then delivered is given, in part, in the third part of his *Historia General*.³⁸ In it he declared that he had accepted his vocation not to please the King but to serve God and that he renounced, once for all, any temporal honour or favour his Majesty might ever wish to confer upon him. A remarkably bold sentence followed: "It is positive, speaking with all the respect and reverence due to so great a King and Lord, that I would not move from here to that corner to serve your Majesty, saving my fidelity as a subject, unless I thought and believed I would render service to God by so doing." The chief point in the Bishop's discourse which he controverted, was the assertion that the Indians were by nature slaves. He was supported throughout, and especially on this point, by the Franciscan; and even the Admiral Diego Columbus, who had himself held *encomiendas* and whose renowned father had indeed initiated the very abuses which were being denounced, bore witness to the truth of his statements and the weight of his arguments. When Las Casas had finished, Quevedo, who expressed his wish to reply, was notified that anything further he had to say must be submitted in writing. This closed the audience and the King withdrew.

In conformity with the King's order that his [pg 147] answer to Las Casas should be presented in writing the Bishop of Darien prepared two statements, one of which set forth all the various abuses and the destruction caused by the Spaniards in that colony, while the other contained suggestions for remedying those evils; one of these remedies was the prohibition of the customary raids amongst the Indian tribes and the other was that the peaceable Indians should be induced to live in villages where they might be taught, and also pay some tribute to the Crown. The Bishop's view of the lamentable state of things in the colony, his condemnation of the violent conduct of the Spaniards, and his opinion that it was urgent to introduce a new system for regulating the relations between the colonists and natives seem not to have differed from those of Las Casas himself, and both the corrective measures he proposed met with the latter's hearty approval. These memorials were first read by the Bishop to the Chancellor and M. Laxao, both of whom were highly satisfied to discover such unexpected conformity with the representations of their friend the cleric. When asked by them what he thought of Las Casas's projects, the Bishop replied that he found them excellent and most just.

This singular conversion of the Bishop of Darien from a formidable opponent into a supporter, delighted Las Casas, who, when the Chancellor showed him the two memorials, asked for a pen that he too might sign them, saying: “Did I ever tell your lordship more than the Bishop has here admitted? What greater cruelties, murders, and destruction [pg 148] in that country have I ever reported to your lordship than these?”

What influence worked upon Quevedo does not appear; whether he perceived that the King looked with sympathy on the enthusiastic Las Casas and that the latter was high in favour with the important Flemish group at Court and therefore sure to carry his point, and so decided, as a practised courtier, to pass over to the winning side, or whether under his choleric exterior there was a chord that responded to the sufferings of the obscure Indians in their miseries, and a sense of justice that was outraged by the rapacious cruelty of his countrymen, we have no means of knowing. Shortly afterwards he fell dangerously ill of a sickness which carried him off in three days. Las Casas was much impressed by his Christian end and by the fact that before he died he had been moved to testify to the true condition of things in the Indies, than which no other act on his part could have been a better preparation for death.

The affairs of Las Casas were now well advanced and all seemed plain sailing ahead; he conferred with Diego Columbus, Admiral of the Indies, concerning the foundation of the forts he had undertaken to build along the coast at intervals of one hundred leagues from one another. These forts were to serve for defence and also as centres of trade to which the Indians would be attracted to bring their gold, pearls, and other things of value to be exchanged for the Spanish merchandise they prized—hawks'-bells, beads of coloured glass, and like trifles. The Admiral was in agreement with this project, until he consulted his brother Fernando Columbus, who suggested to him that he should ask from the King the administration of justice in the new settlements and their extensions. Las Casas opposed this project, but the Admiral followed his brother's counsel and presented his petition to the Council, where it was disallowed; the Admiral in consequence took no further interest in the plan and thus Las Casas was deprived of his valuable support.

CHAPTER XI. - ROYAL GRANT TO LAS CASAS. THE PEARL COAST. LAS CASAS IN HISPANIOLA. FORMATION OF A COMPANY.

As the date for the King's departure from Spain to assume the imperial dignity drew near the opposition to his leaving grew so strong that the question of stopping him by force, if necessary, was even mooted, and various parts of Spain were in a state of ferment bordering on civil war. Charles left Barcelona and proceeded through Aragon to Burgos and from thence to Coruña, where he had summoned the Córtes of Castile to assemble. This city had been chosen, partly because it was a convenient port of embarkation and partly, also, because the tide of opposition and hatred against the Flemish courtiers had reached such a height that they felt it wiser to keep to a seaport, from whence flight would be easier than from an inland town, in case their position became untenable after the King's departure.

In the midst of such preoccupations, it required all the energy and unflagging perseverance of Las Casas to keep his affairs to the front and save them from being forgotten; as it was, even he had moments of discouragement in which he was tempted to drop the whole matter and retire from the Court. His [pg 151] faithful Flemings, however, did not fail him, and with their aid, he managed to get no less than seven days in the month of May devoted to Indian affairs, before the sovereign sailed from Coruña.

During one of these sittings of the Council, Cardinal Adrian contrived to overcome the opposition which was still active against Las Casas, by a

masterly discourse, in which he proved that by all natural and divine laws, the policy so far pursued in the Indies was a mistaken one, and that the Indians must be civilised and converted by humane and peaceful means. The desired grant was finally made and consisted of two hundred and sixty leagues of coast between Paria and Santa Marta, inclusively, and extending inland in a direct line from its two extremities to the South Sea. The text of this grant, which Charles V. signed in Coruña on May 19, 1520, fills several chapters of the third part of the *Historia General de las Indias*.

All the necessary formalities having been complied with and all obstacles overcome, Las Casas was at last ready to launch his colonial venture. Friends in Seville advanced him loans of money and others presented him with a quantity of article of trade, of small enough value in Spain but of great worth in the eyes of the Indians. The fifty men who were to adopt the white habit of the Knight of the Golden Spur had not been selected, but it was thought well to begin the settlement with labourers and perhaps to choose the candidates for the new knighthood from amongst the Spaniards already settled in the Indies. He sailed with his little [pg 152] company from San Lucar de Barrameda on November 11, 1520, and after an uneventful voyage reached the island of Puerto Rico, called by the Indians Boriquen, and first named San Juan by the Spaniards.

While Las Casas had been sustaining his long struggle in Spain in behalf of the Indians, a series of disastrous events had occurred in America, which created serious obstacles in the way of his scheme for colonisation. In 1518 some Dominican and Franciscan friars had founded two convents on the Pearl Coast, the former at Chiribichi and the latter at Maracapana, some seven leagues distant at the mouth of the Cumaná River and just opposite the island of Cubagua. These religious communities had established the most peaceful relations with all the Indians in their neighbourhood and the friars came and went with perfect freedom, being welcomed in all the villages. All went quietly until the arrival of one Alonzo de Ojeda, who came from Cubagua, engaged ostensibly in the pearl trade, but likewise in raiding for slaves. Pearl diving was as perilous and fatal an occupation for the Indians as the work in the mines of Hispaniola and Cuba, and such numbers had perished in Cubagua that it was necessary to replenish the vacancies by bringing others from the neighbouring mainland. When Ojeda

landed at Chiribichi he repaired to the convent, where he found but one priest and a lay-brother, all the others being absent, preaching to the Spaniards in Cubagua. As he expressed a wish to see the cacique, Maraguey, the priest, thinking [pg 153] no evil, sent to invite the Indian to come to the monastery; on his arrival, Ojeda began to question him as to whether cannibalism was practised by any tribes in the neighbourhood, his answers being taken down on paper by a notary. The cacique declared that there were no cannibals thereabouts and, being displeased by the questions and alarmed by the formalities of ink and paper, he quickly withdrew. Ojeda next went to the convent at Maracapaná, where the cacique, called Gil Gonzalez, came to meet him with every demonstration of friendship. Ojeda declared he had come to trade and wished to buy maize, and on the day following his arrival he left with fifteen of his men to go inland in search of the grain. Fifty Indians transported the loads from the interior to the coast, and while these bearers were resting, the Spaniards suddenly drew their weapons, killing some who tried to escape and forcing all the others on board their caravel. The effect of this act of unprovoked treachery in a peaceful settlement, where the Indians had received the newcomers with every hospitality as guests, may be easily imagined, and as was natural, Gil Gonzalez planned vengeance for the outrage. The scene at the convent whither the cacique of Chiribichi had been summoned by his friend the priest, and the impressive formality of the writing with pen and paper furnished by the priest, unfortunately identified the monks in the minds of the Indians with Ojeda and his exploits. The alarm was passed all along the coast, and the Indians bided the moment for a favourable attack; [pg 154] nor had they long to wait, for Ojeda, accompanied by ten men, came on shore again on Saturday as indifferently as though nothing had happened. Gil Gonzalez affected to receive them in a friendly manner, but no sooner had they reached the village than the Indians fell upon them, killing Ojeda and several others, while the remainder barely succeeded in reaching the caravel. The Indians even went out in canoes to attack the vessel but were repulsed, and the Spaniards, setting sail, put to sea.

The defenceless friars remained, however, and at Chiribichi the priest, while vesting to say mass, and the lay-brother were both killed by the people of the cacique Maraguey and the convent was burned. So great was the fury of

the Indians that they even killed a horse with which the monks worked in their garden.

The news of this massacre reaching Hispaniola from the Spaniards at Cubagua, the royal Audiencia at once despatched a small force under Gonzalo de Ocampo to punish the Indians, and the disheartening news of these turbulent events was the greeting that met Las Casas on his arrival at Puerto Rico. Knowing that Ocampo's armada would touch there on its way to the Pearl Coast, he determined to await its arrival, where in fact Ocampo appeared within a few days. Las Casas had been a neighbour of his in other days and, though he knew that his treatment of the Indians did not differ from that of the other colonists, he held him in some esteem. He showed Ocampo [pg 155] his cédulas with the royal signature, which prohibited any Spaniards from landing, against his will, in the territory granted to him, and he formally required him to desist from his errand of vengeance. Ocampo answered that, while he did not refuse obedience to the royal commands, he was in this instance acting under the orders of the royal Audiencia and was obliged to carry out the instructions he had received; the responsibility lay with the Audiencia, which would protect him from any consequences following the execution of its mandate.

Seeing that Ocampo was not to be stopped, Las Casas resolved to go himself to Hispaniola, show his powers to the Audiencia, and exact the recall of the fleet. Meanwhile he placed his colonists amongst the various planters of Puerto Rico, who were glad enough to welcome labourers, who were scarce in the island. This decision of Las Casas was a most mistaken one and was the outcome of an error of judgment which did not require the light of after events to make plain. More was certainly to be hoped from his presence on the spot, and from the influence he might exercise over Ocampo, than from anything he could obtain from the Audiencia, whose members were his bitterest enemies. It was, moreover, impossible for any counter-orders he might be able to wrest from the reluctant Audiencia, to reach the Pearl Coast in time to stop the action of Ocampo, and Las Casas does not even appear to have sought to detain the latter in Puerto Rico, pending the arrival of further instructions. [pg 156]

After dividing his colonists, who thus became scattered, and lost touch with him and with one another, Las Casas bought a vessel for five hundred dollars—an enormous sum at the time—in which he sailed for Hispaniola. His arrival in Santo Domingo was most unwelcome and revived all the ancient odium of the colonists against him, for he was without doubt the best-hated man in America.

He presented his papers to the Governor, and a meeting of some ten officials, who composed what was termed the Consulta and dealt with local questions, was convoked to consider his demands. The first of these was, that the provisions of the royal grant to him should be formally published, according to custom, with sound of trumpet so that all the colonists might clearly understand the prohibition for any one to enter the territory conceded to him, without his permission, and that all Spaniards were commanded to treat the Indians humanely, and to keep faith with them in treaties and contracts under severe penalties at the King's pleasure. Second he demanded that the Consulta should order all Spaniards to quit the territory of his concession, and should recall Ocampo forthwith, as the murder of the friars there had been provoked by the barbarous conduct of Ojeda.

As his previous experience might have taught him, the Consulta listened with gravity to his demands and permitted the proclamation of his cédulas, but when it came to taking any action to restrain Ocampo, reasons for delay were found and [pg 157] the matter dragged on without anything being accomplished.

It being to the interests of those colonists who were expecting a rich cargo of slaves to be brought back by Ocampo, from his punitive expedition, to hinder the departure of Las Casas and, if possible, to wreck his plans for colonising, divers means were invented to accomplish this object. A rumour was started that his five-hundred-dollar vessel was in a bad condition and unseaworthy; the authorities decided that this point must be investigated, so several persons were named to examine the boat and report on her condition. They did so, and promptly reported that the vessel was not merely unseaworthy, but was in such a state that no repairs would make her

so, and that the only course was to dismantle her. Thus Las Casas beheld his five hundred dollars vanish and himself a fixture in Hispaniola.

Meanwhile Ocampo had reached the Pearl Coast and, feigning to come directly from Spain with merchandise and to be entirely ignorant of the murder of Ojeda and the friars, he succeeded in luring the cacique Gil Gonzalez close to his ship, when a naked sailor dived overboard, grappled with the cacique in his canoe and finally stabbed and killed him. A landing was then made and the country raided with the usual accompaniment of murders, torturings, and capturing of the natives, many of whom were carried on board the vessels and sent back to Hispaniola, to be sold as slaves. Ocampo, with others of his followers who remained [pg 158] behind, founded a town, half a league up the Cumaná River, which he named New Toledo.

The arrival of the slave cargo at Hispaniola where Las Casas was still engaged in altercations with the authorities, threw him into a terrible rage. He protested vehemently before the Audiencia against the deliberate and open violation of the royal commands, whose contents had been publicly proclaimed, and he threatened to return forthwith to Spain and lay the case before the King, from whom he would obtain the punishment of the authors of the outrage and their condemnation to pay all the expenses of Ocampo's armada, which had been illegally charged to the Royal treasury.

Nobody doubted that he was capable of executing his threat, and, since it was known that he enjoyed the protection of the all-powerful Flemings and was something of a favourite with the young King himself, the members of the Consulta and some of the principal men in the colony decided, after many discussions, that it would be well to appease the cleric's wrath and come to some arrangement with him for their mutual benefit. It was then proposed to form a company, in which there should be twenty-four shareholders, each of whom should contribute an identical sum and derive an equal profit from the undertaking on the Pearl Coast. Six of the shares should be assigned to the Crown, six to Las Casas and his fifty knights of the Golden Spur, three to Admiral Diego Columbus, one to each of the four auditors of the Audiencia, [pg 159] and the remaining five to the treasurer Pasamonte and the other officials of the Audiencia.

This scheme was submitted to Las Casas, who must by that time have been well-nigh in despair, and, although it very materially changed his original plan, it offered the only possible means for carrying out his intentions, so he agreed to the formation of the company. The agreement upon which the company was based gave to Las Casas Ocampo's armada with several brigantines and barques and all their contents, and he was to choose amongst the three hundred followers of Ocampo one hundred and twenty, who should constitute the armed force of the new colony, under the latter's command. This arrangement, so it was pretended, would leave Las Casas free to dedicate all his efforts to the conversion of the Indians. The last article of the agreement was almost comical. It provided that when Las Casas himself should denounce any Indians as cannibals, the Spaniards should be bound to declare war against them and make slaves of them.

He afterwards wrote concerning the articles of agreement as follows:

“Great was the blindness or ignorance—if indeed it was not malice—of those gentlemen to believe that the clerigo would ever fulfil those horrible and absurd conditions, knowing him to be a good Christian, not covetous, and ready to die to liberate and help in saving those people from the condition in which they were held.”

With his armada well equipped, and a plentiful [pg 160] supply of provisions and merchandise for trading purposes on board, Las Casas finally sailed from Hispaniola in July, 1521, directing his course first to the island of Mona, where a quantity of cassava bread was to be taken on board, and from thence to Puerto Rico, where he expected to collect his original colonists. On his arrival there, not one however, was found to join the expedition, as they had long since dispersed throughout the island or had joined marauding expeditions to capture Indians. This defection must have caused Las Casas great disappointment, for he had assembled these men with great care in Spain, choosing only such as he thought from their good character to be adapted for his ideal colony. The change which their new and strange surroundings had operated in these peaceful, simple folk was not unnatural; loosed from all the anchors that held them to habits of industry and probity, they found themselves caught in new currents; cupidity was awakened by the gold-fever that infected all the colonists, the

pious projects with which they left Spain under the guidance of their apostolic leader were easily abandoned when the influence of his enthusiasm was withdrawn, and they took to the freebooting ways and easy morals of the colonists with whom they were thrown. Las Casas had neglected to realise that they were not angels.

On arriving at that part of the Pearl Coast called Cumaná, it was found that Ocampo's colony of New Toledo was already in the throes of discontent from hunger and disease; his men had begun by pressing [pg 161] the Indians into service, with the result that all the natives abandoned the country, leaving the Spaniards to starve. When it became known that those who chose might return to Hispaniola, every man of them declared he would go, so Las Casas was left with a few of his friends and some who were in his pay. Ocampo showed sincere regret and much sadness at abandoning his old friend, for whom, in spite of their differences, he had a sincere admiration, in such a plight. He took leave of him with many demonstrations of affection, and joining his men sailed away to Hispaniola.

Las Casas was now in his long-desired territory, but the material for starting his colony was sadly reduced.

CHAPTER XII. - THE IDEAL COLONY. FATE OF THE COLONISTS. FAILURE OF THE ENTERPRISE

Some time before the events just recounted, Franciscan friars from Picardy had been sent to the Pearl Coast by the Prior Pedro de Cordoba, under the leadership of Fray Juan Garceto, and this little community heard the news of Las Casas's coming with profound joy. Upon his arrival, they came to meet him singing *Te Deum Laudamus* and *Benedictus qui venit in nomine Domini*. The convent was modest enough, being rudely constructed of wood and thatch, and the life of the friars in the midst of the vast wilderness about them was one of the most apostolic simplicity. The house stood about a musket-shot back from the Cumaná River in a beautiful garden which, in such a climate, was not a difficult achievement. Las Casas built a large storehouse on one side of the garden for his trading merchandise and, through the friars and an Indian woman called Maria, who had learned Spanish, he published among the Indians that he had been sent by the new King of the Christians in Spain, and that henceforth there would be no more fighting, but all were to live together in peace [pg 163] and friendship. In order to attract them, he made them presents from his stores; but it was not unnatural that the diffidence of the Indians should yield but slowly to these blandishments after the deceptions of which they had been the victims, and besides, Las Casas could not trust his own dependents, but had to keep a sharp eye continually on them, to prevent them scandalising and offending the natives. Under such discouraging circumstances, progress was inevitably slow.

Not only were the Spaniards under his own control in little harmony with the spirit of his intentions and as refractory as they dared be to his orders, but the pearl fishers on the island of Cubagua, who were a typical lot of

godless ruffians, frequently came to the mainland, with the valid excuse that the absence of sweet water on their island obliged them to fetch their supply from the Cumaná River. These expeditions for water were usually accompanied by some disturbances with the Indians, some of whom were frequently captured and carried off to work in the pearl fisheries.

To put a stop to these incursions into his territory, Las Casas contracted with a mason, for eight dollars in gold per month, to build him a fort at the mouth of the river; but the people at Cubagua, hearing of this project which would interrupt and control their movements, contrived to so influence the mason that he threw up his contract and abandoned the work, thus leaving the country defenceless. The Cubaguans seduced and ruined the Indians, chiefly by offering them liquors and spirits, which [pg 164] have always proved the white man's most attractive and destructive products to the savage and have ever gone in the vanguard of civilisation. The Indians gave everything they possessed for alcohol even selling their fellows as slaves, in exchange for wines; these they drank to inordinate excess, and in the fury of their debauch quarrels broke out amongst them which ended in murders and a state of the most riotous disorder, against which Las Casas and the monks struggled in vain. The strongest representations and protests were made to the alcalde of Cubagua, whither Las Casas went in person, but, far from producing the desired result, his efforts to protect his own territory only served to excite increased resentment on the part of his lawless neighbours, and neither his own life nor that of the Franciscans was any longer safe from the threatened reprisals of their hostile countrymen. The situation was one of the greatest gravity and even peril; instead of showing promise of improvement, it grew daily worse; for, though the men at Cubagua were somewhat restrained from venturing upon open acts of hostility directed against him since they had seen what powers the royal cédulas gave him, their ingenuity in devising vexations, inventing contrarieties, and creating obstacles which effectually nullified all his efforts, was extraordinarily fertile. Fray Juan Garceto was of the opinion that Las Casas should return to Hispaniola to complain to the Audiencia and demand that some effective restraint be exercised upon the Spaniards at Cubagua or, failing of success there, that he should even go [pg 165] to the King himself to obtain redress and the punishment of the offenders. This advice did not accord with Las Casas's own view, for he had reason to know how difficult it was to obtain

anything from the Audiencia and how easy it was to evade even the most explicit provisions of royal cédulas, when it suited the interest of those concerned to do so. His absence at such a critical moment would also remove the one effective restraint on the lawlessness of the Cubaguans and doubtless result in the total destruction of his stores, which were valued at fifty thousand castellanos. Two vessels were lying off the coast, loading salt for Hispaniola, and during the days previous to their sailing both Las Casas and Fray Juan gave themselves up to earnest prayer and each offered his daily mass to obtain some divine guidance as to the right course to pursue, since they were in absolute disagreement. Las Casas prepared a full statement of the situation, and a petition asking the Audiencia to furnish the necessary remedy without delay, which he intended to despatch by one of the ship's captains in case he did not go himself when the sailing day came. The last day finally arrived, and Fray Juan, after saying his mass, sought Las Casas and said, "It is your duty, sir, to go and on no account to stop here." "God knows," replied Las Casas, "how much this goes against my judgment and my wishes but, since it seems right to your Reverence, I am willing to do it; if it is an error, I would rather err by the judgment of another than be right by my own, for I hope in God." The wisdom of submitting his [pg 166] judgment as an act of religious humility in a matter concerning his own spiritual welfare would have been laudable, but Las Casas was far more qualified to judge on a question of policy affecting the welfare of his enterprise than was Fray Juan Garceto, and the responsibility for repeating the blunder he had made in Puerto Rico of abandoning his colony while he went off to protest to the Audiencia, must rest where it belongs—on his own shoulders—and not where he sought to put it—on those of the humble Franciscan. If somebody had to go—and it seems that the necessity was urgent—then Fray Juan had better have taken the letters and gone himself before the Audiencia, leaving Las Casas to withstand his enemies and keep his colony together as best he could, until the Audiencia despatched some authority to effectively restrain the Cubaguans. His resolution taken, in accordance with the friar's inspiration, Las Casas appointed Francisco de Soto, a native of Olmedo, as captain during his absence and gave him full instructions for his guidance. It was especially impressed upon the captain that on no account should he permit the two vessels which the colony possessed to leave the harbour; he was to be on the alert and in case of open hostilities he was to load the merchandise on

board if possible, but if not, then to save all his people and take refuge at Cubagua. Much preoccupied as to the fate of those he left behind and uncertain as to the wisdom of his course, Las Casas set out for Hispaniola, leaving all he possessed in the convent, save [pg 167] one box of his clothing and another containing some books.

It is illustrative of the capricious and light-hearted spirit of disobedience to all authority, save what force imposed, which characterised Spanish officials in America, that the first thing De Soto did, before the ship bearing Las Casas was barely out of sight, was to send away his two vessels, one in one direction and the other in the opposite, to fish for pearls and, if possible, to capture Indians. The natives were in a state of unrest owing to the continual vexations of the people of Cubagua and also of Las Casas's men who, as soon as he was gone, became almost as bad as the others. The beautiful speeches in which peace and justice and friendship were promised for the future, under the powerful protection of the new King of Spain, had resulted in nothing, and the last illusion of the Indians vanished with the disappearance of the ship that bore their protector towards Hispaniola. A general massacre of the colony was concerted to take place about fifteen days after Las Casas left. The Franciscans got wind of it three days before the date fixed and though the Indian woman Maria, when asked, denied the plot in words, she conveyed to the friars by gestures that she had lied because the presence of other Indians intimidated her from telling the truth. A Spanish trading ship arrived in these days, but in spite of the colonists' prayers to be taken on board the captain refused, so the hapless men were left to their fate. At the last moment an effort was made to organise some defence and twelve [pg 168] or fourteen pieces of artillery were mounted around the storehouse, but when they came to examine the powder, it was found—oh, Spanish improvidence!—to be so damp that it was useless. At sunrise they thought to dry it, but they were too late, for with fierce war-whoops, the Indians were upon them; three of their number were killed and the store-house, in which the others had barricaded themselves, was set on fire. Fortunately there was a small door that gave access to the garden, through which they escaped from the burning building. De Soto, who had been out to reconnoitre the town was wounded with a poisoned arrow, but managed to reach the garden where the others were. The friars had constructed a canal through their garden leading to the river and on this they

had a large Indian canoe capable of holding fifty persons. This canoe was now their sole hope of safety and everybody managed to get into it, save one unfortunate lay-brother who had taken refuge among some reeds along the bank and was only discovered after the canoe had pushed off. Seeing his companions borne swiftly away on the saving current, he rose from his hiding-place with despairing gestures of appeal, but though every effort was made to reach him it was in vain, and he, poor man, seeing that his situation was hopeless, signalled to them with pathetic heroism to leave him and save themselves while they could. He was killed a few moments later when the Indians, not knowing of the egress into the garden and believing that all the Spaniards were inside the burning building, came [pg 169] round to the other side of the Storehouse. When they caught sight of the fugitives in the canoe, they quickly launched a swift pirogue and set out in pursuit of the canoe. The Spaniards had already doubled the point called Hraga and were a league down the river, but they were exhausted with hard rowing and the light pirogue of their pursuers gained so rapidly upon them that their only hope was to take refuge in the thick underbrush along the shore, where the Indians, being naked, could not penetrate on account of the thorns. The canoe and the pirogue touched land almost at the same time and not far from one another. Fray Juan afterwards recounted to Las Casas how he was overtaken by an Indian and, seeing the club raised to strike him, he threw himself on his knees, closed his eyes, and prepared for death; the blow did not fall, and on opening his eyes he found himself alone, with no Indian in sight. Finding it impossible to reach the Spaniards in their refuge in the thorny thicket, the Indians withdrew and the Christians, covered with blood from their many wounds, managed, though in a truly pitiable plight, to reach some boats which were loading salt not far off. It was then noticed for the first time that their captain, Francisco de Soto, was missing and, as some one remembered having seen him concealed under a great rock in the thicket, a boat was sent to look for him. After three days' search he was found, dying of thirst, and on being brought on board and given water, he finished himself by drinking to excess. Thus the author of all the mischief paid [pg 170] the penalty of his imprudence and disobedience with his life.

While the colonists were undergoing these sufferings, Las Casas found himself on board a vessel whose pilots, ignorant of the chart, carried him eighty leagues beyond the harbour of Hispaniola and wasted two months in

beating against the currents to pass the little island La Beata. Seeing the hopeless incompetency of these men, he had himself put ashore at the harbour of Jaquimo some twenty leagues lower down, from whence he could go on to Jaguana and so across the island to the city of Santo Domingo. The news of the disaster at Cumaná had long since reached Hispaniola and Las Casas heard of it in the following manner, while journeying on foot across the island with several companions. One day, while he was taking his afternoon siesta under a tree, a party of travellers joined his companions, who enquired what news there was in Santo Domingo or from Spain. The newcomers answered that the only recent news was that of the murder of the clerigo Las Casas and all his colony at Cumana by the Indians. "We are witnesses to prove that that is impossible" replied the others, and the discussion which ensued awakened the clerigo who thus received the disheartening tidings, which he was inclined to believe, of the total destruction of his hopes. He afterwards attributed this catastrophe to his own weakness in allowing himself to be drawn into a partnership with godless men, whose sole object was to enrich themselves, by which he had offended God and [pg 171] merited punishment. He would have done better to keep to his original plan of forming a religious company of Knights of the Golden Spur, who, aided by the friars, would have embarked with him on the conversion of the natives without mingling any expectation of profitable trade with their project. The struggle for immediate and inordinate gain, in which the Spanish colonists were engaged, with its slave raids, extermination of the Indians by selling them alcoholic liquors and forcing them into the dangerous labours of mining and pearl diving, was incompatible with such a colony as Las Casas designed to found, and the agreement into which he entered with the Audiencia of Hispaniola was bound to wreck his projects.

Had the ability of Las Casas to direct his undertaking and to govern men been equal to his genius in the sphere of morals and intellect, and to the eloquence of his advocacy, the realisation of his ideal of justice and charity might have been assured. Certainly he contended against overwhelming odds in Spain, the Bishop of Burgos, who controlled American affairs, was implacably hostile; in America the colonial authorities and the entire population barring the friars and a possible handful of his friends, were vigilantly opposed to him; deceived and betrayed by his Squire Berrio, he

was disobeyed by De Soto and abandoned by his colonists, while all hope of establishing friendly relations with the Indians in the territory conceded to him was annihilated by the Spaniards at Cubagua, whose aggressions kept the whole country in a state of alarm. [pg 172] These untoward conditions, which no foresight on his part could have avoided, were alone sufficient to explain the failure of his enterprise. His plans seem, however, to have involved a contradiction of a fundamental law of human progress which decrees the destruction of rudimentary forms of civilisation when brought into contact with a higher one. Neither humane civil legislation nor the higher principles of Christian charity have thus far served to save the weaker races of mankind from absorption or extermination. The fiercer and stronger tribes of American Indians receded before the Anglo-Saxon invasion of their territories, leaving a trail of blood behind them, while the weaker nations of the islands and Southern Americas went down before the Spaniards, with hardly more than a plaintive cry for mercy.

The price of civilisation is a high one, and as the peoples of Europe paid it, so were the aboriginal populations of America not exempted from the blood-tax. The obscure workings of the mysterious laws of race-survival were forced on and hastened by the cruelties against which Las Casas protested in vain, but the triumphal march of human progress has followed on. Cannibalism, idolatry, slavery, and other barbarisms have disappeared from the American continents; the Christian religion has replaced degrading superstitions, agriculture and commerce flourish, while literature and the arts adorn life in the several republics, whose meanest citizen enjoys a security of life and property unknown to the proudest of their [pg 173] ancestors under the rule of Montezuma or the Incas. Belief in the principles of equity and charity forbids us to doubt that these and even nobler results might have been achieved by the methods advocated by Las Casas, but history records no racial expansion along other roads than that opened by the sword.

CHAPTER XIII. - PROFESSION OF LAS CASAS. THE CACIQUE ENRIQUE. JOURNEYS OF LAS CASAS. A PEACEFUL VICTORY

Although held in general detestation in Hispaniola, as a seditious mischief-maker and an enemy of the Spaniards' interests, there were not wanting some sympathisers who, when Las Casas arrived, dejected and bankrupt, at Santo Domingo, received him kindly, and even offered to lend him five thousand ducats with which to begin again.

The clear thinking and high resolution which had carried him through so many trials seemed at this time to fail him; nor indeed is there just cause for wonder, for there is a limit to human powers of endurance, and if ever a man was overtaken by a dark hour, Las Casas was he. In after years, he arraigned his own conduct at this period with undue severity, reflecting that as the Emperor was back in Spain with the Flemings, and his old friend Cardinal Adrian had become Pope, he might have accomplished his life's purpose of ending the sufferings of the Indians, had he only adopted the resolution of going directly to Spain. As it was, he wrote an extensive account to the Emperor of all [pg 175] that had occurred and the causes that had brought on the calamity at Cumaná.

To the monks of the Dominican order, Las Casas had years since been united by the strong bonds of devotion to a common cause, which was the dominant influence, as it was the sole object, of his life. As they had accompanied and sustained him throughout his long struggle, so it was to them that he naturally turned for sympathy in the extremity of his disappointment, exiled, as he was, amidst the hostile colonists of

Hispaniola. These were the saddest days of his tempestuous life, during which doubts began to penetrate his very soul—doubts of his own worthiness to carry on the mission to which he had believed himself called, doubts even as to whether it might not be ordained by the inscrutable wisdom of Divine Providence that the Indians should perish before the advance of the Spaniards. If this were true, then his life had been wasted in a vain conflict with the occult forces that govern the destiny of races.

While waiting for answers to the letters he had written to Spain, he found his only consolation in his intercourse with the Dominican friars, with whom in fact he had been for years closely united in spirit. Fray Domingo de Betanzos exercised a great influence upon him at this time, and to him is due the decision of Las Casas to enter the Dominican Order.

The discussions between the two must have been frequent and prolonged for, weary and disappointed as he was, Las Casas seems not to have yearned for [pg 176] the seclusion of the cloister. To his objection that he must await the King's reply to his letter before taking a decision, Betanzos answered, "Decide now father, for if you were to die meanwhile, who will receive the King's letters and orders?" These words sunk deep into his soul and from thence-forward he pondered seriously upon his vocation. Finally his mind was made up and he decided to imagine himself dead when the King's letter should arrive and so beyond the reach of royal commands. In 1522, he asked for the habit of the Order.³⁹ The news of his solemn profession, which took place in 1523, was received with great joy by the people outside the convent, though for very different reasons, for they assisted at his exit from the world and his entrance into the cloister with the same satisfaction with which they would have attended his funeral. While making his novitiate, the letters from the Cardinal (now Pope) Adrian and his Flemish friends at Court arrived. The Flemings urged his immediate return to Spain, promising him every assistance in their power, but the superiors of the monastery in Hispaniola did not deliver these disquieting epistles to their novice, for fear of shaking his resolution to persevere in his vocation.

The earliest biographer of Las Casas, Antonio de Remesal, says that he was chosen Prior of the monastery, and this statement is supported by a [pg 177] letter from the Auditors of Hispaniola dated June 7, 1533, addressed to

Prince Philip who was governing Spain during the absence of the Emperor his father, in which Fray Bartholomew is mentioned as Prior of the Monastery of Santo Domingo in the town of Puerto de Plata.⁴⁰ In chapter 146 of his *Historia Apologetica*, he himself speaks of “conferring the habit” on a novice, which he could only do if he were Prior.

The first seven years that Las Casas passed in the seclusion of his monastery were not marked by any salient incident. He devoted himself with all the intensity of his nature to the practice of the austere rule of St. Dominic and became, as he himself afterwards described in writing of that period of his life, as though dead to the world, so little part did he have in the course of events outside his cloister's walls. He gave much time to the study of theology, especially to the works of St. Thomas Aquinas, the glory of the Dominican Order. These studies served to equip him with stores of canonical and philosophical learning which enabled him, when the time came, to sustain controversies with some of the most learned men in Europe.

In the second chapter of his *Historia Apologetica* the following sentence occurs: “Three leagues to the west of the extremity of this plain is Puerto de Plata, and on a hill above and near by the town thus named there is a monastery of the Dominican Order, where the composition of this History was [pg 178] begun in the year 1527,—to be finished when and where the will of God may ordain.”⁴¹

In 1529, he lent his efforts to bringing to an end the long standing rebellion of the cacique Enrique whose forces, in the mountains of Baranco, the Spaniards had fought at intervals during fourteen years in vain. This chief had been educated in the Franciscan convent at Vera Paz and was a man of unusual intelligence and superior courage; he married a beautiful Indian girl of good lineage and, with the Indians under his rule, was assigned in repartimiento to a Spaniard named Valenzuela, who began by robbing him of a valuable mare and ended by taking from him his wife.

The cacique's protests were answered with a beating, and his complaints to the governor of St. Juan de la Maguana, one Pedro Vadillo, were disregarded.

This grievance led to an organised rebellion of the natives under Enrique, who assembled numerous forces. By constantly moving from place to place, he was able to elude the several Spanish expeditions sent against him. The course of these alternate hostilities and negotiations to obtain the submission of Enrique, and the dispersal of his people, are described at length in chapters 125 and 126 of the *Historia General*. Even the intervention of Fray Remigio, one of the Franciscans who had come from Picardy to Hispaniola, and who had been [pg 179] one of Enrique's teachers in the convent, failed induce the offended cacique to surrender. News of the continued success of the rebellion reached Spain, and in 1527, Don Sebastian de Fuenleal was sent out as President of the Audiencia and Bishop of Santo Domingo, with special instructions to subdue Enrique. His efforts proved as fruitless as the preceding attempts, and in 1528 the King wrote still more urgently that the campaign must be brought to a successful issue. The Bishop-President, being in sore perplexity to devise means for satisfying the royal commands, showed this embarrassing letter to Fray Bartholomew.

“My lord,” said Las Casas, “how many times has your lordship and this Audiencia tried to subdue this man to the King's service by waging war against him.”

“Many times,” answered the Bishop, “almost every year a force has been organised and so it will go on till he dies or submits.” “And how often,” asks Las Casas, “have you tried to win him by peaceful means?” “I don't know that there was but the one time,” answered Fuenleal. Fray Bartolomew then affirmed that he was confident that he could arrange a peace and, the Bishop-president having accepted his offer to act as ambassador to Enrique, he fulfilled his mission as much to the astonishment as to the satisfaction of everybody.

The Spanish historian Quintana rejects the account of these events which is given by Remesal and has ever since been accepted by historians as authentic, declaring it to be fabulous, and limiting [pg 180] the part Las Casas played in the affair of Enrique to a visit he paid him after peace was concluded. Remesal bases his narrative on documents which he declares he found in the archives of the Audiencia of Guatemala, and there seems no

sufficient motive for doubting the veracity of the evidence. Las Casas, in describing what took place in the early part of the troubles with Enrique (1520), does not say positively that he took part in the first negotiations for peace, but he does clearly give it to be understood that the successful issue of the final efforts was owing to his intervention. A detailed account of the conclusion of the rebellion would, according to the system adopted in writing his *History*, find its rightful place in the fourth book, which is missing, though there is little room for doubt that it was written and may possibly still be discovered.

Concerning the journey which—according to Remesal—Las Casas made to Spain in 1530, very little is known, and Quintana is as sceptical about this voyage as about the part attributed to him by some biographers in Enrique's subjugation, though there seems as little reason in this instance to doubt the explicit statement of one whose good faith is as far above suspicion as his opportunities for knowing the facts were exceptional.

Torquemada represents Fray Juan Zumarraga, the first Bishop of Mexico, as visiting Spain in 1532, and as having previously written asking that the colonists should be prohibited from enslaving the Indians, and that during that time identical [pg 181] representations had been made to the government by the Bishop of Chiapa, Don Bartolomé de Las Casas,⁴² which procured letters patent from the Empress-Regent signed in 1530, before the bishop of Mexico arrived.⁴³ The scepticism of Quintana seems hardly justified.

The occasion of the alleged journey was the recent discovery and conquest of Peru by Francisco Pizarro and Diego de Almagro. The fate of these millions of people, newly subjected to the Castilian crown could not have been a matter of indifference to Las Casas. They stood far higher in the scale of civilisation than the naked islanders, possessing as they did, as great an empire as the Mexicans, with religion, laws, and literature of a high order of development. While the entrance of Las Casas into a monastic order was, in one sense, a retirement from the world, he had chosen a community whose members were as devoted to the defence of the Indians as he himself was, and while he had, when still a secular priest, sustained a stout fight, unaided save by such friends as chance and his own efforts

might here and there secure him, he could, after his profession, count upon the moral and active support of one of the most powerful religious organisations of the age. His retirement, therefore, proved to be a period of refreshment, during which he reinforced his powers for continuing his propaganda and, while losing nothing of his original [pg 182] enthusiasm and determination, he returned to the scene of his former activity with renewed courage and a great religious Order at his back.

Determined as he was to forestall a repetition in Peru of the exterminating cruelties perpetrated in the islands, he returned to Court in his Dominican habit, where he preached several times with great success. The gift of eloquence he had always possessed, and his eight years of study and meditation had furnished him with new weapons, which he wielded with the same fiery zeal that had characterised the first years of his apostolic championship. During the six months he remained in Spain, he obtained a royal cedula to be delivered to Pizarro and Almagro, positively prohibiting the enslavement of any of the natives of Peru for any reason, or in any manner whatsoever, as they were declared to be the free vassals of the King, and as much entitled to the possession of their liberty and property as were the natives of Castile itself. The obnoxious Bishop of Burgos had long since fallen into disgrace and was dead, so that Las Casas was free to carry on his negotiations with the India Council without encountering at every step the obstacles and delays his old enemy had formerly opposed to his projects.

During his absence in Spain, the first provincial chapter of the Dominicans had been held in Hispaniola, and on his return there he learned that the monastery of San Domingo in Mexico had been designated as the chief house of the province, with Fray Francisco de San Miguel as the first Prior. [pg 183] Las Casas, in company with other friars embarked with the new Prior for Mexico, his own destination being Peru, where he had not only to deliver the royal cedula he had secured, but also to found some convents in those regions. The friars in Mexico did not welcome their new Prior as cordially as they might have done, but Fray Bartholomew, ever ready to exercise his powers of universal peace-maker, smoothed the difficulties, after which he left for Peru early in 1532, accompanied by Fray Bernardino de Minaya and Fray Pedro de Angulo.⁴⁴ As their port of embarkation was Realejo in Nicaragua, they passed through Santiago de Guatemala where

they lodged in the abandoned convent of San Domingo. As soon as the news of their arrival spread, the whole town came eagerly to see them; the enthusiasm of the inhabitants was somewhat dampened when they learned that Las Casas was one of the three, for he had earned a terrible fame amongst slave-dealing Spaniards and whenever he appeared, was apt to produce royal cédulas of embarrassing purport or, at least, to denounce and report to Spain the violence and cruelties commonly practised on the Indians.

The friars' stay at Santiago was brief, in spite of the urgent entreaties of the priest there, who begged them to remain and to reopen the deserted monastery, as the field for spiritual labours was a broad and uncultivated one. Fray Bartholomew was anxious, however, to reach his destination, knowing from past experiences how much easier it is to forestall an evil than to remedy a rooted abuse. He [pg 184] rightly judged that whatever good was to be accomplished by virtue of the royal cédula he carried, must be achieved before the conquerors of Peru had time to enslave the Indians and to establish a system similar to those that had worked such damage in the Islands and in Mexico. They were obliged to wait twenty-four days at Realejo until a ship which was to carry reinforcements and stores to Pizarro and Almagro was ready to sail; meanwhile the three monks, under the exterior guise of the gentle dove, were obliged to use some of the wisdom of the serpent and to carefully conceal the nature of their mission, for otherwise the ship-owners, whose chief article of commerce was slaves, would never have taken them on board.

Upon their arrival in Peru, Las Casas immediately communicated the purport of the cédula to the Spanish commanders. Both Almagro and Pizarro protested that they would obey the order to the letter, though it went sorely against their interests. They ordered the royal command to be solemnly published with the usual formalities and even added other penalties to those prescribed, for any violation of its provisions.

This part of his mission accomplished, it remained for Fray Bartholomew and his companions to take steps to found religious houses as their superior had ordered, but after consultation with the Bishop of those parts, Fray Vicente de Valverde, it was decided that such foundations would be

premature, since the country was only half subdued and a continuous state of warfare still prevailed. Their [pg 185] return to Mexico was therefore agreed upon and, together with a number of Spaniards who were disappointed with their prospects in Peru, the three friars left for Panama whence they sailed for Realejo, where they arrived early in March of 1532.

The Bishop of Nicaragua, who at that time was Don Diego Alvarez Osorio, had been instructed by the Emperor to establish Dominican convents in his diocese, and the arrival of the friars afforded him the first opportunity that had presented itself to obey the royal commands. A convent was therefore established with the customary ceremonies at Leon, the seat of the Bishop, and was dedicated to St. Paul. The friars set themselves to work to learn the language of the natives, which was not difficult for Pedro de Angulo, since he already knew the Mexican tongue, whose similarity rendered intelligible communication with the Indians easy from the outset.

While engaged in the apostolic labour of teaching and converting the natives who were eager to become Christians, Las Casas received a letter from the licentiate Cerrato, who had succeeded the Bishop Don Sebastian de Fuenleal as President of the Audiencia in Hispaniola on the transference of the latter to Mexico, urging him to return forthwith, as his presence was necessary for the service of God and the Emperor. Money for the expenses of the journey accompanied this communication, the nature of which left its recipient no choice but to obey, so leaving the work of conversions that had so favourably begun to the care of the friars who had [pg 186] returned with him from Peru, Fray Bartholomew and Fray Pedro de Angulo set out on their long journey by way of Honduras, where a ship might be found either at the port of Trujillo or that of Caballos.

Upon his arrival at Santo Domingo, where he was cordially received by the President, Cerrato though his presence was never a source of tranquillity to the slave-dealing colonists, Las Casas learned that the principal reason for recalling him, was the President's desire to establish a surer peace with the cacique Enrique; although the latter had made no attack on the Spaniards since the agreement of 1529, he had not disbanded his followers, but remained in an inaccessible mountain fastness, a permanent source of unrest

to the Spaniards with whom he showed no intention of entering into closer relations.

No mission could have been more to Fray Bartholomew's liking, for he was ever eager to prove the truth of his perpetual thesis that the Indians were reasonable, peaceable people who, if treated humanely would readily embrace civilisation and Christianity. Making his usual condition that no force should be used, and accompanied only by his faithful companion, Fray Pedro de Angulo, he set out for the mountain regions to search for Enrique. After several days of fatiguing wanderings he came upon the cacique, as well entrenched and with as many precautions against a possible attack or surprise as though he were engaged in active warfare instead of being at peace since four years. For some time, during which the two Dominicans remained as guests in the camp, no news of them [pg 187] reached Santo Domingo, so that the President and the colonists began to feel great uneasiness for their safety. Two months of absolute silence elapsed when, to the stupefaction of the colony, Las Casas appeared at the entrance of the Audiencia in company with the formidable cacique. During fourteen years this Indian chieftain had been the terror of the Islands, invincible and intractable; the triumph of Las Casas was correspondingly great when, by the force of his reasoning, he led him peacefully into the Spanish capital. Great was the ovation that greeted this signal success of the unpopular Dominican; the President fulfilled to the letter all the promises and assurances which Las Casas had given Enrique in the Emperor's name, so that from their most obstinate enemy, this cacique became the most loyal friend of the Spaniards.⁴⁵ Perhaps no accomplishment in his long life of great achievements and great disappointments afforded him more unalloyed pleasure than this pacific victory.

The centre of Fray Bartholomew's action was now transferred to Peru, where he was bent upon keeping a watchful eye on the execution of the royal commands for the protection of the Indians, which he had been instrumental in procuring. There, it seemed still possible to bar out slavery in all its forms, so he solicited the Dominican superiors in Hispaniola four friars to accompany him and found religious houses in Peru. Amongst these four was Fray Luis Cancer, whose name was destined [pg 188] to be written in the list of the proto-martyrs of the Catholic Church in America.

The President Cerrato, out of gratitude to Las Casas, made all the provision for the return journey and the five friars set out, probably by the same road by which Las Casas had come. In 1534, he was in Nicaragua, where he left three of his companions in the convent of St. Paul at Santiago, while he and Fray Luis Cancer and Fray Pedro de Angulo continued on their way to Peru. Embarking at the port of Realejo on board a small vessel, they were overtaken by a furious storm and such continued bad weather that, after many days of misery and danger, the ship was obliged to put back, and they found themselves again at their port of embarkation.

Their journey to Peru being thus frustrated, the friars returned to their convent at Leon where, in the early days of 1534, a letter reached Las Casas from Don Francisco Marroquin, who had recently been appointed Bishop of Guatemala after the renunciation of Fray Domingo de Betanzos. His diocese was vast but its clergy consisted of himself and one priest, and in his letter he entreated Fray Bartholomew, since his journey to Peru had been abandoned and the diocese of Nicaragua was reasonably provided with priests, to come with his companions to Guatemala, where there was a great field open for apostolic work and no labourers to occupy it. Las Casas at once responded to this invitation and in Santiago de los Caballeros, the trio of Dominicans established their convent, being [pg 189] joined somewhat later by Fray Rodrigo de Ladrada who came thither from Peru.

The first essential was to learn the Guatemalan language in order to preach and catechise the Indians, and this was the more easily accomplished because the Bishop Marroquin was already master of it, and undertook their instruction. It was this same bishop who published in Mexico in 1556, a catechism of Christian Doctrine in the Utlateca tongue, commonly called Quiché, a little book which has become extremely rare and valuable.

CHAPTER XIV. - THE LAND OF WAR. BULL OF PAUL III. LAS CASAS IN SPAIN. THE NEW LAWS

The next few years passed in successful missionary work, without offering any events of particular interest in the life of Las Casas. During this period he composed his work, *De Unico modo vocationis*, in which he argued that Divine Providence had instituted only one way of converting souls, viz., convince the intelligence by reasoning and win the heart by gentleness.⁴⁶ The ground principle of all his teaching was unalterably the same, and he eloquently insisted upon his doctrine of peace and kind treatment of the Indians, whom he never ceased to declare were reasonable people of unspoiled nature, who were to be converted by gentleness and justice—not by brutality and oppression. His theories provoked the same ridicule and opposition in Guatemala as elsewhere, though there was not the same bitterness of feeling towards him as existed in the Islands.

The heads of the Spanish colony in Guatemala even challenged him to put his theories into practice, saying that if he succeeded in subduing any tribes, they would admit that they had been unjust, and [pg 191] would abandon their opposition and liberate their slaves. This challenge Las Casas at once accepted, and selected for the field of his undertaking the mountains of the province of Tuzulutlan, inhabited by a warlike people, whom the Spaniards had never been able to conquer, partly on account of the difficult nature of the country, and partly on account of the skill and courage of the inhabitants in defending themselves. Besides the bare necessities for his support, Las Casas only asked that the conditions expressed in the following agreement

bearing the Governor's signature should be scrupulously observed. The act was thus worded:

“By these presents I promise and give my word in the name and on behalf of his Majesty and by the royal power which I hold that should you, or anyone of your religious here present, to wit, Fray Bartholomew de Las Casas, Fray Rodrigo de Ladrada, and Fray Pedro de Angulo, by your efforts and care, bring any provinces or Indians of them, which may be all or partly within my jurisdiction which I exercise for his Majesty, to peaceably recognise his Majesty as sovereign and to pay a tribute according as their means and property may permit either of gold, if it exists in their country, or of cotton, maize, or any other product which they possess and use for trade amongst themselves, I will, by virtue of his Majesty's authority, recognise all such and their provinces in his Royal name and present them to his Majesty that they may serve him as his vassals; nor will I give them to any one, nor shall they be given in encomienda to any Spaniard either now or at any time. I will command that no Spaniard shall molest them nor [pg 192] enter their country, under grave penalties, for a period of five years, that they may not disturb them or hinder your preaching and their conversion, unless I should myself go personally when it may seem good to you and when you may accompany me; for in this matter I desire to fulfil the will of God and of his Majesty and to aid you as far as I possibly can to win the natives of this province to the knowledge of God and the service of his Majesty, etc.”

Provided with this official guarantee, the friars began to carefully study the best means for approaching the Indians of Tuzulutlan and after much reflection, they hit upon a plan as simple as it was ingenious. They composed couplets in the Quiche tongue, in which were recited the creation of the world and the story of Eden; man's fallen state and need of redemption; the birth and miracles of Our Lord and finally His death upon the Cross. These verses were very much after the style of the text of the miracle-plays which were so popular throughout Europe in the Middle Ages, and as they contained the entire epitome of the Christian religion, the Indians, by merely listening to the chanting of them, would catch the rhythm by ear, and the sense of the doctrines might be trusted to penetrate their understanding, once their attention had been secured.

Selecting four Christianised Indians who plied their trade as itinerant merchants between the country of Zacapula and the Quiché tribes, whom they thought qualified to play the part, the friars carefully taught them the verses. The Indian's memory [pg 193] is as tenacious as his faculty for learning by rote is quick, and as the rhymes were graceful and the subject matter both dramatic and mysterious, the four traders quickly learned to chant them in chorus, accompanied by several Indian musical instruments. Some time was necessarily consumed in these preparations and it was August of 1537 before the friars were ready to send forth their apostolic troubadours. The news of their conditions and agreement with the governor reached Mexico, where the Bishop Marroquin had gone for his consecration, and met with approval both from the Dominican superiors there and the Governor of the Audiencia.

In addition to the usual stock of merchandise which the traders carried, Las Casas supplied them with a number of such Spanish trifles as most pleased the Indians and instructed them to go first to the house of the principal cacique ⁴⁷ of the Quiché, who was a warlike chief of great authority, and to do nothing without first consulting him and receiving his approval. To ensure them a good welcome, some special presents adapted to his probable fancy were to be offered him.

The traders obeyed their instructions to the letter, and after offering their gifts, which delighted the cacique, they opened their wares to the public. Their Castilian merchandise added immensely to the attraction of their market and drew a larger number, between buyers and curious people, than usual. [pg 194] When the day's business was over, they called for some musical instruments—the *templanaste*—and taking out their own castanets and timbrels, they began to chant the couplets.

Such music had never before been heard in the Quiche land, but if the form attracted their attention, the words of the verses made a still deeper impression on the listeners, and most of all on the cacique himself. The next day, when the fair was over, he asked the traders to sing again the wonderful story and, as the news of the previous day's performance had spread amongst the people, a still larger crowd had assembled to listen. When the singing had finished, the cacique asked the traders for

explanations concerning the sense of their song but they, acting on Las Casas's instructions, replied that they only knew what they sang and to learn more he would have to send for certain friars who would be very glad to come and tell him everything concerning the mysteries of the verses. This gave the traders an opportunity to describe the friars who, they said, wore white robes covered with black mantles and had their hair cut in the form of a crown around the head; they told of the extreme frugality of their lives, their severe penances, and that their only occupation was to instruct people, for they despised gold and were indifferent to personal possessions. The cacique marvelled not a little to hear of this new variety of Spaniard, so contrary in habits and manners to the others, of whom his knowledge had led him to form the poorest opinion. He conceived an earnest wish to see these strangers and [pg 195] arranged with the traders that his brother, a young man of twenty-two, should return with them to Santiago and see for himself if what they said was true. He charged his brother to observe carefully and secretly the ways of the friars and to learn all he could about them and meanwhile, in return for the gifts of Las Casas, he sent him a number of the most valuable things his country produced.

The anxiety of the friars during all this time as to the result of their first effort must have been keen, and hence the satisfaction with which they welcomed the return of the traders and their distinguished companion amounted to jubilation; still more was the significance of the present, though its actual value or usefulness to the recipients was probably small, but most important of all was the invitation from the cacique to visit his country.

While the young chieftain was busy observing the life of the convent and satisfying himself that the descriptions given by the traders were accurate, the friars had chosen Fray Luis Cancer⁴⁸ as their first envoy to his brother. Provided with more gifts for the cacique, he set out, the only Christian amidst the Indians who followed in the train of the Quiché chief, to penetrate into the unknown country, whose turbulent reputation had earned it [pg 196] the sombre name amongst the Spaniards of Tierra de Guerra—land of war,—for it was never at peace.

No sooner had they crossed the Quiché frontier than everywhere the people came out to see the wonderful guest, making his arrival a veritable festival; arches were erected for him to pass under the very roads were swept before his footsteps and his entrance into the cacique's own town was a triumph. A church was at once built for him, and at the celebration of the first mass, the cacique assisted in absorbed wonder, while the dignity and Solemnity of the ceremonies and the beauty of the sacerdotal vestments impressed him by their favourable contrast to the repugnant rites and filthy robes of the priests of his own religion. Fray Luis spoke the Quiché language with fluency, and during several days he gave instructions and explanations, which resulted in the cacique's conversion; that of the others followed as a matter of course. The friar had brought with him the contract signed by the Governor, and he explained its conditions and importance very fully; this document was a more valuable instrument of conversion than would have been an authentic manuscript epistle of St. Paul. The cacique's conversion was complete, and with his own hands he overthrew the national idols, and began, with all the zeal of a convert, to preach Christian doctrine to his people. The propaganda so actively undertaken by this unexpected assistant left Fray Luis free to visit some neighbouring regions, in all of which he was hospitably received and concerning whose inhabitants he made a most [pg 197] encouraging report on his return to Santiago, where, as may be imagined, his companions received him with the greatest joy.

As the rainy season was over at the end of October, the moment for visiting Tuzulutlan was favourable, and Las Casas determined to go himself and visit the newly converted cacique. It was December when he and Fray Pedro de Angulo arrived in the Quiche country, where the cacique, who since his baptism was known as Don Juan, showed them the same hospitality as he had to Fray Luis. While some of the Indians received them as messengers bringing glad tidings, there were others who cast epicurean glances upon them and decided that they would taste well served with a sauce of chili.⁴⁹

The introduction of the new religion had not been effected without opposition and the Indians of Coban had even burned the first church. Another was soon built, however, in which the two friars said mass daily, preaching afterwards in the open air to immense assemblies of people.

Don Juan was at first unwilling that the friars should penetrate farther into the country, fearing that some of the people, who adhered to the old customs and were hostile to the Spaniards might attack them, but he finally withdrew his objections and formed a guard of his bravest warriors, to whom he confided the safety of his guests. Thus escorted, they traversed all the provinces of Tuzulutlan and Coban where, contrary to the cacique's apprehensions, [pg 198] they encountered only the most friendly treatment.

At this juncture a Bull of Paul III. (Farnese) which was designed to put an end to further disputes concerning the status of the Indians, by defining their rights once for all, arrived in America.⁵⁰

This Bull was issued in reply to letters sent to the Pope by the Bishop of Tlascala, begging his Holiness to decide the vexed question of the status of the Indians, and was based on the Scriptural text *Euntes docete omnes gentes*. The Pope declared the Indians to be rational beings, possessed of liberty and free-will and therefore susceptible to receive the gospel, which must be preached to them in obedience to the divine commands. He condemned in severe terms those who enslaved the Indians and pretended to deny their capacity to become Christians. A pontifical brief was at the same time addressed to the Cardinal-Archbishop of Toledo, confirming the sense of the Bull and commending the Emperor's condemnation of slavery in his American possessions.



Paul III.

From an engraving by Vincenzo Crispino after the portrait by Titian.

The satisfaction of Las Casas with this authoritative pronouncement from the supreme head of Christendom may be easily imagined, for it reads not unlike some of his own compositions. He translated the Latin text into Spanish and supplied copies to all the governors and chief persons in those colonies, so that the decision and commands of the Pontiff might be perfectly understood by every one.

To one of his projects for civilising and converting the Indians more rapidly, the cacique was very [pg 199] reluctant to agree; this was that they should quit their semi-nomadic life and their custom of living in small scattered groups throughout the country, and come together in towns and villages. They were so much attached to the independence and freedom of their mountains, that it was easier for the natives to renounce their religion, to which indeed they seemed to have little attachment, than to abandon the ancient customs of their race. Their resistance to this innovation risked losing all that had been accomplished, for they were prepared rather to fight than to yield on this point. By his quiet persistence, however, Las Casas succeeded in starting a village of one hundred houses at a place called Rabinal, whose familiar name he wisely refrained from changing, and little by little, even the natives of Coban, who were the least amenable, were attracted by the novelty, and came to inspect the new system, with which those who had adopted it were delighted, as they could thus hear mass every day and enjoy the discourses and conversation of the friars, of which they seem never to have tired. Fray Luis now joined Las Casas at Rabinal, from whence he repeated his former visits to various places through-out the neighbouring country. The friars were obliged to learn the language or dialect of Coban in order to enter into relations with its people, the most savage of all the tribes in those parts.

The Bishop Marroquin had meanwhile returned from Mexico and Pedro de Alvarado, the captain, who distinguished himself during the conquest of Mexico by his rashness and cruelties, was now [pg 200] the lieutenant of the Emperor in Guatemala, and to these authorities Las Casas wished to

render an account of what had been accomplished. To give a more striking proof of the condition of things in Tuzulutlan, he wished very much to have Don Juan accompany him, remembering no doubt, the impression the appearance of the cacique Enrique had produced in Santo Domingo. The project suited the cacique perfectly, and he began to make arrangements for his journey, planning to go in considerable pomp with a numerous following of warriors. To this Las Casas objected, foreseeing the difficulty he would have in keeping such a large number from too familiar contact with Spaniards, from which quarrels and troubles would inevitably ensue. He succeeded in convincing Don Juan that such a display was unnecessary, and sent notice of the approaching visit to Guatemala, where Father Ladrada built more rooms onto the convent for the reception of the guests and laid in an extra supply of provisions to regale them.

The Bishop, without waiting for a visit from the cacique upon his arrival, went at once to the convent to see him and, as he spoke the Guatemalan tongue, they talked together, not only on general subjects but also on matters of faith, the Bishop marvelling greatly at the degree of Don Juan's instruction and the maturity and gravity of his judgment. Indeed, so impressed was he by the exceptional dignity of the cacique that he begged the Adelantado to go and see him. Pedro de Alvarado had had much experience of Indians and was one of [pg 201] the cruellest of Spanish commanders in America, holding the life of an Indian in no more consideration than that of a dog, yet even he was so favourably attracted by Don Juan's appearance and manners that, wishing in some way to honour him and having nothing at hand to give him, he took off his own red velvet hat and placed it on the cacique's head. His followers murmured somewhat at this demonstration, which they considered excessive, but Don Juan was radiant in his magnificent headgear.

To celebrate Don Juan's visit, an inspection of the town was planned, so that he might see how the Spaniards lived; the Bishop and the Adelantado sent word beforehand to all the merchants to dress their shops with the best things they had, stuffs, jewelry, plate, etc., and if the cacique should show a fancy for anything, it should immediately be given to him and the account sent to the Bishop. This was doing things in a really royal fashion, and one regrets to have to relate that the cacique walked with great gravity and

dignity—as much as though he had been born in Burgos, says Remesal—amidst the brave display, without manifesting any surprise or wish to possess anything he saw, refusing also to accept the different articles which were offered to him. The only object about which he seems to have asked a question was a statue of the Blessed Virgin, and when he heard the Bishop repeat the story of the Mother of Christ, just as the friars had first sung it in his mountain home, he knelt down to receive the image from his hands, with great veneration, and afterwards delivered it to one of [pg 202] his attendants, cautioning him to carry it with the greatest care and reverence.

The visit fortunately passed off without any friction between the Spaniards and the followers of Don Juan, and at its close, Las Casas and Fray Rodrigo de Ladrada accompanied the cacique back to his country, intending to penetrate still farther into the interior of Coban where the natives were but little known to white men. Two caciques, whose names as Christians were Don Miguel and Don Pedro and whose tribes were near to Rabinal, rendered much help in carrying out this plan, and so well did everything promise, that the two friars would have remained in the countries of Tuzulutlan and Coban to prosecute their missionary labours, but for a summons from their companions in Guatemala recalling them thither in May of 1538.

The Bishop Marroquin, who had prompted the summons, assembled the community and explained that the urgent need of more clergy in his diocese had decided him to send some of them to Spain to induce other friars of their own and the Franciscan Order to come to his assistance. The choice of the envoy for this mission not unnaturally fell upon Las Casas, for he had often made the journey, was well acquainted in Spain, where he had many and powerful friends, and was well versed in the ways of the court. Fray Rodrigo went as his companion, and before quitting Guatemala, he went to take leave of the cacique Don Juan, who was much dejected at the departure of his friends.

The two travellers repaired first to Mexico, where [pg 203] a chapter of the Dominican Order was held on August 24, 1539, in which Pedro de Angulo was named prior of the convent in Guatemala, and Fray Luis Cancer was designated to accompany Las Casas and Ladrada to Spain. During his stay

in Mexico, Las Casas saw the Viceroy, Don Antonio de Mendoza, who was inclined to share the view that humane treatment of the natives promised better results than violence, and willingly combined with him for several peaceful missions to distant provinces in the north-west of Mexico.

Charles V. was absent from Madrid when Las Casas and his companions arrived but the former was welcomed by many old friends and set about his business with the activity and perspicacity which marked his treatment of affairs. Since the death of the Bishop of Burgos, another and a better spirit breathed in the Council, and there was a more sincere and consistent effort to give full effect to the royal decrees in favour of the Indians. To this, the Bull of Paul III. had doubtless in no small measure contributed, for it was obviously impossible after such an authoritative pronouncement to continue along the old lines, treating the natives like chattels and affecting to deny them souls. The Council accorded a number of beneficial provisions in response to Las Casas's representations. The pact entered into with the Governor, which guaranteed the independence of the cacique of Tuzulutlan and his people, was ratified by the Council, and letters were written in the King's name to several of the converted caciques; one of these new provisions ordered that the Indians should [pg 204] be taught music and that musical instruments should be furnished them from Spain. Fray Bartholomew was equally successful in finding a number of friars for the diocese of Guatemala, and on January 21, 1541, Fray Luis Cancer sailed with a number of Franciscans on the return journey. Las Casas and the Dominicans remained behind by command of Cardinal Loaysa, who intimated that the former's presence would be necessary later, for important matters, of which he would learn in due time. Before the departure of the Franciscans, the royal orders concerning the welfare of the Indians were proclaimed from the steps of the Cathedral of Seville in the presence of a large concourse of people.

Cardinal Loaysa, who occupied the metropolitan see of Seville, contemplated making important changes in the code of laws that governed the Indies, and his desire to consult Las Casas before framing his new system rendered it necessary that the latter should remain in Spain. In the following year, 1542, the *Nuevas Leyes*, or New Laws, as they were termed, were drawn up, and although there is no direct evidence to prove

that they were drafted by Las Casas, there is little doubt that many of their most salutary articles were due to his influence and suggestions. The usual method of assembling councils composed of theologians, canonists, lawyers, and men who had had much experience in the colonies, was likewise followed at this time, and in their meetings the several questions concerning the system of government best adapted to the Indians, the most promising means for converting and civilizing them, [pg 205] and the measures required to correct and eliminate the abuses under which they suffered, were exhaustively discussed. The verbal debates were supplemented by the presentation of facts and arguments in support of different theories, drawn up in writing. In a council held by the Emperor's command at Valladolid in 1542, Las Casas presented one such lengthy memorial, in which he enumerated the different remedies which he maintained were indispensable if his Majesty would provide for the relief of his Indian vassals. The number of the remedies proposed in this document is given by Las Casas himself as sixteen, but of these only the eighth is known to be in existence. Probably it contained the substance of his thesis, which, like most papers of the time, must have been very wordy and discursive. The eighth remedy was afterwards published at Seville in 1552 with twenty reasons in support of it.

Las Casas's habitual activity was in no way diminished, and he exercised as great energy in winning adherents to his cause as he did foresight in combating opposition to it. Copies of his memorial were distributed to all the important men whose opinions might influence the tenor of the new laws and the spirit of their application, including the members of the council in Valladolid, especially Cardinal Loaysa, who was President of the India Council, Don Ramirez de Fuenleal, who had been transferred from the presidency of the audiencia of Mexico to the bishopric of Cuenca, Don Juan de Zuñiga, Grand Commander of Castile, the Secretary, Francisco de [pg 206] los Cobos, and all the others who had been appointed to act as judges in this affair. These men held meetings in the house of Pedro Gonzalez de Leon and the outcome of their deliberations was the formation of the famous code of Nuevas Leyes.

Several of the articles of this code might have been drafted word for word by Las Casas himself so entirely do they bear the impress of his opinions:

“Item. We ordain and command that from now and henceforth no Indian may be enslaved because he has fought, nor for any other reason, whether because of rebellion, or for purposes of ransom, nor in any other way, and we desire that they shall be treated as our vassals of the Crown of Castile, for such they are.”

“No one may press the Indians into service by way of naboria or tapia⁵¹ nor in any other manner against their will. And since we have ordered that from henceforth the Indians shall not be made slaves, we likewise ordain and command that in the case of such as have been heretofore enslaved contrary to right and justice, the Audiencias shall summon the parties, and without process of law, but promptly and briefly upon the truth being known, shall liberate them. Nor may the Indians be unjustly enslaved in default of persons to solicit the aforesaid [procedure]; we command that the Audiencia shall appoint persons who may pursue this cause for the Indians and that such persons shall be conscientious and diligent men and shall be paid out of the fines of the Exchequer.”

[pg 207] Neither the spirit nor the provisions of these laws differ from those of the various ordinances and cédulas which the Spanish sovereigns from the reign of Isabella the Catholic had from time to time promulgated. So true is the saying of Dr. Johnson that wisdom may make laws but it requires virtue to execute them. The Spanish sovereigns were more humane than their subjects, but the latter were ready with expedients for evading laws whose execution would have hindered their avaricious undertakings in the distant colonies, while venal officials lent their connivance to these violations, instead of administering the laws in the spirit in which their authors had conceived them. The statute books of the worst despotisms are adorned with the wisest and most liberal ordinances. From the iradés of the Ottoman Sultans and ukases of the Russian Tsars, those empires might be easily shown to possess ideal systems of government, under whose enlightened and beneficent sway happy and prosperous peoples have enjoyed the delights of religious and political liberty.

The most important article of the New Laws concerning the encomienda system provided as follows:

“Furthermore we ordain and command that from now and henceforth no Viceroy, Governor, Audiencia, discoverer, or any other persons whatsoever shall allot Indians in encomienda, neither by new provision or resignation, donation, sale, nor in any other form or manner; neither by vacancies, nor inheritance, but, that on the death of any person holding the said Indians, they shall revert to our royal Crown. Let the Audiencias [pg 208] take means to be immediately and particularly informed concerning the deceased person, his rank, merits, services, and his treatment of his Indians and whether there is a widow or children; they shall send us a report on the condition of the Indians and of the property that we may order what may be best for our service and may make such provision as may seem good to us for the widow and children of the deceased. Should the Audiencia meanwhile perceive a need to provide for such widow and children, they may do this out of the tribute paid by the said Indians, giving them a moderate amount for these Indians are under our Crown, as stated.”

This article provided for the gradual and total extinction of slavery, with due regard to the interests of the colonists, and though it did not meet the wishes of Las Casas for the immediate and absolute correction of the prevailing abuses, its strict application promised to produce more slowly, the results which he sought.

On the 20th of November, 1542, Charles V. signed the *Nuevas Leyes* of Valladolid, in the city of Barcelona, and their publication immediately followed.

Las Casas was in Valencia at this time and it was there that he finished the best known of all his writings, which was first printed in 1552 under the title *Brevissima Relacion de la Destruycion de la Indias*, and bore a dedication to Philip II.⁵² This little book, as the reader may see from the translation of it given at the close of this volume, is a veritable catalogue of horrors. Man's invention [pg 209] has its limits, and the ways of torturing the human body are numbered, hence, as the descriptions of the various scenes of brutality repeat themselves over and over in the same language, they end by becoming wearisome. The book was speedily translated into various European languages and its dissemination aroused a tempest of indignation against the Spanish colonial system in America. Its contents

were made to serve in the religious and political controversies of the sixteenth and seventeenth centuries and Las Casas was cited as a witness both against his Church and his country.

There is no doubt that every incident that Las Casas relates as coming within his own knowledge and observation is true, though Prescott describes “the good Bishop's arithmetic as coming from the heart than from the head” and historians generally have been inclined to doubt his figures. His description of the mild and friendly character of the natives of the islands was doubtless exact, but when he extends it to include the fierce and warlike tribes of the mainland, his generalisations are seen to be misleading. None of the peoples of Anáhuac could be truthfully described as “gentle lambs” or as “humble, submissive, and docile, knowing no evil and neither possessing nor understanding the use of weapons.” Slavery was everywhere established, with its attendant abuses and evils, and it was slavery that Las Casas combated. It must be borne in mind that Las Casas was a man in whom humanitarianism overshadowed every other sentiment, [pg 210] that he was of an ardent, impressionable and imaginative temperament, with sensibilities of the most delicate sort; moreover, he was an apostle, the defender of an oppressed people, whom he had taken under his protection and whose cause it was the mission of his life to sustain and defend. The violation of divine and human justice had been erected into a system by the conquerors and discoverers and nothing, in his eyes, could palliate the evils which that system fostered, and by which the colonists prospered, while the native races were dwindling to extinction. Beyond these primary facts, he refused to see; of them, he had seen more than enough to inflame his indignation and start him upon the crusade for which his iron constitution, his superior intellectual powers, and his resistless eloquence were alone adequate. He was frequently betrayed into invective, and his denunciations are as fierce as language could make them, while the energetic terms in which he depicts, in all their bald horror, the revolting inhumanity of his countrymen provoke a shudder. The *Brevissima Relacion* is not literature for sensitive readers.

CHAPTER XV. - THE BISHOPRICS OFFERED TO LAS CASAS. HIS CONSECRATION. HIS DEPARTURE

Copies of the New Laws, accompanied by a royal letters of instruction, were sent, not only to the viceroys, governors, and Audiencias in America, but also to the priors of the different convents, so that the knowledge of their provisions might be as widely diffused as possible and the vigilance of the friars excited to see that they were obeyed both in the letter and the spirit. Las Casas went from Valencia to Barcelona to thank the Emperor, and while there, the royal secretary, Francisco de los Cobos, waited on him one Sunday afternoon, bearing his appointment by the Emperor to the newly erected bishopric of Cuzco, which, for extent of territory, number of inhabitants, and vast resources, was the richest in the New World. Such a recognition from the sovereign could not be otherwise than welcome to Las Casas, who was perhaps the most abused man of his time both in America and Spain, but his determination not to accept the dignity was positive, though veiled at the outset under the plea that, being a Dominican and bound by the rule of obedience, he could not receive the royal nomination without the previous consent of his superiors.

[pg 212]

Regard for consistency was, however, the principal motive of his refusal, for he had protested before the Emperor and all men, in 1519, that his labours in favour of the Indians were actuated solely by the desire to advance God's service by effecting their conversion: for all his hardships and sufferings, he neither expected nor desired any recompense, and he formally renounced in anticipation all and any honours or rewards the Emperor might think of offering him. ⁵³ His resolution to abide by that

declaration being unalterable, he left Barcelona to escape possible pressure, and the desirable bishopric passed to another Dominican, Fray Juan Solano.

The designation of Las Casas for the bishopric was made by Cardinal Loaysa and the other members of the India Council and, nothing daunted by his refusal, they insisted that some one of the newly founded bishoprics in America should be governed by the man who, of all others, possessed the highest qualifications, the most thorough knowledge of those countries, and the sincerest interest in apostolic work amongst the natives. The first bishop of the diocese of Chiapa having just died, he was designated for the vacancy, and this time he was constrained by the arguments of persons of influence, notably the director of the College of San Gregorio in Valladolid, to put aside his scruples and to accept a position in which he could most benefit his beloved Indians.

That the diocese of Chiapa was the poorest in the [pg 213] new World, and so barren of revenues that a subsidy was furnished by the Emperor to enable the Bishop to live at all, contributed perhaps as much as anything to reconcile Las Casas to his new dignity.⁵⁴ He repaired to Toledo and appeared before the chapter of his Order which was being held there, to ask that some monks should be furnished him for his new diocese.

Las Casas was preconised in Rome on the feast of Pentecost, 1542, after which a whole year elapsed before the necessary bulls reached Spain and the friars who were to accompany him were chosen. After arranging for the reunion of these friars, he set out for Seville, where, on the 30th of March, 1544, he was consecrated bishop in the chapel of the Dominican monastery of St. Paul by Bishop Loaysa, nephew of the cardinal of the same name, assisted by the Bishops of Cordoba and Trujillo in [pg 214] Honduras. On the 21st of March, the newly consecrated Bishop wrote the following letter to the India Council:

VERY HIGH AND POTENT LORDS: after we left the Court on Tuesday the 4th of this month, we arrived within sixteen days at this city, in spite of the heavy roads and great rains we encountered. Upon our arrival here we

found the fleet ready to sail down the river, but on account of the calm weather and want of wind, no vessel has been able to sail until to-day, Friday. The ship on which the friars were to sail only got as far as San Domingo and there, the cédulas did not make it perfectly clear that the officials should pay their passage to Puerto de Caballos; because the cédulas say that from there they are to be paid to Honduras, because they were supposed to go in the vessel that would disembark them at the said Puerto de Caballos. The cédulas that I obtained, were made out conditionally should the friars think it better to go to Quaçaqualco; so that should they not think [pg 215] it better to go to Quaçaqualco they would for that reason, be unable to leave Hispaniola. Therefore I beg Your Highness⁵⁵ to be gracious enough to order a cedula to be supplied them, ordering the officials in Hispaniola to pay the passage from there to Puerto de Caballos, in case they do not have to disembark at Quaçaqualco—as I believe they will not—and may it arrive soon, as this fleet is on the point of sailing. Referring to this, the officials of India House have no funds from which to give me the two hundred and fifty ducats Your Highness had the goodness to order to be given to start me off, because—leaving apart what was sent them to keep for the bishops, etc.,—no other monies from His Majesty have been sent them: so here I am—with the past expenses for works, and without a maravedi for my provisions, on which account I have neither done nor bought anything. I do not even know in which vessel I am sailing because there is nothing that is not muddled, but as I have no money, I am less worried than I should be about the vessel in which I am to sail. I beseech Your Highness, if it be your pleasure that I should go with this fleet and take those friars, to do me the favour to send me a cedula ordering that they give me the two hundred and fifty ducats out of the funds of the dead. And it must come soon, and with all haste if I am to go now, as however quickly it may arrive, it will not come in time for me to complete my preparations, seeing the hurry the fleet is in and the little I have with which to provide things: for I have to provide for the needs of the friars.

I received one letter from the Court, as our bulls came two days after our departure. It seems Our Lord will not pay me in this world for the worries I go through for His sake. Certainly it were a great glory for me that Your Highness should honour and favour me on my consecration, thus completing the favours Your Highness has shown me. I give thanks to God

that He has so favoured me and undoubtedly I hope to accomplish more in those distant parts, than in the ecclesiastical courts of this country. Up to now they [the bulls] have not arrived, nor do I know who will bring them nor when they will come. When they arrive I shall endeavour—should there be time—to obtain the favour from his excellency the Cardinal of ordering me to be consecrated by anybody who can perform the ceremony, although I have not yet kissed the hands of his excellency, he having been very busy these past two days since his arrival. I was likewise unable to pass through Toledo—being obliged to await my commissions which were necessary for my speaking to the Provincial of the Franciscans about the twelve monks, of whom only two are here, who will sail with this fleet. I beseech your Highness to order a letter to be written to him [the Provincial] that he may send the others immediately if they are to go in this ship, and they will afterwards be given provisions if they arrive in time; and should they not, I will leave the documents concerning them in the charge of the Superior of the Franciscan Order. May Our Lord bless and give you all prosperity in your high station and in His service as Your Highness deserves and we, your most humble servants, desire. Amen. From Seville 21st of March 1544 Your Highness's servant who kisses your Royal hands—

FRAY BARTHOLOMEW DE LAS CASAS, *Bishop elect.*

Another letter dated ten days later and addressed in the same manner to Prince Philip through the India Council describes the episcopal consecration of Las Casas and invites the Prince's attention to certain matters in the following terms:

VERY HIGH AND POTENT LORDS: To-day, Passion Sunday our Lord graciously bestowed on me the glory of consecration—very different from the ignominies He suffered that day, according to the representations of His church. I do not know why His Majesty ordered it to be so done, as it could

not be done before—nor was there time to expect it could be done afterwards—on account of the haste of the fleet to sail: but however that may be, to him be all glory and thanks, for he deserves them. The Cardinal has shown me great kindness in favouring me wherever possible. It was his nephew or relative, the Bishop Loaysa, who consecrated me, assisted by the Bishop of Honduras and the Bishop Torres. The Bishop of Honduras was about setting out, but at my request he waited to assist at my consecration, and in great poverty he has delayed his journey seven or eight days, the expenses of which I would have willingly paid if I had had the wherewithal. I humbly beg Your Highness to recompense him for what I owe him: I shall esteem it a favour to myself. Although no occasion should offer, I was thinking to ask Your Highness to graciously grant him some relief, so that that church, destitute of pastor and spiritual ministrations, may not suffer such abandonment and poverty, for I greatly doubt that he would solicit anything. I humbly and affectionately beseech Your Highness that this be one of the first things attended to, as it is most important. Whatever way that Your Highness may adopt to supply that need, will be acceptable to him. One day shortly after I arrived at this city, I wrote begging [pg 218] Your Highness to do me the favour to order the officials of this house [India House] to pay me the two hundred and fifty ducats which His Majesty granted me from the funds of the dead, because there are no others, and therefore I have found myself in want. Knowing this the officials of this house did me a great service in getting a certain banker to lend it me, against my promise to repay within thirty days. I beseech Your Highness to do me the favour of ordering a cedula covering it to be issued, because the fleet is in a great hurry to sail and were the cedula delayed I would suffer great want and much annoyance, for if I could not repay what the creditor has lent me, it would be a very bad thing for him. I likewise beseech Your Highness to order the necessary cedula for the friars to be sent, that the officials of Hispaniola may pay their passage to Puerto de Caballos, for I have one only to Quaçaqualco, where we shall not be able to land on account of the bad harbour. The other principal cedula authorises the officials of India House to pay the passage to Puerto de Caballos, but this cannot be done for lack of ships, so the friars first disembarked at the port of San Domingo in Hispaniola and from there, they have to reembark to Puerto de Caballos. The officials of San Domingo have no authority for

this, and if the friars had to remain there long they would suffer great danger.

Everyone here is quite well and receiving shelter and charity from the monasteries. The Provincial and the Prior of this convent of San Pablo and the others have well carried out Your Highness's orders in this respect. All kiss the hands of Your Highness and pray God to prolong the life and Royal state of Your Highness, especially Fray Rodrigo—our companion. I beseech Your Highness, for the service of God, to provide that the relief and freedom which His Majesty granted to the [pg 319] Indians in the island of Cuba may be made effective, before those who hold them have finished destroying and killing them, for they are and have been most shamefully oppressed, afflicted, and reduced in number in all those parts of the Indies.

Likewise, that, since the Archdeacon Alvaro de Castro, whom Your Highness charged with the care of the Indians in Hispaniola, is dead, Your Highness will order that duty assigned to some devout friar or ecclesiastic so that those who survive, few as they are, may not be deprived of the enjoyment of the relief and favour His Majesty granted them. It seems to me it would be well, should Your Highness so please, to bestow it on Canon Alvaro de Leon who is a Canon of La Vega, or on Gregorio de Viguera, Dean of the same church of La Vega.

May the Lord increase and prosper the fortunate life and very high estate of Your Highness in His holy service, Amen. Seville 31st March 1544 Your servant who kisses your Royal hands—

FRAY BARTHOLOMEW DE LAS CASAS, *Bishop*.

In spite of all the anti-slavery legislation enacted, there were actually at that time a number of Indians held as slaves in Seville itself, and before starting for his distant diocese, Las Casas undertook as his first duty to secure their liberation. His action aroused much of the ancient enmity against him, but to that he was indifferent: the text of the New Laws was explicit, leaving no

opening for false construction. Success crowned his efforts and enabled him to leave, fully satisfied, for San Lucar de Barrameda where his friars were waiting for him [pg 220] to embark. He there celebrated the feast of Corpus Domini with great pomp, and during the time occupied in his final preparations, he and his friars received many donations of necessities. The fleet of twenty-seven ships, amongst large and small only awaited the arrival of Doña Maria de Toledo widow of the Admiral Don Diego Columbus, who was to sail for Hispaniola to safeguard the rights of her children in some disputed questions of inheritance and upon her arrival, it immediately put to sea on July 10th. The new Bishop, with his faithful companion Ladrada and forty-five Dominican friars, embarked on the *San Salvador*. On that same date he entered into possession of his meagre episcopal revenues, for an ordinance that had been passed to oblige the bishops of American dioceses to stay in them, established that their incomes should begin from the date of their sailing.⁵⁶

This proving insufficient, [pg 221] as there were some who were satisfied with their episcopal dignity and preferred to remain in Spain, it was afterwards provided that their consecration must take place in America.

CHAPTER XVI. - LETTER TO PHILIP II. VOYAGE TO AMERICA. FEELING IN THE COLONIES. ARRIVAL IN CHIAPA

Before sailing to take possession of his diocese, Las Casas addressed the following letter of farewell to Prince Philip (afterwards Philip II.), then governing in the name of the Emperor, his father:

VERY HIGH AND VERY POTENT LORD: I received two letters simultaneously from Your Highness: the date of the last was April 1st and accompanying it was the Royal cedula concerning the passage from Hispaniola to Honduras for the monks whom Your Highness is sending to those provinces. For all of which I kiss your Royal hands and for your kindness in granting that the bulls should be sent so promptly as to reach me in time to serve at my consecration, which, by divine grace, took place here in San Pablo on Passion Sunday as I already wrote Your Highness the day after. I trust to God our Lord that this dignity, to which, by divine Providence, our lord and sovereign the Emperor has elevated me, despite any unworthiness and inability to support it, may prove a sufficient instrument for better fulfilling my old desires to do the will of God, of which God has deigned to make use in those countries. It is His will that His Holy Faith should be preached and that the beings he has [pg 223] created and redeemed should know Him and that His predestined ones should be saved and His Majesty and Your Highness receive great services. Concerning the two hundred and fifty ducats which Your Highness granted me, the officials of this house have not yet obtained them, but I hope they will seek them and supply them in the end, though it may be with difficulty, because everybody is aware that His

Majesty has no money in this house and that so many demands daily arise that there is not a man who will lend a maravedi to His Majesty. In truth, this is very injurious to His Majesty's service and to the greatness of his imperial State, because, according as his enemies learn that this house is rich or is in want of money—so will they either fear him or presume to cause him annoyances. In order that this house should always enjoy confidence to guarantee the above mentioned, it seems that Your Highness ought to command that, just as they keep account of what is spent in keeping an army and in feeding those who are actually in attendance, night and day, on the royal and imperial person of His Majesty and on Your Highness, so also should it be provided that when this house has a surplus of twenty or thirty thousand ducats, it should be reported to have one or two hundred thousand. Such sums should never, on account of any other necessity, be lacking here, for they would be useful for many things and by the credit they would give, the greatest wants could be met. I shall report, as Your Highness ordered, the number and names of the friars now sailing, as soon as we are all united, God willing, at San Lucar.

Up to now I think we have forty-three. I am in hopes of more going from this province, from which we have seven or eight. But all those who are going, do not want to separate from those who come from Castile [pg 224] or to go to any other part of the Indies except where the latter do: the men from here are very virtuous and religious people. The number I have said we have here would have been greater, had not some six or eight of those whom we brought from Castile stayed behind. I think that some were afraid and others were detained by reasonable obstacles: the latter, we hope will follow us when the causes are removed. I beg Your Highness to order the Provincial, who is now appointed to this province and who was formerly Prior of San Pablo in Valladolid, a true servant of God, and very zealous for God's honour and for the salvation of the Indians, to be induced to continually send monks to those parts, as I firmly believe he will amply comply.

This house of San Pablo in Seville being very necessary for the religious Your Highness will be sending to the Indies, and having great expenses on account of the poverty and want of this city, where everything costs a third more than in Valladolid—which is frightful—I humbly beseech Your

Highness always to remember it by gifts and by such alms as it may be possible to bestow on it: especially out of the funds of the dead. For I hold it to be as necessary to give alms to the house, and just as beneficial to the souls of the dead—to whom the fund belongs—as it is to give for the maintenance of the friars who go to preach the gospel in those parts where the deceased unrighteously amassed the riches they left behind them. Your Highness may believe that the protection and good treatment shown here to the friars, tend to dispel their fears of the labours which friars in the Indies usually sustain. Without such encouragement everything would be just the contrary, and some would be frightened and discouraged, as has heretofore happened. Certainly, up to the present, great have been the care and comfort that our companions, [pg 225] servants of God, have received here from the provincial and the prior. Twenty or twenty-two have been given shelter here. I therefore beg Your Highness to bear this in mind, should there be an occasion in the future to grant them any favour or alms. In this city and throughout Andalusia there is a large number of Indians held unjustly as slaves; and when the licentiate Gregorio Lopez was here by order of His Majesty, they kept many Indians imprisoned after the order was given for their release, some being hidden and others taken into the country and elsewhere. I have even been told by a man who knows—to clear his conscience—that there was a great deal of bribery and corruption among wicked people, who used three or four or ten ducats to outrage God, stealing the liberty of the Indians and thus leaving many in perpetual slavery: they also hid the truth by threatening the Indians who showed themselves and by other means, such as withholding facts from the licentiate Gregorio Lopez which he could not divine, but which should have been told him. The only remedy for such injustices, according to the officials of this house who are very good people as far as I can see and who have consciences, is that Your Highness should order to be proclaimed throughout Andalusia that all those who have Indians must bring or send them to this house within a certain time, otherwise they shall all be considered as free; adding other penalties for noncompliance. According to the provision made by His Majesty, there should be an immediate settlement of the pretensions of those who allege a title by purchase, which allows them to hold an Indian as a slave until it is ascertained from whom he was first acquired; for they stole them all and sold them when they arrived here. Any such Indian should not remain [pg 226] in their possession but should be

placed where he could earn enough to clothe himself and save sufficient to return to his country—because they subject him to a thousand oppressions and cruelties. I have seen things of that sort daily since my arrival. San Pablo is crowded with Indians who think that I can take them or can relieve their captivity and the torments they suffer. And their masters, discovering this by their absence promptly beat them and put them in irons, even those whom the licentiate Gregorio Lopez left neither in slavery nor free. Not to prolong this letter, I do not relate many other things to Your Highness.

I likewise beg Your Highness to order some relief that is final and not indefinite, for the men who were thus left neither slaves nor free: because I do not know what relief it can be considered, to leave them neither free nor slaves until they die; for meanwhile, they are daily treated worse and worse by those who call them slaves and dogs, because they consider that the licentiate Gregorio Lopez approved of their captivity, etc., tying their hands the more tightly. I have seen what I state ever since I came here. Your Highness would both laugh at and abominate the spice dealers of this city, who barter spices for Indians and for gold (as it is they who mostly own them), and their fierceness in making war on the Indians, that makes them to seem like dummy lions, painted. What I wish Your Highness would do to protect all such Indians as are left neither slaves or freemen and all who are bound in any way, would be to oblige their owners to exhibit a receipt of the sale: because it is clear to every one, save to those whose perceptions God has allowed to be weakened by their malice, audacity, and ambition, that there has never been a war in all the Indies for which there was any real authority given by His Majesty or by his royal predecessors. The royal [pg 227] instructions on this point have never been heeded, as I have seen and on my conscience affirm, and as all those violaters admit. Consequently, as there was never just cause, it follows that all the wars were unjust and that no Indians could have been justly enslaved: all the more so since the Spaniards attacked them in time of peace and captured millions of them. This being the real truth, Your Highness should order that all such owners be obliged to prove the title of him who sold any such Indian, and so on back till the first one who stole or treacherously captured him is unearthed. In the meantime the Indians should be taken from them and placed as above indicated, all of which should be done within a limited time, so that the

legal proceedings would not last eternally; and when they are finished the said Indian should be declared free.

But what I would take on my conscience and would answer for to God on my deathbed is, that Your Highness should proclaim throughout this kingdom that all the Indians here must be free—because in truth they are just as free as I am. In this Casa de Contractacion, outside its judges and officials such as the treasurer, accountant, and agents, who seem to me to be those I have mentioned above, and some few minor officials, I see there is little zeal or kindness for the Indians, and I observe such disinclination to accomplish anything in their favour, that however small may be the pendulum, they work it with as much effort as though it were a tower they had to move.

Truly I think Your Highness must order everything to be done gratis and willingly;—or if not, then pay somebody who will do it. There is very great need here for somebody to help these poor Indians, being as they are, in great want and more than miserable, because they do not know how to ask for justice. They have been [pg 228] so intimidated and thrust down into the very abyss that they dare not complain. I do not find a single man who will take pity on them: but on the contrary, every one persecutes, terrorizes, and despises them. And I am sure God will execute justice and exact vengeance for all this. It would be well if Your Highness would order a salary to be paid some man who would act as their lawyer in the House, commanding all necessary authority to be attached to his office, and that the officials should help him in it. If it is necessary to consult His Majesty for this, do not let these poor wretches suffer for want of protection as they have always done. There is a porter in this House, a good man who, according to what I have seen and the officials told me, has repeatedly taken pity on them, and I beseech Your Highness to grant me and all the Indians the favour of ordering him to be appointed as protector of all the Indians in this Kingdom and of their affairs in this House, authorising him to report all the happenings of any importance to Your Highness and to the Royal Council of the Indies. Let this power be given to Diego Collantes, porter of the said House; and to ensure his using it the more faithfully until Your Highness pleases to grant him a salary, I will pay him twenty ducats yearly, so that he may do his duty in the said office. The truth is, that although he is a good

man, the position needs a man with much more authority but for the present he would suffice. Juan de la Quadra, who was secretary to the licentiate Gregorio Lopez while he was here, spoke to me about these matters. He seems to me an honest, upright person and one who feels deeply the crimes committed in this city against the Indians. He is writing to Your Highness on the subject and I beseech Your Highness to order some remedy provided for the actual necessities. He informs me that he is writing in the sense of what I said above.

[pg 229]

The licentiate Bartolomé Ortiz did not bring his Indians to be registered within the period intimated to him and says that he protested against the sentence before this Royal Council, also with regard to other Indians whom he held as slaves, despite the fact that they were free. Amongst these was an Indian woman who was beyond question free, and had been declared free by Gregorio Lopez, who left orders for her to be sent at the licentiate's expense to the island of Cuba from whence he brought her. Ortiz also appealed from this decision. As I asked that she might now be given the letter and order of Your Highness permitting her to return with this fleet, Ortiz presented a statement showing that his case was at present in appeal before this Royal Council.

I beseech Your Highness not to permit these appeals and delays in cases which are favourable to the liberty of the Indians and of everybody in the world, because there will be no end to them nor will a single Indian ever obtain his liberty. I beg that Your Highness will order this Indian woman and the others to be liberated and allowed to return to their country.

It is indeed a great weight on my conscience to leave the Indians in this country, because, as they only mix with servants and other unmanageable and vicious persons and see the taverns full of loose people, without order or restraint, and other public places full of bad examples, it must happen that they, being human, will follow the example of their companions. In their own country, on the contrary, they live much better than here, even if there are not so many Christians. I beseech Your Highness to issue such orders that not one man of them may remain here.

It would also be well if Your Highness ordered an explanation of the proclamation that you commanded [pg 230] to be published throughout all the Indies, prohibiting the officials of India House from receiving Indians into this kingdom: also instructions as to what they must do to forbid this traffic, under penalty of death, to ship captains and sailors, so that no one would dare to bring an Indian, nor allow one to be brought here. Let them know that they are forewarned in such cases.

Thinking there was nothing doubtful in the cédulas Your Highness sent for the departure of these religious I did not care to exhibit the cédula until the very end, in case we took besides the forty, an excess of stores, etc. Now that I have shown it to the officials, they maintain that, as it does not expressly state that those above the number of forty should be provided for out of the funds of the dead, but from the money in the charge of the treasurers, they do not intend to provide for more than the forty, lest they should have to pay out of their own pockets. I beseech Your Highness graciously to order this settled at once, so that we shall not be forced to leave behind the religious we hope to embark, in addition to the forty. And let this be done soon, for we are only waiting for good weather. The heavy rains which have fallen daily have prevented the launching of two or three of the vessels. To-day the river from its source has abated. Our Lord prosper and grant a long and happy life to Your Highness. Amen. Seville 20th April 1544. Your humble servant who kisses Your Royal hands.

To-night the following occurred—an Indian came to me complaining that notwithstanding his certificate of freedom, given him by Gregorio Lopez, his owner kept him in slavery and treated him worse than a slave, sending [pg 231] him out with a donkey to carry and sell water. He showed me his certificate of freedom, in the presence of ten or twelve monks. I told him to go to-day to the Casa de Contractacion so that its officials might correct the abuse, and I sent a servant with him to show him the building—because if his master found out, he would keep him until he called in the officials. Finally his owner discovered him and took the letter and tore it up. He said “bring chains and put them on this dog.” The Indian escaped through a window and they cried after him, “Thief, thief,” so that somebody down below came and beat him, and stabbed him in the jaw. He managed to reach a place where some of my servants were, and they are trying to cure him:

but he is dying. One of my servants went to the assistant to tell him what had happened, but the latter answered that he was not astonished that people killed the Indians, because they stole and did much harm. I beg Your Highness to note how destitute they are of any pity. With judges so cruelly unjust and tyrannical, Your Highness may imagine what sort of things happen over there [in the colonies] with the Spaniards against the Indians, when they dare do these things in Seville where, the other day a judge ordered an Indian to be stabbed to death.

FRAY BARTHOLOMEW DE LAS CASAS, BISHOP OF CHIAPA.

The voyage began badly, for the *San Salvador* was poorly ballasted and only arrived at Gomera, one of the Canary Islands, after considerable difficulty and danger, on the 19th of July, and was detained there for ten days until the ship was made seaworthy. Some of the friars who were unfamiliar with sea-voyages conceived such mistrust of the [pg 232] *San Salvador* that they refused to again go aboard her, so it was necessary to distribute these nineteen timid souls amongst the other ships. The 30th of July saw the fleet again at sea, and the voyage to Hispaniola continued without any untoward incident, until the 9th of September, when they arrived in the harbour of Santo Domingo, where the same vessel on which Las Casas and the twenty-seven friars were, ran on a rock and came near being wrecked in sight of land: hardly was this disaster surmounted when she collided with another of the ships to the imminent peril of both, though, fortunately, with no great injury to either.

The Dominicans in Santo Domingo conducted the Bishop and his friars in solemn procession to the convent, where *Te Deum Laudamus* was sung.

In striking contrast to this affectionate reception was that which awaited him from the colonists. The New Laws were regarded as the ruin of the colonies and Las Casas was universally considered the inspirer, if not actually the framer of these laws, hence the indignation and hatred of the Spaniards against him and all Dominicans was at fever heat: meetings were

held, in which it was resolved to boycott the friars and refuse them all alms or assistance. Seeing the odium he had unwittingly wrought upon his hosts, the Bishop was inclined to leave their convent and go to the Franciscans, but this was rightly considered as likely to spread the antagonism which had so far manifested itself against the Dominicans only. Even before things had reached this point, Las Casas had already written Prince [pg 233] Philip on the 15th of September, denouncing the cruelties which still went on unchecked and mentioning by name a number of officials who were unworthy to occupy the positions they held, because of the grave abuses they committed and tolerated.

On September 10th a letter which shows the state of public feeling towards the New Laws and the new Bishop was addressed to the Emperor by the principal colonists of Nicaragua.

The signers avow their surprise that their twenty-five or thirty years of services to the Crown should be rewarded by seeing their children disinherited, and declare that if the New Laws are put in force, despite their cries to high heaven for justice, it will only remain for many of them to die. Las Casas is denounced as an envious, vainglorious, and turbulent monk, who has been expelled from every colony in the Indies and whom even no monastery can tolerate. He is charged with bringing ruin on large numbers of people, solely because revengeful motives prompt him to injure certain individuals. It is also pointed out that he knows nothing about affairs in New Spain and the mainland, having spent all his life in Cuba and the islands.

However much Las Casas may have deplored the feeling his presence provoked and especially the rancour he had stirred up against his brethren, whose only offence lay in giving him hospitality, he did not allow his regrets on this score to arrest or modify the steps he intended to take to enforce obedience to the New Laws. Shortly after his arrival, he presented copies of the laws and of the [pg 234] other royal ordinances which he carried, to the Audiencia, asking that, in accordance with their provisions, all Indians then held in slavery should be liberated. Although the President, Cerrato, supported him, the other members of the Audiencia were one and all opposed. According to the current phrase, they agreed to *obey* the law,

but declared they could not *comply* with it. They all held slaves themselves and the only result of the action of Las Casas was, that they sent their representatives to Spain to procure some reform in the more obnoxious articles of the code.

The presence of Las Casas in Hispaniola infused new courage into the Dominicans, who had been discouraged in recent years by the difficulty and hopelessness of contending against public opinion on the subject of the Indians and had consequently ceased to preach and agitate in their favour: some members of the community had even been affected by the prevalent opinion that the Indians were really a race of a different order, servile by nature, and destined by Providence to a life of subjection to their superiors. Learned arguments were found to sustain this opinion. The well-known chapters of Aristotle's *Politics* were quoted, the Scriptures were drawn upon, and, as not infrequently happens, many good men adopted the easier line of not contending with the views of the rich and powerful.

There now ensued a sort of revival of the old enthusiasm in the defence of the natives; sermons were preached which stirred up great wrath and provoked protest from the authorities. It was easy [pg 235] to adopt reprisals on the friars, and the colonists did not hesitate to do so, refusing alms and supplies to the convents. Threats of violence, even of shooting Fray Tomas Casillas, whose sermons had been particularly offensive, were not wanting, though fortunately they were not executed. The friars were reduced to the last extremity and, but for the charity of some few sympathisers and the generous aid of the Franciscan monks who fed them, they would have found themselves in want of the absolute necessities of life in the midst of a hostile populace. At this juncture a notable conversion was effected by their preaching; a widow named Solano, who was reputed the richest person in the colony, came one day to the convent and declared that she was convinced of the truth of all the preachers had expounded concerning the iniquity of slavery and that she had in consequence resolved, not only to liberate her two hundred and more slaves, but to make restitution of her tainted wealth in as far as she could, by transferring her plantations to the Order, as her awakened conscience forbade her enjoyment of it. This event stirred the entire colony profoundly, and as the action of the friars was so clearly contrary to their own temporal interests as to place the

sincerity of their convictions and the purity of their motive beyond question, a certain revulsion in public sentiment began to manifest itself. It is not recorded that anybody else followed the widow's example, but such a change was operated in the disposition of the better class of people that when the time for Las Casas and his friars to leave arrived, [pg 236] regret for their departure was expressed on all sides. On December 14th they embarked on what proved to be a long and tempestuous voyage, attended by many and great dangers; owing to the ignorance of the pilot, the Bishop himself had to take the wheel. Christmas was celebrated at sea, and it was not until the fifth of January that they finally landed at the port of Lazaro on the coast of Campeche. The first episcopal function performed by the Bishop in his new diocese was the pontifical celebration of the vigil and mass of the Epiphany, during which he delivered an earnest discourse on the one theme that furnished material for all his sermons and writings—the injustice and sin of slavery and the obligation resting on all Christian Spaniards to liberate their slaves in conformity with the laws of the Emperor, and to provide for their humane treatment and conversion, according to the law of God.

CHAPTER XVII. - RECEPTION OF LAS CASAS IN HIS DIOCESE. EVENTS IN CIUDAD REAL. THE INDIANS OF CHIAPA

Although the Bishop of Chiapa, upon landing in his diocese, determined to follow the dictates of prudence rather than the promptings of zeal in bringing his spiritual subjects into submission to the New Laws, the question of Indian slavery was one so closely bound up with their temporal interests that no moderation or persuasion on his part could have availed to bring about their renunciation of the established system. In the first sermons preached by his friars, the subject of slavery was not mentioned, and Las Casas sought, more by private conversation and argument with individuals, to convince them of the grave infraction of morals as well as the open violation of the law, they committed in holding the Indians in slavery. His arguments fell upon deaf ears, nor did a single Spaniard accept his admonitions or entertain for a moment the idea of liberating his slaves. Nor did their resistance confine itself to a passive form, for within a short time, the colonists openly refused him obedience and withheld his lawful tithes, declaring that they would not receive him as their Bishop, and occasioning him every annoyance [pg 238] and discomfort they could invent. The refusal of his tithes caused the Bishop serious embarrassment, as it left him without funds to pay for the ship he had chartered in Hispaniola for his journey to Campeche. The priest of the town managed to raise about one hundred castellanos for this purpose and Las Casas signed a note for the remainder.

The Governor of those regions at that time was Francisco de Montejo, who had played a conspicuous part in the affairs of Mexico, whither he had gone

with Fernando Cortes. He was absent when Las Casas landed at Campeche and became the object of such general and determined hostility, and his son was governing in his stead. In response to the announcement of the Bishop's presence, the Governor despatched his brother-in-law, who was a person of some authority, to welcome the Bishop, instructing him to treat him in all respects with the highest consideration and in case he wished to come to Merida, to arrange everything necessary for his journey thither.

It was decided to make the journey by sea rather than by the more difficult overland route, and one boat-load of friars sailed, carrying a large part of the stores, which included vestments and altar plate and other church furnishings. Hardly were the preparations for the departure of the Bishop and the remainder of his people completed, when the distressing news of the total loss of this vessel and its cargo reached them from Champoton, an Indian village, where the few survivors of the wreck had [pg 239] found refuge. Nine friars and twenty-three other persons perished in this disaster, the news of which threw a heavy cloud of sadness over the little band of missionaries. Thousands of miles from their native land and in a new world, these men were sustained solely by their faith in their mission and their confidence in the leadership of their venerable Bishop, for they were not only cut off from hope of succour but were exposed to the persecutions of their own countrymen, because of their zeal for justice, in defending the oppressed against cupidity and cruelty. Despite the many causes for discouragement Las Casas decided, on the advice of the pilot of the ship that was to carry them, to profit by the fair weather then prevailing, and set the example to the others of going first on board the vessel. The friars followed in silence, and so entirely were their thoughts given to the premature fate of their lost comrades, that the whole of that night and the following day were passed in silence and prayer: when the ship reached the place where the wreck had occurred, the prayers for the dead were solemnly recited by the tearful company. This becoming tribute rendered to the memory of the departed, Las Casas seated himself at table and, setting the others a wholesome example, he began to eat, for until then no one had had the heart to touch food. The weather suddenly changed for the worse and a perilous Norther, which was the greatest enemy of navigation in those waters, sprang up, forcing the vessel to put in at the island of Terminos, where some fragments of the wreck were found, but the sea had given [pg

240] up no dead. Three days passed in waiting for better weather, and though Las Casas desired to re-embark and continue the voyage, Fray Tomas Casillas was in favour of waiting for the shipwrecked people at Champoton to overtake them, and then to continue the journey overland. This difference of opinion led to a division of the company, the Bishop re-embarking with Father Ladrada and a few of the others, while the majority were left to follow the overland route.

The chief city of the diocese of Chiapa was Ciudad Real, and the Bishop, on his arrival, was accorded a warm welcome and was lodged in one of the best houses in the place, belonging to a Spaniard who was absent at that time, while the friars were accommodated in another, just opposite. The clergy of the immense diocese was scanty enough, being composed of two priests in that town and three others elsewhere; of these latter common report did not speak well, as their secular occupations and efforts to enrich themselves brought discredit upon their clerical character. The cathedral was a small church, of poor construction and meagrely furnished with the necessaries for celebrating the religious offices. One of the new Bishop's first disciplinary acts was to summon the three vagrant priests to Ciudad Real, where he might constrain them to a more sacerdotal life under his immediate authority. Las Casas lived according to the strict rule of his Order, eating only fish, eggs, and vegetables, and, though he permitted meat to the others who sat at his table, there was so little to tickle the palate of the epicure that two out [pg 241] of the three renounced allegiance to their Bishop and betook themselves beyond the confines of his diocese where they speedily fell into evil ways. His life at this period was one of truly apostolic simplicity; although seventy years old, his habits were as frugal and austere as those of any anchorite. Towards the Spanish colonists he at first manifested mild and affectionate sentiments, which blinded them so entirely to the indomitable energy and fearless spirit that animated him, that they, on their part, showed themselves obsequious and generous. The deception was mutual, and disillusion only awaited the moment when the material interests of the Spaniards should be touched, to declare itself. Slavery flourished throughout the diocese, to the great affliction of the Bishop: he first sought by private conversations with the principal persons of the colony, by arguments, explanation of the New Laws and of the Emperor's wishes, to effect the liberation of the Indians, but failing in this,

he next preached publicly on the subject. No headway was made by one or the other means employed, while shocking cruelties were of daily occurrence and the Indians, who recognised the Bishop as their only protector and advocate, brought him tales of their sufferings which left him no choice but to have recourse to stronger measures.

The Easter season of 1545 was approaching, and the fulfilment of the precept of confession, which marks the farthestmost frontier of Catholic observance, within which even the most lax must remain under penalty of excommunication ipso facto, afforded the Bishop his opportunity. He withdrew from all [pg 242] his clergy, except the dean and canon of his cathedral church, their faculties for granting absolution, reserving to himself all questions involving the relations of the Spaniards to the Indians. He furnished the two appointed confessors with a detailed list of cases in which not merely the questions of holding slaves and cruel treatment were involved, but likewise those which had to do with the right to hold property acquired unjustly from the natives and by violation of the law.

This treatise was doubtless the same that was published in 1552 entitled *Confesionario*, etc., or in any case it contained the root doctrines of which that tract may have been an elaboration. Both upon the ability and the fidelity of the two confessors he had selected, the Bishop felt he could rely, but in the case of the Dean he was again mistaken in his choice, for in certain of the reserved cases the latter declared that he found no grounds, either in canon law or in any authorities, for his Bishop's decision. The Mercedarian friars, who also had a community in the diocese, were likewise opposed to the severity of the Bishop, and as none of the colonists were disposed to ruin themselves by liberating the Indians, the situation was a grave one for a Catholic community, for no matter how little in conformity with the Church's teaching were the daily lives of many, excommunication was intolerable to all of them. Remonstrances and petitions against his trenchant decision poured in upon the Bishop, and the Dean, supported by the Mercedarians, undertook to intercede for the Spaniards and, if possible, to [pg 243] obtain some relaxation of the obnoxious ruling. Their efforts were vain, for the simple reason that Las Casas held that it was not within his competence to recede from his decision without practically denying his life's mission. As the tension became daily more severe, the colonists

addressed to the Bishop, a formal “requirement” drawn up by a notary public, containing arguments to support their claims, based on the terms of the Bull of Alexander VI. and threatening, if he persisted in refusing them the sacraments, to appeal to his metropolitan, the Archbishop of Mexico, and ultimately to the Pope: meanwhile they would denounce him to the King and his Council as a disturber of the public peace and a formentor of dissensions and troubles in the country. To this threat the Bishop answered: “O blind men! How completely does the devil deceive you! Wherefore do you threaten me with your complaints to the Archbishop, to the Pope, and to the King? Know then that though I am obliged by the law of God to do as I do, and you to obey what I tell you, you are likewise constrained thereunto by the most just laws of your sovereign, since you think yourselves such faithful vassals to him.” After reading some of the articles of the New Laws forbidding slavery to them, he continued: “According to this, it is I who might much better complain of you, for not obeying your King.” The situation was a deadlock, for the Bishop was immovable, neither would the Spaniards give way. From murmuring against his decision and questioning his authority to impose such unreasonable and ruinous commands, they [pg 244] passed to calumny and ridicule, and as these weapons are forged by evil imaginations and their exercise is unhampered by the restrictions of truth, many fantastic accusations were invented against Las Casas, and diligently circulated. The most frugal and abstemious of men was accused of gluttony and intemperance; his learning, which was certainly varied if not vast and was by no means mediocre, was declared to be superficial and insufficient to enable him to properly weigh nice questions of theology and law, and finally it was insinuated that some of his opinions were heretical and that his refusal to allow the sacraments of penance and the eucharist in his diocese proceeded from his dissembled Lutheranism. As a hint of what might overtake him if he persisted in his course, a musket was fired into the window of his room one night. Even the children were taught scurrilous couplets which they sang at him, when he appeared in the streets: only his Dominicans remained faithful to him in this difficult season and their fidelity, though doubtless a source of great consolation to him, had for its chief visible effect, to involve the friars in the popular execration visited on the Bishop. It was a repetition of the incidents in Hispaniola, for likewise in Chiapa the people turned against the friars, refraining from their ministrations and refusing them alms and support.⁵⁷

[pg 245]

The first act of open rebellion came from the Dean, who administered the communion during Holy Week to various persons who not only continued to hold their Indians in spite of the Bishop's remonstrances and admonitions, but were notoriously engaged at that very time in buying and selling slaves. The disobedience of his subordinate could not be left unnoticed and the bishop resolved to reprimand him, but paternally, in presence of the other clergy, as an example. This intention was more easily formed than executed, for the Dean refused to appear, although the first summons came in the form of an invitation to dinner: three times was the summons repeated but each time, on one pretext or another, it was evaded, until there only remained to summon him officially and to censure his violation of his Bishop's instructions and his refusal to appear before him. As even this severe measure left him unmoved, Las Casas ordered his arrest and sent his alguacil and some of the clergy to bring the recalcitrant Dean before him. The news of what was passing had spread through the town and when the diocesan authorities went to make the arrest, quite a crowd of people had collected to see the outcome of the ecclesiastical duel. The appearance of the Dean, being conducted by force to answer to the Bishop for disobedience that had been prompted by his compliance to the Spaniards' desires, provoked a demonstration in his favour. He, seeing his opportunity, began to call for help, crying: "Help me to get free, gentlemen, and I'll confess everybody! Get me free and I'll absolve all of you!" A great [pg 246] hubbub ensued; men armed themselves to attack the Bishop's alguacil; some barricaded the Dominicans in their convent to prevent their coming to the assistance of the arresting party, others freed the Dean from his captors, and thus, with great uproar and shouts for the King and his justice against the Bishop, the mob arrived at the latter's house, into which a crowd forced its way with clamorous disorder.

A gentleman named Rodriguez de Villafuerte, who was in the ante-chamber in company with Fray Domingo de Medinilla, managed to somewhat calm the turbulence of the people. The leaders of the mob burst into the room beyond, where Fray Domingo had insisted that the Bishop should remain, instead of coming out to face the rioters as he wished, insulting him in the coarsest language and even threatening to kill him. The storm of popular fury broke itself against the imperturbable serenity and inflexible

determination with which Las Casas met and dominated it. Though the crowd dispersed, cowed and sullen, to their houses, the murmuring continued, and the friars dared not leave their convents, for fear of provoking a fresh outbreak.

The Bishop cancelled the ecclesiastical faculties of his Dean and excommunicated him.

The man who had threatened to kill Las Casas was the same one who had once before fired a musket shot through the Bishop's window, by way of warning him, and as he was known for a hot-headed reckless person, the friars were seriously apprehensive lest he might execute his threat; they begged Las Casas to [pg 247] leave and go to a place of safety. "Where," he asked in reply, "would you, Fathers, have me go? Where shall I be safe as long as I act in behalf of these poor creatures? Were the cause mine, I would drop it with pleasure, but it is that of my flock, of these miserable Indians, wearied and oppressed by unjust slavery and insupportable tributes, which others of my flock have imposed upon them. Here I wish to remain; this church is my spouse, it is not mine to abandon. This is the purpose of my residence [here]. I wish to irrigate it with my blood, if they take my life, so that zeal for God's service may be absorbed by the very ground I hold, to make it fertile, to bring forth the fruit of desire—the end of the injustice that stains and infects it. This is my wish, this is my determined resolve, and I shall not be so fortunate that God will permit the inhabitants of this city to fulfil it; other times have I found myself in greater dangers and, because of my unworthiness, God has withheld from me the crown of martyrdom. These disturbances, and the hatred of the conquerors for me, are of ancient date; I no longer feel their insults nor fear their threats, and in comparison with what has happened to me in Spain and the Indies, those of the other day were very moderate."

Against such steadfast resolution, the colonists could not hope to prevail, and one of the first results of the violent attack upon the Bishop, was a certain reaction in public sentiment when calmer Judgment reasserted itself. There was even some counter demonstration, and the news was brought [pg 248] to Las Casas that the man who had threatened to kill him had himself been badly mauled and beaten. The Bishop was the first and most assiduous

of the injured man's visitors, even preparing with his own hands, bandages and ointments to dress his hurts. Such charity and abnegation could not but touch even the rude object of these attentions, and after repeatedly begging the Bishop's forgiveness for his recent violence, the man attached himself to him from thenceforth, and became one of his warmest defenders.

Nevertheless, the attacks on the Bishop and on the friars did not lessen for long, nor was the resentment against them diminished amongst the greater number of the colonists, who pushed their reprisals to such an extent that, not only were the priests reduced to the barest necessities of life, but even wine for the celebration of mass was wanting and unobtainable. To remedy this necessity, Indians were sent out into the province to beg for the friars, but the Spaniards learned of this measure and, after forbidding the natives to give them anything, they seized whatever these messengers obtained in spite of the prohibition, and gave them a sound beating as a preventive of any future excursions.

Existence in such surroundings was no longer possible, and the friars resolved to leave Ciudad Real. They sent out four of their number in advance, after which Fray Tomas de la Torre announced from the pulpit their intention to abandon the convent and the reasons which forced them to go.

Learning from those who had gone ahead that [pg 249] they had been well received in Chiapa, and that everything seemed propitious for the foundation of a convent there, the community prepared to follow. Before definitely abandoning Ciudad Real, it was thought well to deliver a final address to the people, explaining clearly and fully the righteousness of their doctrine concerning slavery. This discourse was pronounced by Fray Alonso de Villabra, who cited many authorities to show that the iniquity of slavery was beyond dispute and that it was condemned by the laws of God and man alike. The sermon failed to convince the hostile and unwilling listeners, whose interests were bound up in slavery, and the only result of this last well-meant effort was to intensify, if possible, the irritation against the Bishop and the friars.

The reception of this interesting band of apostolic men by the people of Chiapa, was in striking contrast to the menacing demonstrations which

provoked and accompanied their departure from Ciudad Real. More than a league outside the town, the exiles found a large number of Indians, decked out in their best gold ornaments and plumes, carrying crosses made of feathers and flowers, awaiting their arrival, to escort them to the quarters prepared for them.

As soon as the Bishop was housed, an immense number of natives came from all parts of the neighbourhood, begging to be taught the Christian religion. The joy of the tormented Bishop at this demonstration may be imagined, and he urged the friars, after such proofs of the disposition of the Indians to receive the faith, to send to persuade other religious [pg 250] to come and join them in the work of converting the willing people.

The Spaniard who held the encomienda of Chiapa was an astute person, in reality quite as vicious as any of the others but more adroit in concealing his evil doings; he found small difficulty in deceiving the simple friars and, by showing them hospitality and professing great respect for the New Laws, he succeeded in persuading them that he was their friend and protector. The harmony of their relations could not however remain long undisturbed; from professing friendship he passed to more or less open acts of hostility, and from flattery he resorted to calumny. An incident which occurred may serve admirably to illustrate the deceptions practised by the colonists on the ignorant Indians. One of the more intelligent of the natives came one day to the Dominicans and spoke as follows:

“Fathers, behold we are becoming bewildered. Our master told us when you came, that he had written a letter to the Emperor *his brother* [sic] asking that you be sent to say Mass for us and that it was by his order that you came to live amongst us. Since then, he tells us that you are poverty-stricken people, who come here to be supported by our labour, because you have not enough to eat in your own country. He has forbidden us to give you the ground for your convent and to allow the church to be altered. You, on the other hand, tell us we should not call him our master, for no man other than God whom you preach, is that; you tell us, also, that this man is a mortal like ourselves, subject to the Emperor, King of Castile, and that the Alcaldes at Ciudad Real may [pg 251] punish him. He tells us that he is next to God and has no master in the world. I don't understand you; you

speak ill of our master; he speaks ill of you, and with all this we see you going about together good friends, neither of you daring to speak in the other's presence of what each tells us in the other's absence. If you are honest, speak clearly, for we are in a cloud of smoke from your manner of proceeding.”⁵⁸

CHAPTER XVIII. - LAS CASAS REVISITS THE LAND OF WAR. AUDIENCIA OF THE CONFINES. EVENTS AT CIUDAD REAL. LAS CASAS RETURNS

Everywhere throughout the province of Chiapa, the heart of Las Casas was wrung by a repetition of the same tales of violence and rapacity; women stolen, property wrested from the defenceless Indians, and the people bought and sold like cattle, to be mercilessly overworked until more merciful death released them from bondage. The Bishop was helpless, having no power or authority to enforce obedience either to the moral law he perpetually preached, or to the New Laws he everywhere expounded to the obdurate colonists. This condition of things, to which no end was apparent, determined him in June, 1545, to lay the matter before the Audiencia of the Confines and to demand that the provisions of the New Laws be enforced. To reach the town of Gracias à Dios from Ciudad Real, whither he had returned, he took the road through Guatemala, yielding to the entreaties of his former companion Fray Pedro de Angulo, who desired him to see the admirable results achieved in the Tierra de Guerra. Truly after such disappointments, sufferings, and persecutions, the Bishop deserved the [pg 253] consolation he derived from beholding the transformation of those formerly savage idolaters, into peaceful and civilised Christians, living in their towns in an orderly fashion far beyond what his highest hopes had allowed him to believe possible. The caciques of the different towns vied with one another in celebrating his arrival, and Las Casas spoke to them all in their own language and delivered to them the cédulas he had obtained for them from the Emperor in Barcelona on May 1,

1543, in which their exemption from every kind of servitude was promised in perpetuity.

The journey from Tululatzan to Gracias à Dios was both a difficult and a perilous one, especially at that season when the rains had swollen the rivers and destroyed the mountain roads. It is significant that throughout the life of Las Casas in America, he is never once mentioned as being ill or obliged on account of any infirmity to defer or alter his plans. His constitution was evidently one of steel. In spite of his seventy-one years, he reached his destination in due time, where he met the bishops of Guatemala and Nicaragua, the latter of whom was about to be consecrated. The Bishop-elect of Nicaragua was Fray Antonio de Valdivieso, also a Dominican, who fully shared the opinions and sympathies of Las Casas. All three of these prelates had grievances and petitions for redress of abuses and for the stricter administration of the laws in favour of the Indians, to lay before the Audiencia. Since that particular tribunal had been created for the purpose of executing these laws and was composed of men whom Las [pg 254] Casas had either chosen himself or recommended, the bishops were justified in anticipating a favourable hearing and a speedy adjustment of their complaints. They obtained neither however, and especially towards Las Casas was the opposition of the auditors directed. When he first entered the council room, some of them cried: "Out with that lunatic!" and on another occasion, when Las Casas declined to withdraw, the President, Maldonado (well named indeed!), ordered him to be ejected by force. Again, when the Bishop, with great solemnity, demanded that the Audiencia should correct the abuses complained of and should relieve the Indians from unlawful oppression, Maldonado answered: "You are a cheat, a bad man, a bad bishop, a shameful fellow, and you deserve to be punished."⁵⁹

Such language in open council, addressed by the presiding officer to a bishop, sounds incredible, and considering the great influence of religion on all Spaniards of that time, it is not wonderful that after such insolence, this petty official was regarded by the entire community as excommunicated; a half-hearted apology, ungraciously made, sufficed however to avoid an open scandal.

Las Casas had already assured his friars in Ciudad Real that he neither felt insults nor feared threats, so the vulgar abuse of Maldonado did not touch him; he drew up and presented a wordy memorial to the Audiencia, divided into seven articles. The [pg 255] first article affirmed that the Bishop was hindered in the exercise of his ecclesiastical jurisdiction, by the opposition of the officers of justice. The second asks for the aid of the secular arm to punish those guilty of disobedience and sacrilege. The third asks that the Indians may be relieved from tyrannous oppression, particularly from the excessive taxes and forced labour exacted from them. The fourth article solicits the transfer of all causes affecting the Indians from the civil to the ecclesiastical courts. The fifth begs the Audiencia to forbid all wars, conquests, invasions of territory, and the establishment of Spanish haciendas in Yucatan. The sixth article petitions orders for the good treatment of the few Indians still held by the Crown in Yucatan, and the seventh asks that the officials of the Audiencia transfer to the Crown, all Indians and all villages affected by the royal ordinances already published. The answer of the Audiencia was brief and amounted to a denial of the Bishop's allegations.⁶⁰ Foreseeing, doubtless, the rupture which must inevitably follow the presentation of his memorial, Las Casas had already written to Prince Philip, regent during the Emperor's absence from Spain.

On the 25th of October, a letter signed by the Bishops of Chiapa and Nicaragua was despatched to Prince Philip complaining of the conduct of the Audiencia towards the churches, and declaring that since the New Laws were ignored and left in [pg 256] abeyance, the cruel treatment of the Indians had increased. It was alleged that the President, Maldonado, and his associates possessed more than 60,000 Indians and that he encouraged his governors in every kind of tyranny and robbery of the natives for all of which the too compliant Audiencia neglected to provide any remedy. The destitute and helpless condition of the bishops and clergy was set forth, and they were described as the only faithful subjects whom the sovereign had in those regions, for all the other royal officials were solely occupied with their own interests and in opposing the clergy in the discharge of their pastoral duties. The two bishops urged upon the Prince to liberate all the Indians absolutely and immediately, as the only means to stop the growing evil. The more to impress the Prince with the independent spirit of the colonial officials in ignoring royal orders and violating the express

provisions of the New Laws, the bishops affirmed that most of them—with but few exceptions—were even inclined to independence and were secretly as much rebels as those in Peru. An increase in the number of bishops was asked of the Prince, with new dioceses in Yucatan and Chiapa, which were too extensive for one bishop to govern. It plainly appears in this letter that the writers were aware that the Audiencia had written, asking that a metropolitan judge should be sent out with superior powers of jurisdiction to hold them in check, but far from opposing this project, they agreed to it, suggesting, however, that he should be a papal legate and that meanwhile, until such a one [pg 257] could arrive, some one of the bishops should be deputed to hear appeals and decide cases with arch-episcopal powers.

The scandalous affair of the Dean in Ciudad Real was also recounted to the Prince and some displeasure expressed that the Bishop of Guatemala, Marroquin, should have seen fit to receive this rebellious priest in his diocese. Priests, however, were so scarce, that any one who could say a mass and baptise a pagan, no matter what his defects of character or conduct might be, was apt to be welcomed.

On the 15th of November, Las Casas addressed a letter to the India Council repeating his grave charges against Maldonado and explaining the reasons why he connived at resistance to the New Laws.

Simultaneously the Audiencia likewise wrote to the Council giving their version of the situation. This letter was not signed by the licentiate Herrera, one of the auditors, who afterwards wrote to the Emperor, explaining and justifying his abstention, by saying that he disapproved of the violent language used against the bishops and did not share the views of his associates concerning them. Although he found Las Casas over-zealous, he considered that the Indians were harshly treated and that the Audiencia failed to protect them against oppression. They would even be better off in slavery than they were in their present condition, for then at least their owners might care for them.

Perhaps nothing could more completely vindicate Las Casas than the contents of this letter.⁶¹ Herrera [pg 258] was almost alone, however, in siding with the Bishop for even those of the colonists whose temporal interests were not at stake in the question of liberating the Indians, were

unwilling to antagonise the Audiencia and to face the condemnation of their fellow-citizens. Even the Bishop of Guatemala, who had formerly been a close friend and warm sympathiser, proved unequal to the pressure brought to bear upon him. He deserted his fellow-bishop, and his letter of August 17, 1545, to the Emperor, was singularly unworthy of his episcopal character, especially when dealing with one of equal dignity to his own.⁶²

At this juncture, news of the gravest and most disquieting nature reached Las Casas from Canon Juan Perera, whom he had left as Vicar-General at Ciudad Real during his own absence. Armed with powers granted by the town authorities, Luis de Torre Medinilla and the alguacil mayor, Diego Garcia, had presented themselves to the Canon to institute an inquiry into the cases in which the Bishop had ordered absolution to be refused, founding their action upon the terms of Alexander VI.'s Bull, which gave the Indies to the kings of Castile; from the terms of the Bull they deduced the right of conquest and the disposal of the persons and property of the conquered natives.

The Canon stood firm, however, declaring that he could only grant absolution to those who released their slaves and restored—as far as possible—their ill-gotten profits. They asked that his answer should [pg 259] be given them in writing, as they wished to refer it to the Pope, to which the Canon agreed on condition that he be allowed thirty days in which to prepare a properly expressed statement. The period fixed elapsed without the authorities again asking for the document, for they had devised a new plan to overreach the Bishop. They offered the Canon the keys of the church if he would accept them as curate, abandoning his character as Vicar-General of the Bishop, promising him a generous salary and other advantages if he would agree. The Canon did not agree but reported the situation faithfully to Las Casas, who thus learned that his spiritual subjects were in open rebellion against his authority.

The Audiencia had ended by agreeing to send an auditor to Ciudad Real to see that the New Laws were executed, and a gentleman of Santiago de Nicaragua wrote the news of this decision to the Council saying, “The Bishop is returning to this country to complete the destruction of this unhappy city, bringing with him an auditor to still further tax the country.

We don't know how it is that your lordships do not remedy such great evils." An open council was held on December 15, 1545, which was attended by all the householders of the town, and upon opening the sitting, the secretary called attention to the fact that the Bishop had been exercising his episcopal authority without having shown the required papal bulls or royal cédulas to the Council; moreover he had introduced novel doctrines, reserving certain cases for absolution, concerning which, the Emperor's final decision had not [pg 260] yet been received in reply to the petition addressed to His Majesty; as it was evident to them all that the Bishop's ideas, if acceded to by the colonists would result in the total ruin of them all and a general rebellion of the Indians, it was incumbent upon them to notify the Bishop that he must follow the example of other bishops in the colonies, abandoning his novelties until the return of the procurator, who had been sent to Spain to present the colonists' appeal on these matters, when the Emperor's decision would be made known; any disturbances which might arise from the present unsettled state of feeling must be laid to the Bishop's charge. These sentiments encountered general approval, and it was unanimously decided that should Las Casas refuse to acquiesce in them, they would refuse to receive him as their lawful bishop and would suppress his tithes. This last decision was published and a fine of one hundred castellanos imposed on any one violating it.

Fray Tomas de la Torre learned of these decisions and sent from Cinacatlan, where he then was, to warn a lay brother, Fray Pedro Martin, and a servant of the Bishop who were in Ciudad Real, and to advise them to put the Bishop's books and household goods in a place of safety, for he feared that in the excitement, popular resentment might burst all bounds and everything belonging to Las Casas might be destroyed. His warning was not unwarranted, for the two men were obliged to fortify themselves as best they could in the sacristy of the church, where they were attacked at midnight by a [pg 261] body of men, who were determined to expel them from the town. After besieging them in vain for some time, the attacking party left, intending to return by daylight, but the besieged took advantage of their absence to escape and managed to reach Cinacatlan barefoot, where their account of the state of things in the town greatly increased the anxiety of the friars.

While these turbulent events were happening, Las Casas had arrived at the Dominican monastery at Copanabastla on his way to Ciudad Real, where it was his intention to celebrate Christmas in his cathedral; he took the precaution of sending a trusty messenger ahead, who brought back a full account of the decisions of the Council and the preparations for resisting the Bishop's entrance. On his way back to Copanabastla this messenger passed by Cinacatlan and told the friars of the Bishop's whereabouts, so they also wrote him full information of all that had happened and the kind of reception awaiting him in the city.

The citizens of Ciudad Real were also kept informed of the Bishop's approach and, with unswerving resolution, began to take their measures to stop his advance unless he accepted their conditions; pickets were established at different points of the road to give warning of his approach. Singular indeed was the activity displayed in arming as large a force of men as could be mustered, to oppose this aged monk who, like his apostolic forebears, came alone, on foot, with a staff in his hand and neither purse nor scrip. [pg 262] Although there were not wanting those among the friars who counselled him not to brave the popular fury, Las Casas refused to follow their advice, saying: "If I do not go to Ciudad Real, I banish myself voluntarily from my own church and it may be said of me, with reason, the wicked fleeth, when no man pursueth. How do we know that they want to kill me and that the sentinels are placed for this express purpose? I do not doubt the truth of what the fathers at Cinacatlan say, but there are our Lord's words to his disciples when they sought to deter him from returning to Judea, because they [the Jews] had sought to kill him the day before. The day has twelve hours, in each one of which, or in each minute or in each instant, the minds of men may change. If I do not enter into my church, of whom may I complain to the King and the Pope for putting me out of it?"

The Bishop's serenity was as perfect as his resolution was unchangeable, and, gathering his scapular in his hand, he rose from his chair and set out on his journey, amidst the tears and remonstrances of the friars. Upon reaching the first post of sentinels he found the men off their guard, as a report had spread that he had abandoned his intention to advance. The Indians, when they recognised him, completely forgot the orders they had received from their Spanish masters, and in mingled joy at seeing their beloved Bishop

again and distress at being there under such duty, they threw themselves at his feet, weeping, protesting, and imploring his [pg 263] forgiveness for their compulsory part in opposing him.⁶³ Knowing that the poor creatures would pay dearly for their neglect of orders, Las Casas had them bound, as though he had surprised and captured them.

That night Ciudad Real was shaken by a terrible earthquake which drove the frightened people into the public square. Talking amongst themselves, some declared that this upheaval heralded the Bishop's approach and was the beginning of the destruction he would bring upon their town.

CHAPTER XIX. - OPPOSITION TO LAS CASAS. HE LEAVES CIUDAD REAL. THE MEXICAN SYNOD

At dawn Las Casas entered the city unnoticed and reached his cathedral, from whence he sent Father Nicola Galiano, one of the clergy, to notify the Council of his arrival and that he was awaiting them. The Bishop's arrival, did in reality, cause a greater disturbance than the earthquake. The members of the Council debated as to what was now to be done; the Bishop was in the city and in his cathedral, despite their efforts to exclude him. Finally it was decided to go in a body to the church, where they seated themselves as though for a sermon. When the Bishop entered from the sacristy to speak to them, no one rose or showed any of the customary marks of respect. The notary immediately read the "requirement" it had been their intention to present before Las Casas was admitted to the city, omitting however the passages which denied his authority.

Las Casas replied to this with great benevolence, saying that as he was ready even to shed his blood for them, he had no intention of interfering with their properties except in so far as was necessary to prevent sin against God and their neighbour: he exhorted them to consider matters calmly and not [pg 265] to allow themselves to be carried away by irreflection. His manner, as well as the sense of this speech, were surprisingly conciliatory, but one of the council, less impressed by the persuasive eloquence of the Bishop, observed from his place that as Las Casas was but a private individual, he had presumed too far in summoning such an important body as the council, composed of the most illustrious gentlemen of the colony, to come to meet him, instead of going himself to them. The Bishop, with much dignity, answered; "Look you, sir,—and all of you in whose name he has spoken,—when I wish to ask anything from your estates, I will go to your

houses to speak with you; but when I have to speak with you concerning God's service and what touches your souls and consciences, it is for me to send and call you to come to wherever I may be, and it is for you to come trooping to me, if you are Christians.” Nobody ventured to reply to this rebuke and the Bishop, rising immediately withdrew, towards the sacristy. Then the notary of the council approached him respectfully, saying that he had a petition to present on behalf of the townspeople, which there was no need to read as it merely asked that they should be treated as a Christian people and have confessors appointed to grant them absolution. The Bishop assented, but as he named the Canon Juan Perera and the Dominicans, who all notoriously shared his views on the question in dispute, the council demurred, saying that they were unacceptable. The Bishop therefore named a priest from Guatemala and a Mercedarian friar, whose sentiments he knew [pg 266] to be in harmony with his own, though they had taken no part in the controversies and hence their opinion had never been publicly manifested. Both were men of exemplary piety and zeal in their ministry. Even Fray Vicente Ferrer, who accompanied the Bishop, was unaware of the real sympathies of the two confessors, and fearing his superior was unwittingly making a blunder, he tugged at his vestments saying: “Let your lordship rather die than do this.”

Immediately those present broke forth into imprecations on Fray Vicente and all but maltreated him, in the midst of which uproar, the Mercedarian friars, who had heard of the Bishop's return, appeared in the church to welcome him. The disturbance was somewhat quelled by their arrival, and they managed to conduct the Bishop and the offending Fray Vicente in safety to their own convent.

The fatigue of the journey and the excitement of these disturbing scenes through which he had passed left the aged Bishop exhausted, but his trials had in reality only just begun, and hardly had he seated himself in the cell the friars provided for him, to take a little bread and wine, when a fearful uproar was heard outside, which proved to be caused by an immense crowd of armed people who had surrounded the convent. Some of these men forced their way into his presence, but so great was the noise and clamour that the friars, who sought to learn the cause of this hostile demonstration, could neither hear nor make themselves heard. Finally it appeared that this

fresh outburst was occasioned by the [pg 267] discovery that the Bishop had captured and bound their Indian sentinels as prisoners. Las Casas at once assumed the entire blame, explaining exactly how he had surprised them and why he had bound them. A storm of vituperation greeted his explanation—all semblance of respect, either for his age or office, was abandoned—and one taunted the protector of the Indians with himself tying them up and dragging them three leagues.⁶⁴ Amidst all these reproaches and insults Las Casas replied to one of his tormentors saying: “I do not wish, sir, to answer you, so as not to take from God the task of punishing you, for the insult you offer is not to me but to God.”

While this scene of violence was proceeding inside the Bishop's cell, his negro servant Juanillo was being baited in the courtyard where some one who accused him of tying the Indians, gave him a thrust with his pike, which laid him, wounded, on the ground. The friars rushed to the rescue of the unfortunate negro and two of the younger monks finally succeeded in getting all the armed men out of their convent.

All these riotous happenings had taken place between dawn and nine o'clock, and so true was the Bishop's saying that in each hour of the twelve, men changed their minds, that before noon order was not only entirely established, but the extraordinary spectacle was offered of the members of the same council who had insulted and outraged the Bishop, [pg 268] coming in great humility to the convent, accompanied by the alcaides, without their wands of office or their swords, to beg his forgiveness and to acknowledge him as their rightful Bishop. Not content with this act of reparation, they carried him in procession from the convent to the house of Pedro Orozco de Acevedo, one of the principal citizens, where an apartment was prepared for his habitation. To complete this transformation and illustrate even more fully the vagaries of the human temper, they determined to celebrate his arrival by holding a grand tournament in his honour, the day after Christmas. Remesal does not say whether this form of festivity met with the Bishop's approval, but it may be permitted to imagine that had he been consulted, he would have found some more fit means for celebrating the reconciliation.

Las Casas was probably not at all duped by the sudden conversion of his enemies, which was indeed more indicative of a mercurial and capricious temperament than of a sincere desire to make amends for their conduct: the real reason of these sudden demonstrations must be sought in the fears that were aroused in the minds of the better citizens, of the punishment sure to fall upon them, when the news of their actions should reach Spain.

Proofs of their bad faith are not far to seek. Even while the festivities were preparing, a body of men rode off to Cinacatlan where they robbed and terrorised the Indians, bullied and threatened the friars, and finally returned with great rejoicings to Ciudad Real. The friars being in no way deceived, [pg 269] for they also understood but too well the volatile character of the Spaniards, took the precaution of provisioning the Bishop, so that he might not be starved out when popular resentment should again nullify the present reconciliation.

The Indian porters who were to carry these provisions, were so fearful of being set upon and beaten or even killed by the Spaniards, that it was only after much persuasion that they consented to deliver them: fortunately they were not molested and the supplies reached their destination intact.

A short time after these events, the Auditor, Juan Rogel, sent by the Audiencia of the Confines, arrived at Ciudad Real just as the Bishop was preparing for his journey to Mexico where one Francisco Tello de Sandoval, whom the Emperor had sent as Visitor-General of New Spain, had convoked a meeting of all the bishops and prelates in America to confer upon the vexed questions concerning the Indians, about which opinion was so divided as to render hopeless any acceptable legislation from Madrid. The celebrated Sepulveda, one of the most learned scholars and ablest men of his times, led the opposition to the doctrines of Las Casas and sustained the theory that servitude was the rightful and natural state of the Indians and that it was justifiable to subdue them by force to Spanish rule.

On the 20th of November, 1545, the Emperor, in response to the arguments and petitions of the representatives of the colonists, had abrogated the most important articles of the New Laws—in fact had substantially revoked them, though this action [pg 270] was not yet known in Chiapa, where the Bishop received the Auditor Rogel, to whom he highly praised the New

Laws, whose application was the object of Rogel's visit. The Auditor, after hearing him out, said: "Your lordship well knows that though these New Laws and Ordinances were framed in Valladolid by the agreement of such grave personages,—as your lordship and I witnessed—one of the reasons which has rendered them so hateful in the Indies has been the fact that your lordship had a hand in proposing and framing them: for the conquerors consider your lordship so prejudiced against them, that they believe that what you obtain for the natives is not so much for love of the Indians as for hatred of them. Entertaining such a suspicion, they would feel it more, were I to deprive them while your lordship is present, than the loss itself of their slaves and estates; Señor Don Francisco Tello de Sandoval has summoned your lordship to this meeting of prelates which takes place in Mexico and I would be glad if you would prepare for your journey and hasten your departure, for until your lordship is gone I can do nothing. I do not want it said that I am doing what is necessary out of respect, as everything would thereby be lost."

This plain speaking, in which Las Casas recognised much truth, convinced him that by remaining, he would only retard the cause he desired to help, so he quickly completed his preparations and left Ciudad Real in the first week of Lent in 1546, hardly a year after his first entrance into it. His departure was signalled by some demonstrations of sympathy, [pg 271] and a few people accompanied him as far as Cinacatlan, where he remained for several days counselling with the friars concerning the stand to be taken on Indian matters in the council or synod he was going to attend in Mexico.

As the other American bishops disapproved of his action in refusing the sacraments to slave-holders and the Visitor General, Tello de Sandoval, had already written him a sharp letter of reproof for his imprudence in obstinately persisting in his views despite the fact that he was alone in holding them, formidable opposition would have to be encountered in the synod. Neither Las Casas nor his Dominican brethren were at all dismayed by their isolation, nor did they for a moment consider the possibility of abandoning or even relaxing their convictions. The Canon, Juan Perera, who had stood loyally by his Bishop, assisted at these conferences, but as he had previously expressed contrary opinions, he desired to make an act of public reparation for his past errors. He returned to Ciudad Real especially

to preach a sermon of retraction and to read a paper prepared for him by Fray Tomas de la Torre, containing a full vindication of his Bishop's opinions. This recantation produced no small effect upon the colonists, some of whom were moved to express regret for their part in the maltreatment of Las Casas and the friars. This business terminated, the Canon rejoined Las Casas at Cinacatlan and accompanied him to Mexico.

Before setting forth on his last journey, the Bishop transferred his property to the Dominicans and, [pg 272] though there was a conditional clause in the deed of gift, there was no reservation in the donor's mind, for he knew that he was leaving Chiapa for ever and would never again govern a diocese. Accompanied by the friars Rodrigo Ladrada, Vicente Ferrer, and Luis Cancer and by the Canon Perera he journeyed to Antequera in the province of Oaxaca—the marquissate of Cortes—where he was received in the Dominican convent. But so intense and wide-spread was the feeling against him that both the Viceroy and the Visitor-General wrote to him that he should not advance farther towards Mexico, until they summoned him, lest his appearance might provoke a disturbance. The march of a hostile army upon a defenceless city could hardly have stirred up greater excitement than the arrival of this aged Bishop with his four humble companions. He finally entered the city of Mexico at ten o'clock one morning, and not only was there no disturbance of the peace when he was recognised, but his followers even heard some comments of admiration for him as he passed through the streets to the Dominican monastery where he was to lodge.

The very day of his arrival, Las Casas betrayed his lack of those conciliatory qualities, without which no man can negotiate debatable questions with any hope of success. During his several visits to Spain, where he handled delicate questions with consummate skill, he had shown tact in seeking to disarm opposition and conciliate opponents, but in Mexico he displayed no wordly wisdom whatsoever. He replied to the message of the Viceroy and the auditors [pg 273] who sent to welcome him, that he would not visit them as they were excommunicated because they had cut off the hand of a priest in Antequera.

The news of this message was spread throughout the city and still further inflamed the popular ire against him. Just at a time when so much depended upon winning supporters to his side and conciliating, as far as possible, the conflicting principles of the contending parties, Las Casas alienated the powerful Viceroy and the auditors, and rendered himself inaccessible to any possible overtures from the more reasonable and moderate men of the opposition, whom it should have been his first duty to placate by every possible concession.

The synod or council was composed of the five bishops of Mexico, Chiapa, Guatemala, Oaxaca, and Mechoacan, with possibly a sixth from Tlaxcala; besides these, there were the prelates and chief theologians of the religious orders, and finally, all the learned men of the colony. The outcome of their deliberations was contained in eight propositions, of which the five principal ones were as follows:

- 1.1. All infidels, of whatsoever sect or religion they may be or whatever may be their sins, hold and possess in conformity with the natural and divine law and the law of nations, the property they acquire without prejudice to others; and likewise their principalities, kingdoms, estates, lordships, dignities, and jurisdictions.
- 2.2. Although four different classes of infidels exist, there is but one method instituted by divine providence for teaching the true religion, namely, persuading the understanding by reasoning and [pg 274] attracting the will by gentleness. This is common to all men in the world, without regard to difference of errors or sects, or corruption of morals.
- 3.3. The sole and final cause why the Apostolic See granted supreme sovereignty and imperial jurisdiction over the Indies to the Kings of Castile and Leon was the preaching of the Gospel, the spread of the Christian religion, and the conversion of the nations of those regions, and not to increase their dignity or to make them richer princes than they were.
- 4.4. The Holy See, in granting the said supreme sovereignty, did not intend to deprive the native sovereigns and rulers of their estates, lordships, jurisdiction, honours, and dignities, nor did it intend to give the Kings of Castile and Leon any license by which the spread

of the Gospel should be impeded and the conversion of the people of those regions be retarded.

- 5.5. The said sovereigns of Castile, who offered and bound themselves of their own choice to see that the faith was preached and the Indians converted, are obliged by divine precept to bear the necessary expenses for accomplishing these ends.

These were the most important of the eight articles approved by the synod, and they were grounded upon and defended by a multitude of arguments drawn from the Fathers and General Councils: they were not adopted without opposition, and every point was fought over in endless debates, for the conquerors and all holders of encomiendas contested stoutly for what they held to be their rights. The synod also established the conditions on which [pg 275] sacraments should be administered to the colonists, and addressed a full report of the proceedings to the Emperor, soliciting his confirmation and the royal authority for executing all that had been enacted.

Although Las Casas had several times essayed to bring the question of slavery before the council, no direct or explicit decision was given on that important point, and as his efforts were embarrassing, the Viceroy quickly told him that reasons of State had compelled him to defer a definite solution of that question. Far from quieting Las Casas, this information aroused his zeal all the more, and as a hearing in the council was denied him, he preached a few days later when the Viceroy was present, taking for his text this significant passage from the thirtieth chapter of the prophet Isaias: "For this is a rebellious people; lying children, children that will not hear the law of God. Who say to the seers, see not; and to the prophets, prophesy not right things unto us; speak unto us smooth things, prophesy deceits."

The sermon was not without the intended effect, and the Viceroy began to regret the exclusion of the subject of slavery from the council: as a compromise, he consented that separate meetings should be held in the convent of San Domingo to consider this subject, offering to transmit to the Emperor the conclusions adopted. Las Casas was ably seconded in the proceedings of these meetings, by Fray Luis Cancer, and a declaration was drawn up declaring that the Indians—with few exceptions—had been unjustly enslaved and that those who held them were bound to set them

free: slave-holders were described [pg 276] as tyrants and all personal services exacted from the defenceless natives were condemned. Those who took part in these meetings and signed the decisions, were destitute of any means to give effect to them, but they adopted measures to publish and distribute copies of them throughout the colonies, in the hope that they might influence public opinion in the right direction.

Las Casas named the Canon, Juan Perera, as his Vicar-General in the diocese of Chiapa, on the ninth of November, 1546, and at the same time appointed as confessors the friars Tomas Casillas, Tomas de la Torre, Domingo de Arana, and Alonso de Villabra, to whom he furnished copies of the instructions approved by the council of Mexico, in which were comprised the twelve rules. The colonists appealed to the Emperor against the instructions, which they held to be unduly severe and onerous for them, and, in reply to their petition, a royal order dated in Valladolid on the twenty-eighth of November, 1542, was received by the Audiencia of Mexico ordering a copy of the disputed regulations to be sent to Spain for examination.

In the early part of the year 1547, Las Casas arrived in Vera Cruz to embark for Spain, and after some delay there, until a ship could be found for the voyage, left the shores of America for the last time⁶⁵

CHAPTER XX. - LAS CASAS ARRIVES AT VALLADOLID. THE THIRTY PROPOSITIONS. DEBATE WITH GINES DE SEPULVEDA

Rejected by his flock in Chiapa, abused and denounced by the Spanish colonists in America, the venerable Bishop's arrival in his native country was preceded by accusations intended to prejudice the young Prince, Don Philip, who was regent during the Emperor's absence, against him. Long years of championship of an unpopular cause rendered him impervious to these baseless attacks of his enemies. At a time of life when most men think to rest, Las Casas prepared himself with undiminished vigour to continue the struggle in the cause of freedom. Upon his arrival in Spain, he repaired at once to Valladolid where the court was usually in residence, only to find that Don Philip had gone to hold a Córtes in the kingdom of Aragon. With his habitual promptness, the Bishop followed him thither, and was received with great kindness by the Prince, who, after listening attentively to all that he had to recount, wrote to the Dominicans in Chiapa commending their conduct and offering to send more men of their Order to reinforce them, if they were required.

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The Indians were ever uppermost in the mind of Las Casas and he likewise obtained that the Prince should write letters to the caciques in Chiapa and Tuzulutlan, who had become Christians, congratulating them on their conversion, praising their zeal, of which the Bishop had informed him, and urging them to follow the counsels of their Dominican friends. To celebrate

his pacific victory in the “Land of War,” Las Casas also had the sinister name Tuzulutlan officially changed to that of Vera Paz or True Peace.

The formal resignation of Las Casas from the diocese of Chiapa was made known to the Spanish Ambassador in Rome, Don Diego Hurtado de Mendoza, in a letter from the Emperor dated September 11, 1550, with instructions to announce the same to the Pope and to present the name of Fray Tomas Casillas for the vacant bishopric.

Mention has been made of the *Confesionario*, or book of instructions written by the Bishop of Chiapa and distributed to the clergy of his diocese. In this little manual, Las Casas demonstrated that the armed invasion of America by the Spaniards and the conquest of the various countries were contrary to all right and justice: he argued that the Bull of donation given by Alexander VI. charged the Spanish sovereigns with the right, or rather the duty, of converting the inhabitants of the New World to Christianity; once their conversion was effected, they might be induced, if possible, by gentle and pacific means to place themselves under Spanish rule. Arguing from these premises, the Bishop directed his clergy to refuse absolution and the sacraments [pg 279] to all who refused to liberate their slaves or continued to oppress and rob the natives.

Reduced to a formula the doctrine of Las Casas may be summed up: Convert the Indians first and they will afterwards become Spanish subjects; as against the contention of his adversaries that they must first be conquered, after which their conversion would follow.

His enemies were not slow in seizing upon these definitions and in twisting them into a denial of the sovereign rights of the Crown. Formal denunciations of the teachings contained in the *Confesionario* were laid before the India Council, ⁶⁶ and that body having summoned Las Casas to explain his doctrines in writing, he submitted an exposition of the contents of his book, in the form of thirty propositions, the substance of which may be summarised as follows: ⁶⁷

- 1.1. The power and authority which the Pope holds from Jesus Christ, extends over all men, whether they be Christians or infidels, as far as everything touching their salvation is concerned. Their exercise

should, however, be different over pagans than over those who have received or have refused to receive the true faith.

- 2.2. The primacy of the Pope imposes upon him the obligation to diffuse the Christian religion throughout the world and to see that the Gospel is preached to the heathen wherever they will receive it.
- 3.3. The Pope is bound to choose proper missionaries for such propaganda.
- 4.4. It is evident that Christian rulers are his most suitable and efficient assistants in this work.
- 5.5. The Pope is free to invite or justified in obliging Christian rulers to lend their help, by the exercise of their power, by the expenditure of money, and by sending suitable men to conduct missions.
- 6.6. The Pope and the Christian sovereigns should act together for this end, in agreement with one another.
- 7.7. The Pope may distribute heathen lands among Christian rulers, designating where each is to labour for the conversion of the infidels.
- 8.8. Such distribution should be made, however, for the purpose of ensuring the instruction and the conversion of the pagan nations but not at all to increase the territories of the Christian sovereign or to augment his revenues, titles, and honours, at the expense of the natives.
- 9.9. It may follow that Christian princes may incidentally derive some profit from this conversion of such infidels, and all such may be permitted to them, but the primary object must be the propagation of the Faith, the extension of the Church, and the service of God.
- 10.10. Native kings and rulers hold their authority and jurisdiction by a just title and have a right to the [pg 281] obedience of their lawful subjects, nor should they be deposed or violently treated.
- 11.11. Injustice, cruelty, and every form of wickedness are produced by the violation of this law.
- 12.12. Neither idolatry nor any kind of sin justifies Christians in usurping the authority of native rulers or in seizing the lands and goods of their subjects.
- 13.13. As long as such infidels have not opposed the propagation of the Gospel and have not refused to receive the Faith preached to them, no Christian tribunal or judge has a right to punish them for the

practice of idolatry or for the commission of any sins, no matter how heinous.

- 14.14. The New World was discovered during the pontificate of Alexander VI., hence that pontiff was obliged to designate some Christian prince under whose protection the propagation of the Faith should be carried on.
- 15.15. Since the Catholic sovereigns of Spain, Ferdinand and Isabella, had protected and aided Columbus in making his discovery, and had, moreover, expelled the Mahometans from their land, the Pope perceived the special claims they had to receive this privilege, and the great advantages to religion of confiding this mission to them.
- 16.16. The Pope, having authority to grant such a privilege, has power likewise to annul, revoke, or suspend it for just cause; or he may transfer it to some other ruler and forbid all others to interfere.
- 17.17. The jurisdiction over the Indies held by the sovereigns of Spain is lawful.
- 18.18. The native rulers in the Indies are therefore [pg 282] obliged to submit to the jurisdiction of the Spanish sovereigns.
- 19.19. Once the native rulers have voluntarily and freely accepted the Faith and been baptised Christians, they become bound by another title than before to acknowledge the Spanish sovereignty.
- 20.20. The law of God imposes on the Spanish sovereigns this duty of selecting proper persons and sending them to preach Christianity to the natives, and to neglect nothing that may ensure their conversion.
- 21.21. They share this obligation with the Pope and, before the conversion of the natives has been accomplished, they have the same power over them as has His Holiness.
- 22.22. The Catholic Faith may be best spread throughout the New World by imitating the example of our Lord in establishing His religion upon earth. The natives are submissive, docile people, who may be won by kindness, charity, and good examples of holy living. They should be encouraged and favoured, and treated as brothers.
- 23.23. The Romans, Mahometans, Moors, and Turks have propagated their doctrines by the sword, but such means are tyrannical, and it is blasphemy for Christians to imitate such cruelties; what has already been done in the Indies has caused the natives to believe the Christian God to be the most merciless and cruel of all deities.

- 24.24. It is only natural that the Indians should defend their countries from armed invasion, thus they resist the propagation of the Faith.
- 25.25. The Spanish sovereigns have from the outset repeatedly forbidden wars, conquests, and acts of cruelty. Those officials who have pretended to act by royal authority in such wars and acts have lied, and the warrants they have shown are forgeries.
- 26.26. It follows that all the wars, invasions, and conquests that have been made, have been tyrannical, contrary to justice and authority, and hence, in fact, null and void: this is proven by the record of the proceedings in Council against all such tyrants and usurpers who have been found guilty.
- 27.27. It is the duty of the Spanish sovereigns to maintain and re-establish all laws and usages amongst the Indians which are good, and that is to say the most of them; those which are bad should be abolished, and the preaching and application of the Gospel is the best means for effecting this.
- 28.28. The Devil himself could not have worked greater harm than have the Spaniards, by their tyranny and cruel greed; they have treated the Indians like beasts, worked them to death, and persecuted those who have wished to learn from the friars, even more than others.
- 29.29. The system of giving the Indians in encomienda and repartimiento is absolutely contrary to the royal commands issued by Queen Isabella to Columbus and his successors during her reign. The Queen ordered all Indians who had been brought to Spain as slaves, to be sent back and set free. What would she think could she but witness the present state of things? The present sovereign has been kept in ignorance of the true condition, and his [pg 284] long journeys and absences have prevented him from informing himself.
- 30.30. It follows, therefore, from these propositions that all the conquests, acquisitions of territory, invasions, and usurpations, whether by the Crown officials or by the colonists and individuals, are illegal, because all have been accomplished contrary to the orders of the Spanish sovereigns and in defiance of their authority.⁶⁸

Without pausing to examine the origin or trace the development of the papal claim to dispose of the western hemisphere, which Las Casas admits in these Thirty Propositions, it should be borne in mind that Alexander VI.

made no unusual exercise of his prerogative in so doing, nor was there anybody, whether philosopher, jurist, or statesman, who, at that time, contested his pretension; arguments which Las Casas presented as almost axiomatic are now obsolete, and of interest merely as illustrating the political doctrines of his times. He was, perhaps, the first to limit the exercise of the papal power by describing it as conditional, and in denying that the bull gave the sovereigns of Castile any property rights in the New World. According to his doctrines, the Pope was exercising his purely spiritual power. Charged by the Founder of Christianity with the obligation to cause the Gospel to be preached to every creature, he might delegate to the sovereign of his choice the right, or rather the duty of sending his subjects to convert the heathen within a [pg 285] prescribed portion of the Indies—but for no other purpose. Equally clear is the limitation he places to the action of the prince. The latter receives no authorisation from the Pope to invade, occupy, or govern territory in America. His mission is exclusively religious, and any advantage accruing to himself must be merely incidental. Since he may not rightfully use force to establish his rule over the Indians, the rights of sovereignty conferred by the Bull, only become effective in cases where the native rulers, after their conversion, voluntarily acknowledge them.

In these definitions, Las Casas had gone far, but his adversaries despite their subtlety were impotent either to force or inveigle him into a position, where even constructive heresy and disloyalty might be imputed to him. More adroit than they, he skilfully evaded their snares, without sacrificing one jot of his contention. The India Council was well satisfied with his defence of the *Confesionario*, but the resentment of his enemies was inflamed the more by his victory, and it was felt to be more than ever necessary to fix upon some one able to refute his arguments and discredit him in the estimation of statesmen and theologians.

One of the foremost of Spanish theologians and Jurists at that period was Gines de Sepulveda, whose distinction as a master of Latin style had caused Erasmus to describe him as the Spanish Livy. Born in Cordoba of noble parents in 1490, he had passed many years in Italy and had but recently returned to Spain, where he was named royal historiographer [pg 286] by Charles V. During his sojourn in Rome, Sepulveda had published a dialogue

entitled *Democrates*, in which he sought to prove that war was consonant with the doctrines of Christianity: “De convenientia, disciplinæ militaris cum cristiana religione.”

Whether or no Sepulveda was deliberately chosen by the opponents of Las Casas to dispute the Bishop's propositions in defence of the Indians, does not positively appear, ⁶⁹ but just before the latter returned from America, he composed a second dialogue, *Democrates II. De justis belli causis apud Indios*, in which he upheld the right of the Spaniards to make war on the Indians. This dialogue was apparently written in Valladolid and called forth an episcopal reprimand from the Bishop of Segovia. The fraternal admonition of the Bishop, instead of disposing of the subject, provoked a reply from Sepulveda in the form of an *Apologia* of an *Democrates II*.

The India Council having refused to permit the publication of this dialogue, Sepulveda petitioned the Emperor, who referred the matter to the Council of Castile. That body having given its assent, the Emperor signed a royal cedula at Aranda de Duero, authorising the printing of the book.

In the midst of the interest excited by this controversy, Las Casas arrived in Spain. He prevailed upon the Council of Castile to reconsider its decision, and to submit Sepulveda's work to the universities of Salamanca and Alcala, for an opinion on the soundness of his doctrine. The reply of the [pg 287] universities was adverse, and the authorisation to publish was consequently annulled. ⁷⁰

Prohibited from publishing his book in Spain, Sepulveda sent it to Rome where the censorship of the press was freer and where, in fact, the condemned dialogue was printed, together with the author's *Apologia* addressed to the Bishop of Segovia. An edition of the work was prepared in Spanish for the benefit of those who did not read Latin, but the Emperor forbade the entrance of the one and the other into Spain.

Las Casas took but the time necessary to master the propositions of Sepulveda, before he seized the cudgels in defence of his Indians. From this moment the controversy took another complexion. Sepulveda had so far crossed weapons with learned theologians, men of study rather than of

action, who carried on the dispute along purely scholastic lines and according to the recognised rules governing debates between scholars.

His new adversary, who was the best informed man in the world on the special subject under dispute, transferred the debate from academic to practical ground, of every foot of which he was master. Though inferior in learning to the polished humanist, who affected to regard him as a furious fanatic whose crude Latin shocked his scholarly [pg 288] sensibilities, Las Casas was his match in fervid eloquence, overmatched him in the ardour of his feelings, and ended by pulverising him under the weight of facts he hurled upon him.

The controversy assumed such proportions that the Emperor, in the fashion of the times, ordered the India Council to assemble in Valladolid in conjunction with certain theologians and scholars, to decide whether or no wars for conquest might be justly waged against the Indians.⁷¹ Before this learned jury both Las Casas and Sepulveda were summoned to appear in 1550.

In the first session of the assembly, Sepulveda stated his propositions and expounded his defence of them, presenting, under four heads, his reasons why it was lawful to make war on the Indians:

- 1.1. Because of the gravity of their sins, particularly the practice of idolatry and other sins against nature.
- 2.2. Because of the rudeness of their heathen and barbarous natures, which oblige them to serve those of more elevated natures, such as the Spaniards possess.
- 3.3. For the spread of the faith; for their subjection renders its preaching easier and more persuasive.
- 4.4. On account of the harm they do to one another, killing men to sacrifice them and some, in order to eat them.

These reasons were defended by their author in an able discourse, in which all the resources of his vast [pg 289] learning and forensic ability were called into play.

Las Casas occupied five sessions in reading his *Historia Apologetica*, after which the assembly directed the Emperor's confessor, Fray Domingo de Soto, to prepare a summary of the arguments of both parties, of which fourteen copies should be made for distribution to the members of the conference.

After the reading of Fray Domingo's summary, which was drawn up with perfect impartiality and great clearness, Sepulveda presented twelve objections to the arguments of Las Casas, each of which he argued with great subtlety and erudition. The refutation of these twelve objections by Las Casas, closed this memorable controversy; in none of his writings is the character of the Protector of the Indians more fully revealed than in this final discourse before the conference at Valladolid. To give it in its entirety would occupy too much space in this place, but the following translation of the speech with which he introduced his twelve answers, is worthy of our closest attention.

After the introductory phrases required by the etiquette of such debates he continued: "So enormous are the errors and scandalous propositions, contrary to all evangelical truth and to all Christianity that the Doctor Sepulveda has accumulated, set forth, and coloured with misguided zeal in the royal service, that no honest Christian would be surprised should we wish to combat him, not only with lengthy argument, but likewise as a mortal enemy of Christendom, [pg 290] an abettor of cruel tyrants, extirpator of the human race, and disseminator of fatal blindness throughout this realm of Spain. But the least we could do, having regard to the obligations imposed by the law of God, is to answer each point here presented, and this will complete his confusion."

From this vigorous opening, the Bishop went on to examine the nature of the Bull of donation and the intention of Alexander VI. in granting it. He demonstrated the irrefutable fact that the Catholic sovereigns and the Pope were in absolute agreement, and that the clearness of the language of the Bull left no room for two interpretations. The better to illustrate and drive home this argument, he cited articles from the last will of Queen Isabella, of which the following translation proves the truth of his contention:

“Forasmuch as when the islands and terra-firma discovered, or to be discovered, in the Ocean Sea, were granted to us by the Holy Apostolic See, our principal intention, when we asked the said concession from Pope Alexander VI. of happy memory, was to provide for attracting and winning to us the natives, and to convert them to our holy Catholic faith; and to send to the said islands and and terra-firma, prelates, religious, clerics, and other learned and God-fearing men, to instruct the inhabitants in the Catholic faith: and to use all necessary diligence in teaching them and in introducing good customs among them; all this according as may be more fully seen in the wording of the said concession. I therefore very affectionately beseech my lord the King, and I charge and command the said Princess, my daughter, [pg 291] and the said Prince, her husband, that they shall execute and accomplish this, making it their principal object, and using the greatest diligence therein. They shall not consent, or furnish occasion that the Indian natives and inhabitants of the said islands and and terra-firma, sustain any injury, either in their persons or their belongings, but they shall rather order that they be well and justly treated. And if they [the Indians] have received any injury, they shall correct it and shall take measures to prevent what is conceded to and enjoined upon us by the wording of the said concession, from being exceeded.”

Reviewing the conditions in the colonies, Las Casas described the richness of the soil and the vast resources of the Indies, declaring that what was wanted there, were industrious, honest, and frugal emigrants, who would develop the agricultural sources of wealth, instead of the horde of rapacious adventurers and dissolute soldiery then engaged in depopulating and ruining them. One by one he stripped Sepulveda's propositions of their brilliant rhetoric, exposing the hollowness and sham beneath the specious reasoning, with which the latter sought to cloak his poverty of facts. Las Casas closed his case with the following brilliant and prophetic peroration:

“The injuries and loss which have befallen the Crown of Castile and Leon will be visited likewise on all Spain, because the tyranny wrought by their devastations, massacres, and slaughters is so monstrous, that the blind may see it, the deaf hear it, and the dumb recount it, while after our brief existence, [pg 292] the wise shall judge and condemn it. I invoke all the hierarchies and choirs of angels, all the saints of the Celestial Court, all the

inhabitants of the globe and especially those who may live after me, to witness that I free my conscience of all that has been done; and that I have fully exposed all these woes to his Majesty; and that if he abandons the government of the Indies to the tyranny of the Spaniards, they will all be lost and depopulated—as we see Hispaniola, and other islands and three thousand leagues of the continent destitute of inhabitants. For these reasons, God will punish Spain and all her people with inevitable severity. So may it be!”⁷²

Language worthy of a saint and a statesman, in which there breathed the spirit of prophecy, for the system of government, once initiated by the Spanish officials, was persisted in till the end, while one by one the great possessions of Spain in the New World were torn from the mother country. In no land where freedom of speech was a recognised right, could an orator have used plainer language, and it shows both the Spanish civil and ecclesiastical [pg 293] authorities of that age in a somewhat unfamiliar light that Las Casas not only escaped perilous censures but even won a moral victory over his talented opponent. What would have become of the champion of such unpopular doctrines, attacking as he did the material interests of thousands of the greatest men in the land, had there been daily newspapers in those times, it is not difficult to imagine. Examples of the defenders of forlorn causes are not wanting in our own day, and the fate of those who lead an unpopular crusade is the pillory of the press, which spares no less than did the fires of the mediaeval stake.

The discovery and conquest of the American dominions brought ruin to Spain as a nation; beyond the tribute of glory which those early achievements yielded to the Spanish name, the results were disastrous to her power. During centuries, much of the best blood of her prolific people was drained by the Americas, so that the population of the peninsula to-day is little more numerous than in the reign of Ferdinand and Isabella, whereas her territory and natural resources might maintain triple their number.

CHAPTER XXI. - SAN GREGORIO DE VALLADOLID. LAST LABOURS. THE DEATH OF LAS CASAS

Although the forensic encounter with Sepulveda was the most dramatic incident in the latter years of the life of Las Casas after his return to Spain, its conclusion was not followed either by his disappearance or by any diminution of his activity as Protector of the Indians. His habitual residence from that time on became the College of San Gregorio at Valladolid, where he had the companionship of his devoted friend Ladrada and the support of an important community of his Order. Fray Rodrigo, who also acted as confessor to his old friend, would seem to have been something of a wag, as it is related of him that when the Bishop had become somewhat deaf, the confessor might be heard admonishing his penitent: "Don't you see, Bishop, that you will finish up in hell because of your want of zeal in defending the Indians whom God has placed in your charge?"⁷³

[pg 294] The royal India Council likewise sat in Valladolid, and this fact may possibly have influenced the indefatigable Bishop's choice of that city for his residence. He had made repeated efforts to obtain from the Council some positive proclamation or declaration, affirming the freedom of the Indians as a natural and inalienable right, and at this time, he succeeded in moving that somewhat lethargic body to express a desire for more explicit information on this subject, before reaching a decision. In response to an order from the Council, Las Casas wrote his treatise entitled, *The Liberty of the Enslaved Indians (De la libertad de los Indios que han sido reducidos à la esclavitud)* which, for greater convenience, he divided into three parts. The first part treated of the nullity of the title on which such slavery was based; the second dealt with the duties of the Spanish sovereign towards the

Indians, and the third was devoted to the obligations of the bishops of the American dioceses.

In none of his writings are the opinions of Las Casas on questions of the rights of man and the functions of government more lucidly set forth, and while many of the arguments on which he rested his propositions, and which were consonant with the prevalent spirit of his times, would not secure universal assent in our day, there is not one of the essential principles of his thesis, that has not since been recognised as inherently and indisputably just.

His treatise opened as follows:

“I propose in this article to demonstrate three propositions; first, that all the Indians who have been enslaved [pg 296] since the discovery of the New World, have been reduced to this sad condition without right or justice; second that the majority of Spaniards who hold Indian slaves do so in bad faith; and third, that this imputation is also applicable to such Spaniards as have not acquired their slaves by right of repartimiento but have obtained them from other Indians.”

He combated the almost universally accepted theory that justifiable conquest conferred the right of enslaving the conquered, and he maintained that the most that might be exacted from a conquered people, even from those who had actively resisted, was recognition of the government established by the victorious party; taxes were justifiable and must be paid, and prisoners of war might be held until the close of hostilities, while extra burdens might be laid upon the country during the period of military occupation. Not one of these principles was at that time acted upon by any Christian power engaged in war with uncivilised nations, yet every one of them is now placed beyond dispute by the universally accepted principles of international law.

Wars unjustly undertaken, according to Las Casas, could confer no rights, because right is not founded upon injustice, and he defined war as unjust when undertaken without the sanction of legitimate authority, or even when ordered by legitimate authority, but without sufficient motive or provocation. This touched the question of the Indians very closely, for most

of the Spanish invasions of the different islands and the countries of the mainland were begun without any authority from, or [pg 297] even the knowledge of the Spanish government. No Spanish sovereign ever authorised the invasion or conquest of any of the countries, on which their distant and self-styled representatives embarked, for motives of personal aggrandisement or in a pure spirit of adventure. Both Velasquez in Cuba and Cortes in Mexico were destitute of any royal authority for their undertakings, and only the splendour of their successes sufficed to condone their license, when they were able to confront the King with a profitable fait accompli. The royal instructions to all governors and representatives of the Spanish Crown were, on the contrary, filled with injunctions to treat the Indians humanely, to provide for their conversion and instruction by pacific means, and on no account to employ force save for self-defence.

Las Casas arraigned the conduct of all the colonial governors and officials, mercilessly attacking and exposing the various deceits and subterfuges, by means of which they evaded or overstepped their instructions, provoking the Indians by their inhuman cruelties to acts of resistance, in order to enslave them as rebels against the royal authority. He illustrated his accusations with numerous incidents of which he had himself been a witness.

His denunciations of the judges described them as corrupt and venal, ready to wink at the scandalous abuses and the violations of the Spanish laws, which were daily perpetrated under their very eyes, consenting the while to fill their own pockets with a share of the illicit profits.

Describing the horrors and ravages of the slave-trade, [pg 298] he declared that the provinces of Guatemala and Nicaragua had been depopulated, while in the provinces of Jalisco, Yucatan, and Panuco, similar outrages had been perpetrated, adding that the Germans in Venezuela were even more adroit than the Spaniards in the nefarious art of raiding Indian villages to carry off the inhabitants into slavery. "Your Majesty will see that I do not exaggerate when I affirm that more than four million men have been reduced to slavery, all of which has been accomplished in defiance of your Majesty's royal instructions."

Throughout this treatise, Las Casas supports his contentions on citations from Scripture, and in the second article, dealing with the obligations of the King towards his Indian subjects, he defines in very plain language the sanctions on which the royal claims to obedience rest: "The law of God imposes on the king the obligation to administer his kingdoms in such wise that small and great, poor and rich, the weak and the powerful, shall all be treated with equal justice";—such is his Statement of the King's duty and he supports it with quotations from Deuteronomy, Leviticus, the prophet Isaias, and St. Jerome, concluding with these words: "In fact, history furnishes examples of God chastising the nations and kingdoms which have refused justice to the poor and the orphan. Who shall venture to say that such may not be the fate of Spain, if the King denies the poor Indians their just dues and fails to give them the liberty, to which they have an incontestable right?"

[pg 299]

Nor does he limit the King's responsibility to his personal acts in cases which may come directly to his knowledge; he is obliged also to see that his subjects observe one another's rights and live according to the laws of civil order and public morality. The object for which society and rulers exist is to insure the common weal of all, and no sovereign can secure this, who does not base his government on the principles of virtue and justice. The Spanish king is therefore not only obliged to secure the liberty of the Indians because justice exacts this of him, but also because he is bound to prevent his Spanish subjects from acts of usurpation of the rights of others. Christian kings have greater duties than those which weigh upon heathen or heretical rulers, for they are bound to protect religion, favour its ministers, and spread the faith for the sanctification of the whole world. By securing liberty to the Indians, their conversion would be assured and, all causes of enmity and hatred against Spaniards being removed, the natives would eagerly welcome the missionaries and receive their teaching.

The third article of his argument, dealing with the conduct of bishops in America, rehearses their apostolic duties towards their flocks and concludes by defining it as an episcopal obligation to represent the sufferings and wrongs of their defenceless people to the King and the India Council, and to insist on Justice being done them.

It is a noteworthy fact that such writings and speeches seem to have given no offence to the Spanish monarch, at that time the most absolute [pg 300] sovereign in Christendom, and that, not only before the members of the India Council, but in the estimation of the impartial men of his times, Las Casas succeeded in disproving the charge of disputing the rights of the Spanish Crown to sovereignty in the Indies, which his enemies had maliciously sought to fasten upon him.

Charles V. had already conceded much to the venerable Bishop's unceasing and energetic representations. A royal decree had abolished slavery, reduced very considerably the number of encomiendas, and had restricted the authority of the holders of these concessions over their Indians; the labours of the natives held in encomienda had been greatly lightened and their rights had been placed on a sure basis, strict instructions having been given to the civil authorities to correct abuses of power and to protect the weak. Wise laws and humane instructions had, however, at no time been wanting but the benevolent intentions of the Emperor were never adequately fulfilled by the Spanish colonial officials. Nevertheless, much had been accomplished and the condition of the Indians—those of them who survived—was very different in 1550, from that which prevailed when Las Casas took up their cause in 1510. Spaniards and Indians were equal before the common law of the land, the papal bull had defined, once for all, the moral status of the latter as responsible beings, and it was henceforth heresy to sustain the contrary. The supports on which those who had contended in favour of tightening the hold of the Spanish colonists on the natives had, one by one, [pg 301] been knocked from under them and the way was open for the more complete and practical application of the royal provisions for the protection of the oppressed peoples.

Prince Philip, to whom the Emperor had granted the sovereignty of Naples, Sicily, and Sardinia and who was already styled Philip II., left Spain on July 12, 1554, to celebrate his marriage with the English Queen, Mary Tudor. He took in his suite several renowned theologians, amongst whom was Carranza de Miranda, at that time his confessor and later raised to the primatial See of Toledo. The relations between Las Casas and this important ecclesiastic had been most cordial and the latter had given the weight of his approval on more than one occasion to the Bishop in his furious

controversies; notably during his contest with Sepulveda and by defending his *Confesionario*. Carranza, in his quality of confessor, exercised a great influence over the mind of Philip II.



Philip II.

From a photograph of the original portrait by Pantoja in the Prado Museum.
(by permission of J. Laurent & Co., Madrid)

At this time a movement was set on foot by the Spanish colonists in America to obtain from the Crown the establishment of the encomienda system in perpetuity. The movement was opportune, for Spanish finances were at a low ebb and the King, being hard pressed for ready money, might be tempted to yield his consent to this simple means for raising the considerable sum the petitioners would gladly pay. This important question seemed likely to be submitted to Philip during his stay in England, where an agent of the colonists in Peru, Don Antonio Ribera, was ready to open negotiations. [pg 302] Las Casas, who was sleepless where the interests of his protégés were concerned, perceived how vitally their welfare was

threatened by this nefarious scheme and vividly realised that Philip must be prevented, at all costs, from giving his decision during his absence from Spain.

It would seem from his letter to Carranza, begging him to use his influence with the King to defer judgment until his return, that the latter had applied to him for an opinion on the subject. The correspondence between the two extended over the several years of the King's absence, but of the letters of Las Casas to Carranza, only the first one, written in 1555, has been preserved. Its language is no less vigorous than that which the Protector was accustomed to use when roused to the duties of his position.

After reviewing the history of the colonists' relations with the Indians and recalling the solemn pledge given by Charles V. that his Indian subjects should never be enslaved, he vehemently threatens the King and his ministers with the eternal pains of hell if they break that royal engagement. In enumerating the obstacles opposed by the Spaniards to the conversion of the Indians, he writes:

“The third difficulty opposed to the conversion of the Indians is, that the system of oppression and cruelty followed in dealing with them, makes them curse the name of God and our holy religion: as the friars in Chiapa write me, nothing short of a miracle can make the Indians believe in Jesus Christ, when they see the execrable and manifest contradiction that exists between His gentle and beneficent doctrines and the [pg 303] conduct of the Christians, their enemies. What a scandal is it for them to see the faith preached by fifteen or twenty monks who are poor, despised, miserably clad, and reduced to begging their bread, while the crowd of so-called Christians living in opulence, arrayed in silks, mounted on their horses, inspires respect, submission, and fear everywhere, and acts in defiance of the law of God and the teachings of His ministers!”

The Bishop expresses the hope that Carranza will read any passage of his letter, or indeed the entire composition to the King, if he judges it wise. An analogous letter on the same subject, written shortly afterwards by Las Casas and Fray Domingo de Santo Tomas jointly, was addressed to Philip II. Victory crowned the Bishop's efforts, for the royal decision, given after

King Philip's return to Spain, was adverse to making the encomiendas hereditary or perpetual.

Although he had chosen San Gregorio as his residence, Las Casas must have been frequently and for lengthy periods absent from Valladolid. A royal order dated from Toledo on the fourteenth of December, 1562, and signed by Philip II. directs that the Bishop of Chiapa, on account of his services to the late Emperor and of those he continues to render to the King, shall always be provided with lodgings suitable to his rank, in Toledo or wherever else in the Spanish realm the court may happen to reside. The attendance of Las Casas at court would seem, from this document, to have been frequent.

In 1563, the annual life pension of 200,000 maravedis granted him by Charles V. in 1555, was increased [pg 304] by Philip II. to the sum of 350,000 maravedis.

In the early months of 1564 Las Casas was in Madrid, lodged in the Convent of Our Lady of Atocha just outside the city walls. It was on the seventeenth of March of that year that he there formally delivered a sealed document, which he declared to be his signed will, in the presence of a notary, Gaspar Testa, and seven other witnesses.⁷⁴

At the age of ninety he wrote his treatise in defence of the Peruvians, the last of his known compositions, and which was written, as is stated in its text, in 1564.⁷⁵ The style and arguments of this work are identical with those that characterised all his writings. The last negotiation in behalf of American interests that Las Casas undertook and saw to a successful finish, was to obtain the restoration of the Audiencia of the Confines, to Gracias á Dios, whence it had been recently transferred to Panama, thus leaving the whole of the former province with no superior tribunal for the administration of justice. This business called him from Valladolid to Madrid in the spring of 1566.

The life of the great Bishop was nearing its end. He had long outlived all his early contemporaries, he had enjoyed the confidence and respect of three of the most remarkable sovereigns, Ferdinand of Aragon, Charles V. and Philip II., all of whom had received his fearless admonitions, not only

with docility, but had responded with cordial admiration. Cardinal Ximenez, Pope Adrian VI., the powerful [pg 305] Flemish favourites, the discoverers and conquerors from Columbus to Cortes and Pizarro, were all long since dead, and he had seen numbers of his most powerful enemies in disgrace and in their graves. The Spain on which he closed his aged eyes was a different country from that on which he had first, opened them; the colonial development in America, the Reformation in Germany, the rise of England—all these and a hundred events of minor but far-reaching importance, had changed the face of the world.

The illness which proved fatal to Las Casas overtook him in the convent of the Atocha in Madrid, and in the latter days of July, 1566, he died.⁷⁶ Only a few days before he breathed his last he wrote the following sentences, which were probably the last his prolific pen ever traced. They portray the character and aspirations of this great man more fully, perhaps, than any other of his multitudinous compositions.

“For the goodness and mercy of God chose to elect me as His minister, despite my want of merit, to strive and labour for the infinite peoples, the possessors and owners of those kingdoms of the countries we call the Indies, against the burdens, evils, and injuries such as were never seen or heard of, which we Spaniards brought upon them, contrary to all right and justice; and to restore them to their pristine liberty, of which they were unjustly [pg 306] despoiled; and to save them from the violent death which they still suffer, just as for the same cause, thousands of leagues of country have been depopulated, many in my own presence. I have laboured at the Court of the Castilian sovereigns, coming and going between the Indies and Spain many times during the fifty years since 1514, animated only by God and by compassion at beholding the destruction of such multitudes of rational, humble, most kind, and most simple men, all well adapted to accept our Holy Catholic Faith and moral doctrine, and to live honestly. God is witness that I have advanced no other reason. Hence I state my positive belief, for I believe the Holy Roman Church, which is the rule and measure of our faith, must and does hold that the Spaniards' conduct towards those peoples, their robberies, murders, usurpations of the territories of the rightful kings and nobles and other infinite properties, which they accomplished with such accursed cruelties—has been contrary

to the most strictly immaculate law of Jesus Christ and contrary to natural right. It has brought great infamy on the name of Jesus Christ and of the Christian religion, entirely hindering the spread of the faith and irreparably injuring the souls and bodies of those innocent peoples. I believe that because of these impious and ignominious acts, perpetrated unjustly, tyrannously, and barbarously upon them, God will visit His wrath and ire upon Spain for her share, great or small, in the blood-stained riches, obtained by theft and usurpation, accompanied by such slaughter and annihilation of those peoples, unless she does much penance.”

This last profession of the faith he had kept unfalteringly for more than half a century, was his own supreme vindication and a warning to his countrymen. [pg 307]

A great concourse of people assembled for the obsequies of the venerable Bishop, which were celebrated by the Superior of the Monastery, Fray Domingo de la Para, and his mortal remains, clothed in modest episcopal vestments, with a wooden crozier in his hand, were laid to rest in the Capilla Mayor of the church of Atocha.⁷⁷

The remains of great men are frequently denied a permanent resting place anywhere, and the frequent translations of their bodies not uncommonly end in their final whereabouts becoming a matter of dispute. Records are lost, graves are disturbed, witnesses are untrustworthy, and it finally becomes impossible to ascertain the last resting place of some great personage, whose whereabouts during almost every hour of his life were a matter of public interest and notoriety. Thus it has happened with the remains of this illustrious Spaniard and holy Bishop. According to a statement made by Juan Antolines de Burgos in his manuscript history of the city of Valladolid,⁷⁸ the bones of Las Casas were afterwards removed from the Atocha and buried in San Gregorio. The college buildings were in part alienated, thus necessitating another removal of the body, which was then buried in the cloister where the remains of the monks commonly found sepulture. In 1670, Fray Gabriel de Cepedo dedicated a work entitled *Historia de la milagrosa y Venerable Virgin de Atocha* to Charles II., in which he contradicts the statement of Juan Antolines by affirming that Las Casas rested [pg 308] at that time in the church of Atocha. He does this as one

referring to a commonly known and undisputed fact and his published statement has never been contradicted. The old church of Atocha no longer exists, having been demolished to make way for a new edifice, still in process of construction.

The will of Las Casas was opened on July 31, 1566, at the instance of Fray Juan Bautiste, Procurator of the College of San Gregorio in Valladolid, he being the executor. It was found that Las Casas had left all his manuscripts to the college.⁷⁹ He requested the rector to have his vast correspondence, consisting of letters and reports sent to him by friars, missionaries, and others throughout all America and covering a period of many years, chronologically arranged and collected in the form of a book, as these documents [pg 309] would illustrate and confirm the truth of all he had alleged against the Spaniards and in favour of the Indians. "Let them be placed," he wrote, "in the college library *ad perpetuam rei memoriam*, for should God decree the destruction of Spain, it may be seen that it is because of our destruction of the Indies, and His justice may be made apparent."

APPENDIX I. - THE BREVISSIMA RELACION

PROLOGUE OF THE BISHOP DON FRAY
BARTHOLOMEW DE LAS CASAS OR CASAUS

TO THE MOST HIGH AND MIGHTY LORD, THE PRINCE OF THE SPANISH STATES.

Don Philip our Lord.

Most High, and Mighty Lord.

1. As divine Providence has ordained that in his world, for its government, and for the common utility of the human race, Kingdoms and Countries should be constituted in which are Kings almost fathers and pastors, (as Homer calls them) they being consequently the most noble, and most generous members of the Republics, there neither is nor can be reasonable doubt as to the rectitude of their royal hearts. If any defect, wrong, and evil is suffered, there can be no other cause than that the Kings are ignorant of it; for if such were manifested to them, they would extirpate them with supreme industry and watchful diligence.
- 2.2. It is seemingly this that the divine Scriptures mean in the Proverbs of Solomon, *qui sedet in solio iudicii, dissipat omne malum intuitu suo*: because it is thus assumed from the innate and peculiar virtue of the King namely, that the knowledge alone of evil in his Kingdom is absolutely sufficient that he should [pg 312] destroy it; and that not for one moment, as far as in him lies, can he tolerate it.
- 3.3. As I have fifty, or more, years of experience in those countries, I have therefore been considering the evils, I have seen committed, the injuries, losses, and misfortunes, such as it would not have been thought could be done by man; such kingdoms, so many, and so large, or to speak better, that most vast and new world of the Indies, conceded and confided by God and his Church to the Kings of Castile, that they should rule and govern it; that they should convert it, and should prosper it temporally, and spiritually.
- 4.4. When some of their particular actions are made known to Your Highness, it will not be possible to forbear supplicating His Majesty

with importunate insistence, that he should not concede nor permit that which the tyrants have invented, pursued, and put into execution, calling it Conquests; which if permitted, will be repeated; because these acts in themselves, done against those pacific, humble, and mild Indian people, who offend none, are iniquitous, tyrannous, condemned and cursed by every natural, divine, and human law.

- 5.5. So as not to keep criminal silence concerning the ruin of numberless souls and bodies that these persons cause, I have decided to print some, though very few, of the innumerable instances I have collected in the past and can relate with truth, in order that Your Highness may read them with greater facility.
- 6.6. Although the Archbishop of Toledo, Your Highness' Preceptor, when Bishop of Cartagena, asked me for them and presented them to Your Highness, nevertheless, because of the long journeys by sea and land Your Highness has made, and of the continual royal occupations, it may be that Your Highness either has not read them or has already forgotten them. [pg 313]
- 7.7. The daring and unreasonable cupidity of those who count it as nothing to unjustly shed such an immense quantity of human blood, and to deprive those enormous countries of their natural inhabitants and possessors, by slaying millions of people and stealing incomparable treasures, increase every day; and they insist by various means and under various feigned pretexts, that the said Conquests are permitted, without violation of the natural and divine law, and, in consequence, without most grievous mortal sin, worthy of terrible and eternal punishment. I therefore esteemed it right to furnish Your Highness with this very brief summary of a very long history that could and ought to be composed, of the massacres and devastation that have taken place.
- 8.8. I supplicate Your Highness to receive and read it with the clemency, and royal benignity he usually shows to his creatures, and servants, who desire to serve solely for the public good and for the prosperity of the State.
- 9.9. Having seen and understood the monstrous injustice done to these innocent people in destroying and outraging them, without cause or just motive, but out of avarice alone, and the ambition of those who

design such villainous operations, may Your Highness be pleased to supplicate and efficaciously persuade His Majesty to forbid such harmful and detestable practices to those who seek license for them: may he silence this infernal demand for ever, with so much terror, that from this time forward there shall be no one so audacious as to dare but to name it.

- 10.10. This—Most High Lord—is most fitting and necessary to do, that God may prosper, preserve and render blessed, both temporally and spiritually, all the State of the royal crown of Castile. Amen.

BREVISSIMA RELACION OR SHORT REPORT OF THE DESTRUCTION OF THE INDIES

1. The Indies were discovered in the year fourteen hundred and ninety-two. The year following, Spanish Christians went to inhabit them, so that it is since forty-nine years that numbers of Spaniards have gone there: and the first land, that they invaded to inhabit was the large and most delightful Isle of Hispaniola which has a circumference of six hundred leagues.
- 2.2. There are numberless other islands, and very large ones, all around on every side, that were all—and we have seen it—as inhabited and full of their native Indian peoples as any country in the world.
- 3.3. Of the continent, the nearest part of which is more than two hundred and fifty leagues distant from this Island, more than ten thousand leagues of maritime coast have been discovered, and more is discovered every day; all that has been discovered up to the year forty-nine is full of people, like a hive of bees, so that it seems as though God had placed all, or the greater part of the entire human race in these countries.
- 4.4. God has created all these numberless people to be quite the simplest, without malice or duplicity, most obedient, most faithful to their natural Lords, and to the Christians, whom they serve; the most humble, most patient, most peaceful, and calm, without strife nor tumults; not wrangling, nor querulous, as free from uproar, hate and desire of revenge, as any in the world.
- 5.5. They are likewise the most delicate people, weak and of feeble constitution, and less than any other can they bear fatigue, and they very easily die of whatsoever infirmity; so much so, that not even the sons of our Princes and of nobles, brought up in royal and gentle life, are more delicate than they; although there are among them such as are of the peasant class. They [pg 315] are also a very poor

people, who of worldly goods possess little, nor wish to possess: and they are therefore neither proud, nor ambitious, nor avaricious.

- 6.6. Their food is so poor, that it would seem that of the Holy Fathers in the desert was not scantier nor less pleasing. Their way of dressing is usually to go naked, covering the private parts; and at most they cover themselves with a cotton cover, which would be about equal to one and a half or two ells square of cloth. Their beds are of matting, and they mostly sleep in certain things like hanging nets, called in the language of Hispaniola hamacas.
- 7.7. They are likewise of a clean, unspoiled, and vivacious intellect, very capable, and receptive to every good doctrine; most prompt to accept our Holy Catholic Faith, to be endowed with virtuous customs; and they have as little difficulty with such things as any people created by God in the world.
- 8.8. Once they have begun to learn of matters pertaining to faith, they are so importunate to know them, and in frequenting the sacraments and divine service of the Church, that to tell the truth, the clergy have need to be endowed of God with the gift of pre-eminent patience to bear with them: and finally, I have heard many lay Spaniards frequently say many years ago, (unable to deny the goodness of those they saw) certainly these people were the most blessed of the earth, had they only knowledge of God.
- 9.9. Among these gentle sheep, gifted by their Maker with the above qualities, the Spaniards entered as soon as they knew them, like wolves, tigers, and lions which had been starving for many days, and since forty years they have done nothing else; nor do they otherwise at the present day, than outrage, slay, afflict, torment, and destroy them with strange and new, and divers [pg 316] kinds of cruelty, never before seen, nor heard of, nor read of, of which some few will be told below: to such extremes has this gone that, whereas there were more than three million souls, whom we saw in Hispaniola, there are to-day, not two hundred of the native population left.
- 10.10. The island of Cuba is almost as long as the distance from Valladolid to Rome; it is now almost entirely deserted. The islands of San Juan [Porto Rico], and Jamaica, very large and happy and pleasing islands, are both desolate. The Lucaya Isles lie near Hispaniola and

Cuba to the north and number more than sixty, including those that are called the Giants, and other large and small Islands; the poorest of these, which is more fertile, and pleasing than the King's garden in Seville, is the healthiest country in the world, and contained more than five hundred thousand souls, but to-day there remains not even a single creature. All were killed in transporting them, to Hispaniola, because it was seen that the native population there was disappearing.

- 11.11. A ship went three years later to look for the people that had been left after the gathering in, because a good Christian was moved by compassion to convert and win those that were found to Christ; only eleven persons, whom I saw, were found.
- 12.12. More than thirty other islands, about the Isle of San Juan, are destroyed and depopulated, for the same reason. All these islands cover more than two thousand leagues of land, entirely depopulated and deserted.
- 13.13. We are assured that our Spaniards, with their cruelty and execrable works, have depopulated and made desolate the great continent, and that more than ten Kingdoms, larger than all Spain, counting Aragon and Portugal, and twice as much territory as from Seville to Jerusalem (which is more than two thousand leagues), although formerly full of people, are now deserted.
- 14.14. We give as a real and true reckoning, that in the said forty years, more than twelve million persons, men, and women, and children, have perished unjustly and through tyranny, by the infernal deeds and tyranny of the Christians; and I truly believe, nor think I am deceived, that it is more than fifteen.
- 15.15. Two ordinary and principal methods have the self-styled Christians, who have gone there, employed in extirpating these miserable nations and removing them from the face of the earth. The one, by unjust, cruel and tyrannous wars. The other, by slaying all those, who might aspire to, or sigh for, or think of liberty, or to escape from the torments that they suffer, such as all the native Lords, and adult men; for generally, they leave none alive in the wars, except the young men and the women, whom they oppress with the hardest, most horrible, and roughest servitude, to which either man or beast, can ever be put. To these two ways of infernal tyranny, all the many

and divers other ways, which are numberless, of exterminating these people, are reduced, resolved, or sub-ordered according to kind.

16.16. The reason why the Christians have killed and destroyed such infinite numbers of souls, is solely because they have made gold their ultimate aim, seeking to load themselves with riches in the shortest time and to mount by high steps, disproportioned to their condition: namely by their insatiable avarice and ambition, the greatest, that could be on the earth. These lands, being so happy and so rich, and the people so humble, so patient, and so easily subjugated, they have had no more respect, nor consideration nor have they taken more account of them (I speak with truth of what I have seen during all the aforementioned time) than,—I will not say of animals, for would to God they had considered [pg 318] and treated them as animals,—but as even less than the dung in the streets.

17.17. In this way have they cared for their lives—and for their souls: and therefore, all the millions above mentioned have died without faith, and without sacraments. And it is a publicly known truth, admitted, and confessed by all, even by the tyrants and homicides themselves, that the Indians throughout the Indies never did any harm to the Christians: they even esteemed them as coming from heaven, until they and their neighbours had suffered the same many evils, thefts, deaths, violence and visitations at their hands.

Of Hispaniola

1. In the island of Hispaniola—which was the first, as we have said, to be invaded by the Christians—the immense massacres and destruction of these people began. It was the first to be destroyed and made into a desert. The Christians began by taking the women and children, to use and to abuse them, and to eat of the substance of their toil and labour, instead of contenting themselves with what the Indians gave them spontaneously, according to the means of each. Such stores are always small; because they keep no more than they ordinarily need, which they acquire with little labour; but what is enough for three households, of ten persons each, for a month, a Christian eats and destroys in one day. From their using force, violence and other kinds of vexations, the Indians began to perceive that these men could not have come from heaven.
- 2.2. Some hid their provisions, others, their wives and children: others fled to the mountains to escape from people of such harsh and terrible intercourse. The Christians gave them blows in the face, beatings [pg 319] and cudgellings, even laying hands on the lords of the land. They reached such recklessness and effrontery, that a Christian captain violated the lawful wife of the chief king and lord of all the island.
- 3.3. After this deed, the Indians consulted to devise means of driving the Christians from their country. They took up their weapons, which are poor enough and little fitted for attack, being of little force and not even good for defence; For this reason, all their wars are little more than games with sticks, such as children play in our countries.
- 4.4. The Christians, with their horses and swords and lances, began to slaughter and practise strange cruelty among them. They penetrated into the country and spared neither children nor the aged, nor pregnant women, nor those in child labour, all of whom they ran

through the body and lacerated, as though they were assaulting so many lambs herded in their sheepfold.

- 5.5. They made bets as to who would slit a man in two, or cut off his head at one blow: or they opened up his bowels. They tore the babes from their mothers' breast by the feet, and dashed their heads against the rocks. Others they seized by the shoulders and threw into the rivers, laughing and joking, and when they fell into the water they exclaimed: "boil body of so and so!" They spitted the bodies of other babes, together with their mothers and all who were before them, on their swords.
- 6.6. They made a gallows just high enough for the feet to nearly touch the ground, and by thirteens, in honour and reverence of our Redeemer and the twelve Apostles, they put wood underneath and, with fire, they burned the Indians alive.
- 7.7. They wrapped the bodies of others entirely in dry straw, binding them in it and setting fire to it; and so they [pg 320] burned them. They cut off the hands of all they wished to take alive, made them carry them fastened on to them, and said: "Go and carry letters": that is; take the news to those who have fled to the mountains.
- 8.8. They generally killed the lords and nobles in the following way. They made wooden gridirons of stakes, bound them upon them, and made a slow fire beneath: thus the victims gave up the spirit by degrees, emitting cries of despair in their torture.
- 9.9. I once saw that they had four or five of the chief lords stretched on the gridirons to burn them, and I think also there were two or three pairs of gridirons, where they were burning others; and because they cried aloud and annoyed the captain or prevented him sleeping, he commanded that they should strangle them: the officer who was burning them was worse than a hangman and did not wish to suffocate them, but with his own hands he gagged them, so that they should not make themselves heard, and he stirred up the fire, until they roasted slowly, according to his pleasure. I know his name, and knew also his relations in Seville. I saw all the above things and numberless others.
- 9.10. And because all the people who could flee, hid among the mountains and climbed the crags to escape from men so deprived of humanity, so wicked, such wild beasts, exterminators and capital

enemies of all the human race, the Spaniards taught and trained the fiercest boar-hounds to tear an Indian to pieces as soon as they saw him, so that they more willingly attacked and ate one, than if he had been a boar. These hounds made great havoc and slaughter.

- 10.11. And because sometimes, though rarely, the Indians killed a few Christians for just cause, they made a law among themselves, that for one Christian whom [pg 321] the Indians killed, the Christians should kill a hundred Indians.

The Kingdoms that were in Hispaniola

1. There were five very large and principal kingdoms in this island of Hispaniola, and five very mighty kings, whom all the other numberless lords obeyed, although some of the lords of certain separate provinces did not recognise any of them as superior. One kingdom was called Maguá, with the last syllable accented, which means the kingdom of the plain.

This plain is one of the most notable and marvellous things in the world, for it stretches eighty leagues from the sea on the south to that on the north. Its width is five leagues, attaining to eight and ten, and it has very high mountains on both sides.

- 2.2. More than thirty thousand rivers, and brooks water it among which there are twelve as large as the Ebro, the Duero, and the Guadalquivir. And all the rivers that flow from the western mountain, which number twenty or twenty-five thousand, are very rich in gold. On that mountain (or mountains) lies the province of Cibao, from which the mines of Cibao are named, whence comes that famous gold, superior in carat, which is held in great esteem here.
- 3.3. The king, and lord of this realm was called Guarionex. He had such great lords as his vassals, that one alone of them mustered sixteen thousand warriors to serve Guarionex; and I knew some of them. This king Guarionex was very obedient, virtuous and, by nature, peaceful and devoted to the king of Castile. And in certain years, every householder amongst his people gave by his orders, a bell full of gold; and afterwards, because they could not fill it, they cut it in two [pg 322] and gave that half full; because the Indians had little or no ability to collect, or dig the gold from the mines.
- 4.4. This prince offered to serve the King of Castile, by having as much land cultivated as would extend from Isabella, which was the first

habitation of the Christians to the town of San Domingo, which is a good fifty leagues, in order that gold should not be asked of him; because he said, and with truth, that his vassals knew not how to collect it. I know he was able to do the cultivation he proposed to undertake, most gladly; and it would have rendered the King more than three million crowns yearly, and, owing to this cultivation, there would have been at the present time in this island fifty towns as large as Seville.

- 5.5. The payment they awarded to this great and good king and lord, was to dishonour him; a captain, a bad Christian violating his wife. Although he might have bided his time to assemble his people and revenge himself, he determined to depart alone, and to hide himself and die exiled from his kingdom and state, in a province called Ciguay, of which the ruler was his vassal.
- 6.6. When the Christians became aware that he was missing, he could not hide himself from them. They made war on that ruler who sheltered him, where, after great slaughter, they found and captured him. When he was taken, they put him on a ship in chains, to bring him to Castile in fetters. The ship was lost at sea, and many Christians were drowned with him, besides a great quantity of gold, including the great nugget, which was as big as a cake and weighed three thousand and six hundred crowns, because God was pleased to avenge such great injustice.
- 7.7. The second kingdom was called Marien, where now is the royal port at the end of the plain towards the north. It was larger than the kingdom of Portugal and was [pg 323] certainly much more prosperous, and worthy of being populated; and it has many, and high mountains, and very rich gold, and copper mines. Its king was named Guacanagari (with the last letter accented) under whom there were many and very great lords, many of whom I saw and knew.
- 8.8. In the country of this king, the old Admiral⁸⁰ who discovered the Indies, first went to stay. When he discovered the island he, and all the Christians who accompanied him, was received the first time by the said Guacanagari with great humanity and charity. He met with such a gentle and agreeable reception, and such help and guidance when the ship in which the Admiral sailed was lost there, that in his own country, and from his own father a better would not have been

possible. This I know from the recital and words of the same Admiral. This king, flying from the massacres and cruelty of the Christians, died a wanderer in the mountains, ruined and deprived of his state. All the other lords, his subjects, died under tyranny and servitude, as will be told below.

- 9.9. The third kingdom and dominion was Maguana, a country equally marvellous, most healthy and most fertile; where now the best sugar of the island is made. Its king was called Caonabò. In strength, and dignity, in gravity, and pomp he surpassed all the others. They captured this king with great cunning and malice, he being safe in his own house. They put him on a ship to take him to Castile and, as there were six ships in the port ready to leave, God, who wished to show that this, together with the other things, was a great iniquity and injustice, sent a tempest that night that sank all the vessels, drowning all the Christians on board of them. [pg 324] The said Caonabò perished, loaded with chains, and fetters.
- 10.10. This lord had three or four very brave brothers as powerful and valiant as himself. They, seeing the unjust imprisonment of their brother and lord, and witnessing the destruction and slaughter the Christians perpetrated in the other kingdoms, (particularly after they knew that the king their brother was dead) armed themselves to attack the Christians and avenge themselves. The Christians went against them with some horsemen. Horses are the most deadly arm possible among the Indians. They worked such havoc and slaughter, that they desolated, and depopulated half the kingdom.
- 11.11. The fourth kingdom is that which is called Xaragua. This was as the marrow, or the Court of all this island. It surpassed all the other kingdoms in the politeness of its more ornate speech as well as in more cultured good breeding, and in the multitude and generosity of the nobles. For there were lords and nobles in great numbers. In their costumes and beauty, the people were superior to all others.
- 12.12. The king and lord of it was called Behechio and he had a sister called Anacaona. Both rendered great services to the King of Castile, and immense kindnesses to the Christians, delivering them from many mortal dangers: and when the King Behechio died, Anacaona was left mistress of the kingdom.

- 13.13. The governor⁸¹ who ruled this island arrived there once, with sixty horsemen and more than three hundred foot. The horsemen alone were sufficient to ruin the whole island and the terra firma. More than three hundred lords were assembled, whom he had summoned [pg 325] and reassured. He lured the principal ones by fraud, into a straw-house, and setting fire to it, he burnt them alive.
- 14.14. All the others, together with numberless people, were put to the sword, and lance. And to do honour to the Lady Anacaona, they hanged her. It happened that some Christians, either out of compassion or avarice, took some children to save them, placing them behind them on their horses, and another Spaniard approached from behind and ran his lance through them. Another, if a child was on the ground, cut off its legs with his sword. Some, who could flee from this inhuman cruelty, crossed to a little island lying eight leagues distant in the sea; and the said governor condemned all such to be slaves, because they had fled from the carnage.
- 15.15. The fifth kingdom was called Higüey: and an old queen called Higuanama ruled it, whom they hanged. And I saw numberless people being burnt alive, torn, and tortured in divers, and new ways, while all whom they took alive were enslaved.
- 16.16. And because so many particulars happened in this slaughter and destruction of people, that they could not be contained in a lengthy description—for in truth I believe that however many I told, I could not express the thousandth part of the whole—I will simply conclude the above mentioned wars by saying and affirming, before God and my conscience, that the Indians gave no more cause, nor were more to blame for all this injustice done unto them, and for the other said wickedness I could tell, but omit, than a monastery of good and well ordered monks would have given that they should be robbed and killed, and that those who escaped death, should be placed in perpetual captivity and servitude, as slaves.
- 17.17. And furthermore, I attest, that in all the space of time during which the multitudes of the population of this island were being killed and destroyed, as far as I can believe or conjecture, they did not commit a single mortal sin against the Christians that merited punishment by man. And of those which are reserved to God alone, such as the desire of vengeance, hatred and rancour, that these people might

harbour against such mortal enemies as were the Christians, I believe very few of the Indians committed any such. They were little more impetuous and harsh, judging from the great experience I have of them, than children or youths of ten or twelve years.

- 18.18. I have certain and infallible knowledge, that the Indians always made most just war on the Christians while the Christians never had a single just one with the Indians; on the contrary, they were all diabolical and most unjust, and much worse than can be said of any tyrant in the world; and I affirm the same of what they have done throughout the Indies.
- 19.19. When the wars were finished, and with them the murder, they divided among them all the men, (youths, women, and children being usually spared) giving to one, thirty, to another forty, and to another a hundred and two hundred, according to the favour each enjoyed with the chief tyrant, whom they called governor. Having thus distributed them, they assigned them to each Christian, under the pretence that the latter should train them in the catholic faith; thus to men who are generally all idiots, and very cruel, avaricious and vicious, they gave the care of souls.
- 20.20. The care and thought these Spaniards took, was to send the men to the mines to dig gold, which is an intolerable labour; and they put the women into dwellings, which are huts, to dig and cultivate the land; a [pg 327] strong and robust man's work. They gave food neither to the one, nor the other, except grass, and things that have no substance. The milk dried up in the breasts of nursing women and thus, within a short time, all the infants died.
- 21.21. And as the husbands were separated and never saw their wives, generation diminished among them; the men died of fatigue and hunger in the mines and others perished in dwellings or huts, for the same reason. It was in this way that such multitudes of people were destroyed in this island, as indeed all those in the world might be destroyed by like means.
- 22.22. It is impossible to recount the burdens with which their owners loaded them, more than three and four arobas⁸² weight, making them walk a hundred and two hundred leagues. The same Christians had themselves carried by Indians in hamacas, which are like nets; for they always used them as beasts of burden. They had wounds on

their shoulders and backs, like animals, all wither-wrung. To tell likewise of the whip-lashings, the beatings, the cuffs, the blows, the curses, and a thousand other kinds of torments to which their masters treated them, while, in truth, they were working hard, would take much time and much paper; and would be something to amaze mankind.

- 23.23. It must be noted, that the destruction of this island and of these lands was begun when the death of the most Serene Queen, Doña Isabella was known here, which was in the year 1504. For up to that time, only some provinces in the island had been ruined by unjust wars, but not entirely: and these were nearly all kept hidden from the Queen. Because the Queen, who is in blessed glory, used great solicitude and marvellous [pg 328] zeal for the health and prosperity of these people, as we ourselves, who have seen the examples of it with our eyes and touched them with our hands, well know.
- 24.24. Another rule to be noted is this; that in all parts of the Indies where the Christians have gone and have passed, they ever did the same murder among the Indians, and used tyranny and abominable oppression against these innocent people; and they added many more and greater and newer ways of torment. They became ever crueller, because God let them precipitate themselves the more swiftly into reprobate judgments and sentiments.

The Two Islands of San Juan and Jamaica

In 1509 the Spaniards passed over to the islands of San Juan and Jamaica,⁸³ which were so many gardens and hives of bees, with the same object and design they had accomplished in Hispaniola, where they committed the great outrages and iniquities narrated above. They even added to them more notorious ones, and the greatest cruelty; slaying, burning, roasting, and, throwing the Indians to fierce dogs. They oppressed, tormented, and afflicted all those unhappy innocents in the mines, and with other labours, until they were consumed and destroyed, because there were in the said isles more than a million souls, and to-day there are not two hundred in each. All have perished without faith and without sacraments.

The Island of Cuba

1. In the year 1511 the Spaniards passed over to the [pg 329] island of Cuba, ⁸⁴ which as I said, is as long as from Valladolid to Rome, and where there were great and populous provinces. They began and ended in the above manner, only with incomparably greater cruelty. Here many notable things occurred.
- 2.2. A very high prince and lord, named Hatuey, who had fled with many of his people from Hispaniola to Cuba, to escape the calamity and inhuman operations of the Christians, having received news from some Indians that the Christians were crossing over, assembled many or all of his people, and addressed them thus.
- 3.3. “You already know that it is said the Christians are coming here; and you have experience of how they have treated the lords so and so and those people of Hayti (which is Hispaniola); they come to do the same here. Do you know perhaps why they do it?” The people answered no; except that they were by nature cruel and wicked. “They do it,” said he, “not alone for this, but because they have a God whom they greatly adore and love; and to make us adore Him they strive to subjugate us and take our lives.” He had near him a basket full of gold and jewels and he said. “Behold here is the God of the Christians, let us perform Areytos before Him, if you will (these are dances in concert and singly); and perhaps we shall please Him, and He will command that they do us no harm.”
- 4.4. All exclaimed; it is well! it is well! They danced before it, till they were all tired, after which the lord Hatuey said; “Note well that in any event if we preserve the gold, they will finally have to kill us, to take it from us: let us throw it into this river.” They all agreed to [pg 330] this proposal, and they threw the gold into a great river in that place.
- 5.5. This prince and lord continued retreating before the Christians when they arrived at the island of Cuba, because he knew them, but when

he encountered them he defended himself; and at last they took him. And merely because he fled from such iniquitous and cruel people, and defended himself against those who wished to kill and oppress him, with all his people and offspring until death, they burnt him alive.

- 6.6. When he was tied to the stake, a Franciscan monk, a holy man, who was there, spoke as much as he could to him, in the little time that the executioner granted them, about God and some of the teachings of our faith, of which he had never before heard; he told him that if he would believe what was told him, he would go to heaven where there was glory and eternal rest; and if not, that he would go to hell, to suffer perpetual torments and punishment. After thinking a little, Hatuey asked the monk whether the Christians went to heaven; the monk answered that those who were good went there. The prince at once said, without any more thought, that he did not wish to go there, but rather to hell so as not to be where Spaniards were, nor to see such cruel people. This is the renown and honour, that God and our faith have acquired by means of the Christians who have gone to the Indies.
- 7.7. On one occasion they came out ten leagues from a great settlement to meet us, bringing provisions and gifts, and when we met them, they gave us a great quantity of fish and bread and other victuals, with everything they could supply. All of a sudden the devil entered into the bodies of the Christians, and in my presence they put to the sword, without any motive or cause whatsoever, more than three thousand persons, [pg 331] men, women, and children, who were seated before us. Here I beheld such great cruelty as living man has never seen nor thought to see.
- 8.8. Once I sent messengers to all the lords of the province of Havana, assuring them that if they would not absent themselves but come to receive us, no harm should be done them; all the country was terrorized because of the past slaughter, and I did this by the captain's advice. When we arrived in the province, twenty-one princes and lords came to receive us; and at once the captain violated the safe conduct I had given them and took them prisoners. The following day he wished to burn them alive, saying it was better so because those lords would some time or other do us harm. I had

the greatest difficulty to deliver them from the flames but finally I saved them.

- 9.9. After all the Indians of this island were reduced to servitude and misfortune like those of Hispaniola, and when they saw they were all perishing inevitably, some began to flee to the mountains; others to hang themselves in despair; husbands and wives hanged themselves, together with their children, and through the cruelty of one very tyrannical Spaniard whom I knew, more than two hundred Indians hanged themselves. In this way numberless people perished.
- 10.10. There was an officer of the King in this island, to whose share three hundred Indians fell; and by the end of three months he had, through labour in the mines, caused the death of two hundred and seventy; so that he had only thirty left, which was the tenth part. The authorities afterwards gave him as many again, and again he killed them: and they continued to give, and he to kill, until he came to die, and the devil carried away his soul.
- 11.11. In three or four months, I being present, more [pg 332] than seven thousand children died of hunger, their fathers and mothers having been taken to the mines. Other dreadful things did I see.
- 12.12. Afterwards the Spaniards resolved to go and hunt the Indians who were in the mountains, where they perpetrated marvellous massacres. Thus they ruined and depopulated all this island which we beheld not long ago; and it excites pity, and great anguish to see it deserted, and reduced to a solitude.

The Mainland

1. In the year 1514 there passed over to the continent an unhappy Governor⁸⁵ who was the cruellest of tyrants, destitute of compassion or prudence, almost an instrument of divine fury. His intention was to settle large numbers of Spaniards in that country. And although several tyrants had visited the continent, and had robbed and scandalised many people, their stealing and ravaging had been confined to the sea-coast; but this man surpassed all the others who had gone before him, and those of all the Islands; and his villainous operations outdid all the past abominations.
- 2.2. Not only did he depopulate the sea-coast, but also countries and large kingdoms where he killed numberless people, sending them to hell. This man devastated many leagues of country extending above Deldarien to the kingdom and provinces of Nicaragua inclusive, which is more than five hundred leagues; it was the best, the happiest, and the most populous land in the world. There were very many great lords and numberless settlements, and very great wealth of gold: for until that time, never had there been so much seen [pg 333] above ground. For although Spain had been almost filled with gold from Hispaniola, and that of the finest, it had been dug by the labour of the Indians from the bowels of the earth, out of the aforesaid mines, where, as has been said, they perished.
- 3.3. This governor and his people invented new means of cruelty and of torturing the Indians, to force them to show, and give them gold. There was a captain of his who, in an incursion, ordered by him to rob and extirpate the people, killed more than forty thousand persons, putting them to the sword, burning them alive, throwing them to fierce dogs, and torturing them with various kind of tortures: these acts were witnessed by a Franciscan friar with his own eyes, for he went with the captain, and he was called Fray Francisco de San Roman.

- 4.4. The most pernicious blindness of those who have governed the Indies up to the present day, in providing for the conversion and salvation of these people, which (to tell the truth) they have always postponed, although with words they have represented and pretended otherwise, reached such depths that they have commanded notice to be given the Indians to accept the Holy faith and render obedience to the kings of Castile; otherwise war would be made on them with fire and blood, and they would be killed and made slaves etc.
- 5.5. As though the Son of God, who died for each of them, had commanded in his law, when he said *Euntes, docete omnes gentes* that intimation should be sent to peaceful and quiet infidels, in their own countries, that, if they did not receive it at once, without other teaching or doctrine, and that if they did not subject themselves to the dominion of a king, of whom they had never heard, nor seen, and particularly whose messengers are so cruel, so wicked, and such horrible tyrants, they should therefore, lose their rights, their lands and liberty, [pg 334] their wives and children, with all their lives; such a blunder is stupid and worthy of infamy, obloquy, and hell.
- 6.6. This wretched and unhappy governor, in giving instructions as to the said intimations, the better to justify them—they being of themselves unseemly, unreasonable and most unjust—commanded these thieves sent by him, to act as follows: when they had determined to invade and plunder some province, where they had heard that gold was to be found, they should go when the Indians were in their towns, and safe in their houses; these wretched Spanish assassins went by night and, halting at midnight half a league from the town, they published or read the said intimation among themselves saying: Princes and Indians of such a place in this continent, we make known unto you, that there is one God, one Pope, and one King of Castile, who is Lord of this country; come at once to render him obedience etc. otherwise know that we shall make war on you, kill you, and put you into slavery etc. And towards sunrise, the innocent natives being still asleep with their wives and children, they attacked the town, setting fire to the houses that were usually of straw, burning the children, the women and many others alive, before they awoke. They killed whom they would, and those whom

they took alive, they afterwards killed with tortures, to force them to indicate other towns where there was gold, or more than was to be found there; and the others that survived, they put into chains as slaves. Then when the fire was extinguished or low they went to look for the gold that was in the houses.

- 7.7. In this way and with such operations, were this wretched man and all the bad Christians he took with him occupied during the year 1514, till the year 1521 or 1522, sending on these raids six or more servants, who [pg 335] collected for him a certain portion of all the gold and pearls and jewels the Spaniards stole, and of the slaves they captured, besides the share that belonged to him as Captain General. The officers of the king did the same, each sending as many boys or servants as he could. And also the first bishop of that kingdom sent his servants to obtain part of this profit.
- 9.8. As far as I can judge they stole, during that time in the said kingdom, more gold than a million crowns; and I believe I understate it; and it will not be found that, of all they stole, they sent the King more than three thousand crowns. And they destroyed more than eight hundred thousand souls. The other tyrant governors who succeeded them till the year 1533 killed, and allowed to be killed the survivors with the tyrannical servitude that followed the war.
- 10.9. Among the other numberless knaveries he committed and permitted during the time he governed, was this one; a prince, or lord, having of his own will, or more likely out of fear, given him nine thousand crowns, he was not satisfied with this sum so he took the said lord, bound him seated to a stake, with his feet distended and exposed to fire, to force him to give them a larger quantity of gold; and he [the chief] sent to his house and brought other three thousand crowns; they tortured him again, and as he gave no more gold, either because he had none or did not wish to give it, they kept him thus, till the marrow oozed out from the soles of his feet; and thus he died. Numberless times they killed and tortured lords in this way to get gold from them.
- 11.10. Another time a company of Spaniards, while going to assassinate, came to a mountain where a great number of people were sheltered and in hiding, to escape from the pestilential and horrible operations

of the Christians; [pg 336] assaulting it unexpectedly they captured seventy or eighty young girls and women; and left many dead whom they had killed.

- 12.11. The next day many Indians assembled and pursued the Christians, driven by their anxiety for their wives and daughters to fight; and the Christians finding themselves at close quarters, and not wishing to disorder their company of horse, drove their swords into the bodies of the young girls and women, and of all the eighty they left not even one alive. The Indians writhing with grief cried out, and said: "O wretched men, cruel Christians, you kill Iras!" (the women in that country are called Iras). They meant that to kill women is a sign of abominable, cruel and bestial men.
- 13.12. Ten or fifteen leagues from Panama there was a great lord called Paris, who had great wealth of gold. The Christians went thither and he received them as though they were his brothers: he willingly presented the captain with fifty thousand castellanos. It seemed to the captain and to the Christians that one who spontaneously gave that quantity, must have a great treasure; which was the aim and recompense of their effort. They dissimulated, saying they wished to depart: towards sunrise they returned and attacked the unsuspecting town; and they set fire to it and burnt it. They killed and burnt many people, and stole other fifty or sixty thousand castellanos, and the prince, or lord fled to escape death or capture.
- 14.13. He quickly assembled all the people he could, and in two or three days came upon the Christians, who were carrying away his hundred and thirty or forty ⁸⁶ thousand castellanos, and fell upon them manfully, killing [pg 337] fifty Christians, recapturing all the gold while the others escaped badly wounded.
- 15.14. Afterwards, many Christians turned on the said lord and destroyed him and many of his people; they killed the rest with the usual servitude, so that to-day there is neither sign nor any vestige whatsoever that there was ever a town or born man where formerly was thirty leagues of dominion well populated. The murders and destruction done by that miserable man and his company in that kingdom which he devastated, are without number.

The Province of Nicaragua

1. In the year 1522 or 1523 this same tyrant invaded the most delightful province of Nicaragua to subjugate it; it was an unlucky hour when he entered it. Who could adequately set forth the happiness, healthfulness, agreeableness, prosperity, and the number of dwellings and concourse of the people that were there? it was truly a marvellous thing to see how full it was of towns, stretching for a length of nearly three or four leagues, thickly planted with the most marvellous fruit trees; which was the reason that there was such an immense population.
- 2.2. So much injury and assassination, so much cruelty, wickedness and injustice, was done to those people by that tyrant, together with the others, his companions, that human language would not suffice to relate it; for he was accompanied by all those who had helped to destroy all the other kingdom. The land being flat and open, the natives could not hide in the mountains, and their country was so delightful, that it was with difficulty and great grief that they brought themselves to abandon it; for this reason they suffered, [pg 338] and will suffer great persecutions, and they tolerated the tyranny and the slavery of the Christians to the extent of their endurance, and because they are naturally a very humble and pacific people.
- 3.3. He sent fifty mounted soldiers, and had the inhabitants of a whole province, larger than the country of Rusenon⁸⁷ killed with lances, without leaving man nor woman, old nor young alive. He did this for a very trifling reason; such as because they did not come as soon as he called them, or because they did not bring him enough loads of maize, (which is the grain of that country) or enough Indians to serve him or some other of his company: the land being flat, no one could escape from their horses and from their infernal wrath.

- 4.4. He sent some Spaniards to invade other provinces, which means to go and murder the Indians; and he let the assassins bring away as many Indians as they pleased from the peaceful settlements, to serve them; they put these Indians in chains so that they should not set down the loads weighing three arobas that they bound on their backs. And it happened sometimes out of the many times he did it, that out of four thousand Indians, not six individuals returned alive to their homes, because they were left dead by the way.
- 5.5. And when some became tired, or lame on account of the great weights, or fell ill through hunger, fatigue and weakness, they cut off their heads at the neck so as not to loosen them from their chains, and the head fell to one side, and the body to the other. It may be imagined how their companions would feel. When orders were given for similar expeditions, the Indians, knowing from experience that none who started ever returned, went weeping, and sighing, and saying: [pg 339] “Those are the roads, we trod to serve the Christians; and although we laboured hard, we finally returned after some time to our own homes and to our wives and children; but now we go without hope of ever returning, nor of seeing them again, or of having life any more.”
- 6.6. Once, because it suited his inclination to make a new distribution of Indians, and also, they say, to take them from his enemies and give them to his friends, the Indians were unable to plant their crops; and as bread ran short, the Christians took from the Indians all the maize they had to maintain themselves and their children; in consequence more than twenty or thirty thousand souls died of hunger; and it happened, that a certain woman was driven by hunger to kill her own son for food.
- 7.7. As each of the towns was a very pleasing garden, as has been said, the Christians settled in them; each one in the place that fell to his share or, (as they say,) was committed to his charge; each one carried on his own cultivation, supporting himself with the meagre provisions of the Indians, thus robbing them of their private lands and inheritances, by which they maintained themselves.
- 8.8. In this wise the Spaniards kept within their own houses all the Indian lords, the aged, the women, and the lads, all of whom they compelled to serve them day and night, without rest. They employed

even the children, as soon as they could stand, in excess of their powers. And in this way they have wasted, and to-day still waste those few that are left, not allowing them to have either a home or anything of their own. In this they even surpassed the similar injustice they perpetrated in Hispaniola.

- 9.9. They have exhausted and oppressed, and caused the premature death of many people in this Province, [pg 340] making them carry planks and timber to build vessels in the port, thirty leagues distant; also by sending them to seek for honey and wax in the mountains, where they are devoured by tigers; and they have loaded and do still load pregnant and confined women, like animals.
- 10.10. The most horrible pestilence that has principally destroyed this Province, was the license which that governor gave to the Spaniards, to ask slaves from the princes and lords of the towns. Every four or five months, or whenever one obtained the favour or license from the said governor, he asked the lord for fifty slaves threatening, if he did not give them, to burn him alive or to deliver him to fierce dogs.
- 11.11. As the Indians usually do not keep slaves and, at most a lord has two or three or four, the lords went through their towns and took, first all the orphans; next, of those who had two children they asked one, and of those who had three, two: and in this way the lord completed the number demanded by the tyrant, amidst great wailing and weeping in the town, for they seem, more than any other people, to love their children.
- 12.12. By such conduct from the year 1523 to 1533, they ruined all this kingdom. During six or seven years, five or six vessels carried on this traffic, taking all this multitude of Indians to sell them as slaves in Panama and Peru, where they all died. It has been verified and experienced a thousand times that, by taking the Indians away from their native country, they at once die more easily: because the Spaniards habitually give them little to eat and never relieve them from labour, for they are only sold by some and bought by others, to make them work. In this way they have carried off more than five hundred thousand souls from this province making slaves of people who were as free as I am.
- 13.13. In their infernal wars and the horrible captivity into which they put the Indians up to the present time, the Spaniards have killed more

than another five or six hundred thousand persons, and they still continue. All these massacres have occurred in the space of fourteen years. At present they kill daily in the said province of Nicaragua, from four to five thousand persons, with servitude and continual oppression; it being, as was said, one of the most populous in the world.

New Spain

1. New Spain was discovered in the year 1517.⁸⁸ And the discoverers gave serious offence to the Indians in that discovery, and committed several homicides. In the year 1518 men calling themselves Christians went there to ravage and to kill; although they say that they go to populate. And from the said year 1518, till the present day (and we are in 1542) all the iniquity, all the injustice, all the violence and tyranny that the Christians have practised in the Indies have reached the limit and overflowed: because they have entirely lost all fear of God and the King, they have forgotten themselves as well. So many and such are the massacres and cruelty, the murder and destruction, the pillage and theft, the violence and tyranny throughout the numerous kingdoms of the great continent, that everything told by me till now is nothing compared to what was practised here.
- 2.2. Yet, even had we related everything, including what we have omitted, it would not be comparable, either in number or magnitude, to the acts which, from the said year 1518 till the present day of this year 1542 have been committed. In this day of the month of [pg 342] September the gravest and most abominable acts are done and committed; because the rule we have mentioned above verifies itself, that from the commencement onwards they have ever been increasing in greater wickedness and infernal works.
- 3.3. Consequently, from the invasion of New Spain which was on April 18th of the said year 1518 till the year 1530, which was twelve entire years, the murders and the massacres lasted. With bloody hands and cruel swords the Spaniards continually wrought in nearly four hundred and fifty leagues of country belonging to the City of Mexico and its surroundings, which numbers four or five great kingdoms, as large and much more delightful than Spain.

- 4.4. All these countries were more populous than Toledo, Seville, Valladolid, and Zaragoza, together with Barcelona; because these cities have not, nor did they ever have so many inhabitants when they were at their fullest, as God placed, and as are to be found in all the said leagues; to go around which, one must walk more than a thousand and eight hundred leagues.
- 5.5. In the said twelve years more than four million souls have been killed by the Spaniards with swords and lances, and by burning alive women and children, young and old in the said extent of 450 leagues, during the time what they call “conquests” lasted. In fact, they were violent invasions by cruel tyrants, condemned not only by the divine law, but by all human laws; they were much worse than those of the Turks to destroy the Christian Church. Besides all this, there are the deaths they have caused, and cause every day by the tyrannical servitude, the daily afflictions and oppressions above described.
- 6.6. Neither language, nor knowledge, nor human industry could suffice to relate in detail the dreadful [pg 343] operations of those public and mortal enemies of the human race, acting in concert in some places and singly in others, within the aforesaid circuit. In truth, respecting the circumstances and conditions that rendered certain deeds more grievous, no exercise of diligence and time and writing could hardly explain them sufficiently. However I will recount something of some of the countries, protesting on my oath, that I believe I am not telling the thousandth part.
1. Among other massacres there was one took place in a town of more than thirty thousand inhabitants called Cholula; all the lords of the land, and its surroundings, and above all the priests, with the high priest came out in procession to meet the Christians, with great submission and reverence, and conducted them in their midst to lodge in the town in the dwelling houses of the prince, or principal lords; the Spaniards determined on a massacre here or, as they say, a chastisement to sow terror and the fame of their valour throughout that country, because in all the lands the Spaniards have invaded, their aim has always been to make themselves feared of those meek lambs, by a cruel and signal slaughter.

- 2.2. To accomplish this, they first sent to summon all the lords and nobles of the town and of all its dependencies, together with the principal lord; and when they came, and began to speak to the captain of the Spaniards, they were promptly captured, without any one who could give the alarm, noticing it.
- 3.3. They had asked for five or six thousand Indians to carry their baggage, all of whom immediately came and were confined in the courtyards of the houses. To see these Indians when they prepared themselves to carry the loads of the Spaniards, was a thing to excite [pg 344] great compassion for they come naked, with only the private parts covered, and with some little nets on their shoulders containing their meagre food; they all sit down on their heels, like so many meek lambs.
- 4.4. Being all collected and assembled in the courtyard, with other people who were there, some armed Spaniards were stationed at the gates of the courtyard to guard them: thereupon all the others seized their swords and lances, and butchered all those lambs, not even one escaping.
- 5.5. Two or three days later, many Indians who had hidden, and saved themselves under the dead bodies (so many were they) came out alive covered with blood, and they went before the Spaniards, weeping and asking for mercy, that they should not kill them: no mercy nor any compassion was shown them; on the contrary, as they came out, the Spaniards cut them to pieces.
- 6.6. More than one hundred of the lords whom they had bound, the captain commanded to be burned, and impaled alive on stakes stuck in the ground. One lord however, perhaps the chief and king of that country, managed to free himself, and with twenty or thirty or forty other men, he escaped to the great temple, which was like a fortress and was called Quu, where they defended themselves during a great part of the day.
- 7.7. But the Spaniards, from whom nothing is safe, especially among these people destitute of weapons, set fire to the temple and burned them, they crying out: "wretched men! what have we done unto you? why do you kill us? go then! in Mexico you will find our universal lord Montezuma who will take vengeance upon you for us." It is said, that while those five, or six thousand men were being

put to the sword in the courtyard, the captain of the Spaniards stood singing. [pg 345]

Mira Nero de Tarpeya
A Roma como se ardia.
Gritos dan niños y viejos,
Y el de nada se dolia.

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- 8.8. They perpetrated another great slaughter in the town of Tepeaca, which was much larger and more populous than Cholula; they put numberless people to the sword with great and particular kinds of cruelty.
- 9.9. From Cholula they took their way towards Mexico; and the great king Montezuma sent them thousands of presents; and lords and people came to meet them with festivities while on their arrival at the paved road to Mexico, which is two leagues long, his own brother appeared, accompanied by many great lords bearing many presents of gold, silver and clothing. At the entrance of the city he himself descended from a golden litter, with all his great court to receive them and to accompany them to the palaces, where he had given orders they should be lodged; on that same day, according to what was told me by some of those present, they managed by some feint, while he suspected nothing, to take the great king Montezuma prisoner; and then they put him in fetters and placed a guard of eighty men over him.
- 10.10. But leaving all this, of which there would be many, and great things to say, I only wish to relate a notable thing that those tyrants did here. When the captain of the Spaniards went to capture a certain other captain, ⁹⁰ who came to attack him, he left one of his [pg 346] captains with, I think, a hundred men or more, to keep guard over the king Montezuma; these Spaniards decided to do another extraordinary thing to increase the fear of them throughout the land, a practice, as I have said, to which they often resorted.
- 11.11. All the Indians, plebeians as well as nobles of Montezuma's capital and court, thought of nothing else but to give pleasure to their

captive monarch. Among other festivals they celebrated for him, one was the performance in all the quarters and squares of the city of those customary dances, called by them mitotes, and in the islands, areytos. In these dances they wear all their richest ornaments, and as this is their principal enjoyment and festivity, all take part in it. The greatest nobles and knights and those of royal blood, according to their rank, performed their dances and ceremonies nearest the buildings where their sovereign was a prisoner.

- 12.12. More than 2000 sons of lords were assembled in the place nearest to the said palaces who were the flower and the best nobility of all Montezuma's empire. The captain [Alvarado] of the Spaniards went thither with a squadron of his men and he sent other squadrons to all the other parts of the city, where they were performing the said dances, pretending that they went to witness them; and he commanded that at a certain hour all should fall upon them.
- 13.13. And while the Indians were intent on their dances in all security he cried, Santiago! and fell upon them; with their drawn swords the Spaniards pierced those naked and delicate bodies, and shed that generous blood, so that not even one was left alive. The same was done by the others in the other squares.
- 14.14. This was a thing that filled all those kingdoms and people with amazement, anguish, lamentation [pg 347] bitterness and grief. And until the end of the world, or till they are entirely destroyed, they will not cease in their dances, to lament and sing—as we say here in romances,—that calamity and the destruction of all their hereditary nobility, in whom they had gloried for so many years back.
- 15.15. Upon witnessing such injustice and unheard of cruelty, inflicted upon so many innocent and inoffensive people, the Indians, who had tolerated with patience the equally unjust imprisonment of their supreme monarch, because he himself had commanded them to refrain from attacking or making war on the Christians, now took up arms throughout the city and attacked the Spaniards, many of whom were wounded and with difficulty found safety in flight.
- 16.16. Threatening the captive Montezuma with a dagger at his breast, they forced him to show himself on the battlements, and to command the Indians to cease besieging the house and calm themselves. His subjects had no mind to obey him any further, but on the contrary,

they conferred about electing another sovereign and commander who would lead them in their battles.

- 17.17. As the captain [Cortes] who had gone to the port, was already returning victorious, and had announced his approach and was bringing with him many more Christians, the fighting ceased for three or four days, until he entered the city. When he had entered and numberless people were assembled, from all the country, the fighting became so general and lasted for so many days that the Spaniards, fearing they would all perish, decided to leave the city by night.
- 18.18. Learning their intention, the Indians killed a great number of Christians on the bridges of the lagoon, in what was a most just and holy war; for their cause was [pg 348] most just, as has been said, and will be approved by any reasonable and fair man. After the fighting in the city, the Christians were re-inforced and executed strange and marvellous slaughter among the Indians, killing numberless people and burning many alive including great lords.⁹¹
- 19.19. After the greatest and abominable tyranny practised by these men in the City of Mexico, and in the towns throughout the country for ten, fifteen and twenty leagues in those parts, during which numberless people were killed, this, their tyrannical pestilence passed onwards, spreading into, infecting and ruining the province of Panuco, where there was a marvellous multitude of people: equally marvellous were the massacres and slaughter that they performed there.
- 20.20. Afterwards they destroyed the province of Tututepeche in the same way; then the province of Spilcingo; then that of Colima; each of which is larger than the kingdoms of Leon and of Castile. To describe the massacres, slaughter, and cruelty which they practised in each, would doubtless be a most difficult thing, impossible to confirm and disagreeable to listen to.
- 21.21. Here it must be noted, that the pretext with which they invaded and began to destroy all those innocent beings and to depopulate those lands which, on account of their numberless populations should have caused such joy and contentment to true Christians, was, that they came to subject them to the King of Spain; otherwise, they must kill them and make slaves of [pg 349] them. And those, who did not promptly yield obedience to such an unreasonable and stupid

commission, and refused to place themselves in the hands of such iniquitous, cruel and brutal men, they declared were rebels, who had risen against the service of His Majesty; and thus they wrote from here to our lord the King.

- 22.22. And the blindness of those who govern the Indians, did not understand nor attend to what is expressed in their laws, and is clearer than any of their first principles whatsoever, namely; that no one can be called rebel, if he be not first a subject.
- 23.23. Let Christians and those that have some knowledge of God, and of reason, and also of human laws, consider to what state can be reduced the hearts of whatsoever people who live in security in their own country ignorant of having obligations towards any one, and who have their own rightful rulers, upon being thus unexpectedly ordered to yield obedience to a foreign King whom they have never seen, nor heard of, otherwise be it known to you, that we must at once cut you to pieces; especially when they actually see the threat put into execution.
- 24.24. More dreadful is it that those who obey voluntarily, are put into onerous servitude; in which, under incredible labour and tortures that last longer than those of death by the sword, they and their wives and children and all their race perish.
- 25.25. And although these people, or any other in the world are moved by fear or the said threats to yield obedience and to recognise the dominion of a foreign King, our blinded people, unbalanced by ambitious and diabolical avarice, do not perceive that they thereby acquire not a single atom of right, these fears being truly such as discourage the firmest men.
- 26.26. To say that natural, human and divine right [pg 350] permits their acts because the intention justifies them is all wind: but their crime condemns them to infernal fire, as do also the offences and injuries done to the Kings of Castile, by destroying these their kingdoms and annihilating (as far as they possibly can) their rights over all the Indies. These, and none other, are the services the Spaniards have rendered, and do render to-day to the said sovereign kings in these countries.
- 27.27. By this just and approved title, did this tyrant captain send two other tyrant captains, much more cruel and ferocious and more destitute of

compassion and mercy than himself, to the vast, most flourishing, most happy and densely populated kingdoms, namely to that of Guatemala, on the South Sea; and to that of Naco and Honduras or Guaymura, on the North Sea. They lie opposite one another, bordering, but separate, and each three hundred leagues distant from Mexico. He sent one expedition by land and the other with ships by sea, each provided with many horsemen and foot-soldiers.

- 28.28. I state the truth: Out of the evil done by both, and especially by him who went to the kingdom of Guatemala,—because the other soon died a bad death—I could collect and recount so much wickedness, so many massacres, so many deaths, so much extermination, so much and such frightful injustice, that they would strike terror to present and future ages: and I could fill a big book with them, for this man surpassed all the past and the present in the kind and multitude of abominations he committed; in the people he destroyed and in the countries he devastated, for they were infinite.
- 29.29. The one who commanded the expedition by sea, committed great robberies and scandal; destroying many people in the towns along the coast. Some natives came out to receive him with presents in the kingdom [pg 351] of Yucatan, which is on the road to the above mentioned kingdom of Naco and Guaymura, where he was going; when he arrived there, he sent captains and many people throughout that country, who robbed, killed and destroyed everything and everybody they found.
- 30.30. One especially of these captains who had mutinied with three hundred men, and had entered the country towards Guatemala, advanced destroying and burning every place he found, robbing and killing the people; he did this diligently for more than a hundred and twenty leagues, so that if others were sent in pursuit of him, they would find the country depopulated and in rebellion, and would be killed by the Indians in revenge for the damage and destruction he had done.
- 31.31. A few days later they [the Spaniards] killed the principal captain who had sent him and against whom he had mutinied. Afterwards there succeeded other most cruel tyrants who, with slaughter and dreadful cruelty, and with the capture of slaves and the selling them to the ships that brought their wine, clothing and other things, and

with the usual tyrannical servitude from the year 1524 till 1535, ruined those provinces and that kingdom of Naco and Honduras, which truly seemed a paradise of delight, and was better peopled than the most populous land in the world. We have now gone through these countries on foot and have beheld such desolation and destruction as would wring the vitals of the hardest-hearted of men.

In these eleven years they have killed more than two million souls, and in more than a hundred leagues square, they have not left two thousand persons, whom they are now daily exterminating by the said servitude.

- 32.32. Let us again speak of the great tyrant captain, ⁹² [pg 352] who went to the kingdom of Guatemala, who, as has been said, surpassed all past and equalled all present tyrants. The provinces surrounding Mexico are, by the route he took (according to what he himself writes in a letter to his chief who sent him), four hundred leagues distant from the kingdom of Guatemala: he advanced killing, ravaging, burning, robbing and destroying all the country wherever he came, under the above mentioned pretext, namely, that the Indians should subject themselves to such inhuman, unjust, and cruel men, in the name of the unknown King of Spain, of whom they had never heard and whom they considered to be much more unjust and cruel than his representatives. He also gave them no time to deliberate but would fall upon them, killing and burning almost at the same instant that his envoy arrived.

The Province and Kingdom of Guatemala

When he reached this kingdom, he began with a great massacre. Nevertheless the principal lord, accompanied by many other lords of Ultatlan, the chief town of all the kingdom went forth with trumpets, tambourines and great festivity to receive him with litters; they served him with all that they possessed, and especially by giving him ample food and everything else they could.

2. The Spaniards lodged outside the town that night because it seemed to them to be strong, and that they might run some risk inside it. The following day, the captain called the principal lord and many others, and when they came like tame lambs, he seized them and demanded so many loads of gold. They replied that they had none, because that country does not produce it. Guiltless of other fault and without trial or sentence, he immediately ordered them to be burned alive. [pg 353]
3. When the rulers throughout all those provinces saw that the Spaniards had burnt that one and all those chief lords, only because they gave them no gold, they all fled from their towns and hid in the mountains; they commanded all their people to go to the Spaniards and serve them as their lords, but that they should not, however, reveal to them their hiding place.
4. All the inhabitants came to offer themselves to his men and to serve them as their lords. This compassionate captain replied that he would not receive them; on the contrary, he would kill them all, if they did not disclose the whereabouts of their chiefs. The Indians answered that they knew nothing about them but that the Spaniards should make use of them, of their wives and children whom they would find in their houses, where they could kill them or do with them what they wished. And this the Indians declared and offered many times.

5. Stupefying to relate, the Spaniards went to the houses where they found the poor people working in safety at their occupations with their wives and children, and there they wounded them with their lances and cut them to pieces. They also went to a quiet, large and important town, where the people were ignorant of what had happened to the others and were safe in their innocence; within barely two hours they destroyed it, putting women, children, and the aged to the sword, and killing all who did not save themselves by flight.
6. Seeing that with such humility, submission, patience and suffering they could not break nor soften hearts so inhuman and brutal, and that they were thus cut to pieces contrary to every show or shadow of right, and that they must inevitably perish, the Indians determined to summon all their people together and to die fighting, avenging themselves as best they could on such cruel and infernal enemies; they well knew, however, [pg 354] that being not only unarmed but also naked and on foot, they could not prevail against such fierce people, mounted and so well armed, but must in the end be destroyed.
7. They constructed some pits in the middle of the streets, covered over with broken boughs of trees and grass, completely concealing them: they were filled with sharp stakes hardened by fire which would be driven into the horses's bellies if they fell into the pits. Once, or twice, did some horses fall in but not often, because the Spaniards knew how to avoid them. In revenge, the Spaniards made a law, that all Indians of whatsoever rank and age whom they captured alive, they would throw into the pits. And so they threw in pregnant and confined women, children, old men and as many as they could capture who were left stuck on the stakes, until the pits were filled: It excited great compassion to see them, particularly the women with their children.
8. They killed all the others with lances and knives; they threw them to savage dogs, that tore them to pieces and ate them; and when they came across some lord, they accorded him the honour of burning in live flames. This butchery lasted about seven years from 1524 to 1531. From this may be judged what numbers of people they destroyed.

9. Among the numberless horrible operations that this unhappy and accursed tyrant performed in this kingdom, together with his brothers, (for his captains and the others who helped him, were not less unhappy and senseless than he) was one very notorious one. He went to the province of Cuzcatan, in which, or not far distant, there is the town of San Salvador, which is a most delightful place extending all along the coast of the South Sea from forty to fifty leagues: and the town of Cuzcatan, which was the capital of the province, gave [pg 355] him the kindest of welcomes, sending him more than twenty or thirty Indians loaded with fowls and other provisions.
10. When he arrived, and had received the gift, he commanded that each Spaniard should take from that multitude of people, as many Indians as he pleased for his service during their stay there, whose duty should be to bring them everything they needed. Each Spaniard took a hundred, or fifty or as many as he reckoned would be sufficient for his service, and those innocent lambs bore with the distribution, and served with all their strength, and almost adored them.
11. In the meantime this captain asked the lords to bring him much gold, because it was principally to that end that they came. The Indians replied that they were happy to give all the gold they had, and they collected a very great quantity of the hatchets they use, which are made of gilded copper and look like gold, though there is little on them. The captain ordered that they should be tested and because he saw they were of copper, he said to the Spaniards: “to the devil with such a country! let us leave it since there is no gold and let each one put the Indians who serve him, in chains, and I will order that they be branded as his slaves.” This was done, and they marked as slaves with the King's brand, all they could bind. And I saw the son of the prince of that town thus branded.
12. When those Indians who escaped and the others throughout the land beheld such great iniquity, they began to collect and to arm themselves. The Spaniards did the greatest slaughter and massacre among them, after which they returned to Guatemala where they built a town; and it is that one which has now been by righteous decree of divine justice, destroyed by three deluges [pg 356]

together: the one of water, the other of earth and the third of stones much bigger than ten, and twenty oxen.

13. Having thus killed all the lords and the men who could have made war, they put all the others into the aforesaid infernal slavery; they demanded slaves as tribute, so the Indians gave their sons and daughters as they have no other slaves, all of whom they loaded into ships and sent to be sold in Peru. By other massacres and murders, besides the above, they have destroyed and devastated a kingdom more than a hundred leagues square, one of the happiest in the way of fertility and population in the world. This same tyrant wrote that it was more populous than the kingdom of Mexico; and he told the truth.
14. He and his brothers, together with the others, have killed more than four or five million people in fifteen or sixteen years, from the year 1524 till 1540, and they continue to kill and destroy those who are still left; and so they will kill the remainder.
15. It was his custom when he went to make war on some town or province, to take with him as many of the Indians as he could, to fight against the others; and as he led ten or twenty thousand and gave them nothing to eat, he allowed them to eat the Indians they captured. And so a solemn butchery of human flesh took place in his army where, in his presence, children were killed and roasted; and they would kill a man only to eat his hands and feet, which were esteemed the best bits. And all the people of the other countries, hearing of these villainies, were so terror stricken they knew not where to hide themselves.
16. They killed numberless people with the labour of building boats. From the South Sea to the North, a distance of a hundred and thirty leagues, they led [pg 357] the Indians loaded with anchors weighing seventy and eighty pounds each—some of which wore into their shoulders and loins. They also carried much artillery in this way on the shoulders of those poor naked creatures; and I saw many of them loaded with artillery, suffering along the roads.
17. They deprived the husbands of their wives and daughters, and gave them to the sailors and soldiers, to keep them contented and bring them on board the ships. They crowded Indians into the ships, where they all perished of hunger and thirst. And in truth, were I to recount

his cruelties one by one, I could make a big book that would astonish the world.

18. He built two fleets, each composed of many ships, with which he burnt, as though with fire from heaven, all those countries. Of how many did he make orphans! Of how many did he take away the children! How many did he deprive of their wives! how many wives did he leave without husbands! Of what adulteries, rapes and violence was he the cause! how many did he deprive of liberty! what anguish and calamity were suffered by many people because of him! what tears did he cause to be shed! what sighs! what groans! what solitude in this life and of how many has he caused the eternal damnation in the next! not only of the Indians—who were numberless—but of the unhappy Christians, of whose company he made himself worthy, with such outrages, most grave sins and execrable abominations. And I pray God, that he may have had compassion on him and be appeased with the bad death to which he at last brought him.⁹³

New Spain and Panuco and Xalisco

1. After the great cruelties and massacres, that have been described (besides those not mentioned) had been committed in the provinces of New Spain and that of Panuco another senseless and cruel tyrant⁹⁴ arrived in Panuco in the year 1525. By committing great cruelty and putting many in irons, and enslaving great numbers of freemen in the ways above told, and sending shiploads of them to the islands of Cuba and Hispaniola, where they could best be sold, he finished devastating all that province. Eighty Indians, reasonable beings, were given in exchange for a horse.
- 2.2. From Panuco, he was sent to govern the city of Mexico and all New Spain as President, with other great tyrants as Auditors: and the great evils, many sins and the amount of cruelty, robbery, and abomination he and they together committed, are beyond belief. They thus reduced all that country to such extreme ruin, that in two years they would have brought New Spain to the condition of the island of Hispaniola, had God not prevented them by the resistance of the Franciscan friars and afterwards, by the appointment of a Royal Audiencia composed of good men, friendly to all virtue.
- 3.3. One of this man's companions forced eight thousand Indians to work, without any payment or food, at building a wall around his great garden; they dropped dead from hunger but he showed no concern whatever.
- 4.4. When this president, of whom I said he finished devastating Panuco, learned that the said good royal Audiencia was coming, he found an excuse to go inland to discover some place where he might tyrannise; he forced fifteen, or twenty thousand men of the province of Mexico to carry the baggage of his expedition, of whom [pg 359] not two hundred returned, all the rest having perished under his tyranny.

- 5.5. He arrived in the province of Mechuacan, which is forty leagues distant from Mexico and similar to it, both in prosperity, and in the number of its people. The king and ruler came out to receive him with a procession of numberless people, rendering a thousand services and making him presents; he at once took the said king prisoner because he was reputed to have great riches of gold and silver: to force him to surrender his many treasures, the tyrant began to put him to the following tortures.
- 6.6. Having put his feet in stocks, with his body stretched and his hands tied to pieces of wood, they placed a pan of fire near his feet, and a boy with a sprinkler soaked in oil, sprinkled them every now and then to burn the skin well. On the one side there stood a cruel man with a loaded arbalist aimed at his heart: on the other stood another holding a terrible and fierce dog which, had he let it, would have torn the king to pieces in a moment; and thus they tortured him to make him disclose the treasures; until a Franciscan monk, being informed of it, delivered him from their hands, though he died at last of his tortures. They tortured and killed many lords and princes of the provinces in like fashion, to make them give up their gold and silver.
- 7.7. At this time a certain tyrant, going as inspector rather of the purses and the property of the Indians than of their souls and bodies, found that some Indians had hidden their idols, as the Spaniards had never taught them about another better God. He took the lords prisoner till they gave him the idols, thinking they would be of gold or silver, and because they were not, he punished them cruelly and unjustly.
- 8.8. And not to be defrauded of this purpose, which [pg 360] was to rob, he compelled the said lords to buy back the idols from him: they bought them with such gold and silver as they could find, to adore them as their God like they were accustomed. These are the works these wretched Spaniards perform, and the example that they give, and the honour they procure for God in the Indies.
- 9.9. This great tyrant passed from the province of Mechuacan into that of Xalisco, which was as full of people as a hive is of bees, most populous and most prosperous, because it is one of the most fertile and marvellous in the Indies. There was a certain town whose houses extended nearly seven leagues. On his arrival there, the lords

and people came joyfully forth, bearing gifts, as all the Indians are in the habit of doing when they go to receive any one.

- 10.10. He began to commit the usual cruelties and wickedness as all there are in the habit of doing, and much more besides, to obtain the object they hold as God, which is gold.
- 11.11. He burnt the towns, captured the lords, tortured them—made slaves of everybody he captured and led numbers away in chains. Women just confined were loaded down with the baggage they carried for the wicked Christians and, not being able to carry their infants for fatigue and the weakness of hunger, they threw them by the roadside where numbers perished.
- 12.12. One wicked Christian having seized a maid by force, to sin with her, the mother sprang to tear her away from him, but he seized a dagger, or sword, and cut off the mother's hand; and because the maid would not consent, he stabbed her and killed her.
- 13.13. Among many other free people he unjustly caused to be marked as slaves, were four thousand five hundred men, women, and nursing children of a year old; others also of two, three, four and five years old, although [pg 361] they went forth peacefully to meet him; there were numberless others that were not counted.
- 14.14. When the countless iniquitous and infernal wars and massacres were terminated, he laid all that country under the usual, pestilential and tyrannical servitude to which all the tyrant Christians of the Indies are in the habit of reducing these peoples. In which he consented that his own majordomos and all the others, should use cruelty and unheard of tortures to extract gold and tribute from the Indians.
- 15.15. One majordomo of his killed many peaceable Indians, by hanging, burning them alive, throwing them to fierce dogs, and cutting off their feet and hands and tearing out their tongues and hearts, for no other reason than to frighten them into submission and into giving him gold and tribute, as soon as they recognised him as the same celebrated tyrant. He also gave them many cruel beatings, cudgellings, blows and other kinds of cruelty every day and every hour.
- 16.16. It is told of him that he destroyed and burnt eight hundred towns in that kingdom of Xalisco: he goaded the Indians to rebellion out of sheer desperation, and after they saw such numbers perish so

cruelly, they killed some Spaniards, in which they were perfectly justified, and then retreated to the mountains.

17.17. Afterwards, the injustice and oppression of other recent tyrants who passed that way to destroy other provinces—which they called *discovering* them,—drove many Indians to unite and to fortify themselves among certain cliffs: against them the Spaniards have again perpetrated such cruelty, killing numberless people, that they have almost finished depopulating and destroying all that large country.

18.18. These wretched, blind men whom God has permitted to yield to reprobate appetite, do not perceive [pg 362] the Indians' cause, or rather the many causes sanctioned by every justice, and by the laws of nature, of God and of man, to cut them to pieces, whenever they have the strength and weapons, and to drive them from their countries: nor do they perceive the iniquity and great injustice of their own pretensions, which are condemned by all laws, not to mention the many outrages, tyrannies and grave and inexpiable sins they have committed against the Indians, by repeatedly making war on them: seeing nothing of this, they think and say and write, that the victories they obtain over the innocent Indians by destroying them, are all conceded to them by their God, because their iniquitous wars are just. Almost as though they rejoiced, and glorified, and rendered thanks to God for their tyranny: like those tyrant bandits did of whom the prophet Zacharias says in chapter eleven *Pasce pecora occisionis, quæ qui occidebant non dolebant, sed dicebant: Benedictus Deus, quia divites facti sumus.*

The Kingdom of Yucatan

1. In the year 1526, by lying and deceiving and by making offers to the King, as all the other tyrants have done till now to obtain offices and positions, so as to rob, another unhappy man⁹⁵ was elected governor of the kingdom of Yucatan.
- 2.2. This kingdom possessed a dense population, because the country is very healthy and abounding much more than Mexico in provisions and fruit: and honey was particularly abundant, more so than in any other part of the Indies thus far discovered.
- 2.3. The said kingdom has a circumference of about three hundred leagues. Its people were famous among [pg 363] all those of the Indies for prudence and cleanliness, and for having fewer vices and sins than any other; and they were very willing and worthy of being brought to the knowledge of God. A great town might have been built there by the Spaniards where they might have lived as in a terrestrial paradise had they been worthy; but, on account of their great avarice, stupidity and grave sins they were not; just as they have not been worthy to possess the many other countries that God has disclosed to them, in the Indies.
- 4.4. This tyrant, with three hundred men whom he brought with him, began by making cruel war on those good and innocent people, who kept within their houses without offending any one; and they killed and destroyed countless people.
- 5.5. The country produces no gold, and if it had he would have used up the people by working them in the mines; to coin gold therefore out of the bodies and souls of those for whom Jesus Christ died, he made slaves indifferently of all whom he did not kill; many ships were attracted thither by the news that slaves were to be had, all of which he sent back loaded with human beings whom he sold for wine, oil, vinegar, pork, clothing, horses and whatever else he and his men thought they needed.

- 6.6. He selected the most beautiful maid from fifty or a hundred, and gave her to him who chose her, in exchange for an aroba of wine, or oil, or for a pig; and similarly a handsome boy, chosen from among two hundred or three hundred, for the same amount. One boy, who seemed to be the son of a prince was given in exchange for a cheese; and a hundred people for a horse.
- 7.7. He continued with these operations from the year 1526 to 1533 which were seven years, ruining and depopulating those countries, and killing those people without pity, till news of the riches of Peru reached the place [pg 364] and the Spaniards left him, and that hell ceased for some days.
- 8.8. Afterwards, however, his ministers returned to commit more great evils, robbery, wickedness, and great offence against God: and neither have they ceased at the present time. Thus have they almost entirely depopulated all those three hundred leagues that were, as has been said, so densely peopled.
- 9.9. No one could believe, neither could the particular cases of cruelty that were done here, be related. I will only tell of two or three, that I remember.
- 10.10. On one occasion these wretched Spaniards set out with fierce dogs to hunt Indians, both women and men, and an Indian woman who was too ill to escape, took a cord and, so that the dogs should not tear her to pieces as they tore the others, she tied her little son of one year to one foot, and then hanged herself on a beam; she was not quick enough before the dogs came up and tore the child limb from limb, although a friar baptised it before it expired.
- 11.11. When the Spaniards were leaving the kingdom, one of them asked the son of a lord of a certain town or province to go with him; the child answered, that he did not wish to leave his country: the Spaniard replied, "come along with me, or I will cut off your ears"; as the boy said that he would not, the man seized a dagger and cut off one of his ears, and then the other; and on the boy still saying that he would not leave his country, he slit his nostrils, laughing as though he were only giving him a pinch.
- 12.12. This lost soul lauded himself, and shamelessly boasted before a venerable monk that he tried his best to get many Indian women

with child, because when they were pregnant he got a better price on selling them for slaves.

- 13.13. In this kingdom, or possibly in a province of New Spain, a Spaniard went hunting game, or rabbits, with his dogs; one day, not finding anything to hunt, it seemed to him that the dogs were hungry, so he seized a little child from its mother and cut off its arms and legs with a dagger, giving each dog its portion and when they had eaten these pieces he threw that little body on the ground for all of them together.
- 14.14. Consider only the inhumanity of the Spaniards in these parts and how God has let them fall into reprobate appetite; consider of what account they hold these people who are created in God's image and redeemed by His blood. But we shall see worse things below.
- 15.15. Leaving the infinite and unheard of cruelties perpetrated by those who call themselves Christians, in this kingdom where there is no justice worth speaking of, I will conclude with this only: that when all the infernal tyrants had left, eager for and blinded by the riches of Peru, Fray Jacomo proceeded, with four monks of his Order of St. Francis, to that kingdom, to pacify it, and to preach and bring to Jesus Christ the remnant of people left from the infernal harvesting and the tyrannical massacres committed by the Spaniards during seven years; and I think that these monks went there in the year thirty-four.
- 16.16. They sent ahead certain Indians from the province of Mexico as messengers, to inquire whether the natives were satisfied that the said monks should enter their country, to bring them news of the one only God, who is God and true Lord of all the world.
- 17.17. They [the Indians] assembled many times and consulted about the thing, having first made many inquiries as to what sort of men these were, who called themselves *fathers* and *brothers*, and as to what they laid claim; and in what they were different from the [pg 366] Christians from whom they had suffered so many offences and such injustice.
- 18.18. They resolved at last to receive them, on the condition that they came alone with no Spaniards. The monks promised this because the Viceroy of New Spain had granted them this privilege and had given orders that no more Spaniards except the monks were to be allowed

to enter the country, nor should the Indians suffer any harm from the Christians.

- 19.19. The friars, as is their custom, preached to those people the gospel of Christ, and the holy intentions of the king of Spain towards them. With such love and pleasure did they receive the doctrine and example of the monks, and so greatly did they rejoice over the news of the kings of Castile, of whom in all the past seven years the Spaniards had never given them information nor that there was any king other than he, who tyrannised and destroyed here, that after the monks had preached there forty days, the lords of the country brought and consigned to them all their idols that they might burn them.
- 20.20. And afterwards they gave them their own children, whom they love more than the light of their eyes, that they might train them. And they built them churches, monasteries and houses: and friars, were invited to other provinces, to preach and bring the natives to the knowledge of God and of him whom they called the great king of Castile.
- 21.21. And, persuaded by the monks, the Indians did a thing never done again up to the present day; and all that some of those Tyrants pretend about those kingdoms being destroyed by the friars, is falsehood and lies.
- 22.22. Twelve or fifteen lords, each ruling many vassals and large territories, assembled their people and, after taking their votes and consent, subjected themselves [pg 367] of their own will to the dominion of the kings of Castile, receiving the Emperor, as King of Spain, for their supreme and universal sovereign; and they made some sinas, like signatures, which I have in my possession, together with the attestations of the said friars.
- 23.23. Just when this growth of faith inspired the friars with great joy and hope of drawing to Jesus Christ the still numerous people of that kingdom who survived the murders and unjust wars, eighteen Spanish tyrants on horse entered a certain part of the country with twelve others on foot, which makes thirty, and they brought with them many loads of idols taken from the Indians in other provinces.
- 24.24. And the captain of the said thirty summoned a lord of the country where he had entered, and told him that he must take those loads of

idols and distribute them throughout his country, trading each idol for an Indian man or woman, to make them slaves; he threatened to make war on the chief if he refused.

- 25.25. Forced by fear, the said lord distributed the idols throughout all this territory and commanded all his vassals that they should accept and adore them, and give him Indian men and women as slaves for the Spaniards. In alarm, the Indians who had two children gave one of them, and those who had three gave two; and in this way they concluded that sacrilegious commerce and the lord, or prince satisfied the Spaniards.
- 26.26. One of these impious and infernal bandits, called Juan Garcia, when ill and near death, had under his bed two loads of idols and he commanded an Indian woman who served him, to be very careful not to exchange those idols for fowls, but each one for a slave because they were very valuable. And finally with this testament and occupied with this thought the unhappy man died. And who doubts that he is buried in hell?
- 27.27. Consider therefore of what profit are the religion and the examples of Christianity of the Spaniards who go to the Indies; what honour they procure for God; how they work that he may be known and adored by those people; what care they take that His holy faith be sown, grow and expand in those souls. And judge whether this be a less sin than Jeroboam's qui peccare fecit Israel by making two golden calves, for the people to adore. Or whether it equals that of Judas or causes more scandal.
- 28.28. These then are the deeds of the Spaniards who go to the Indies; in their desire for gold they have numberless times sold, and do sell, and have forsworn Jesus Christ.
- 29.29. When the Indians saw that the promise the monks made them that the Spaniards should not enter those provinces did not come true, and that the same Spaniards brought their idols from other countries to sell, after they had given all their own gods to the monks to be burned, so that they might adore the one true God, they became tumultuous and the whole country was enraged with the friars, to whom they said:
- 30.30. Why have you lied and deceived us saying that Christians could not enter this country? And why have you burnt our gods when your

Christians bring gods from other provinces to sell to us? Were perhaps our gods not better than those of other nations?

- 31.31. The friars having nothing to reply, calmed them as best they could. They sought out the thirty Spaniards, telling them the harm they had done and beseeching them to depart, but they would not go; on the contrary they gave the Indians to understand, that it was the friars themselves who had made them come there,—which was the height of all malice.
- 32.32. At last the Indians determined to kill the friars; [pg 369] being warned by some Indian, the latter escaped one night. And when the friars had left, and the Indians perceived their innocence and virtue and the malice of the Spaniards, they sent messengers a distance of fifty leagues after them, praying them to return, and asking their pardon for the anxiety they had caused them.
- 33.33. The friars, being servants of God and zealous for those souls, gave them credence, and returned to the country where they were received like angels, the Indians rendering them a thousand services; and they stayed there four or five months longer.
- 34.34. As that country was so distant from New Spain, the Viceroy's efforts to expel those Christians from it were fruitless, and they persisted in remaining there although he had them proclaimed traitors; and because they never ceased their outrages and habitual oppression of the Indians, it seemed to the monks that, sooner or later the natives would become disgusted with such perverse works, and that perhaps the evil consequences would fall on them, especially as the evil deeds of the Spaniards constantly disturbed the Indians and prevented them from preaching to them in tranquillity. They therefore determined to abandon the kingdom.
- 35.35. Thus the country was left without the light and help of doctrine; and those souls were abandoned to the obscurity of ignorance and misery, in which they formerly were. The Indians were deprived, till better times should come, of assistance and the diffusion of the knowledge of God, which they had been already receiving with eagerness; it was just as though we were to deprive plants of water a few days after planting them: and this was brought about by the inexpiable fault and consummate malice of those Spaniards.

[pg 370]

The Province of Santa Maria

1. The province of Santa Marta was a country where the Indians had a great deal of gold because both it and the places round about have rich mines which were diligently worked. And for this reason, from the year 1498 till the present 1542, numberless Spanish tyrants have continually gone there with ships to ravage and kill those people and to steal their gold. They afterwards returned in the ships with which they made numerous expeditions, murdering and massacring, with notorious cruelty; this commonly occurred along the seacoast and a few leagues inland, till the year 1523.
- 2.2. In the year 1523 some Spanish tyrants went to take up their abode here. And because the country, as has been said, was rich, divers captains succeeded one another, each crueller than the other, so that it seemed as though each had made a vow to practise more exorbitant evils and cruelty than the other, in verification of the rule we have given above.
- 3.3. In the year 1529 there arrived a great tyrant accompanied by many men, devoid of any fear of God or any mercy on mankind; so great were the massacres, slaughter and impiety he perpetrated, that he surpassed all his predecessors. During the space of six, or seven years that he lived, he and his men stole much treasure.⁹⁶
- 4.4. He died without sacraments after also avoiding the commission of investigation met on his account; and afterwards, other murderous and thieving tyrants succeeded, who continued to destroy those people who [pg 371] had survived the treatment and cruel swords of their predecessors.
- 5.5. They marched far inland, ruining and exterminating large and numerous provinces; killing, and making slaves of their people in the ways above told of the others, putting lords and their vassals to grievous tortures to force them to disclose the gold and the town

where it was to be had: as has been said they surpassed, both in number and quality, the operations of all their predecessors so that from the said year 1529, till to-day, they have devastated in those parts more than four hundred leagues of country, which was as densely peopled as the other.

- 6.6. I truthfully declare that if I had to relate singly the evil, the massacres, the destruction, injustice, violence, slaughter, and the great sins the Spaniards have committed in this Kingdom of Santa Marta, against God, against the King, and against those innocent nations, I would compose a very long history; I shall relate all this however in due time, if God gives me life.
- 7.7. Here I wish only to quote some few of the words that the lord bishop of that province now writes to the King: and the date of his letter is the 20th of May, 1541, in which among other words he says thus:
- 8.8. “I assert, oh Sacred Cæsar, that the way to remedy the ills of this country is for Your Majesty to now take it out of the hands of step-fathers and to give it a husband, who will treat it justly, and as it deserves; and this as soon as possible because otherwise I am certain that the way these tyrants who now have the government, crush and harass it, will very soon destroy it,” etc.
- 9.9. And further on he says: “therefore Your Majesty will clearly discern that those who govern in these parts, deserve to be destroyed, to relieve the republics. And if this is not done, their infirmities are, in my opinion, [pg 372] without remedy. And Your Majesty will know in like manner that in these parts there are no Christians but demons; neither are there servants of God nor of the King, but traitors to His law, and to the King.”
- 10.10. “Because in truth, the greatest obstacle I find to winning the Indians from war to peace, and from peace to the knowledge of our Holy Faith, is the harsh and cruel treatment that the peaceable ones receive from the Christians.”
- 11.11. “They have on this account become so fierce and enraged, that nothing is more hated or abhorred by them, than the name of Christians, whom in all this country they call in their language Yares, which means demons; and without doubt they are right,

because the deeds they do here are not those of Christians nor of reasonable men, but of devils.”

- 12.12. “From which it arises, that the Indians, seeing these perverse operations are general, and that both the commanders and the subordinates are so devoid of mercy, think that such is the law of the Christians, of which their God and their King are the authors. And to try to persuade them to the contrary is like trying to dry up the sea, and only makes them laugh and jeer at Jesus Christ and His law.”
- 13.13. “And the Indian warriors, seeing the treatment shown the peaceable people, count it better to die once, than many times in the power of the Spaniards; I know this most invincible Caesar from experience” etc.
- 14.14. And in a chapter further on he says: “Your Majesty has more servants in these parts than is supposed; because there is not a soldier among those here who, while he is assassinating, or robbing, or destroying, or killing, or burning Your Majesty's vassals to force their gold from them, does not make bold to claim that he is serving Your Majesty. It would therefore be well, Most [pg 373] Christian Cæsar, that Your Majesty should make known by rigorously punishing some of them, that such services as are contrary to the service of God, are not accepted.”
- 15.15. All the above are formal words of the said Bishop of Santa Marta, and from them it will be clearly seen what is done to-day in these unfortunate countries, and to these innocent people.
- 16.16. By "Indian warriors" he means those who live in the mountains and have been able to escape from massacres perpetrated by the unhappy Spaniards. And he terms “peaceable” those Indians whom the Spaniards, after having killed numberless people, condemn to the aforesaid tyrannical and horrible slavery, in which they then finish destroying and killing them, as appears from the quoted words of the bishop: and in truth very little indeed does he express, of what they suffer.
- 17.17. When the Spaniards make them labour, carrying loads over the mountains, they kick and beat them, and knock out their teeth with the handles of their swords, to force them to get up when they fall, fainting from weakness, and to go on without taking breath; and the Indians commonly exclaim; “go to, how wicked you are: I am worn

out so kill me here, for I would rather die now and here.” And they say this with many sighs and gasps, showing great anguish and grief.

- 18.18. Oh! who could express the hundredth part of the affliction and calamity that these innocent people suffer from the unhappy Spaniards! May God make it known to those who can, and ought to remedy it.

The Province of Cartagena

1. This province of Cartagena lies westward and fifty leagues below that of Santa Marta, and bordering on that of Cenù as far as the Gulf of Urabà: it comprises [pg 374] about a hundred leagues of seacoast and a large territory inland towards the south.
- 2.2. These provinces have been as badly treated as those of Santa Marta, distressed, killed, depopulated and devastated, from the year 1498 or 99 until to-day, and in them many notorious cruelties, murders, and robberies have been committed by the Spaniards; but in order to finish this brief compendium quickly and to recount the wickedness done by them elsewhere, I will not describe the details.

The Pearl Coast

Paria, and the Island of Trinidad

1. Great and notorious have been the destruction that the Spaniards have worked along the Coast of Paria, ⁹⁷ extending for two hundred leagues as far as the Gulf of Venezuela, assassinating the inhabitants and capturing as many as they could alive, to sell them as slaves.
- 2.2. They frequently took them by violating their pledged word and friendship, the Spaniards failing to keep faith, while the Indians received them in their houses, like fathers receive their children, giving them all they possessed and serving them to the best of their ability.
- 3.3. Certainly it would not be easy to relate, or describe minutely the variety and number of the injustices, wrongs, oppressions, and injury practised upon the people of this coast by the Spaniards from the year 1510 up to the present day. I will relate but two or three instances from which the villany and number of the others, [pg 375] worthy of punishment by every torment and fire may be judged.
- 4.4. In the island of Trinidad which joins the continent at Paria, and is much larger and more prosperous than Sicily, there are as good and virtuous people as in all the Indies; an assassin going there in the year 1516, with sixty or seventy other habitual robbers, gave the Indians to understand that they had come to dwell and live in that island along with them.
- 5.5. The Indians received them as though they were children of their own flesh and blood, the lords and their subjects serving them with the greatest affection and joy, bringing them every day double the amount of food required; for it is the usual disposition and liberality of all the Indians of this new world to give the Spaniards in excess of all they need and as much as they themselves possess.
- 6.6. In accordance with the Spaniards' wish, they built one great house of timber, where all might live: they needed no more than one in order to carry out what they had in mind and afterwards accomplished.
- 7.7. When they were putting the straw over the timbers and had covered about the height of two paces so that those inside no longer saw

those without, the Spaniards, under pretence of hurrying on the completion of the house, induced many people to go inside; meanwhile they divided, some surrounding the house outside, with their weapons ready for the Indians who should come out, and the others stationing themselves inside the house. The latter drew their swords and threatening the naked Indians with death if they moved, they began to bind them, while some who ran out seeking to escape were cut to pieces with swords.

- 8.8. Some who got out, wounded, and others sound, joined with one or two hundred natives who had not [pg 376] entered the house, and arming themselves with bows and arrows they retired to another house of the community's to defend themselves; while they defended the door however, the Spaniards set fire to the house, and burnt them alive; they then took the prey they had captured, amounting to perhaps a hundred and eighty or two hundred men, and carried them bound to their ship. Hoisting sail they departed for the island of San Juan, where they sold one half as slaves, and afterwards to Hispaniola, where they sold the remainder.
- 9.9. When I at the time reproved the captain in the same island of San Juan for such infamous treachery and malice, he replied "Go to, Senor, thus was I commanded, and instructions were given me by those who sent me, that if I could not capture them in war, I should take them under pretext of peace."
- 10.10. And in truth he told me that in all his life he had found neither father nor mother, if not in the island of Trinidad; such were the good services the Indians had rendered him. This he said to his greater shame and the aggravation of his sins.
- 11.11. Numberless times have they done these things on this continent, capturing people and making them slaves under promise of safe conduct. Let it be seen what sort of acts these are: and whether those Indians taken in such a way, are justly made slaves.
- 12.12. Another time the friars of our Order of St. Dominic determined to go and preach to those people and convert them, for they were without the hope or the light of doctrine by which to save their souls, as they still are to-day in the Indies; they sent a monk, who was a theological scholar of great virtue and sanctity, accompanied by a serving friar as his companion; his object was to see the

country, become intimate with the people, and seek convenient sites to build monasteries.

- 13.13. When the monks arrived, the Indians received them as angels from heaven, and listened with great affection, attention, and joy to those words which they could make them understand more by signs than speech, as they did not know the language.
- 14.14. It happened that after the departure of the vessel that had brought the monks, another ship arrived there; the Spaniards on board of it practising their infernal custom, deceitfully enticed the lord of that land, named Don Alonso, on board without the monks perceiving it; either the friars or some other Spaniards, had given him this name, for the Indians like and desire Christian names and at once ask to have them, even before they know enough to be baptised. So they deceived the said Don Alonso, to make him come aboard their ship, with his wife and certain other persons, by telling him they would prepare a feast there for him.
- 15.15. At last seventeen persons went on board with the lord and his wife, confident that as the monks were in the country, out of respect for them, the Spaniards would not do anything wicked; because otherwise they would not have trusted them. Once the Indians were on the ship, the traitors set sail and were off to Hispaniola, where they sold them for slaves.
- 16.16. On seeing their lord and his wife carried off, all the Indians came to the friars intending to kill them. The friars were like to die for sorrow on beholding such great villany, and it may be believed they would have rather given their lives than that such injustice should have been done; especially as it impeded those souls from ever hearing or believing the word of God.
- 17.17. They called the Indians as best they could and told them that by the first ship that passed there, they would write to Hispaniola and bring about the restoration of their lord and of the others who were with him. For [pg 378] the greater confirmation of the damnation of those who were governing, God caused a ship to come at once to hand. The monks wrote to their brethren in Hispaniola lamenting and protesting repeatedly. The auditors never would do justice, because they themselves had divided a share of the Indians so barbarously and unjustly carried off by the tyrants.

- 18.18. The two monks who had promised the Indians that their lord, Don Alonso, together with the others, should return in four months' time, seeing that they did not come, neither in four, nor in eight months prepared for death, and to give their lives to those to whom they had consecrated them before they left. And so the Indians took vengeance upon them, killing them justly, although they were innocent: because it was believed that the monks had been the cause of that treachery, and because they saw that what had been faithfully promised them within four months was not fulfilled; and also because up to that time and up to the present day they neither knew, nor know, that there is a difference between the friars and the Spanish tyrants, bandits, and assassins of all that country.
- 19.19. The blessed friars suffered unjustly, and by that injustice there is no doubt that, according to our holy faith, they are true martyrs, and reign blissfully to-day with God in the heavens; for they were sent to that land under obedience, and their intention was to preach and spread the holy faith, to save all those souls and to suffer every kind of affliction and death that might be offered them for Jesus Christ crucified.
- 20.20. Another time, through the great tyranny and execrable works of the wicked Spaniards, the Indians killed two monks of St. Dominic and one of St. Francis, of which I myself am a witness, for I escaped the same death by divine miracle; so serious and horrible was [pg 379] the case I might have much to say that would amaze mankind, but on account of the length of the narration I will not relate it here nor until the time comes. The last day will disclose all more clearly, for God will then avenge such horrible and abominable outrages as are done in the Indies by those who bear the name of Christians.
- 21.21. Another time there was a town in the provinces called Capo della Codera, the lord of which was called Nigoroto; this is either a personal name or else one common to all the lords of that country.
- 22.22. He was so kind and his people so virtuous, that when the Spanish ships passed there the Spaniards found comforts, provisions, rest, and every consolation and refreshment, and many did he deliver from death, who, wasted with hunger, took refuge there from other provinces where they had assassinated, and practised evil and tyranny. He gave them food and sent them safe to the Pearl Island

[Cubagua], where some Christians dwelt, whom he could have slain, without any one knowing it, and did not: all the Christians finally called Nigoroto's town the mansion and home of everybody.

- 23.23. An ill-starred tyrant deliberated within himself to attack this place, as the people felt so safe: so he went there with a ship and invited many people to come on board, as they were used to, trusting the Spaniards. When many men, women, and children were gathered in the ship, he set sail and came to the island of San Juan, where he sold them all as slaves. And I arrived just then at the said island and saw that tyrant and heard what he had done.
- 24.24. He left all that country ruined; and all those Spanish tyrants, who robbed and assassinated along those coasts took it ill, and detested so dreadful a deed because they lost the asylum and dwelling place they had had there as though in their own houses.
- 25.25. To abbreviate, I omit the narration of the tremendous wickedness and fearful deeds that have been committed, and are committed to-day in these countries.
- 26.26. They have taken more than two million ruined souls from that populous seacoast to the island of Hispaniola, and to that of San Juan, where they have likewise caused their death in the mines and other works, of which there were many, as has been said above. And it excites great compassion and sorrow to see all that most delightful coast deserted and depopulated.
- 27.27. It is certainly true, that never does a ship sail loaded with kidnapped and ruined Indians (as I have told) without the third part of those that embarked, being thrown dead into the sea, besides those that they kill in effecting their capture.
- 28.28. The reason of this is, that as they need many men to accomplish their aim of making more money from a greater number of slaves, they carry but little food and water, so as to save expense to the tyrants, who call themselves privateers; they have enough for only a few more people than the Spaniards who man the ships to make the raids; as these miserable Indians are in want and die of hunger and thirst, the remedy is to throw them in the sea.
- 29.29. And in truth, one of them told me, that from the Lucayan Islands, where very great havoc of this sort was made, to the Island of Hispaniola, which is more than sixty or seventy leagues, a ship is

supposed to have gone without compass or nautical chart, finding its course by the trail of dead Indians who had been thrown out of ships and left in the sea.

- 30.30. When they are afterwards disembarked at the island where they are taken to be sold, it is enough to break the heart of whomsoever has some spark of [pg 381] compassion to see naked, starving children, old people, men, and women falling, faint from hunger.
- 31.31. They then divide them like so many lambs, the fathers separated from the children, and the wives from the husbands, making droves of ten or twenty persons and casting lots for them, so that each of the unhappy privateers who contributed to fit out a fleet of two or three vessels, and the tyrant villains who go to capture and prey upon the natives in their homes, receives his share.
- 32.32. And when the lot falls on a drove in which there is some old or ill person, the tyrant who gets it, says: "Why in the devil do you give this old man to me? That I shall bury him? Why should I take this ill one? To nurse him?" It may be seen how the Spaniards despise the Indians and whether they carry out the precept of divine love to one's neighbour, upon which rest the law and the prophets.
- 33.33. The tyranny exercised by the Spaniards upon the Indians in fishing pearls, is as cruel, and reprehensible a thing as there can be in the world. Upon the land there is no life so infernal and hopeless as to be compared to it, although that of digging gold in the mines is the hardest and worst.
- 34.34. They let them down into the sea three and four and five fathoms deep, from the morning till sunset. They are always swimming under water without respite, gathering the oysters, in which the pearls grow.
- 35.35. They come up to breathe bringing little nets full of them; there is a hangman Spaniard in a boat and if they linger resting, he beats them with his fists, and, taking them by the hair, throws them in the water to go on fishing.
- 36.36. Their food is fish and the fish that contain the pearls, and a little cazabi or maize bread, which are [pg 382] the kinds of native bread: the one gives very little sustenance and the other is very difficult to make, so with such food they are never sufficiently nourished. In-

stead of giving them beds at night, they put them in stocks on the ground, to prevent them from escaping.

- 37.37. Many times the Indians throw themselves into the sea while fishing or hunting pearls and never come up again, because dolphins and sharks, which are two kinds of very cruel sea animals that swallow a man whole, kill and eat them.
- 38.38. From this it may be seen, whether the Spaniards who thus seek profit from the pearls, observe the divine precepts of love to God and one's neighbour; out of avarice, they put their fellow creatures in danger of death to the body and also to the soul; because they die without faith and without sacraments.
- 39.39. They lead the Indians such a wretched life that they ruin and waste them in a few days; for it is impossible for men to live much under water without respiration, especially because the cold of the water penetrates their bodies and so they generally all die from hæmorrhages, oppression of the chest caused by staying such long stretches of time without breathing; and from dysentery caused by the frigidity.
- 40.40. Their hair, which is by nature black, changes to an ashen colour like the skin of seals, and nitre comes out from their shoulders so that they resemble human monsters of some species.
- 41.41. With this insupportable toil, or rather, infernal trade, the Spaniards completed the destruction of all the Indians of the Lucayan Islands who were there when they set themselves to making these gains; each one was worth fifty and a hundred crowns, and they were sold publicly, although it had been prohibited by the magistrates themselves; it was even more unjust elsewhere for the [pg 383] Lucayans were great swimmers. They have caused the death of numberless others here, from other provinces, and other regions.

The Yuyapari River

On a river called the Yuyapari, which flows for more than two hundred leagues through the province of Paria, a wretched tyrant⁹⁸ sailed a great distance in the year 1539, accompanied by four hundred or more men; and he did very great slaughter, burning alive and putting to the sword numberless innocent and inoffensive people who were in their towns or houses, unsuspecting of danger; and he left immense tracts of country burnt, terrorized, and the inhabitants scattered. He finally died a bad death and his fleet was dispersed. Other tyrants succeeded him and continued this wickedness and tyranny: and to-day they go through those regions destroying, killing, and sending to hell those souls that were redeemed by the son of God with His own blood.

The Kingdom of Venezuela

1. The Spaniards have always exercised diligent care to hide the truth from our lord the King about injuries and losses to God, to human souls, and to his State; and in the year 1526, he was deceived and perniciously persuaded into giving and conceding to some German merchants, the great kingdom of Venezuela which is much larger than all Spain; the entire management of the government and all jurisdiction were conceded under a certain agreement and compact, or condition that was made with them.⁹⁹
- 2.2. These men invaded these countries with a force of three hundred or more and found the people the same gentle lambs, (and much more so), as they usually find them everywhere in the Indies before the Spaniards injure them.
- 3.3. More cruel beyond comparison than any of the other tyrants we have told of, was their invasion; and more irrational and furious were they than the cruellest tigers, or raging wolves and lions. Their liberty of action was the greater because they held all the jurisdiction of the country; with greater eagerness and blind greediness of avarice, and with ways and arts for stealing and accumulating gold and silver more exquisite than their predecessors, they abandoned all fear of God and the King and all shame of men, forgetting that they were mortal beings.
- 4.4. These devils incarnate have devastated, destroyed, and depopulated more than four hundred leagues of most delightful country containing large and marvellous provinces, valleys extending for forty leagues, pleasant regions, very large towns, most rich in gold.
- 5.5. They have killed and entirely cut to pieces divers large nations and destroyed many languages, so that not a person who speaks them remains, except a few, who have hidden in caverns and in the bowels of the earth to escape from the pestilential sword of the foreigners.

66. They have killed, destroyed, and sent to hell, (according to my belief), more than four or five millions of those innocent races by means of various strange and new kinds of cruel iniquity and impiety; nor do they, at the present day, cease sending them there.
- 7.7. I will relate no more than three or four instances of the endless injustice, outrages, and slaughter they have done, and are doing to-day; it may be imagined [pg 385] from these what they must have done to accomplish the great destruction and depopulation we have described.
- 8.8. They took the supreme lord of all the province, putting him to torture, for no other reason than to obtain his gold. He escaped and fled to the mountains, where he remained in hiding amongst the rocks, with his enraged and terrified people. The Spaniards attacked them in their search for him; they recaptured him and, after cruel slaughter, they sold at auction all whom they took alive.
- 9.9. Before they captured that ruler, they had been received in many, nay in all the provinces, wherever they went, with singing and dances and many gifts of large quantities of gold; the payment they made the Indians was to put them to the sword and cut them to pieces in order to terrorise the whole country.
- 10.10. Once, when the inhabitants had come out to meet him in the aforesaid way, the tyrant German captain put a great number of people into a large straw louse and cut them to pieces. As the house had some beams at the top and many climbed up to escape from the bloody hands and swords of those men or pitiless beasts, this infernal man caused fire to be set to the house; thus all who remained were burnt alive. This action caused the depopulation of a great number of towns as all the people fled to the mountains where they hoped to be safe.
- 11.11. They came to another large province on the borders of the province and kingdom of Santa Marta, where they found the Indians in their towns and houses, peaceably occupied with their affairs. They stayed with them a long time, eating their substance while the Indians served them as though it were their duty to give them life and succour; they bore with their continual oppressions [pg 386] and usual exactions, which are intolerable, for one parasite Spaniard eats

as much in one day as would be sufficient for an Indian household of ten persons for a month.

- 12.12. During this time, the Indians spontaneously gave them great quantities of gold, besides the best of treatment. At last when the tyrants wished to depart, they determined to repay their hospitality in this following manner.
- 13.13. The German governor, who was a tyrant and, for what we know also a heretic—for he never attends mass neither does he let many others go, besides which, other signs mark him as a Lutheran,—ordered his men to capture all the Indians they could, with their wives and children, and to confine them in a large yard or wooden enclosure prepared for the purpose; he then announced that whoever wished to go out and be free, must ransom himself according to the will of the iniquitous governor, giving so much gold for himself, so much for his wife and for each of his children; and to force them the more, he commanded that nothing whatever should be given them to eat, until they brought him the gold he demanded as ransom.
- 14.14. Many who were able, sent to their houses for gold and redeemed themselves. They were set free, and returned to their occupations and to their houses to provide themselves with the necessities of life. The tyrant sent certain villainous Spanish thieves to recapture these miserable Indians, who had once ransomed themselves; they brought them back to the enclosure and tortured them with hunger and thirst to make them ransom themselves again.
- 15.15. Many who were captured were ransomed two and three times. Others who could not, because they had given all the gold they possessed and had not enough [pg 387] left, he left languishing in the enclosure till they died of hunger.
- 16.16. By this deed, he left ruined, desolate, and depopulated, a most populous province most rich in gold, which has a valley of forty leagues, where he burnt a town that had a thousand houses.
- 17.17. This infernal tyrant determined to go inland, as he eagerly desired to discover the hell of Peru in those parts. To make this unhappy journey, he, and the others brought numberless Indians, chained to one another, carrying loads of sixty, and seventy pounds each.
- 18.18. If one tired, or fainted from hunger, fatigue, and weakness, they at once cut off his head at the collar of the chain so as not to stop to

loosen the others in the line; and the head fell to one side and the body to the other, and they distributed his load among the other bearers.

1919. To tell of the provinces he destroyed, the towns, and places he burnt (for all the houses are built of straw)—the people he killed, the cruelty he displayed in the several massacres during this journey, would make an incredible and terrifying story, but it would be true, nevertheless.
- 20.20. These journeys were afterwards undertaken by other tyrants who followed in the same Venezuela, and others from the province of Santa Marta, animated by the same holy intention of discovering this holy house of gold in Peru; and they found all the country for more than two hundred leagues, so much burnt, depopulated, and deserted, from formerly being most populous and prosperous, as has been said, that though they themselves were cruel tyrants, they marvelled and were horrified to behold the traces of such lamentable devastation.
- 21.21. Many witnesses have proved these things before the chancellor of the exchequer of the India Council and the proofs are in the possession of the same Council but they have never burnt alive any of these nefarious tyrants.
- 22.22. But what has been proven is as nothing compared to the massacres and great wickedness that have been committed, because all the officers of justice in the Indies are so mortally blind that they do not investigate the crimes, destruction, and slaughter that have been, and are to-day wrought by all the tyrants of the Indies, beyond declaring that as such and such a one has used cruelty towards the Indians, the King's revenue has lost so many thousand crowns; they are satisfied with little proof, and that of a very general and confused character.
- 23.23. And even this they do not verify, nor make it as clear as they should; for if they did their duty to God and the king, they would discover that the said German tyrants have robbed the king of more than three million crowns' worth of gold, because that province of Venezuela, with the others they have ruined, devastated, and depopulated for an extent of more than four hundred leagues, (as I have said) was the most prosperous, the richest in gold, and the most populous of the universe.

- 24.24. During the sixteen years those tyrants, enemies of God, devastated it, they have wasted and caused the loss of more than two millions of revenue that the king of Spain would have drawn from that kingdom. Nor is there hope of repairing this damage between now and the end of the world, unless God, through a miracle, should resuscitate so many million persons.
- 25.25. These are the temporal injuries to the king. It would be well to consider what, and how many are the injuries, the dishonour, blasphemies, and insults to God [pg 389] and His law, and with what will be requited so many numberless souls, burning in hell, because of the avarice and cruelty of these tyrant animals or Germans. ¹⁰⁰
- 26.26. To sum up this wickedness and ferocity, I will only say that from the day the Germans entered the country till the present time, that is in these sixteen years, the Indians they have transported in their ships amount to more than a million who were sold as slaves in Santa Marta, Hispaniola, Jamaica, and the island of San Juan.
- 27.27. And even now, in the year 1542, the traffic continues, for the royal Audiencia of Hispaniola dissembled—nay favoured this and all the other numberless acts of tyranny and destruction done along all that coast of the continent, which is more than four hundred leagues from Venezuela to Santa Marta, and is under their jurisdiction, though they could have prevented and corrected them.
- 28.28. There has been no other reason to make slaves of all these Indians except the perverse, blind, obstinate will of these most avaricious tyrants, and to satisfy their insatiable avarice for money; just as all the others have always done everywhere in the Indies, taking those lambs and sheep away from their houses, their wives, and their children in the said cruel and wicked ways, marking them with the king's brand to sell them as slaves.

The Provinces of that Part of the Continent which is Called Florida

1. These provinces¹⁰¹ have been visited at divers times [pg 390] since the year 1510 or 1511 by three tyrants who imitated the deeds done by the others, and also by two of them in other parts of the Indies seeking to advance to a degree disproportioned to their merit, at the cost of the blood and destruction of their fellow creatures.
- 2.2. And all three died a bad death, and their families and properties established in human blood, perished, for I am witness of all three, whose very memory is already as extinct in the world as though they had never lived.
- 3.3. The infamy and horror of their names scandalised all the land because of some massacres they perpetrated: these were not many, however, for God killed them before they did more, for He had reserved till that hour the punishment for the wickedness that I know and saw they committed in other parts of the Indies.
- 4.4. The fourth tyrant went there recently, in the year 1538, with his plans made and with great preparations. Since three years nothing has been seen or heard of him.
- 5.5. We are sure, that as soon as he landed he committed cruel deeds and at once disappeared: and that, if he be alive, he and his men have destroyed numbers of people in these three years, if he encountered any on his march, for he is one of the notorious, and experienced ones who, together with his other companions, has done the most harm and wickedness, and has destroyed many provinces, and kingdoms. But we rather believe that God has given him the same end as the others.
- 6.6. Three or four years after the above things were written, three of the other tyrants returned from the land called Florida; they had accompanied the chief tyrant whom they left dead, and we learned from them what cruelty and unheard of wickedness, these inhuman men committed there against those innocent and harmless Indians, principally during the life of their [pg 391] commander and also

after his unhappy death: therefore what I foretold above has not turned out wrong.

- 7.7. And so many things confirm the rule I laid down at the beginning: that the more they continue to discover, ruin, and destroy both peoples and countries, the more notorious are the cruelties and iniquities they commit against God and their fellow creatures.
- 8.8. It is already wearisome to us to relate so many, and such execrable, horrible, blood-thirsty operations, not by men, but by ferocious beasts, hence I will not stop to relate any but the following.
- 9.9. They found large towns full of people who were friendly, intelligent, politic, and orderly. They did great slaughter among them, according to their custom, in order to impregnate the hearts of those people with fear of them.
- 10.10. They tormented and killed them, loading them like animals. When one became tired, or fainted, they cut off his head at the neck, in order not to free those in front from the chain that bound them, and the body fell to one side and the head to the other, as we have told elsewhere above.
- 11.11. In one town where they went they were received with joy, and overabundant food was given them, while more than six hundred Indians carried their loads, like beasts of burden, and cared for their horses; when the tyrants had left there, a captain who was a relative of the chief tyrant, turned back to rob the entire town whose people felt themselves safe; and with a lance, he killed the lord and king of the town, and did other cruel deeds.
- 12.12. Because the inhabitants of another large town seemed to them to be a little more on their guard, on account of the infamous and horrible deeds of which they had heard, they put to the sword large and small [pg 392] children and old people, subjects and lords, without sparing any one.
- 13.13. It is said that the chief tyrant had the faces of many Indians cut, so that they were shorn of nostrils and lips, down to the beard; and in particular of a group of two hundred whom he either summoned or who came voluntarily from a certain town. Thus he despatched these mutilated, suffering creatures dripping with blood to carry the news of the deeds and miracles done by those baptised Christians, preachers of the Holy Catholic faith.

- 14.14. It may be judged in what state those people must be, how they must love the Christians, and how they will believe that their God is good and just, and that the law and religion they profess and praise, is immaculate.
- 15.15. Most great and outlandish are the evils done here by those unhappy men, sons of perdition. And thus the wickedest of captains died miserably and without confession; and we doubt not that he is buried in hell, unless by chance, God out of His divine mercy has mysteriously succoured him despite his guiltiness for such execrable wickedness.

Rio della Plata

1. Three or four times since the year 1522 some captains have visited Rio della Plata, ¹⁰² where there are large kingdoms and provinces, and very friendly and intelligent people.
- 2.2. We know, in general, that they have committed many homicides and much injury. In particular, as it is so distant from the Indies, we have nothing signal to tell.
- 3.3. We have no doubt at all, however, but that they [pg 393] have and do carry on the same practices as in other places; because they are the same Spaniards, and some among them have visited other regions, and because they go to get wealth and power just like the others; it is impossible for this to come about, except by destruction, massacres, robbery, and the extermination of the Indians by the adoption of the perverse rule and system they have all alike followed.
- 4.4. After writing the above, we have learned, with ample proof, that they have destroyed and depopulated great provinces and kingdoms of that country, murdering, and cruelly treating those unfortunate people; they have thereby made themselves even more notorious than the others, because, being at a greater distance from Spain, they could do more as they pleased and consequently lived in greater disorder and with less justice. As for justice, however, there has never been any in all the Indies, as is seen from what has been related above.
- 5.5. Among infinite other cases, the three following have been read before the Council of the Indies. A tyrant governor commanded certain of his people, to go to some Indian town and, if food was not given them, to kill all the inhabitants. Thus authorised, they started and, because the Indians considered them their enemies and more out of fear and the desire to escape from them, than from a want of

generosity, refused to supply them, the Spaniards put more than five thousand persons to the sword.

- 6.6. Another time a certain number of people presented themselves peaceably for their service, or perhaps they had been summoned by the Spaniards; and because they did not come quickly enough, or because, as is their habit and common usage, they wished to inspire them with fear and horrible fright, the Governor commanded [pg 393] that they should all be consigned into the hands of their Indian enemies.
- 7.7. They wept and cried, praying that the Spaniards would kill them, rather than deliver them to their enemies.¹⁰³ And as they would not leave the house where they were, they were cut to pieces there, weeping, and crying out: “We came peaceably to serve you and you kill us? May our blood, remain on these walls as testimony of our unjust death and of your cruelty!” This was, in truth, a notorious action, and worthy of consideration, but much more of being lamented.

The Vast Kingdoms and Great Provinces of Peru

1. In the year 1531 another great tyrant went with certain people to the kingdoms of Peru,¹⁰⁴ which he invaded by virtue of the same title, intentions, and principles as all the former ones, because he was one of the most experienced, and since a long time had taken part in all the cruelties and massacres that had been committed on the continent since the year 1510; he was devoid of faith and honour, and he did more cruelty and slaughter, destroying towns, killing and exterminating the people of them and causing such great mischief in these countries that, I am certain, it would be impossible for any one to recount and describe them till we shall see and know them clearly in the day of judgment. I could not, nor should I know how to describe the deformity, [pg 395] the character, and the circumstances of some incidents that I would relate, and which greatly aggravate their hideousness.
- 2.2. From his unhappy landing, he killed and destroyed some peoples and robbed them of a large quantity of gold. In an island near the same province called Pugna which is very populous and pleasing, they were received by the lord and people like angels from heaven and, after having eaten all their provisions in six months, the Indians again uncovered the store of corn they had laid up for themselves and their families in time of drought and barrenness, tearfully offering it for their consumption. The payment that was finally awarded the natives, was to put them to the sword, for they killed great numbers with lances, and those whom they captured alive, they made slaves; in consequence of this and the other great notorious cruelties done there, they left this island almost deserted.
- 3.3. From there the Spaniards went to the province of Tumbala, which is on the continent, where they killed and destroyed everything they could. And because all the people fled from their fearful and

horrible operations, they declared they had revolted and were in rebellion against the king.

- 4.4. This tyrant employed the following artifice. He demanded still more from all who either offered or whom he asked to present him with gold, silver, and their other possessions, until he saw that they either had no more, or brought no more: he then declared that he received them as vassals of the king of Spain and embraced them; he caused two trumpets to be sounded, giving them to understand that for the future he would take nothing more from them, nor do them any harm; he esteemed it permissible to rob them or to take all they gave, out of fear inspired by the [pg 396] abominable reports they heard of him, before he received them under the shelter and protection of the king, as though after they were received under the royal protection he would no more oppress, rob, desolate, and destroy them.
- 5.5. A few days later came the universal king and emperor of those kingdoms, who was called Atabaliba with many naked people armed with ridiculous weapons and ignorant of how swords cut, and lances wound, and horses run; nor did they know the Spaniards, who would assault the very devils if they had gold, to rob them of it. He arrived at the place where they were, and said: "Where are these Spaniards? let them come forward, for I shall not stir from here till satisfaction is rendered me for my vassals whom they have killed, for the town they have desolated, and for the riches they have stolen from me."
- 6.6. The Spaniards attacked him—killing infinite numbers of his people; they took him prisoner from the litter in which he was carried and after they had captured him, they negotiated with him for his ransom: he promised to give four million crowns, and paid them fifteen, after which they promised to set him free.
- 7.7. They ended by keeping no faith nor truth, for they have never been kept by the Spaniards in their dealings with the Indians: they calumniated him, saying that by his orders the people were assembling, and he replied that not a leaf moved in all the country save by his will and that if the people were assembling, they might believe that he was the cause of it: as he was their prisoner, they might therefore kill him.

- 8.8. In spite of all this they condemned him to be burned alive, although later, some of them begged the captain, to have him strangled and to burn him afterwards. When he learned this he said: "Why do you wish [pg 397] to burn me? What have I done to you? Have you not promised to free me, after my ransom was paid? Have I not given you more than what I promised you? Send me, as thus you wish it, to your King of Spain." He said many other things showing condemnation and detestation of the great injustice of the Spaniards: and at last they burnt him.
- 9.9. Let the justice of these deeds be considered: the reason of this war: the imprisonment, death sentence, and execution of this monarch; and how conscientiously these tyrants hold the great treasures they steal in those kingdoms from such a great king and from numberless other lords and private people.
- 10.10. Of the countless notoriously wicked and cruel acts committed in the extirpation of these people by those who call themselves Christians, I will relate some few that a friar of St. Francis witnessed in the beginning; and he signed depositions with his name, sending some of the copies to those regions and others to the kingdoms of Castile: and I have one of the copies in my possession with his own signature, in which he makes the following statements.
- 11.11. "I, Fray Marcus de Nizza of the Order of St. Francis, commissary of the friars of the same Order in the provinces of Peru, who were among the first monks who entered the said provinces with the first Christians, speak to render truthful testimony of some of the things that I saw with my own eyes in that country; chiefly concerning the treatment of the Indians and the acquisition of property taken from the natives."
- 12.12. "First of all I am eye-witness, and from actual experience know, that these Indians of Peru are the most affable people that have been seen among the Indians, and were very well inclined and friendly towards the Christians."
- 13.13. "And I saw that they gave gold abundantly to the Spaniards, and silver and precious stones and all that was asked of them, and that they rendered them every good service; and the Indians never went forth in war fashion, but always peaceably, as long as no cruelty and ill-treatment provoked them; on the contrary, they received the

Spaniards with all benevolence and honour in their towns, giving them provisions and as many male and female slaves for their service, as they asked.”

- 14.14. “I am also witness, and I testify, that without the Indians giving them any cause or occasion, the Spaniards, as soon as they entered their country, and after the chief lord Atabaliba had paid them more than two millions of gold and had left all the country in their power, without resistance, immediately burnt the said Atabaliba, who was ruler of all the country: and after him, they burnt alive his captain-general Cochilimaca who had come peaceably to the governor, accompanied by other high personages.”
- 15.15. “Within a few days after these executions they likewise burned Chamba another very high lord of the province of Quito, without him giving them any cause.”
- 16.16. “Thus too they burnt unjustly Chapera lord of the Canaries.”
- 17.17. “Likewise they burnt the feet of Luis who was one of the great lords in Quito, and tortured him in many other ways, to force him to reveal the hiding place of Atabaliba's gold, of which treasure it was known that he knew nothing whatever.”
- 18.18. “They likewise burnt in Quito, Cozzopanga, who was governor of all the provinces of Quito and who had responded to the intimations of Sebastian de Benalcazza, the governor's captain, by coming peaceably; but because he did not give them as much gold as they asked, they burnt him, with many other lords and principal persons. [pg 399] As far as I could understand, it was the intention of the Spaniards that no lord should survive in all the country.”
- 19.19. “The Spaniards assembled a large number of Indians, and shut up as many as could enter, in three large houses which they then set on fire and burnt them all, although they had never done the slightest thing against any Spaniard, nor given the least cause.”
- 20.20. “It once happened, that when a priest called Ocana, pulled a child out of the fire in which it was burning, another Spaniard snatched it out of his hands and threw it back in the middle of the flames, where it became ashes together with the others; while the aforesaid Spaniard, who had thus thrown the Indian into the fire was returning to his dwelling the same day, he suddenly fell dead in the road; and it was my opinion, that they should not give him [Christian] burial.”

- 21.21. “Moreover I affirm, that I myself saw the Spaniards cut off the hands, noses, and ears of the Indian men and women, for no purpose whatever but just because the fancy struck them; and in so many places and regions did this occur that it would be a long story to tell.”
- 22.22. “I also saw the Spaniards setting dogs onto the Indians, to tear them to pieces; and thus I saw many of them torn to pieces.”
- 23.23. “I likewise saw so many houses and towns burned that I could not tell the number, so great was their multitude.”
- 24.24. “It is likewise true that they took nursing children by the arms and hurled them in the air as high as they could; and their other injustice and aimless cruelties terrified me, besides innumerable other things that I saw, and which it would take long to tell.”
- 25.25. “I saw moreover that they called the Indian lords and chiefs, to come peaceably, promising them safety, but as soon as they arrived they burnt them. [pg 400] And in my presence they burnt two, one from Andon and the other in Tumbala, nor was I able for all I preached to them, to prevent them burning them.”
- 26.26. “I call God and my own conscience to witness that, as far as I can understand, the Indians only revolted on account of this ill treatment which sufficiently justified their action as may be clearly seen by everybody.”
- 27.27. “The Spaniards have never dealt honestly with them nor kept their word but, contrary to all reason and justice, they have tyrannically ruined them and all their country, doing such things against them, that they [the Indians] have resolved sooner to die, than suffer such deeds.”
- 28.28. “I say moreover, that the Indians are right in affirming that there is more gold hidden, than has been discovered, for they have refused to disclose it because of the injustice and cruelty shown them by the Spaniards; nor will they disclose it as long as such treatment continues, but rather will they die like the others.”
- 29.29. “God our Lord has been much offended by these deeds, and His Majesty very badly served and defrauded, for they have made him lose countries that could very well provide food for the whole of Castile, and in my opinion, it will be very difficult and expensive to recover them.”

- 30.30. All these are the formal words of the said monk; and bear the signature also of the Bishop of Mexico, testifying that everything was affirmed by the said Father, Fray Marcus.
- 31.31. What this Father says he has seen, should be considered here: because this happened throughout fifty or a hundred leagues of country and during nine or ten years, at the beginning, when there were very few Spaniards: afterwards the sound of gold drew thither four or five thousand Spaniards, who spread through many large [pg 401] kingdoms and provinces, covering more than five hundred or seven hundred leagues, all of which they have destroyed by practising the same deeds and others still more ferocious and cruel.
- 32.32. Truly, from that time to the present day, a thousand times more people have been destroyed and dispersed than he was told of; being devoid of mercy and the fear of God and the King, the Spaniards have destroyed a very large part of the human race.
- 33.33. Within the space of ten years they have killed, up to the present day, more than four millions of persons; and they are still killing.
- 34.34. A short time since they pursued and killed a great queen, wife of Elingue, he who was left king of those kingdoms which the Christians had tyrannically seized and provoked to rise in the present rebellion. They captured the queen, his wife who, it is said, was pregnant and, contrary to all justice, they killed her, only to grieve her husband.
- 35.35. If the cruelties and different murders committed by the Christians, and their daily deeds in those kingdoms of Peru were to be told, they would doubtless be so horrible and so numerous that what we have recounted of the other countries would fade, and seem little, compared with their number and their gravity.

Of the New Kingdom of Granada

1. In the year 1539 many tyrants joined together and started from Venezuela, Santa Marta, and Cartagena for Peru: and others came back from the same Peru to explore those countries. Three hundred leagues inland behind Santa Marta and Cartagena, they found some very delightful and marvellous provinces, full of numberless people, as mild and kind as the others, and very [pg 402] rich in gold, and in those precious stones called emeralds.
- 2.2. To these provinces they gave the name of the new kingdom of Granada; because those tyrants who first came to these countries were natives of the kingdom of Granada in Spain.
- 3.3. As many iniquitous and cruel men among those who gathered from all parts, were notorious butchers and shedders of human blood who were very inured to, and experienced in the great sins that we have said were committed in many parts of the Indies, it follows that their fiendish operations, and the circumstances and qualities that blackened and aggravated them, were such that they have surpassed very many, or indeed all, that the others and they themselves have committed elsewhere in the Indies.
- 4.4. Of the multitude they have committed in these three years, and continue without ceasing to commit, I will briefly relate a few. As a man who was robbing and murdering in the said kingdom would not allow a governor to also rob and kill, the latter brought a suit against him, calling many witnesses to prove the slaughter, injustice, and massacres he had done, and is doing; this evidence was read, and is to be found in the Council of the Indies.
- 5.5. The witnesses in the said law-suit affirm that all the kingdom was quiet, and subject to the Spaniards; the Indians continually laboured to furnish them provisions, and to accumulate property for them; they brought them all the gold and precious emeralds they possessed or could obtain: the lords and inhabitants of the towns had been

divided among the Spaniards, who lay claim to them as the means for obtaining their final object, which is gold. Having thus reduced everybody to the usual tyranny and slavery, the principal tyrant captain commanding them, captured the sovereign of [pg 403] all that country, without any cause or reason, and kept him for six or seven months, demanding gold and emeralds of him.

- 6.6. The said king, who was called Bogota, being overcome by fear said that he would give a house of the gold they demanded, hoping to free himself from the hands of his tormenters: he sent some Indians to bring him the treasure, and several times they brought a large quantity of gold and stones: because he did not give the house of gold, the Spaniards declared that he should be killed, because he did not fulfil his promise.
- 7.7. The tyrant said that he should be tried by process of law, so they prosecuted him, accusing the said king of the country. The tyrant gave sentence, condemning him to tortures, if he did not give the house of gold.
- 8.8. They tortured him with the cord: they threw burning fat on his belly; they put his feet in irons fastened to a stake, tied his neck to another, while two men held his hands; and in this position they put fire to his feet.
- 9.9. Every now and then, the tyrant entered and told him, that they would kill him by inches with tortures if he did not give the gold. And thus they did, and killed this lord with tortures. While they were tormenting him, God gave a sign of destestation of that cruelty, by causing all that town, where it was committed to be burnt.
- 10.10. The other Spaniards imitated their good captain and, since they only know how to rend these people, they did the same; torturing the lord of the town or towns, that had been confided to them, with divers and fierce tortures while those lords and their people felt themselves safe, and were giving them all the gold and emeralds they could: the Spaniards tortured them only [pg 404] to extort more gold and jewels. And in this way they burnt and cut to pieces all the lords of that country.
- 11.11. Terror-stricken by the excessive cruelty practised upon the Indians by one of those particular tyrants a great lord called Daytama fled, with many of his people from such inhumanity, and retreated to the

mountains. This, if it did but avail, they conceive to be the remedy and refuge, and this is what the Spaniards call revolt and rebellion.

- 12.12. The principal tyrant captain hearing this, sent a force to that cruel man, whose ferocity and wickedness towards the peaceful and submissive Indians had driven them to the mountains; the latter went in pursuit of the natives, and because it sufficed not to hide in the bowels of the earth, they found a large number of people whom they killed, cutting to pieces more than five hundred men, women, and children, and sparing no one.
- 13.13. The witnesses also say that before his death, the same Prince Daytama had been to see that cruel man and had taken him four or five thousand crowns, but notwithstanding this, he committed the said slaughter.
- 14.14. Another time a great number of people having come to serve the Spaniards, and feeling themselves safe, serving with their humility and simplicity, the captain entered the town one night where the Indians were and commanded that all those Indians should be put to the sword while some of them were sleeping, and some supping and resting from the labours of the day.
- 15.15. He perpetrated this massacre because it seemed good to him to make himself feared by all the people of the country.
- 16.16. Another time the captain put all the Spaniards on oath, to lead at once as many lords and chiefs and common people as each had in his household service, to the square, where he had all their heads cut off, thus [pg 405] killing four or five hundred people. And the witnesses say that he thought in this way to pacify the country.
- 17.17. The witnesses depose that one particular tyrant did great cruelty, killing, and cutting off the hands and noses of many men and women, and destroying many people.
- 18.18. Another time the captain sent the afore-named cruel man, with certain Spaniards to the province of Bogota, to make inquiry as to who had succeeded to that dominion since they had tortured the universal lord to death: he marched through many leagues of country, capturing as many Indians as he could.
- 19.19. And because the people did not show him the lord who had succeeded, he cut off the hands of some and gave others to ferocious

dogs, which tore them to pieces both men, and women; and in this way he killed, and destroyed many Indian men and women.

- 20.20. One day, near sunrise, he went to attack some lords, or captains and many Indians who felt tranquil and secure, because he had assured them and given them his word that they should receive no hurt or harm; confiding in this assurance they had come down from the mountains, where they were hidden, to dwell in this town on the plain; thus he captured a great many of these unsuspecting and confiding people, women and men, and making them put their hands flat on the ground he himself cut them off with a scimitar, saying that he punished them because they would not tell where the new lord, who had succeeded to that kingdom, was hidden.
- 21.21. Another time, because the Indians did not give a coffer full of gold that this cruel captain demanded, he sent people to make war on them, in which they killed numberless persons, and cut off the hands and noses of so many women and men that they could not be counted: they gave others to fierce dogs that tore them to pieces and ate them.
- 22.22. Another time, the Indians of a province of that kingdom, seeing that the Spaniards had burnt three or four principal lords, retreated in fear to a strong rock to defend themselves from enemies so devoid of humanity; and according to the witnesses, there may have been four or five thousand Indians on the rock.
- 23.23. The above-named captain sent a great and notorious tyrant, who surpassed many of those who have charge of destroying those countries, with a certain number of Spaniards, to punish those Indians who had fled from such a great pestilence and butchery: and he declared they were in revolt, seeking to make it appear that they had done something wrong, for which the Spaniards must punish them and take vengeance: they themselves, however, merit any most cruel torture whatsoever, without mercy, because they are so deprived of mercy and compassion towards those innocent creatures.
- 24.24. The Spaniards went to the rock and forced their way up, the Indians being naked and without arms; then the Spaniards called the Indians with professions of peace, assuring them that no harm should be done them, if they did not fight; the Indians at once ceased,

whereupon that most cruel man commanded the Spaniards, to seize all the strong positions of the rock, and when taken, to surround the Indians. These tigers and lions surrounded the tame lambs, and disembowelled and put to the sword so many, that they stopped to rest, so many had they cut to pieces.

- 25.25. When they had rested a little, the captain ordered that they should kill and throw down from the rock, which was very high, all the survivors; and so they did. And the witnesses say, that they beheld such a mass of Indians thrown from the rock, that there might have been seven hundred men together, who were crushed to pieces where they fell.
- 26.26. To complete their great cruelty, they sought out all the Indians who had hidden in the thicket, and he commanded all to be put to the sword; and thus they killed them, and threw them down from the rock.
- 27.27. Nor would he rest satisfied with the cruel things that have been related, but wished to distinguish himself still more and increase the horribleness of his sins, by commanding that all the Indians, men and women, save those he kept for his own service, who had been captured alive (because in these massacres each usually chooses a few men, women and children for his own use) should be put in a straw house to which he set fire: some forty or fifty were thus burnt alive, while others were thrown to fierce dogs that tore them to pieces and ate them.
- 28.28. Another time, this same tyrant captured many Indians in a certain town called Cota which he visited; he had fifteen or twenty lords and principal persons torn by dogs; and he cut off the hands of many men and women, tied them to cords and hung about seventy pairs of hands along a beam, so that the other Indians should see what had been done to these people; and he cut off the noses of many women and children.
- 29.29. Nobody could explain the actions, and cruelty of this man, God's enemy, because they are innumerable, nor have such deeds as he did in those countries and in the province of Guatemala, ever been witnessed or heard of since then: during many years he went about those countries doing these deeds, burning and destroying the inhabitants and their property.

- 30.30. The witnesses in the trial further say, that the cruelties and massacres perpetrated in the said new kingdom of Granada by the captain himself and, with his consent, by all those tyrants and destroyers of the human race who were with him, were such that they [pg 408] have wasted and exterminated all the country. And that unless His Majesty arrests the massacring done among the Indians to extort gold which, as they had already given all they had, they no longer possess, the destruction will shortly be complete, and no Indians of any sort will be left to sustain the country, which will be left depopulated and desolate.
- 31.31. It should be considered how great and furious has been the cruelty and pestilential tyranny of unhappy tyrants, in the space of two or three years, since the discovery of this kingdom which, as all who have been there, and the witnesses at the trial say, was as thickly populated as any in the world; they have desolated it with massacres, so devoid of mercy, of the fear of God and the King, that they say, not a single person will be left alive unless His Majesty shortly prevents these infernal operations. And so I believe it to be, for with my own eyes I have seen many, and large countries in those parts, which they have destroyed and completely depopulated within a brief period.
- 32.32. There are other large provinces, bordering the said new kingdom of Granada, called Popayan and Cali: also three, or four others that extend for more than five hundred leagues; the Spaniards have rendered them desolate, and destroyed them like the others, unjustly robbing and torturing to death the numberless inhabitants of that most delightful country.
- 33.33. People coming now from there declare that it excites compassion to see so many large towns burnt and destroyed; towns where formerly there were a thousand or two thousand families, are reduced to hardly fifty, while others are entirely burned and abandoned.
- 34.34. In other places, from one to three hundred leagues of country are found completely deserted; large towns having been burnt and destroyed.
- 35.35. Great and cruel tyrants penetrated into New Granada from the direction of the province of Quito in the kingdom of Peru, and into Popayan and Cali from the direction of Cartagena and Uraba, while

from Cartagena, other ill-starred tyrants marched through to Quito; afterwards others, came from the direction of Rio de San Juan, which is on the South coast. All of these men united together and they have devastated and depopulated more than six hundred leagues of country, sending innumerable souls to hell. They are doing the same at the present day to the miserable survivors, although they are innocent.

- 36.36. And to prove the axiom I laid down in the beginning, namely that the tyranny, violence, and injustice of the Spaniards towards these gentle lambs, accompanied by cruelty, inhumanity, and wickedness, most worthy of all fire and torture, which continue in the said provinces, go on increasing, I cite the following.
- 37.37. After the massacres and slaughter of the war, the people are condemned, as was said, to the horrible slavery described above. To one of the devils, two hundred Indians were given, to another, three. The devil commandant ordered a hundred Indians to be called before him and when they promptly came like so many lambs, he had the heads of thirty or forty cut off; and said to the others: "I will do the same to you, if you do not serve me well, and if you leave without my permission."
- 38.38. Now in God's name consider, you, who read this, what sort of deeds are these, and whether they do not surpass every imaginable cruelty and injustice, and whether it squares well with such Christians as these to call them devils; and whether it could be worse to give the Indians into the charge of the devils of hell than to the Christians of the Indies. [pg 410]
- 39.39. I will also tell of another such operation; I do not know which is the more cruel, the more infernal, and nearer the ferocity of wild beasts, this one or that one just told.
- 40.40. It has already been said, that the Spaniards of the Indies have tamed and trained the strongest and most ferocious dogs to kill and tear the Indians to pieces.
- 41.41. Listen and see, all you who are true Christians and also you who are not, whether such deeds have ever been heard of in the world; to feed the said dogs they take many Indians in chains with them on their journeys, as though they were herds of swine; and they kill them, making public butchery of human flesh; and one says to the

other; “lend me a quarter of one of these villeins to give to my dogs to eat, until I kill.” It is as though they were lending a quarter of pork or of mutton.

42.42. There are others, who go hunting with their dogs in the morning and when one is asked on his return for dinner how it has fared with him, he replies; “it has fared well with me, because I have left perhaps fifteen or twenty villeins killed by my dogs.”

43.43. All these and other diabolical things are being proved now in law-suits started by some tyrants against others. What can be filthier, fiercer, and more inhuman?

44.44. I will finish with this, till news comes of other deeds of more eminent wickedness, if any such there can be: or until, on our return there, we again behold them, as we continually have with our own eyes since forty-two years.

45.45. I protest before God on my conscience that, as I believe and hold certain, such are the perdition, harm, destruction, depopulation, slaughter, deaths, and great and horrible cruelties, and most foul ways of violence, injustice, robbery, and massacre, done among those people and in all those countries of the Indies, that with [pg 411] all I have described, and those upon which I have enlarged, I have not told nor enlarged upon, in quality and quantity, a ten thousandth part of what has been done and is being done to-day.

46.46. And that all Christians may have greater compassion on those innocent nations, and that they may more sincerely lament their loss and doom, and blame and abominate the detestible avarice, ambition, and cruelty of the Spaniards, let them all hold this truth for certain, in addition to what I have affirmed above; namely, that from the time the Indies were discovered down to the present, nowhere did the Indians harm any Christians, before they had sustained harm, robbery, and treachery from them. Nay, they always esteemed them immortal, and come from Heaven; and as such they received them, until their deeds manifested their character and intentions.

47.47. It is well to add something else, that from the beginning till the present day the Spaniards have given no more thought to providing for the preaching of the faith of Jesus Christ to these people than if they were dogs or other animals: nay, they have persistently afflicted

and persecuted the monks, to prevent them from preaching, because it seemed to them an impediment to the acquisition of the gold and wealth they promised themselves in their greedy desires.

48.48. And to-day there is not in all the Indies more knowledge of God among these people, as to whether He is of wood, or in heaven or on earth, than there was a hundred years ago, except in new Spain, where monks have gone and which is but a very little corner of the Indies. And so all have perished and are perishing, without faith and without Sacraments.

1. I was induced to write this work I, Fray Bartolomeus de las Casas, or Casaus, friar of St. Dominic, who by God's [pg 412] mercy do go about this Court of Spain, trying to drive the hell out of the Indies, and to bring about that all those numberless multitudes of souls, redeemed with the blood of Jesus Christ, shall not hopelessly perish forever; moved also by the compassion I feel for my fatherland, Castile, that God may not destroy it for such great sins, committed against His faith and honour and against fellow creatures. A few persons of quality who reside at this Court and are jealous of God's honour and compassionate towards the afflictions and calamities of others, urged me to this work although it was my own intention which my continual occupations had never allowed me to put into effect.
- 2.2. I brought it to a close at Valencia the 8th of December 1542, when all the violence was more terrible, and the oppression, tyranny, massacres, robberies, destructions, slaughter, depopulation, anguish, and calamity aforesaid, are actually at their height in all the regions where the Christians of the Indies are; although in some places they are fiercer, and more abominable than in others.
- 3.3. Mexico and its neighbourhood are a little less badly off; there, at least, such things dare not be done publicly, because there is somewhat more justice than elsewhere, although very little, for they still kill the people with infernal burdens.
- 4.4. I have great hope, for the Emperor and King of Spain our Lord Don Carlos, Fifth of this name is getting to understand the wickedness and treachery that, contrary to the will of God, and of himself, is and has been done to those people and in those countries; heretofore the

truth has been studiously hidden from him, that it is his duty to extirpate so many evils and bring succour to that new world, given him by God, as to one who is a lover and observer of justice, whose glorious, [pg 413] and happy life and Imperial state may God Almighty long prosper, to the relief of all his universal Church, and for the final salvation of his own Royal soul. Amen.

1. Since the above was written, some laws and edicts have been published by His Majesty, who was then in the town of Barcelona, in the month of November 1542 and in the town of Madrid the following year; these contain such provisions as now seem suitable to bring about the cessation of the great wickedness and sin committed against God and our fellow creatures, to the total ruin and destruction of that world.
- 2.2. After many conferences and debates amongst conscientious and learned authorities, who were assembled in the town of Valladolid, His Majesty made the said laws; acting finally on the decision and opinion of the greater part of all those who gave their votes in writing, and who drew nearer to the law of Jesus Christ, as true Christians. They were likewise free from the corruption and foulness of the treasures stolen from the Indies that soiled the hands, and still more the souls of many in authority who, in their blindness, had committed unscrupulous destruction.
- 3.3. When these laws were published, the agents of the tyrants, then at Court, made many copies of them; they displeased all these men who considered that they shut the doors to their participation in what was robbed and taken by tyranny: and they sent the copies to divers parts of the Indies.
- 4.4. None of those who there had charge of robbing the Indians, and of finishing their destruction by their tyranny, had ever observed any order, but such disorder as might have been made by Lucifer; when they saw the copies, before the arrival of the new judges who were to execute them, it is said and believed that they had been [pg 414] warned of what was coming by those in Spain, who have till now encouraged their sins and violence. They were so agitated, that when the good judges who were to carry out the laws arrived, they

resolved to set aside shame and obedience to the King, just as they had already lost all love and fear of God.

- 5.5. They thus determined to let themselves be called traitors, for they are cruel and unbridled tyrants, particularly in the kingdoms of Peru, where at present, in this year of 1546, such horrible, frightful, and execrable deeds are committed, as have never been done, either in the Indies or in the world; not only do such things happen among the Indians whom they have already all or nearly all killed, but among themselves. In the absence of the King's justice to punish them, God's justice has come from heaven to bring dissension amongst them and to make one to be the executioner of the other.
- 6.6. Shielded by the rebellion of these tyrants, those in all the other regions, would not obey the laws and, under pretext of appealing against them, have also revolted; they resent having to abdicate the dignities and power they have usurped, and to losing the Indians whom they hold in perpetual slavery.
- 7.7. Where they have ceased to kill quickly by the sword, they kill slowly by personal servitude and other unjust and intolerable vexations. And till now the King has not succeeded in preventing them because all, small and great, go there to pilfer, some more, some less, some publicly and openly, others secretly and under disguise; and with the pretext that they are serving the king, they dishonour God, and rob and destroy the King.

The present work was printed in the most noble, and faithful town of Seville, at the house of Sebastian Truxillo book-printer. To our Lady of Grace.

The Year M.D.LII

What follows is part of a letter and report, written by one of those very men who went to these regions, recounting the deeds the captain did, and allowed to be done, in the countries he visited. When the said letter and report was given with other things to be bound, the bookseller either forgot or lost one or more pages containing frightful things, that had all been given me by one of those who did them, all of which I had in my possession; what follows is therefore without beginning or end. But as this piece that is left, is full of notorious things, it seemed well to me not to leave it unprinted: because I believe it will not excite less compassion and horror in Your Highness, than some of the irregularities already related, as well also as the desire to correct them.

LETTER

1. He allowed the Indians to be chained and put in prisons, and so it was done. And the said captain took three or four in chains for himself; by so doing and by robbing the Indians of their supplies instead of providing for necessary sowing and populating, the natives of the country were reduced to such want, that great numbers of them were found in the streets starved to death.
- 2.2. He killed about ten thousand souls by making the Indians carry the Spaniards' baggage to and from the beach, because all who reached the coast died of the heat.
- 3.3. After this he followed the same trail and road as Juan de Ampudia, sending the Indians he had brought from Quito, a day in front, to discover the Indian towns and to sack them so that he and his people might avail themselves of them on their arrival. Those Indians belonged to him and his companions, one of whom had two [pg 416] hundred, another three hundred, according to the number each brought with him, and they carried whatever their masters robbed. And in this they treated children and women most cruelly.
- 4.4. He followed the same course in Quito, burning all the country and the stores of maize belonging to the lords; he consented to the killing of great numbers of sheep, all of which form the principal provision and maintenance of the natives and of the Spaniards; for the latter use two or three hundred just to eat the brains and fat alone, and waste the meat.
- 5.5. His friendly Indians who went with him, killed great numbers of sheep, just to eat the hearts, not eating anything else. And so two men in a province called Purua killed twenty-five sheep and pack-sheep, just to eat the brains and fat, although among the Spaniards they cost twenty and twenty-five pesos each.
- 6.6. By such excessive disorder, they killed more than a hundred thousand head of animals, which reduced the country to very great

want, while the natives died of starvation in great numbers.

Although there was more maize in Quito than can be told, this bad order of things brought such penury on the people that a measure of maize came to cost ten pesos, and a sheep the same.

- 7.7. When the said captain returned from the coast, he determined to leave Quito, to go in search of Captain Juan de Ampudia. He took more than two hundred foot and horsemen, among whom he led many inhabitants of the country of Quito. The said captain permitted the colonists who accompanied him to draw the lords from their departments and as many Indians as they liked, and this they did.
- 8.8. Alonso Sanchez Nuyta took a lord and more than a hundred Indians with their wives; Pedro Cobo and his cousin, more than a hundred and fifty with their wives [pg 417] and many of the children, who otherwise all died of starvation. And so likewise Moran, an inhabitant of Popayan, had more than two hundred persons; and all the other inhabitants and soldiers also took as many as each could.
- 9.9. And the said soldiers asked him if he would give them licence to put the Indians they brought with them, in prison; and he said yes, until they died, and when these were dead, also others; for if the Indians were vassals of His Majesty, they were also of the Spaniards, and they died in war.
- 10.10. In this way the said captain left Quito and went to a town called Otabalo, which he owned at that time by virtue of the distribution, and he demanded five hundred men for the war from its lord, who gave them to him with some Indian chiefs. He distributed some of these people among the soldiers and the rest he took with himself, some with packs, and others in chains, and some, who served him and brought him food, were free; the soldiers also took them, bound in this way with chains and cords.
- 11.11. When they left the province of Quito they took away more than six thousand Indians, men and women of whom not twenty men returned to their country: because they all died of the great and excessive labours imposed on them, in countries far from their native land.
- 12.12. It happened at this time, that one Alonso Sanchez was sent by the said captain in command of certain people in a province; on the way, he met a number of women and boys loaded with provisions who,

instead of fleeing, waited for him, to give them to him; and he had them all put to the sword.

13.13. And a miracle happened when a soldier was stabbing an Indian woman; at the first blow the sword [pg 418] broke in half, and at the second only the handle was left, without his being able to wound her. Another soldier with a double bladed dagger wanted to stab another Indian woman, but at the first blow four fingers' length of the point broke off, and at the second nothing remained but the handle alone.

14.14. When the said captain left Quito, leading away such a quantity of natives, separating them from their wives, giving some of the young girls to those Indians he took with him, and others to those who were left behind on account of their old age, a woman came behind him, with a little child in her arms, weeping and begging him not to take her husband away from her, because she had three little children whom she would not be able to bring up, and who would die of starvation; and seeing that he answered her roughly the first time, she came back a second with louder cries saying, that her children would die of starvation: and when she saw, that he commanded she should be driven away and that he would not release her husband, she threw the child on some stones and killed it.

15.15. When the said captain arrived in the province of Lili at a town called Palo near the great river, he found there the Captain Juan de Ampudia, who had gone in advance to explore and pacify the country; the said Ampudia had founded a town called Ampudia, in the name of His Majesty and of the Marquis Francisco Pizarro, and had appointed Pedro Solano de Quiñones and eight rulers as ordinary judges; and the greater part of the country was at peace, and divided. As soon as he knew that the said captain was at the river, he went to see him accompanied by many of the inhabitants and peaceful Indians, loaded with provisions and fruit; and from thenceforward all the Indians in the neighbourhood went to visit the said captain, and to bring him food. [pg 419]

16.16. These were the Indians from Namudi, Palo, Soliman, and Bolo; but because they did not bring as much maize as he wanted, he ordered many Spaniards to go with their Indians, men and women to get

maize, wherever they found it. So they went to Bolo and to Palo, where they found the Indians, tranquil in their houses; and the said Spaniards and those who went with them, stole and carried off the maize, gold, stuffs, and all the Indians possessed, and they bound many of them.

- 17.17. When the Indians saw that they were treated so badly, they went to complain to the said captain of what had been done, and to request that the Spaniards should restore all they had taken from them. He would not have anything restored, but told them that his men would not go there a second time.
- 18.18. Within three or four days the Spaniards returned for maize, and to rob the Indians of the town. The Indians having seen that the said captain kept and observed his word so little, all the country revolted, which did much harm and disservice to God Our Lord, and to His Majesty.
- 19.19. So the whole country is left deserted, because the people have been destroyed by their enemies the Olomas and Manipos: these are a warlike people from the mountains, who descended every day to the plains to capture and despoil them, seeing that their towns and native country were left abandoned; and the most powerful among them ate the weaker, because they were all dying of starvation.
- 20.20. Having done this, the said captain returned to the said country of Ampudia, where he was received as General and seven days later he again left to go to the places called Lili and Peti, accompanied by more than two hundred men on foot and on horse.
- 21.21. Afterwards the said commander sent his captain [pg 420] in all directions, making cruel war on the natives; and so they killed great numbers of Indians, men and women, and burnt their houses and stole their goods: this lasted many days.
- 22.22. The lords of the country seeing that they were killing and destroying them, sent some peaceable Indians, with provisions. And the said captain having left for a settlement called Yce, he at once sent some Spaniards to rob, capture, and kill as many Indians as they could, commanding that many houses should be burnt; and so they burnt more than a hundred.
- 23.23. From there he went to another town, called Tolilicuy, ¹⁰⁵ where the lord at once came forth peaceably with many Indians: and the said

captain demanded gold of him and of his Indians. The lord said he had but little, but that he would give him what he had. They all immediately began to bring him what they could.

- 24.24. The said captain gave each of the Indians a ticket bearing the name of the said Indian who had given him gold, threatening that any Indian who did not pay and was without this ticket, should be thrown to the dogs. Terrified by this, all the Indians who had gold, gave him all that they could; and those who had none fled to the mountain and to other towns, for fear of being killed; for which reason a great number of natives perished.
- 25.25. The said captain forthwith ordered the lords to send two Indians to another town, called Dagua, to order the inhabitants to come peaceably to him, and bring him a quantity of gold.
- 26.26. On arriving at another town, he sent a number of Spaniards, and Indians from Tolilicuy to capture many Indians, and so the following day they brought back more than a hundred persons with them. He took all [pg 421] those capable of carrying loads, for himself and the soldiers, and put them in chains so that they all died; and the said captain gave the infants to the said lords of Tolilicuy to be eaten. And to-day in the house of the said Lord Tolilicuy there are the skins of the infants full of ashes.
- 27.27. Without saying anything, he departed from there for the provinces of Calili, where he joined Captain Juan de Ampudia, who had been sent by him to explore the country by another route; both the one and the other did much slaughter and much injury to the native people wherever they went.
- 28.28. The said Juan de Ampudia arrived at a place, the lord of which was called Bitacon; he had prepared some pits for his defence, into which two horses belonging to Antonio Redondo and Marcus Marquez fell; the latter died but the other not. In consequence of this the said Ampudia ordered as many as possible of the Indians, men and women, to be captured; more than a hundred persons were captured whom they threw into those pits alive where they killed them, and they burnt more than a hundred houses in that town.
- 29.29. Thus they joined one another at a large town and, without calling the Indians pacifically, nor sending interpreters to summon them, they made cruel war on them, and persecuted them, and killed great

numbers of them. And as soon as they joined one another as has been said, the aforementioned Ampudia told the captain what he had done at Bitacon, and how he had thrown so many people into the pits; and the said captain replied that he had done very well; and that he himself had done the same at Riobamba, which is in the province of Quito, where he threw more than two hundred persons into the pits; both stayed here, making war throughout the country. [pg 422]

- 30.30. After this he entered the province of Birù or Anzerma, making cruel war of fire and blood, from this province to the salt ponds. From there he sent Francisco Garcia Tobar forward, making cruel war on the natives as is told above; and the Indians went to him two by two, making signs that they sought peace in the name of all the country, and asking what the Spaniards wished; for if they wanted gold or women or provisions, they should be given them, and begging that they should not be killed in this way: and this the Spaniards themselves have confessed to be true.
- 31.31. And the said Francisco Garcia told them to go away, that they were drunk, and that he did not understand them, after which he returned to where the said captain was and they set out to march through all the province, making most cruel war on the natives, plundering and killing them; and more than two thousand souls were carried off from there between him and his soldiers, all of whom died in chains.
- 32.32. Before they left the inhabited country, they killed more than five hundred persons. Thus he returned to the province of Calili; and if on the way some Indian, man or woman, became so tired that he could not walk, they stabbed him; if he was in chains they cut off his head, so as not to undo them and so that the others seeing this, should not feign being ill.
- 33.33. In this way they all died, and on this journey all the people he had brought from Quito, Pasto, Quilla, Cagua, Paria, Popayan, Lili, Cali, and Anzerma, perished in very great numbers. On his return march, as soon as he entered the large town, they killed all they could. And they captured three hundred persons in that day.
- 34.34. From the province of Lili, he sent the said captain, Juan de Ampudia, with many people to the place [pg 423] and dwellings of Lili, in order to capture all the Indians, men and women, that he could, for carrying the packs; because all the numerous people he

had brought from Anzerma, had already died. And the said Juan de Ampudia brought more than a thousand persons, many of whom he killed.

- 35.35. The said captain took all the people he needed, giving the rest to the soldiers, who at once put them in chains, where they all died: after depriving the said country of the Spaniards, and of the natives in such great numbers, as is seen by the few that are left, he set out for Popayan.
- 36.36. On the way he left behind a live Spaniard, whose name was Martin de Aguirre, because he could not walk as much as the healthy ones. On his arrival at Popayan he dwelt in that town, and began to destroy, and rob the Indians of the surrounding country, with the same disorder as he had done in the others.
- 37.37. He made a royal stamp here and melted all the gold he had gathered, and that Juan de Ampudia had gathered before he came; and without any accounting or explanation, and without giving any part to any soldier, he took it all for himself, except that he gave what he chose to some whose horses were dead. This done, and after taking the fifths of His Majesty he said he was going to Cuzco to report to his Governor; so he set out for Quito, taking a great number of Indians, men, and women, all of whom died on the journey and in that place. And further the said captain returned to destroy the royal stamp he had made.
- 38.38. It is well at this point to relate a word that this man said of himself, showing that he very well knew the evil and cruelty that he did. He spoke thus: "In fifty years, those that pass by here and hear of these [pg 424] things, will say: 'It was here that the tyrant so and so marched.' "
- 39.39. These in-comings and out-goings of this captain in those kingdoms, and this way of visiting those people living safely in their country, and these operations practised by him against them, Your Highness should know and be convinced, have always been done by the Spaniards everywhere in the same way, from the discovery of the Indies till the present day.

APPENDIX II. - THE BULL SUBLIMIS DEUS

Latin Text¹⁰⁶

Paulus Papa tertius universis Christi fidelibus præsentes litteras inspecturis salutem et Apostolicam benedictionem. Sublimis Deus sic dilexit humanum genus, ut hominem talem condiderit qui non solum boni sicut cæteræ creaturæ particeps esset, sed ipsum Summum Bonum inaccessibile et invisibile attingere et facie ad faciem videre posset; et cum homo ad vitam et beatitudinem æternam obeundam, etiam sacrarum literarum testimonio, creatus sit, et hanc vitam et beatitudinem æternam, nemo consequi valeat, nisi per fidem Domini nostri Jesu Christi fateri necesse est, hominem talis conditionis et naturæ esse, ut Fidem Christi recipere possit, et quemunque, qui naturam hominis fortitus est, ad ipsam Fidem recipiendam habilem esse. Nec enim quisque adeò desipere creditur, ut se secredat Fidem obtinere posse, et medium summe necessarium, nequaquam attingere.

[pg 428]

Hinc veritas ipsa quæ nec falli, nee fallere potest, cum prædicatores fidei ad officium prædicationis destinaret, dixisse dignoscitur. *Euntes, Docete Omnes Gentes.* Omnes dixit, absque omni deletu, cum omnes fidei

disciplinæ capaces existant. Quod videns ipsius humani generis emulus qui bonis operibus, ut pereant semper adversatur, modum excogavit ac temis in auditum, quo impediret, ne verbum Dei gentibus salve fierent, predicaretur, ac quosdam suos satellites commovit, qui suam cupiditatem ad implere, cupientes occidentales, et meridionales Indos, et alias gentes, quas temporibus istis ad nostram notitiam pervenerunt, sub prætextu, quod Fidei Catholicæ expertes existant, uti muta animalia ad nostra obsequia redigendos esse passim asserere præsumat.

Nos igitur qui eiusdem Domini Nostri vices, licet immeriti, gerimus in terris, et oves gregis sui nobis commissas, quæ extra eius ovile sunt, ad ipsum ovile toto nixu exquirimus. Attendentes Indos ipsos, ut potè veros homines, non solum Christianæ Fidei capaces existere, sed ut nobis innotuit, ad fidem ipsam promptissimè currere. Ac volentes super his congruis remediis providere, prasdictos Indos et omnes alias gentes ad notitiam Christianorum imposterum deventuras, licet extra Fidem Christi existant sua libertate à rerum suarum dominio privatos, seù privandos non esse. Imò libertate et dominio huiusmodi, uti et potiri, et gaudere, liberè et licitè posse, nee in servitutem redigi debere. Ac si secùs fieri contigerit irritum et innane. Ipsosque Indos et alias gentes verbi Dei prædicatione et exemplo bonæ vitæ ad dictam Fidem Christi invitandos fore, et præsentium literarum transumptis manu alicuius Notarii publici subscriptis, à sigillo alicuius personæ in dignitate Ecclesiastica constitutæ munitis, eamdem fidem adhibendam esse, quas originalibus adhiberetur auctoritate Apostolice per præsentis litteras decernimus [pg 430] et declaramus. Non obstantibus præmissis, cæterisque contrariis quibuscumque.

Datum Romæ Anno Domini millesimo quingentesimo trigessimo septimo. Quarto nonas Junii Pontificatus nostri, Anno tertio.

THE BULL Sublimis Deus

Translation

Paul III Pope To all faithful Christians to whom this writing may come, health in Christ our Lord and the apostolic benediction.

The sublime God so loved the human race that He created man in such wise that he might participate, not only in the good that other creatures enjoy, but endowed him with capacity to attain to the inaccessible and invisible Supreme Good and behold it face to face; and since man, according to the testimony of the sacred scriptures, has been created to enjoy eternal life and happiness, which none may obtain save through faith in our Lord Jesus Christ, it is necessary that he should possess the nature and faculties enabling him to receive that faith; and that whoever is thus endowed should be capable of receiving that same faith. Nor is it credible that any one should possess so little understanding as to desire the faith and yet be destitute of the most necessary faculty to enable him to receive it. Hence Christ, who is the Truth itself, that has never failed and can never fail, said to the preachers of the faith whom He chose for that office "Go ye and teach all nations." He said all, without exception, for all are capable of receiving the doctrines of the faith.

[pg 429]

The enemy of the human race, who opposes all good deeds in order to bring men to destruction, beholding and envying this, invented a means never before heard of, by which he might hinder the preaching of God's word of Salvation to the people: he inspired his satellites who, to please him, have not hesitated to publish abroad that the Indians of the West and the South, and other people of whom We have recent knowledge should be treated as dumb brutes created for our service, pretending that they are incapable of receiving the catholic faith.

We, who, though unworthy, exercise on earth the power of our Lord and seek with all our might to bring those sheep of His flock who are outside, into the fold committed to our charge, consider, however, that the Indians

are truly men and that they are not only capable of understanding the catholic faith but, according to our information, they desire exceedingly to receive it. Desiring to provide ample remedy for these evils, we define and declare by these our letters, or by any translation thereof signed by any notary public and sealed with the seal of any ecclesiastical dignitary, to which the same credit shall be given as to the originals, that, notwithstanding whatever may have been or may be said to the contrary, the said Indians and all other people who may later be discovered by Christians, are by no means to be deprived of their liberty or the possession of their property, even though they be outside the faith of Jesus Christ; and that they may and should, freely and legitimately, enjoy their liberty and the possession of their property; nor should they be in any way enslaved; should the contrary happen, it shall be null and of no effect.

By virtue of our apostolic authority We define and declare by these present letters, or by any translation thereof signed by any notary public and sealed with the [pg 431] seal of any ecclesiastical dignitary, which shall thus command the same obedience as the originals, that the said Indians and other peoples should be converted to the faith of Jesus Christ by preaching the word of God and by the example of good and holy living.

Given in Rome in the year of our Lord 1537. The fourth of June and of our Pontificate, the third year.

APPENDIX III. - ROYAL ORDINANCES PROVIDING FOR THE DEPARTURE OF

LAS CASAS FROM SPAIN AND FOR HIS RECEPTION IN THE INDIES¹⁰⁷

THE PRINCE. Our officials of India House, who reside in the city of Seville: Rev. Fray Bartholomew de Las Casas, bishop-elect of the province of Chiapa, goes to this city in order to send off forty priests, who are now going to the province of Honduras; and also to give orders concerning their departure and other matters which he understands. I therefore wish the said bishop to be given every facility in these matters so that he may be enabled to arrange quickly, as is due to one in our service, and I command and order you that in the aforesaid, as in all things, you will offer him help, and assist him and the said priests; and in thus doing, you will be serving me. From Valladolid 13th day of the month of February 1544—I, the Prince, etc.

THE PRINCE. Our officials of India House, who reside in the city of Seville; as the bulls of the bishop of the province of Chiapa, the Reverend Father Fray Bartholomew de Las Casas have arrived and Diego Navarro, [pg 433] who brought them by our orders is entitled by the agreement made with him to be paid for the cost and the delivery of the said bulls, amounting, according to the declaration of Pedro de Tapia and of Diego de Gaona, apostolic notaries, and of certain money changers in Rome, to eighty-eight thousand nine hundred and twenty-five maravedis, and since this has to be deducted from the five hundred thousand maravedis, which the said bishop receives from us in New Spain, I order that out of whatever maravedis are in your charge, our treasurer shall pay the said Diego Navarro or his authorised representative the said eighty-eight thousand nine hundred and twenty-five maravedis. You will take care that they are collected according to the cedula which I send by him. Let me know what you do in this matter, and do not fail to do so.

Dated in Valladolid, etc.

Archives of the Indies, Council of Guatemala, register of property. Royal commands issued to the authorities, corporations, and private persons of the

district, years 1529 to 1551. Desk 100, drawer 1st. Packet 1st.

THE PRINCE. By these presents I give permission and faculty to you, Rev. Fray Bartholomew de Las Casas, bishop-elect of the province of Chiapa to leave our realms, and dominions and go to our Indies, Islands, and “Terra Firma” of the ocean sea, accompanied by four black slaves for your personal service and establishment, free of all duty, as well from the two ducats for their licences, as from the “almoxarifazgo” duties.¹⁰⁸ Whatever sum this amounts to, I exempt you; and we instruct our officials in those islands and provinces to which the said slaves are to be sent, to take charge of [pg 434] this original document and place it in the chest of the Three Keys, so that the said slaves shall be unable to make more than the one voyage for which we give you permission by this licence. Dated in the town of Valladolid 13th day of February 1544—I, the Prince, etc.

THE PRINCE. Reverend Father in Christ, Fray Bartholomew de Las Casas, bishop-elect of the province of Chiapa I have been informed that the province of Socousco is within the boundaries of your diocese. Knowing this and with the confidence I place in you, my will is to place the said province under your charge so that, as prelate you will have the care of the spiritual affairs in it, until, as aforesaid, a bishop is provided for it. I therefore order and entrust you as prelate to take charge of the spiritual welfare of the said province until as said, a prelate is provided for it. Of the tithes of the said province you are to take one fourth part, and the other three parts shall be distributed among the ecclesiastical ministers who at present serve in that province; and in the repairs and decorations of its churches. The fourth part, of which you have the use, shall be expended in your personal visits throughout the said provinces and in performing their pontifical functions until the prelate we shall appoint goes to reside in his bishopric. Dated in Valladolid 13th day of February 1544—I, the Prince, etc.

THE PRINCE. Reverend Father in Christ, Fray Bartholomew de Las Casas, bishop-elect of the city of Ciudad Real of the plains of Chiapa. You already know that the Emperor King, my sovereign, having seen the necessity of providing and ordering certain things tending to the better government of the Indies, the better treatment of its natives, and the better administration

of [pg 435] justice, and in order to fulfil the duties he owes to the service of God our Lord, and in the discharge of his royal conscience has, after much deliberation, ordered certain ordinances to be drawn up. As it afterwards appeared necessary and advantageous to explain certain clauses in the said ordinances and to further strengthen others, certain ordinances and declarations were made, many of whose articles have been rectified for the benefit, preservation, and good treatment of the natives of the said Indies, their lives and properties. They may all thus be well treated as free subjects and vassals of His Majesty (which they are) and instructed in the Holy Catholic Faith, as you will see by the copies of the said ordinances and declarations, which I order to be sent to you with this letter, signed by Juan de Samano, our secretary. And whatever I have commanded in our ordinances and in our cédulas and provisions, which I now renew, I send and order our viceroys, presidents and the auditors of our audiencias and royal chancelleries of the said Indies, our governors and our judges that with great zeal and diligence they obey, comply with, and have them proclaimed. They shall rigorously punish all who rebel against these ordinances, and many of the said ordinances shall be given to the priests who are in those parts that they may be made known to the natives, and procure obedience to them, and report those who do not fulfil them, to the said audiencia. I also think it advisable to mention this to you, feeling confident that as you are the pastor and protector of the native Indians in your bishopric, and are bound to be more zealous in procuring their better welfare and in preserving their spiritual and temporal development, you will, therefore, do this and take greater care to ensure the execution of what has been enacted for their benefit. Thus I charge you and I command you to see [pg 436] that this is carried out, and to exercise great vigilance and care to ensure the observance of the said statutes and the execution of their provisions. And should any person or persons violate these orders, you will notify the governors and judges in those parts so that they may punish them according to the provisions of the statutes. Should the latter prove remiss, neglectful, or inclined to dissimulate, you will report to the President and auditors of Our Audiencia and Royal Chancellery of the Confines, indicating those who have offended and in what way, so that they may order the guilty to be punished in conformity with the commands we have sent them. In case the said President and auditors fail to correct and punish them, after seeing your statement—a thing we do not believe—you will notify us

of everything in order that we may have them punished as we may think fit. In doing this you will have fulfilled the duties you owe to the service of God, our Lord, and in the discharge of your conscience; moreover the Emperor my sovereign will also be served. Dated in Valladolid, 13th day of February 1544. I the Prince, etc.

DON CARLOS by Divine Grace, August Emperor, King of Germany; Doña Juana his mother, and the same Don Carlos by the grace of God, Kings of Castile and Leon, etc. To you, Rev. Father in Christ, Bartholomew de Las Casas, bishop-elect of the city of Ciudad Real of the plains of Chiapa, health and grace. You well know that on account of the good reports that we had of your character, we presented you to our most Holy Father as bishop of the said diocese, and though the bulls have not been despatched, the service of God Our Lord, the instruction and conversion of the natives of the said bishopric and the good government and advancement of the Church and its divine teachings, require [pg 437] that you go with all haste to the said provinces to undertake the said teaching and conversion and the other matters with which we have charged you. Were you to await the arrival of the said bulls, certain misfortunes might in the meantime occur there which would displease God our Lord, and not be in accordance with our duties to His service in the Indies. It was therefore agreed that without awaiting the said bulls, you should go to the said province, and we approve it. Therefore we pray and command you that as soon as you receive this you will start for the said province of Chiapa, without awaiting the said bulls: you will enquire into and find out the state of the spiritual affairs of the province and also what churches and monasteries have been built. What tithes there have been and in what way they have been spent and distributed. If the necessary churches have not been built you will see that they are immediately erected in such places as you judge best, placing priests to administer the Holy Sacraments and to diligently instruct the natives of those towns in all matters relating to our holy Catholic Faith. In the meantime, we, as patrons of the said churches and the others in our Indies, command persons to be named to those benefices who will assume charge of them. You will likewise see that the divine services are carried out with the necessary reverence, decency, and decorum, and that the natives of the said district are instructed in the Holy Catholic faith; you will see that the said priests and others who reside in the said provinces live honestly, and that those who are

charged with the education of the Indians in the teachings of our Holy Catholic Faith fulfil their duties. We command that the President and the auditors of our Audiencia and Royal Chancellery of the Confines, as well as all other judges and subjects of the said province of Chiapa, shall give you all the above [pg 438] mentioned, and shall favour and aid you in whatever you ask of them or is necessary. For all of which we name you and give you full power by this, our letter with all its incidents, dependencies, annexes, and connexes. You are notified by this letter that you are not authorised to exercise jurisdiction or other functions forbidden to bishops-elect before they are confirmed and consecrated. Dated in the town of Valladolid 13th day of February etc.

DON CARLOS, etc. To you, the Rev. Father in Christ, Bartholomew de Las Casas bishop-elect of the province of Chiapa, health and grace. Be it known to you that we have been informed that in your diocese, many Indians have been hunted and driven to the hills and mountains by the cruel treatment of Spaniards living there, and of others who have gone there of their own free will. And because we are desirous that the said Indians should be pacified and taught our Holy Catholic Faith, and should be brought back to the towns they used to inhabit to again live there and be taught the Christian doctrines, we have decided, on account of the great confidence we have in you, to beg you to endeavour to bring the said Indians to peaceful terms. We therefore charge and command you that upon your arrival there you will endeavour to procure peace, and to instruct all the Indians who have been driven out of the said bishopric, in the knowledge of the Holy Catholic Faith. And you will persuade them to return to the towns they used to inhabit or to the places indicated by you, which you think more suitable. And that they may come the more willingly, you will promise and assure them in our name that if they come and populate the said towns, they shall not be molested either now or at any time during our royal reign; neither they, nor their [pg 439] descendants, nor the towns they inhabit. By these presents we promise that should they come to peaceful terms as stated, we will not molest them neither during this reign nor at any other time. We moreover command that for a period of four years they shall neither be fined nor taxed by our officials nor by any other persons; and that they may be more relieved from work, our will is that they shall be free of all tribute. You will have special oversight of their good treatment and of their

instruction and conversion, and you will advise us what number of Indians have become peaceful through these means and also what districts they have peopled. Dated in the town of Valladolid etc.

THE PRINCE. Reverend Father in Christ, Francis Marroquin, bishop of the province of Guatemala: I am informed by Our Council that you have interfered and are interfering in the spiritual affairs pertaining to the Diocese of Chiapa and know its affairs as though you were its bishop, being as it is the lawful church and having its chapter, and the see being at present vacant. The Emperor King, my sovereign, has presented to the said bishopric the Reverend Fray Bartholomew de Las Casas, and we have despatched him thither without waiting for his bulls. You are aware that in a lawfully erected diocese it belongs to the chapter during the vacancy of the see, to take cognisance of what happens there. Therefore I command you that from the day that you receive this, you will henceforth, neither know nor try to find out and interfere as a bishop in anything pertaining to the said bishopric of Chiapa, and that you will leave the chapter of the vacant see to act as is customary during a vacancy. Dated in Valladolid etc.

[pg 440]

THE PRINCE. Don Carlos, by Divine Grace august Emperor, King of Germany; Doña Juana, his mother and the same Don Carlos, by the grace of God, Kings of Castile and Leon etc. To you Rev. Father in Christ, Bartholomew de Las Casas, bishop-elect of the city of Ciudad Real of the plains of Chiapa, health and grace be with you. You well know how we have sent you, without awaiting your bulls, to the said province to undertake the spiritual affairs there and, because our wishes are that pending the arrival of the said bulls, you shall be entitled to collect the ecclesiastical tithes of that bishopric and to distribute them according to and in the manner authorised by the foundation law of the diocese, we command you, pending the arrival of the bulls authorising you to take possession of the said bishopric, to collect all the ecclesiastical tithes of that bishopric. By these presents we command all persons who should pay them, to bring them to you or to whomever you authorise to receive them, just as though you had already taken possession of the diocese by virtue of the said bulls. The tithes thus collected you shall spend and distribute each year on the things and in such wise as the foundation charter provided, and for their

collection we give you full power, with its incidents, dependencies, annexes, and connexes. We likewise order that our judges and the inhabitants of the said province shall not place nor allow to be placed any impediment whatsoever in your way and shall leave you free to collect the said tithes; and should necessity arise, they shall help and assist you, and shall compel the tithe-payers to pay you the tithes as beforesaid—Dated in the town of Valladolid 13th of February 1544—I the Prince—by command of His Highness, Juan de Samano; signed by the Bishop of Cuenca and the licentiates Gutierrez Velasquez; Gregorio Lopez y Salmeron. [pg 441] THE PRINCE. Venerable and devout Father, Fray Bartholomew de Las Casas, bishop-elect confirmed to the province of Chiapa; I saw your letter of the 21st ult. and the one you wrote to Juan de Samano, his Majesty's secretary, and the cedula you ask for, authorizing the expenses of the forty friars who are going to Honduras, goes with this. About the two hundred and fifty ducats which I ordered to be given you by the officials of this chamber, seeing that there is no money wherewith to pay them, I have ordered them to be paid on account, and that they should pay them to you, as you will have understood when you receive this, and thus they will settle with you in full.

I have written to the Franciscan Provincial of the Province of Castile, that ten priests are going to the Indies instead of the twelve that I asked for, as you told me that two of them are already in that city, of which I am glad. The others who come will be provided with their passage and stores according to the cedula you possess.

Pertaining to your consecration, in another document which accompanies this, I am sending to give notice of the arrival of your bulls, charging you to arrange at once for your consecration. I therefore beg you to do this and to let me know how it was celebrated. Valladolid 1st day of April 1544. I, the Prince: countersigned by Samano, signed by the bishop of Cuenca, Velasquez, Gregorio Lopez y Salmeron.

DON CARLOS and Doña Juana etc. To you alcaldes and others and to our judges of the provinces of Chiapa, Yucatan, Cozumel and to all Aldermen, Judges, lawyers, gentlemen, esquires, officials and to all loyal subjects in every city, town, and village which lie within the boundaries assigned by

our President and the auditors [pg 442] of our royal Council in New Spain to the bishopric of the city of Ciudad Real of this province of Chiapa, and to whatsoever other persons may be charged with the administration of the churches in the said cities, towns, and villages lying within the said boundaries and to whom this our letter may concern, health and grace. You well know or should know that we have presented to our very Holy Father, the Reverend Father in Christ, Fray Bartholomew de las Casas of the Dominican Order, for the bishopric of the said city of Ciudad Real in the province of Chiapa, to whom His Holiness, in virtue of our presentation, conveyed the said church and bishopric; and he ordered to be given and did give his bull for it, presenting it to us and begging us to grant our execution of the letter so that, in conformity with the said bulls, he would be given possession of the said bishopric and might receive its rents and income, to enable him to appoint his vicars and other officials of the said bishopric and that we might dispose as we saw fit. He sent the said bulls to be shown to our Council of the Indies and after they had seen them, we agreed that in the meantime or until we or our sovereign successors enlarge or diminish the boundaries of the said bishopric, the said Fray Bartholomew de Las Casas should preserve the boundaries assigned by the said President and auditors to the said bishopric of Chiapa; and that the tithes and other things which belong to him as bishop should be paid him; and that we should send this, our letter to you; and we approved. For that reason we order all and each one of you, who see the said bulls, which will be presented by the said Reverend Fray Bartolomew de Las Casas, conformably with their tenor and form to give or have given to him, or to whomever he authorises, the possession of the church and bishopric of the said city of Ciudad Real of the province of Chiapa, that [pg 443] he may hold it within the boundaries the said President and auditors have marked out. Meanwhile, and until we or the kings our successors enlarge or diminish the said boundaries as before stated, you shall hold him as your bishop and prelate, giving him the proceeds and incomes, tithes and revenues, and all things pertaining to him as bishop of that diocese. And you shall allow him to perform his pastoral duties and exercise his episcopal jurisdiction in person or through his officials or vicars, in whatever manner and in whatever form may be rightfully used according to the said bulls, and as the laws of our kingdom sanction; and in all things and cases belonging to ecclesiastical jurisdiction, you shall give him all help and assistance. And should he ask the aid of the

secular arm, you will grant it in conformity with the law, and each one and all shall not fail him in any way, under penalty of our displeasure and of five hundred thousand maravedis, forfeit to our exchequer. Dated in the town of Valladolid 7th of March 1544—I, the Prince; legalised by Samano, signed by the Bishop of Cuenca, Gutierrez Velasquez, Gregorio Lopez y Salmeron.

THE PRINCE. Our officials in the province of Higueras and Cape of Honduras: know ye that on account of the good reports and information of the character and life of Fray Bartholomew de Las Casas of the Dominican Order, the Emperor King, my sovereign, has presented him to His Holiness as bishop of the province of Chiapa in place of Fray Juan de Arteaga, deceased, former bishop of the said diocese. As the said bishop has explained to me that in order to go to reside in the said diocese, he will be obliged to provide himself in the said province with a few things for his voyage, he has begged me to order you to lend him from your funds the sum of two hundred ducats, or what I am pleased to give; and I approve. [pg 444] I have therefore ordered in one of my documents, that five hundred thousand maravedis in excess of the fourth part of the tithes of the said bishopric, are to be yearly given from our purse. That he may have sufficient to maintain himself better, I command that out of whatever maravedis are in your care, our treasurer shall give and pay to the said Fray Bartholomew de Las Casas, or to his authorised representative, the said two hundred ducats, amounting to seventy-five thousand maravedis, and shall note it on the back of the said document above mentioned; as you pay it on account and in part payment of the said five hundred thousand maravedis that we give him in this way each year, we have ordered that these and other maravedis, which in these countries are to be given him, shall be deducted from the five hundred thousand maravedis. You will take his receipt or that of his authorised representative to show that the said two hundred “ducats” have been received on account. Dated in Valladolid, thirteenth day of February 1544,—I, the Prince, countersigned by Samano—signed by the bishop of Cuenca, and Gre. Velasquez, Gregorio Lopez y Salmeron.

THE PRINCE. Our officials in the province of Guatemala, or any other persons who may have been appointed to collect the tithes of the Bishop of Chiapa, during the vacant bishopric. Know ye that the Emperor King, my sovereign,

because of the good reports he had of the character and merits of the Rev. Father in Christ, Fray Bartholomew de Las Casas of the Dominican Order, presented him to the Holy Father as bishop of the said diocese of the city of Ciudad Real of the plains of Chiapa, in place of the licentiate Rev. Juan de Arteaga, former bishop, deceased. The said bishop has begged me, in order to assist him in his many expenses until he starts [pg 445] to the said bishopric and to pay the expenses of his bulls, to graciously give him the tithes belonging to the church, that have accumulated since the decease of the said Rev. Juan de Arteaga, should I so wish, and I, agreeing to the above and to help him, do approve. I therefore command you to help and assist the said bishop or his authorised representatives with any tithes you may have collected or that remain in the said bishopric of Chiapa belonging to the church, from the day the said predecessor died until the day when he will enter and enjoy the five hundred thousand maravedis which we order to be given him. Dated in Valladolid thirteenth day of February 1544—I the Prince—by command of His Highness, Juan de Samano.

THE PRINCE. Forasmuch as the Reverend Father in Christ, Fray Bartholomew de Las Casas, bishop-elect of the city of Ciudad Real of the plains of Chiapa has informed me that it may happen that in the Cathedral of your said bishopric, there may not be more than one or two incumbents, presented by us and installed by you in the dignities, canonries, and prebends of the diocese, and, that not being more numerous, they must divide amongst them all that pertains to the capitula mensa and promotes the service of God our Lord and increases the divine cult in the said church. Should this be the case, the persons who were installed and were present should take what was required for its establishment, and out of the remainder competent salaries should be given to some of the priests who serve in the said church so long as there are no more beneficiaries, as we desire that the above mentioned may be corrected. We order and charge by these presents that, when it happens that in the said church there are not at least four incumbents in residence, you will appoint up to the said number to fill the vacant [pg 446] places, and priests who lead exemplary lives and of the necessary abilities to serve in the said church, as its canons and priests should; you will give them a sufficient salary from the funds that belong to the Order of the Chapter; first paying those who reside there and are ordained as the foundation statutes provide. And what may be left over

from this and from the said salaries, which you will order to be paid from the said funds, you will order to be divided among all those installed and named by you, according to what is due to each. But should it happen that four incumbents or more than are entitled to, reside in the said church, let them have from the funds of the said Order of the Chapter, according to the foundation. And you will endeavour to hold them to this and will report to our Council for the Indies by the first ships sailing, all particulars respecting the persons appointed, with their salaries as before mentioned, and their capabilities, so that we may judge what will be most useful to the service of God our Lord, and to Holy Church.

And take care to enlighten us when the funds increase, that we may appoint more persons for the service of the said church. And be careful that the salaries you have to fix, do not exceed the usual amount allowed in like cases. Dated in the town of Valladolid, thirteenth day of February 1544. I, the Prince, by command of His Highness, Juan de Samano, signed by the Bishop of Cuenca, by the licentiate Gre. Velasquez, Gregorio Lopez y Salmeron.

THE PRINCE. Our officials in New Spain; you already know how, on account of the good reports we have had of the character and merits of the Reverend Father, Fray Bartholomew de Las Casas, we presented him to the bishopric of the province of Chiapa in the place of Don Juan de Arteaga the late bishop; and as his bulls have [pg 447] been sent and their delivery cost eighty-eight thousand, nine hundred and twenty-five maravedis, which amount must be paid out of the five hundred thousand maravedis which we ordered in another document to be given to him yearly in that country, and because our officials of India House, who reside in the city of Seville, have by our order paid eighty-eight thousand nine hundred and twenty-five maravedis, I ordered them to send you this my cedula in order that you might repay it. I therefore command you that of the five hundred thousand maravedis which the said Fray Bartholomew de Las Casas receives from us in that country, the two first years in succession, you will collect the said eighty-eight thousand nine hundred and twenty-five maravedis which you will send to the aforesaid officials at Seville, that we may be repaid therefrom.

Dated, in Valladolid 1st of April 1544, I, the Prince, countersigned by Samano, signed by the bishop of Cuenca, Velasquez, Gregorio Lopez y Salmeron.

THE PRINCE. Counsellors, judges, lawyers, gentlemen, esquires, officials, and all royal subjects of the city of Ciudad Real of the plains of Chiapa; know ye that the Emperor King, my sovereign, on account of the good reports he had of the character, life, and habits of the Reverend Fray Bartholomew de Las Casas, has presented him to this bishopric. Because we hope our Lord will be well served by him, we have ordered him to start without waiting for his bulls and we have provided him with what we thought necessary. I charge and command you to honour him and treat him justly, and to ask his advice in whatever matters may occur and in accordance with the service of God our Lord and the good government of this city, for I trust that by his good works and example and the great zeal he shows for [pg 448] the service of God and for His Majesty, he will counsel and guide you in whatever may contribute to the best results. Valladolid, 23rd of February, etc.

THE PRINCE. Venerable dean and chapter of the Cathedral of the bishopric of Chiapa: know ye that the Emperor King, my sovereign, because of the good report he had of the character, life, and habits of Fray Bartholomew de Las Casas, has presented him to this bishopric; and because we hope that our Lord will be well served by his mission and for the benefit of the Holy Church, we have ordered him to start without waiting for his bulls to be granted to him, and we have ordered what provision we thought necessary. I charge and command you to honour him and to treat him with respect and to take his advice in everything necessary for the government of the church during the time he is awaiting consecration, because I hope that with his wise teachings, good example, and the zeal he shows in the service of God and His Majesty, he will advise and direct what is most advantageous to the best results.

Valladolid 23rd of February 1544, Idem, etc.

THE PRINCE. Presidents and Auditors of Our Audiencia and Royal Chancellery of the Confines: know ye that the Emperor King, my sovereign, on account of the good reports he had of the character, life, and

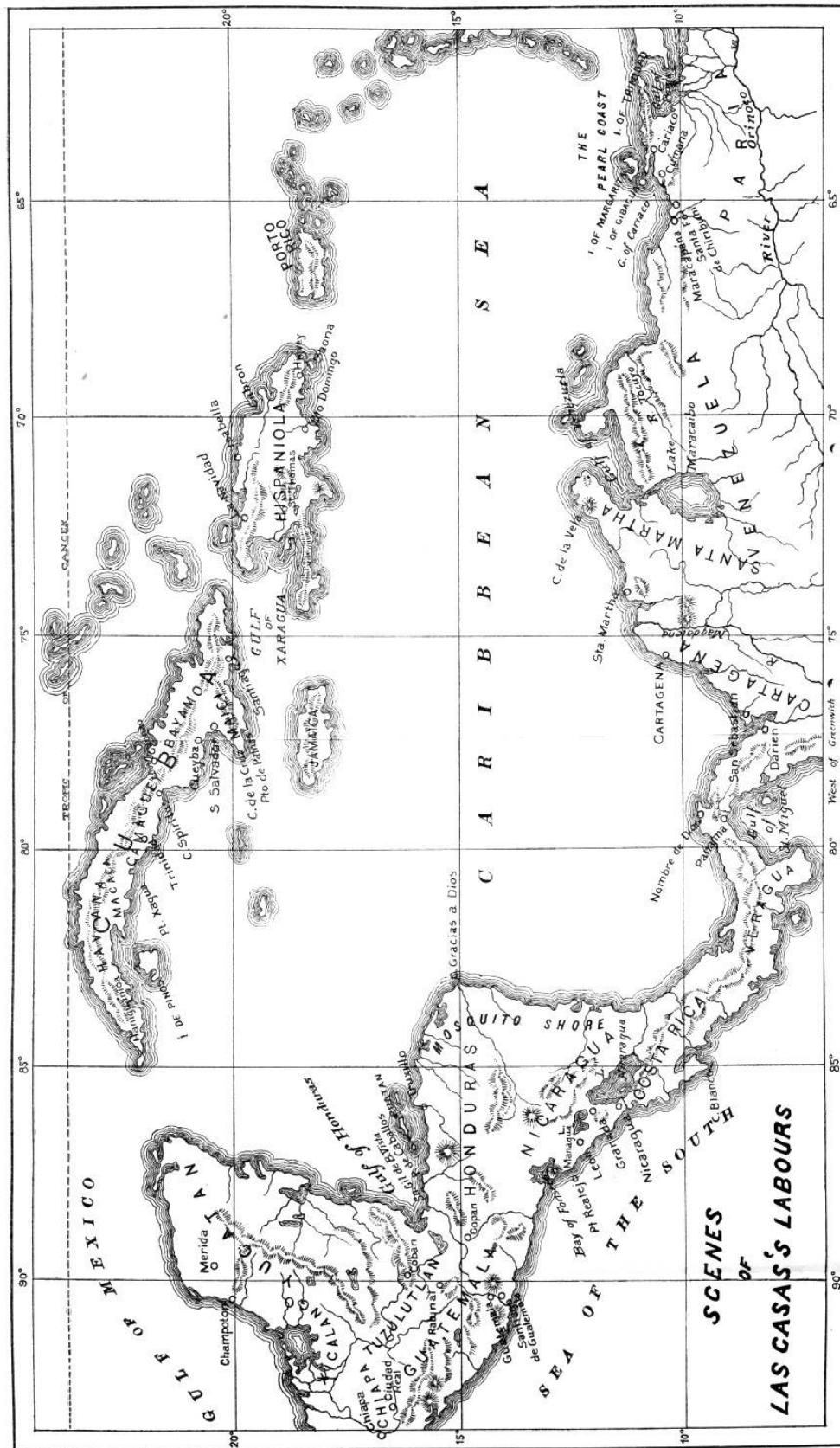
habits of the Reverend Fray Bartholomew de Las Casas, has presented him to the bishopric of the city of Ciudad Real of the plains of Chiapa. With a view to the good results we hope he will achieve in instructing and converting the natives of his diocese, we have commanded him to depart without waiting for his bulls. Being the man he is and having had so much experience in the affairs of those parts, we have entrusted to him to let us know what is happening over there, and what is necessary [pg 449] for the service of God our Lord in that country and among its natives. Therefore I charge and command you that whenever the said bishop has anything to relate to you you will listen and endeavour to help him in the service of God, your Father and ours. And in whatever befalls him, you will help and favour and honour him, according as his dignity demands.

Valladolid, 13th of February 1544—I, the Prince—by command of His Highness Juan de Samano, signed by the Bishop of Cuenca and the licentiate Gutierrez Velasquez, Gregorio Lopez y Salmeron.

THE PRINCE. President and judges of our Council and of Our Royal Chancellery of the Confines; know ye that the Emperor King, my sovereign, presented the bishopric of the city of Ciudad Real of the plains of Chiapa to the licentiate Arteaga, and His Holiness, in response to the said representation, conferred it upon him. After his death, His Majesty, presented the said bishopric to Fray Bartholomew de Las Casas, whom we have commanded to depart without waiting for his bulls, and to fulfil the good we hope he will accomplish among the natives of the said bishopric. And that he may know the limits of the said bishopric, dividing it from the bishoprics of Guatemala, Honduras, Tiascala, and Guascaco, I command that upon his arrival there, you show him the limits to which the said bishopric of Chiapa extends. Bearing in mind how the said Fray Bartholomew de Las Casas has served and will serve us, and the good he can do in the conversion of the natives in the said bishopric, the boundaries which will be pointed out to him must be quite distinct from the other bishoprics of the country, for as long as it is our wish—Dated in the town of Valladolid 13th day of February 1544—I, the Prince, etc.

[pg 450]

THE PRINCE. President and judges of our Audiencia and Royal Chancery of the Confines. Fray Bartholomew de Las Casas, bishop-elect of the city of Ciudad Real of the plains of Chiapa, has informed me, and we all well know, that he and the other priests of his Order have worked hard to bring peace to the provinces of Teçulatlan, Lacandon, and others that were engaged in warfare; these provinces are situated within the limits of the bishopric and he beseeches me, since he and the said priests have understood and are endeavouring to bring peace to the said provinces, to be good enough to order that they shall be included within the limits of his diocese; thus included, he would work with more love and zeal than any former prelate to convert the natives to a knowledge of the Holy Catholic Faith, according to our wishes. Our Council of the Indies having considered this, it was agreed that I should send you this my cedula, and as I approved, I command you to see to the above. Should the said provinces of Teçulatlan and Lacandon be outside the limits of the said diocese of Chiapa, you will arrange that the said Fray Bartholomew de Las Casas has them under his charge as prelate, until His Holiness, upon our presentation, appoints a prelate over the said provinces. Let the said bishop-elect have charge of the spiritual affairs in those provinces and as prelate take a fourth part of the tithes which belong to him in the said provinces; the other three quarters shall be distributed among the ecclesiastical ministries already in existence in the said provinces and in the repairs and the decorations of the churches of them. Dated in Valladolid thirteenth day of February 1544—I, the Prince, etc.



Scenes of Las Casas's Labours

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L. obispo f. bme
 de las Casas.

Holograph of Las Casas Giving Directions for the Publication of his Work.

Reproduced from Thacher's "Christopher Columbus".

*** END OF THE PROJECT GUTENBERG EBOOK BARTHOLOMEW
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